



# SUPREME COURT REPORTS

The Official Law Report  
Fortnightly

2026 | Volume 7 | Part 1

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**Darubai & Anr.**  
**v.**  
**Kamalabai & Ors.**

(Civil Appeal No. 8358 of 2026)

01 June 2026

**[Sanjay Karol\* and Augustine George Masih, JJ.]**

**Issue for Consideration**

Whether the defendant could avail the ground of legal necessity as '*karta*' of the family, and whether the parties to the *lis*, would succeed to the suit properties as tenants in common or joint tenants, since their rights flow from s.8 of the Hindu Succession Act, 1956.

**Headnotes<sup>†</sup>**

**Hindu Succession Act, 1956 – s.8 – The four plaintiffs including the present respondent had filed suit for partition and separate possession claiming to be 4/5<sup>th</sup> owners of the property of late Da, being the successors-in-interest as his daughters along with Di, who is the wife of Da – In other words, this dispute which has been ongoing for more than half-a century is a dispute between a step-mother and daughters – The Civil Court decreed the suit holding the plaintiffs to be entitled to their ask – The defendant's reasoning that she had agreed to sell a part of the suit property, as '*karta*' to one Dat, out of legal necessity for the marriage of one of the plaintiffs, was rejected – The First Appellate Court, reversed the findings and held the legal necessity ground to be established along with the defendant's right to manage the property and so, the judgment of the Civil Court was interfered with inasmuch as the sale to Dat is concerned, only – In the Second Appeal filed by plaintiff no.4, the judgment of the Civil Court came to be restored – Correctness:**

**Held:** In the context of s.8, the question of *karta-ship* ordinarily does not arise merely because the property has come from a paternal ancestor – The heirs succeed as tenants-incommon with definite and separate shares, and the property devolves by succession

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\* Author

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rather than by survivorship – Upon the death of Da, Di and her four step daughters became tenants-in-common with definite and separate shares, to the tune of 1/5<sup>th</sup> each – When each of them have separate and identifiable shares, in the considered view of this Court, there arises no question of the defendant acting as *karta* to sell off a part of the property on account of legal necessity, be it for whatever reason, for she only had the right to do whatever she wished with the 1/5<sup>th</sup> share of the property that vested with her. [Paras 7, 8]

**Tenancy – Joint tenancy and Tenancy in common – Discussed.**  
[Para 7]

### Case Law Cited

*CWT v. Chander Sen* [1986] 3 SCR 254 : (1986) 3 SCC 567; *Yudhishter v. Ashok Kumar* [1987] 1 SCR 516 : (1987) 1 SCC 204; *M. Arumugam v. Ammaniammal* [2020] 1 SCR 41 : (2020) 11 SCC 103 – referred to.

*Jogeswar Narain Deo v. Ram Chund Dutt*, 1896 SCC OnLine PC 5; *In re Schar Midland Bank Executor and Trustee Co. Ltd. v. Damer* (1950) (2) A.E.L.R., 1069, at p. 1072 – referred to.

*Nawab Nisar Ali Khan v. Sardar Nawazish Ali Khan*, 1939 SCC OnLine Lah 153; *Azizun Nisa v. Assistant Custodian*, 1957 SCC OnLine All 83 – referred to.

### List of Acts

Hindu Succession Act, 1956.

### List of Keywords

Suit; Partition; Possession; Joint Tenancy; Tenancy-in-Common; Rule of Survivorship; Distinct and Undivided Share; Section 8 of the Hindu Succession Act, 1956; Ancestral Property; Devolution of Interest; Legal Heirs; Kartaship; Inheritance; Co-Owner.

### Case Arising From

CIVIL APPELLATE JURISDICTION: Civil Appeal No. 8358 of 2026

From the Judgment and Order dated 31.03.2022 of the High Court of Judicature at Bombay at Aurangabad in SA No. 1648 of 2005.



**Darubai & Anr. v. Kamalabai & Ors.****Appearances for Parties**

*Advs. for the Appellant(s):*

Vivek C. Solshe, Varun V. Solshe, Pradeep K. Gupta, Ashok Kumar Gupta li.

*Advs. for the Respondent(s):*

Sandeep Sudhakar Deshmukh, Nishant Sharma, Ankur Savadikar, Kartik Sharma.

**Judgment / Order of the Supreme Court****Judgment**

**Sanjay Karol, J.**

Leave Granted.

2. The original-defendant is the appellant herein and challenges the final judgment and order dated 31<sup>st</sup> March 2022<sup>1</sup> passed by the High Court of Judicature at Bombay, Aurangabad Bench, which overturned the judgment in First Appeal<sup>2</sup> passed by the II<sup>nd</sup> Additional District Judge, Nanded, dated 9<sup>th</sup> March 1999 which was in turn directed against the judgment in the suit for partition and separate possession<sup>3</sup> in which the present respondent was the fourth plaintiff. The suit was decreed in terms of judgment dated 20<sup>th</sup> October 1995.
3. The four plaintiffs including the present respondent had filed suit for partition and separate possession claiming to be 4/5<sup>th</sup> owners of the property of late Dajiba, being the successors-in-interest as his daughters along with Darubai, who is the wife of Dajiba. In other words, this dispute which has been ongoing for more than half-a-century is a dispute between a step-mother and daughters. The suit property is *“land and two houses located at village Sapti bearing No. 42/B area 2 Acres 23 Gunthas. Bearing No. 83/B Area 0.20 Gunthas, iii) Survey No. 146/C Area 2 Acres and 10, iv) Survey No. 43/C Area 2 Acres 6 Gunthas, Houses: and two tiled houses out of which one of the house of bounded by East-Road, West-House*

1 Second Appeal No. 1648 of 2005

2 Regular Civil Appeal No. 234 of 1995

3 Regular Civil Suit No. 23 of 1972

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*of Sakharam, North-House of Baba, and South-House of Yadav, ii) which is bounded as, East House of Sakharam, West-Road, North-Road and South-House of Baba”.*

4. The Civil Court decreed the suit holding the plaintiffs to be entitled to their ask. The defendant’s reasoning that she had agreed to sell a part of the suit property, as ‘*karta*’ to one Dattatraya, out of legal necessity for the marriage of one of the plaintiffs, was rejected. The First Appellate Court, reversed the findings and held the legal necessity ground to be established along with the defendant’s right to manage the property and so, the judgment of the Civil Court was interfered with inasmuch as the sale to Dattatraya is concerned, only. In the Second Appeal filed by plaintiff no.4, the judgment of the Civil Court came to be restored. Hence, this appeal.
5. Two facets are not in dispute; the relationship *inter parties*, and the nature of the property as being the separate property of Dajiba. The question that we are asked to decide is whether the defendant could avail the ground of legal necessity as ‘*karta*’ of the family, and whether the parties to the *lis*, would succeed to the suit properties as tenants in common or joint tenants, since their rights flow from Section 8 of the Hindu Succession Act, 1956<sup>4</sup>.
6. The relevant provisions are as follows:
 

“8. General rules of succession in the case of males. — The property of a male Hindu dying intestate shall devolve according to the provisions of this Chapter:—

  - (a) firstly, upon the heirs, being the relatives specified in class I of the Schedule;
  - (b) secondly, if there is no heir of class I, then upon the heirs, being the relatives specified in class II of the Schedule;
  - (c) thirdly, if there is no heir of any of the two classes, then upon the agnates of the deceased; and
  - (d) lastly, if there is no agnate, then upon the cognates of the deceased.

...

**Darubai & Anr. v. Kamalabai & Ors.**

10. Distribution of property among heirs in class I of the Schedule.—The property of an intestate shall be divided among the heirs in class I of the Schedule in accordance with the following rules:—

Rule 1.—The intestate's widow, or if there are more widows than one, all the widows together, shall take one share.

Rule 2.—The surviving sons and daughters and the mother of the intestate shall each take one share.

Rule 3.—The heirs in the branch of each pre-deceased son or each pre-deceased daughter of the intestate shall take between them one share. Rule 4.—The distribution of the share referred to in Rule 3—

among the heirs in the branch of the pre-deceased son shall be so made that his widow (or widows together) and the surviving sons and daughters get equal portions; and the branch of his pre-deceased sons gets the same portion;

(ii) among the heirs in the branch of the pre-deceased daughter shall be so made that the surviving sons and daughters get equal portions.

And,

“19. Mode of succession of two or more heirs.—If two or more heirs succeed together to the property of an intestate, they shall take the property,—

(a) save as otherwise expressly provided in this Act, per capita and not per stirpes; and

b) as tenants-in-common and not as joint tenants.”

7. Now, we explore joint tenancy and tenancy in common. In a joint tenancy, all co-owners together constitute ownership. It is governed by the rule of survivorship. When one joint tenant dies, his interest automatically accrues to the surviving co-owners, and not on his own progeny. What this means is that while the joint tenancy subsists, none of the co-owners have a separate inheritable share. For instance, suppose ‘A’ and ‘B’ jointly hold a property under the *Mitakshara* system, if ‘A’ dies, ‘B’ automatically absorbs ‘A’s interest by survivorship. There is no question of it devolving upon ‘A’s

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widow or children. Ownership, therefore, continues in the surviving coparcener without any separate succession taking place. As far back as **Jogeswar Narain Deo v. Ram Chund Dutt**<sup>5</sup>, it was recognized that joint tenancy does not fit into the scheme of Hindu law of succession. Watson LJ held “*The principle of joint tenancy appears to be unknown to Hindu law, except in the case of coparcenary between the members of an undivided family.*”

On the other hand, in tenancy-in-common, each co-owner possesses a distinct, undivided share in the property. Physical possession may remain joint, the ownership of each individual co-owner is identifiable and notionally separate. Survivorship has no place in this form of devolution. Upon the death of one co-owner, his share devolves upon his own heirs according to the law of succession. To illustrate, suppose ‘A’ dies intestate leaving behind ‘B’ and ‘C’ as his heirs, under Section 8 read with Section 19 of the HSA, ‘B’ and ‘C’ inherit the property as tenants-in-common. Each acquires a definite share. If ‘B’ later dies, ‘B’s share will devolve upon ‘B’s own legal heirs and will not automatically pass to ‘C’. The difference in the two systems determines the nature of property inherited by a son from his father.

Ram Lal J. of the Lahore High Court in 1939 in **Nawab Nisar Ali Khan v. Sardar Nawazish Ali Khan**<sup>6</sup>, said thus:

“8....The distinction appears to us to lie in this, that where there is a jointness of title, each coparcener is in possession of every portion of the joint property while his share is not defined ... Such jointness of title can ordinarily exist in the case of a coparcenary property only, but where the shares of co-owners are known and ascertained, a suit for partition is virtually a suit to enforce a right to a share in joint family property.”

A 1957 judgment of the Allahabad High Court, **Azizun Nisa v. Assistant Custodian**<sup>7</sup>, aptly captures the distinction between the two concepts discussed above, as follows:

5 1896 SCC OnLine PC 5

6 1939 SCC OnLine Lah 153

7 1957 SCC OnLine All 83

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“18. This distinction between interest arising out of a right existing in the property and interest arising independently of any such right is very material when one has to consider a property owned by two or more persons. The joint owners may be tenants-in-common or joint tenants (or coparceners). In the case of tenants-in-common they own the property in ascertained or defined shares, but the property has not been divided into the shares. In the case of joint tenancy the joint owners own the property in coparcenary and their shares have not been ascertained and cannot be ascertained except perhaps at the time of partition. In a tenancy-in-common a joint owner's share is inherited on his death by his personal heirs, whereas in a joint tenancy on the death of a joint owner the property belongs to the surviving joint owners. In a tenancy-in-common each joint owner owns or has a right in his share; in a joint tenancy all the joint owners together own the property, a joint owner having no ascertained share cannot be said to own a particular share in it. If a property is owned by two persons in equal shares, each is an owner of a moiety in it and each can have his moiety separated from the other. But if two persons have an interest in a property, their interests cannot be separated and must always remain joint. There can be extinction of the interest of one of them but not partition. Assets of a company became evacuee property on account of an evacuee share-holder's having an interest, but since the interest extended over the entire property, the entire property must become evacuee property. In the case of tenancy-in-common every joint owner owns his share in the property and his share can always be separated from the others' share. The share owned by him could alone become evacuee property. He could be said to have an interest in the whole property, but since his interest was derived from his share in the property, which share could be partitioned off leaving him without any interest in the rest of the property, it would have been unnecessary and unreasonable to make the whole property evacuee property. So it could not have been intended by the Legislature that the whole should become

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evacuee property. This intention could be effectuated by interpreting the words “or interest” as suggested above.”

In the very same judgment, the Allahabad High Court, has also referred to a case appearing in the All England Law Reports titled ***In re Schar Midland Bank Executor and Trustee Co. Ltd. v. Damer***<sup>8</sup> which held as follows: “*the unity of the estate and of the interest in the estate enures for the benefit of each and all and..... each and all have one undivided and indivisible property in the subject-matter.*”

The issue stands conclusively settled in ***CWT v. Chander Sen***<sup>9</sup>. The Court held that when property devolves upon a son under Section 8, the son takes it in his individual capacity and not as *karta* of his own Hindu Undivided Family. Once again, employing the means of a simple illustration-suppose ‘A’ dies intestate after 1956 leaving behind his son ‘B’. ‘B’ inherits ‘A’s property under Section 8. Under *Mitakshara* doctrine, ‘B’s son ‘C’ would automatically acquire a birthright in that property, and ‘B’ would hold it as *karta* of the joint family consisting of himself and ‘C’. However, since the property devolved through Section 8 succession, ‘B’ takes the property as his separate property. ‘C’ acquires no right in it by birth merely because it once belonged to ‘A’. This is in accordance with ***Yudhishter v. Ashok Kumar***<sup>10</sup>, where Sabhyasachi Mukherji J.,(as he then was) who was also the author of the decision in ***Chander Sen*** (supra), reiterated that property inherited under Section 8 does not automatically assume the character of coparcenary property. It was held that descendants of the heir do not acquire rights in such property by birth because the inheritance is individual and statutory in nature.

Recent iteration of this understanding was expressed in ***M. Arumugam v. Ammaniammal***<sup>11</sup>, by this Court as follows:

“15. In *Appropriate Authority (IT Deptt.) v. M. Arifulla* [*Appropriate Authority (IT Deptt.) v. M. Arifulla*, (2002) 10 SCC 342] the issue which arose was whether the property inherited in terms of Sections 6 and 8 of the Succession Act was to be treated as the property of co-owners or as

8 (1950) (2) A.E.L.R., 1069, at p. 1072.

9 (1986) 3 SCC 567

10 (1987) 1 SCC 204

11 (2020) 11 SCC 103

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joint family property. The Court held as follows: (SCC p. 344, para 3)

“3. ... This Court has held in *CWT v. Chander Sen* [*CWT v. Chander Sen*, (1986) 3 SCC 567 : 1986 SCC (Tax) 641] that a property devolving under Section 8 of the Hindu Succession Act, is the individual property of the person who inherits the same and not that of the HUF. In fact, in the special leave petition, it is admitted that Respondents 2 to 5 inherited the property in question from the said T.M. Doraiswami. Hence, they held it as tenants-in-common and not as joint tenants.”

17. There is another reason to take this view. Section 30 of the Succession Act clearly lays down that any Hindu can dispose of his share of the property by will or by any other testamentary disposition which is capable of being so disposed of by him. The Explanation to Section 30 clearly provides that the interest of a male Hindu in Mitakshara coparcenary shall be deemed to be property capable of being disposed of by him within the meaning of Section 30. This means that the lawmakers intended that for all intents and purposes the interest of a male Hindu in Mitakshara coparcenary was to be virtually like his self-acquired property. Furthermore, when we conjointly read Section 30 with Section 19, which provides that when two or more heirs succeed together to the property of an intestate, they shall take the property per capita and as tenants-in-common and not as joint tenants. This also clearly indicates that the property was not to be treated as a joint family property though it may be held jointly by the legal heirs as tenants-in-common till the property is divided, apportioned or dealt with in a family settlement.”

**(Emphasis supplied)**

Accordingly, in the context of Section 8, the question of *karta-ship* ordinarily does not arise merely because the property has come from a paternal ancestor. The heirs succeed as tenants-in-common with definite and separate shares, and the property devolves by succession rather than by survivorship.

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8. In view of what has been discussed hereinabove, it has been held that upon the death of Dajiba, Darubai and her four step daughters became tenants-in-common with definite and separate shares, to the tune of 1/5<sup>th</sup> each. When each of them have separate and identifiable shares, in the considered view of this Court, there arises no question of the defendant acting as *karta* to sell off a part of the property on account of legal necessity, be it for whatever reason, for she only had the right to do whatever she wished with the 1/5<sup>th</sup> share of the property that vested with her.
9. Consequently, the appeal fails and is dismissed. We only hope that with the finality that accompanies the above conclusion, the long-standing dispute between the parties can, in true effect, be put behind them, by the parties and they can truly move on to a better, more peaceful tomorrow for all those involved. In the circumstances, there shall be no order as to costs.

Pending applications, if any, shall be disposed of.

*Result of the case:* Appeal dismissed.

*<sup>†</sup>Headnotes prepared by: Ankit Gyan*



[2026] 7 S.C.R. 11 : 2026 INSC 616

**National Highway Authority of India**

**v.**

**T. Younis & Anr.**

(Civil Appeal No. 8388 of 2026)

02 June 2026

**[Pamidighantam Sri Narasimha and Alok Aradhe, JJ.]**

**Issue for Consideration**

Whether the limitation u/s.34(3) of the Arbitration and Conciliation Act, 1996 would commence from the date of the original award or from the date on which the application u/s.33 came to be disposed of.

**Headnotes<sup>†</sup>**

**Arbitration and Conciliation Act, 1996 – ss.33, 34 – National Highways Act, 1956 – ss.3A(1), 3G(1) – Acquisition of land by the Central Government – The Competent Authority determined the compensation – Appellant invoked Arbitration u/s.3G(1) – The Arbitrator passed an Award on 03.2.2022 by granting the benefit of ss.23(1- A), 23(2), 28 and s.34 of the Land Acquisition Act, 1894 – Both Appellant and Respondent no.1 filed separate applications u/s.33, which were dismissed by the Arbitrator by a common order dated 04.07.2022 – The certified copy of the said order was received by the Appellant on 15.09.2022 – Appellant filed applications u/s.34 of the Act along with applications seeking condonation of delay – Respondent no.1 raised an objection – The Principal District & Sessions Judge condoned the delay in filing the applications u/s.34 of the Act – Respondent no.1 challenged the same by filing a writ petition – The High Court concluded that the benefit of limitation u/s.34(3) of the Act was not available and, therefore, the limitation could not be computed from the date of disposal of such applications – Consequently, the arbitration applications were dismissed – Correctness:**

**Held:** The issue involved in the instant appeal is no longer *res integra* – It is settled that for the purposes of computation of limitation u/s.34(3) of the Act, it is the date of disposal of the application u/s.33 of the Act that would earmark the starting point of limitation for filing an application u/s.34 of the Act – A plain

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reading of s.34(3), read in the light of the law laid down in *Geojit*, makes it clear that once jurisdiction u/s.33 is formally invoked and such proceedings are entertained by the Arbitral Tribunal, the limitation for filing an application u/s.34 would commence only from the date on which such request is disposed of by the Arbitral Tribunal – In the facts of the present case, it is not in dispute that the certified copy of the common order dated 04.07.2022 disposing of the applications u/s.33 was received by the Appellant on 15.09.2022 and that the applications u/s.34 were thereafter filed on 07.11.2022 – Thus, even reckoning limitation from the date of receipt of the order disposing of the applications u/s.33, the applications u/s.34 of the Act were instituted within the period contemplated u/s.34(3) of the Act – Therefore, the contention of the Respondent that the applications u/s.34 of the Act were barred by limitation does not merit acceptance – Accordingly, the impugned judgment and order dated 22.01.2024 passed by the High Court is set aside – The orders dated 05.08.2023 passed by the Principal District and Sessions Judge condoning the delay in filing the applications u/s.34 of the Act, are restored – The applications u/s.34 of the Act, to be decided on their own merits, in accordance with the law. [Paras 18-20]

### Case Law Cited

*State of Arunachal Pradesh v. Damani Construction Co.* [2007] 3 SCR 416 : (2007) 10 SCC 742; *Geojit Financial Services Ltd. v. Sandeep Gurav*, 2025 INSC 1021 : [2025] 8 SCR 1427; *Ved Prakash Mithal and Sons v. Union of India*, 2018 SCC OnLine SC 3181; *USS Alliance v. State of U.P.*, 2023 SCC OnLine SC 778 – referred to.

### List of Acts

Arbitration and Conciliation Act, 1996; National Highways Act, 1956; Land Acquisition Act, 1894.

### List of Keywords

Section 34(3) of the Arbitration and Conciliation Act, 1996; Section 33 of the Arbitration and Conciliation Act, 1996; Section 3G of the National Highways Act, 1956; Limitation Period; Commencement of Limitation; Time-Barred Challenge; Enhancement of Compensation; Extension of Limitation; Land Acquisition Proceedings.

**National Highway Authority of India v. T. Younis & Anr.****Case Arising From**

CIVIL APPELLATE JURISDICTION: Civil Appeal No. 8388 of 2026

From the Judgment and Order dated 22.01.2024 of the High Court of Karnataka Circuit Bench at Dharwad in WP No. 105176 of 2023

**Appearances for Parties**

*Advs. for the Appellant(s):*

Ms. Pinky Anand, Sr. Adv., Tarun Dua, Sumit Gupta, Ms. Saudamini Sharma, Akshay Kumar Tiwari, Ms. Tanya Shrotriya, Venkita Subramoniam T.R.

*Advs. for the Respondent(s):*

Sushil Kumar Jain, Sr. Adv., Anandakumar A Magadum, Darpan Km, Ms. Amrita Sharma, Rajat Jonathan Shaw, Ajay Magadum, Ms. Easha Chandhok, Prashant Upadhyay, Ms. Mahima Sadawat, Sidharth Jain, Ms. Rashi Bansal.

**Judgment / Order of the Supreme Court****Judgment**

1. Leave granted.
2. The present appeal arises from the judgment and order dated 22.01.2024, passed by the High Court of Karnataka, Dharwad Bench, ("High Court") by which the writ petition<sup>1</sup> preferred by the Respondents was allowed. By the said order, the High Court, set aside the order dated 05.08.2023 passed by the Principal District and Sessions Judge, Bellary, whereby delay in filing the applications under Section 34 of the Arbitration and Conciliation Act, 1996 ("the Act") was condoned.
3. Facts leading to filing of this appeal are that on 15.12.2009, the Ministry of Shipping, Road Transport and Highways issued a preliminary notification under Section 3A(1) of the National Highways Act, 1956, ('1956 Act') for acquisition of land in Bellary District. The said notification included the land belonging to Respondent No.1 as well. By a declaration dated 14.12.2010 issued under

<sup>1</sup> Writ Petition No. 105176 of 2023 (GM-RES).

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Section 3D(2), the land vested in the Central Government free from all encumbrances. The competent authority by an Award dated 05.12.2011, determined the compensation under Section 3G(1) of the 1956 Act.

4. The Appellant invoked the remedy of Arbitration under Section 3G(5) of the 1956 Act. The Deputy Commissioner-Cum-Arbitrator, Bellary (Arbitrator) *vide* Award dated 16.02.2013, redetermined the market value of agricultural land at the rate of Rs.362/- per sq. metre, whereas the market value of the non-agricultural land was assessed at Rs.741/- per sq. metre. The High Court by an order dated 16.03.2019 set aside the Arbitral Award dated 16.02.2013 and remitted the matter to the Arbitrator for *de novo* consideration.
5. Pursuant to the remand, the Arbitrator conducted fresh proceedings and passed an Award on 03.2.2022 by granting the benefit of Section 23(1-A), 23(2), 28 and Section 34 of the Land Acquisition Act, 1894 (1894 Act). On 08.03.2022, the Appellant filed application under Section 33(1)(a) of the Act before Arbitrator seeking correction of Arbitral Award, *inter alia* on the ground that grant of additional market value under Section 23 and interest under Section 34 of the 1894 Act is not legally sustainable. On 10.03.2022, the Respondent No.1 filed an application under Section 33(4) of the Act seeking an additional award of 50% over and above the market value on the ground that such a claim had been raised during the Arbitral Proceeding, but the same was omitted in the final Award. The Arbitrator by a common order dated 04.07.2022, dismissed the applications filed under Section 33 of the Act by the Appellant as well as Respondent No.1. The certified copy of the said order was received by the Appellant on 15.09.2022.
6. On 29.10.2022, the Appellant filed applications under Section 34 of the Act along with applications seeking condonation of delay<sup>2</sup>. The Respondent No. 1 raised an objection contending that the applications under Section 34 of the Act were filed with delay which was beyond the condonable period of delay of 120 days, as provided, in proviso to Section 34(3) of the Act. The Principal District & Sessions Judge, Bellary by an order dated 05.08.2023 condoned the delay in filing the applications under Section 34 of the Act and allowed the same. The

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2 Arbitration Application Nos. 3/2022 and 4/2022.

**National Highway Authority of India v. T. Younis & Anr.**

Respondent No.1 challenged the aforesaid order dated 05.08.2023 in a Writ Petition<sup>3</sup>.

7. The High Court by a judgment and order dated 22.01.2024, held that Section 33(1) (a) of the Act permits correction of computation, clerical or typographical errors or errors of similar nature. It was further held that the prayer made in the application filed by the Appellant seeking modification of the Arbitral Award did not fall within the purview of Section 33(1)(a) of the Act and hence the same was not maintainable. The High Court concluded that the benefit of limitation under Section 34(3) of the Act was not available and, therefore, the limitation could not be computed from the date of disposal of such applications. Consequently, the arbitration applications<sup>4</sup> were dismissed. Aggrieved by the judgment of the High Court, the Appellant has filed the present appeal.
8. We have heard Ms. Pinky Anand, learned senior counsel appearing for the Appellant and Mr. Sushil Kumar Jain, learned senior counsel appearing for the Respondent.
9. The learned senior counsel appearing for the Appellant submitted that both the parties had filed applications under Section 33 of the Act, therefore, the Appellant could not have filed the application under Section 34 of the Act, before disposal of the said applications. It is contended that High Court erred in refusing to exclude the period spent in disposal of the application under Section 33 while computing the limitation under Section 34(3) of the Act and erred in placing reliance on the decision in **State of Arunachal Pradesh v. Damani Construction Co.**<sup>5</sup> It is urged that the application under Section 33(1)(a) merely sought correction of clerical and typographical errors in the Arbitral Award and did not amount to review of the Award. It is submitted that the issue involved in the appeal is no longer *res integra* and has been dealt with by this Court in **Geojit Financial Services Ltd. v. Sandeep Gurav**<sup>6</sup>.
10. *Per contra*, learned senior counsel for Respondent No.1 submitted that the application filed by the Appellant under Section 33(1)(a) of the

3 W.P. No. 105176/2023.

4 Arbitration Application Nos. 3/2022 and 4/2022.

5 (2007) 10 SCC 742

6 2025 INSC 1021.

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Act, in substance was an attempt to review the Arbitral Award and not merely an application for correction of clerical or typographical errors. It was contended that Appellant had sought modification of substantive findings in the Award which fell outside the limited scope of Section 33(1)(a). It was urged that only an application which is maintainable under Section 33 could extend the limitation under Section 34(3) of the Act. Relying on ***State of Arunachal Pradesh*** (supra), it was contended that since the Appellant's application under Section 33 of the Act was itself not maintainable, it could not claim exclusion of time spent in disposal of the said application for the purposes of limitation. It was argued that Arbitral Tribunal had become *functus officio* after passing of the Award and therefore the merits of the dispute could not be reopened in the guise of an application under Section 33 of the Act. It was further argued that Appellant's applications under Section 34 were barred by limitation as the same were filed beyond the statutory outer limit prescribed under Section 34(3) of the Act, even assuming that the Appellant is entitled to exclusion of time for the period spent in disposal of application under Section 33 of the Act.

11. Having heard the rival contentions and perusing the material on record, the issue that arises is whether the limitation under Section 34(3) would commence from the date of the original award or from the date on which the application under Section 33 came to be disposed of.
12. For the sake of convenience, the relevant part of Sections 33 and 34 of the Act, are extracted below:

#### **Section 33**

***“33. Correction and interpretation of award; additional award. — (1) Within thirty days from the receipt of the arbitral award, unless another period of time has been agreed upon by the parties—***

*a party, with notice to the other party, may request the arbitral tribunal to correct any computation errors, any clerical or typographical errors or any other errors of a similar nature occurring in the award;*

*(b) if so agreed by the parties, a party, with notice to the other party, may request the arbitral tribunal to give an interpretation of a specific point or part of the award.*

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*(2) If the arbitral tribunal considers the request made under sub-section (1) to be justified, it shall make the correction or give the interpretation within thirty days from the receipt of the request and the interpretation shall form part of the arbitral award.*

*(3) The arbitral tribunal may correct any error of the type referred to in clause (a) of sub-section (1), on its own initiative, within thirty days from the date of the arbitral award..."*

**Section 34*****"34. Application for setting aside arbitral award.***

*(...)*

*(3) An application for setting aside may not be made after three months have elapsed from the date on which the party making that application had received the arbitral award or, if a request had been made under section 33, from the date on which that request had been disposed of by the arbitral tribunal:*

*Provided that if the Court is satisfied that the applicant was prevented by sufficient cause from making the application within the said period of three months it may entertain the application within a further period of thirty days, but not thereafter."*

13. Section 33 of the Act deals with the request made to the Arbitral Tribunal for correction and interpretation of the award as well as for rendering additional award. An application under Section 33 of the Act is required to be made within a period of 30 days from the date of the receipt of the award. From careful scrutiny of Section 34(3) of the Act, it is evident that where a request under Section 33 of the Act has been made, the limitation for filing an application under Section 34 of the Act shall be reckoned from the date on which such request is disposed of by the Arbitral Tribunal. The said provision does not distinguish between the applications which are ultimately allowed or dismissed. The said provision also does not indicate that only an application which is maintainable under Section 33 of the Act would defer the commencement of litigation under Section 34(3)

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of the Act. Had the legislature intended to restrict the benefit only to the applications which were ultimately allowed or which were held to be maintainable, it would have expressly provided so. The Court cannot read into the provision a restriction which the legislature itself has not consciously incorporated.

14. Once proceedings under Section 33 are initiated and entertained by the Arbitral Tribunal, the award remains subject to the limited jurisdiction of the tribunal for correction, interpretation, or supplementation as contemplated under the provision. So long as such proceedings remain pending, the parties cannot be compelled to institute proceedings under Section 34 merely as a matter of abundant caution. The parties can effectively pursue their remedy under Section 34 only upon conclusion of the proceedings under Section 33. Consequently, the limitation prescribed under Section 34(3) can start only from the date on which the proceedings under Section 33 are disposed of.
15. In our view, the contention of the Respondent that only an application which is “maintainable” under Section 33 can defer the commencement of limitation under Section 34(3), cannot be accepted. Whether the application under Section 33 ultimately succeeds or fails, or whether the Arbitral Tribunal eventually finds that no correction or modification of the award is warranted, is not determinative for the purpose of Section 34(3). What is relevant is that whether the jurisdiction of the Arbitral Tribunal under Section 33 had been formally invoked and that such proceedings remained pending consideration before the tribunal.
16. The reliance placed by the Respondent on ***State of Arunachal Pradesh*** (supra) is misplaced. That case arose in an entirely different factual context where there was no formal application under Section 33 invoking the jurisdiction of the Arbitral Tribunal. The party had merely addressed a letter, in substance seeking review of the award and certain ancillary clarifications beyond the contours of section 33. It was in that context, that this Court held such communication could not entitle a fresh starting point of limitation under Section 34(3). The facts of the present case stand on an entirely different footing. Here, formal applications under Section 33 were admittedly filed by both parties within the statutory period, and the same were entertained and disposed of by the Arbitral Tribunal by a common order dated 04.07.2022.



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17. We are also of the view that the interpretation adopted by the High Court would defeat the scheme and object of the Act. If parties are compelled to institute proceedings under Section 34 during the pendency of proceedings, under Section 33 merely as a matter of abundant caution, it would result in multiplicity of proceedings and procedural uncertainty. At the same time, it is clarified that where applications under Section 33 are found to be sham, frivolous, or mala fide or solely filed for the purpose of defeating limitation under Section 34(3) of the Act, the courts would be justified in imposing exemplary and punitive costs, as maintaining the balance between preserving legitimate remedies and preventing abuse of process is fundamental to effective administration of justice.
18. Even otherwise, the issue involved in the instant appeal is no longer *res integra*. This Court<sup>7</sup> after examining Sections 33 and 34(3) of the Act has held that for the purposes of computation of limitation under Section 34(3) of the Act, it is the date of disposal of the application under Section 33 of the Act that would earmark the starting point of limitation for filing an application under Section 34 of the Act. We are in agreement with the view taken by this Court in aforesaid decisions. A plain reading of Section 34(3), read in the light of the law laid down in **Geojit** (supra), makes it clear that once jurisdiction under Section 33 is formally invoked and such proceedings are entertained by the Arbitral Tribunal, the limitation for filing an application under Section 34 would commence only from the date on which such request is disposed of by the Arbitral Tribunal.
19. In the facts of the present case, it is not in dispute that the certified copy of the common order dated 04.07.2022 disposing of the applications under Section 33 was received by the Appellant on 15.09.2022 and that the applications under Section 34 were thereafter filed on 07.11.2022. Thus, even reckoning limitation from the date of receipt of the order disposing of the applications under Section 33, the applications under Section 34 of the Act were instituted within the period contemplated under Section 34(3) of the Act. Therefore, the contention of the Respondent that the applications under Section 34 of the Act were barred by limitation does not merit acceptance.

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<sup>7</sup> *Ved Prakash Mithal and Sons v. Union of India*, 2018 SCC OnLine SC 3181; *USS Alliance v. State of U.P.*, 2023 SCC OnLine SC 778, *Geojit* (supra).

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20. Accordingly, the impugned judgment and order dated 22.01.2024 passed by the High Court is set aside. The orders dated 05.08.2023 passed by the Principal District and Sessions Judge, Ballari, condoning the delay in filing the applications under Section 34 of the Act, are restored. The applications under Section 34 of the Act, shall now be decided on their own merits, in accordance with the law.
21. The appeal is accordingly allowed. Pending application(s), if any, shall stand disposed of.

*Result of the case:* Appeal allowed.

*\*Headnotes prepared by:* Ankit Gyan

**Kulsum Nisha  
v.  
State of U.P. & Ors.**

(Civil Appeal No. 7667 of 2025 )

02 June 2026

**[Pamidighantam Sri Narasimha and Alok Aradhe,\* JJ.]**

**Issue for Consideration**

Issue arose as regards the denial of allotment of the fair price shop to the appellant-married daughter in her capacity as a dependent, since the appellant is a married daughter and not covered within the definition of ‘family’ as defined under Clause 2(p) of the 2016 Order and as referred to in Paragraph (IV)10 of the G.O.

**Headnotes<sup>†</sup>**

**Essential Commodities Act, 1955 – s.3 – Uttar Pradesh Essential Commodities (Regulation of Sale and Distribution Control) Order, 2016 – Clause 7(2)(i) – Appointment of fair price shop under dependent quota after death of dealer – Appellant’s mother-allottee of a fair price shop, passed away and the order of attachment passed of the fair price shop – Appellant-married daughter, then filed an application before the SDM seeking allotment of the shop in her capacity as a dependent – Appellant was the sole earning member of the household responsible for her four sisters, one of whom is visually impaired, and even after her marriage she continued to reside with her mother and sisters – SDM rejected the application since the appellant is a married daughter and not covered within the definition of ‘family’ as provided in G.O – Deputy Commissioner affirmed the order of the SDM – High Court also rejected the claim of the appellant, for appointment as a fair price shop dealer on compassionate ground – Correctness:**

**Held:** Marital status cannot constitute a valid ground for denying the benefit of a welfare measure to an otherwise eligible daughter – Exclusion of a married daughter from the definition of “family” cannot be sustained – Scheme providing allotment under the dependent quota upon the death of a dealer is intended to mitigate the immediate hardship suffered by the family of the deceased

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\* Author

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dealer and to ensure continuity in the functioning of the public distribution system – Relevant considerations are dependency, financial need, residence, and the ability of the applicant to discharge the obligations attached to the dealership – Marital status bears no rational nexus to any of these considerations – Exclusion of married daughters from the definition of “family” fails the test of reasonable classification and is manifestly arbitrary – Distinction created by Paragraph IV(10) of the G.O. lacks any intelligible differentia having a rational nexus with the object of the scheme – Exclusion is founded solely upon marital status and gender stereotypes and consequently, violates Arts.14 and 15(1) of the Constitution – On a purposive construction of Clause 2(p) of 2016 Order, the expression “daughters” used in the said provision includes a married daughter who furnishes a dependency certificate along with No Objection Certificates from other adult family members of the deceased dealer and is a local resident and satisfies all other eligibility conditions prescribed in the G.O. – Provision, so construed, would neither suffer from any invalidity nor any constitutional infirmity – It is saved by the very meaning it bears when understood in the light of its purpose – Material on record establishes that the appellant continued to reside in the same village even after her marriage and actively assisted her mother in the operation of the fair price shop – Appellant upon her mother’s demise, assumed responsibility for maintaining her sisters, including a visually impaired sister – Authorities have not disputed these factual assertions – Sole ground on which her application was rejected was that she is a married daughter – Once that ground is held to be constitutionally invalid, no impediment survives to the grant of relief in her favour – Orders passed by the High Court, Deputy Commissioner and the SDM respectively quashed and set aside. [Paras 15, 18, 23-29]

### **Doctrines/Principles – Doctrine of purposive construction – Meaning:**

**Held:** Principle of purposive construction is based on the understanding that the Court is supposed to attach that meaning to a provision which serves the purpose behind it, the basic approach being to ascertain is what the provision is designed to accomplish – When the language of an enactment is reasonably capable of more than one meaning, the Court is not merely permitted but is obliged to prefer that construction which promotes the provision and avoids

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a result that would be arbitrary or unjust – Court should adopt purposive interpretation in cases where the literal interpretation may not serve the purpose or may lead to absurdity. [Para 24]

**Case Law Cited**

*Shri Ram Krishna Dalmia & Ors. v. Shri Justice S.R. Tendolkar & Ors.* [1959] 1 SCR 279; 1958 SCC OnLine SC 6 – followed.

*Agnigundala Venkata Ranga Rao v. Indukuru Ramachandra Reddy (D) by Lrs. & Ors.* [2017] 4 SCR 816 : (2017) 7 SCC 694; *Kishan Singh & Ors. v. State of Rajasthan & Ors.* [1955] 2 SCR 531 : (1955) 2 SCC 136; *T.M.A. Pai Foundation & Ors. v. State of Karnataka & Ors.*, [2002] Supp. 3 SCR 587 : (2002) 8 SCC 481; *Govt. of A.P. & Anr. v. Maharashi Publishers Pvt. Ltd. & Ors.* (2003) 1 SCC 95; *Amita v. U.O.I. & Anr.* [2005] Supp. 2 SCR 565 : (2005) 13 SCC 721; *State of U.P. & Ors. v. Maqbool Ahmad*, [2006] Supp. 5 SCR 375 : (2006) 7 SCC 521; *Soma Chakravarty v. State Thr. CBI* [2007] 6 SCR 324 : (2007) 5 SCC 403; *State of Punjab & Anr. v. Balkaran Singh* [2006] Supp. 7 SCR 298 : (2006) 12 SCC 709; *State of Karnataka v. C.N. Apoorva Shree*, Order dated 17.12.2021; *Savita Samvedi (Ms) and Anr. Union of India & Ors.* [1996] 1 SCR 1046 : (1996) 2 SCC 380; *C.B. Muthama v. Union of India* [1980] 1 SCR 668 : (1979) 4 SCC 260; *Director of Treasuries in Karnataka and Anr. v. V. Somyashree* [2021] 7 SCR 649 : (2021) 12 SCC 20; *State of Maharashtra and Anr. v. Madhuri Maruti Vidhate* [2022] 7 SCR 251 : 2022 SCC OnLine 1327; *Budhan Choudhry v. State of Bihar & Ors.* [1955] 1 SCR 1045 : (1954) 2 SCC 791; *Bombay Dyeing & Mfg. Co. Ltd. v. Bombay Environmental Action Group & Ors.* [2006] 2 SCR 920 : (2006) 3 SCC 434; *A.P. Dairy Development Corporation Federation v. B.Narasimha Reddy* [2011] 14 SCR 1 : (2011) 9 SCC 286; *Shayara Bano v. Union of India & Ors.* [2017] 9 SCR 797 : (2017) 9 SCC 1; *K.S. Puttuswamy & Anr. v. Union of India & Ors.* [2017] 10 SCR 569 : (2017) 10 SCC 1; *Nikesh Tarachand Shah v. Union of India & Anr.* [2017] 12 SCR 358 : (2018) 11 SCC 1; *Shailesh Dhairyawan v. Mohan Balkrishan Lulla* [2015] 12 SCR 70 : (2016) 3 SCC 619 – referred to.

*Ranjana Murlidhar Anerao v. State of Maharashtra & Ors.*, 2014 (5) Mah LJ 543; *State of West Bengal & Ors. v. Purnima Das & Ors.*, 2017 SCC OnLine Cal 13121; *Anjana Modak v. State of West Bengal & Ors.*, 2019 SCC OnLine Cal 6775; *Sulekha Gorain v.*

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*State of West Bengal & Ors.*, **2019 SCC OnLine Cal 9354**; *Smt. G.V. Hemavathi v. State of Karnataka & Ors.*; **Writ Pet. No. 51361 pf 2019 (GM-PDS)**; *Indira & Anr. v. State of Karnataka & Anr.*, **2024 SCC OnLine Kar 6749**; *Bhuvaneshwari V. Puranik v. State of Karnataka, Department of Personnel and Administrative Reforms & Ors.*, **2020 SCC OnLine Kar 3397**; *Kusumlata v. State of U.P. & Ors. U.P.*, **2021 SCC OnLine All 826**; *Sripalli Ammulu v. State of Andhra Pradesh & Ors.*, **2024 SCC OnLine AP 4718**; *Aparna Narendra Zambre & Anr. v. ASE Sangli and Ors.*, **2011 (5) Mah LJ 290**; *Sou. Swara Sachin Kulkarni (Kumari Deepa Ashok Kulkarni) v. Superintending Engineer, Pune Irrigation Project Circle & Anr.*, **2013 SCC OnLine Bom 1549**; *Smt. Sarojini Bhoi v. State of Chhattisgarh & Ors.*, **2015 SCC OnLine Chh 395**; *Deepa Rani Das v. State of Assam & Ors.*, **(2017) 4 Gau LR 423**; *Mamta Devi v. State of H.P. & Ors.*, **2020 SCC OnLine HP 2125**; *Central Coalfields Limited v. Hemanti Devi & Ors.*, **2018 SCC OnLine Jhar 918**; *Manjula v. State of Karnataka*; **ILR 2004 KAR 4881**; *V. Somyashree v. Director of Treasuries in Karnataka & Anr.*, **ILR 2019 KAR 3139**; *Meenakshi Dubey v. M.P. Poorva Kshetra Vidyut Vitran Co. Ltd. & Ors.*, **ILR 2020 MP 647**; *N. Uma v. Director of Elementary School Education, DPI Compound & Ors.*, **2017 SCC OnLine Mad 37756**; *R. Govindammal v. The Principal Secretary, Social Welfare and Nutritious Meal Programme Department & Ors.* **(2015) 3 LW 756**; *Bhanuprava Garnaik v. State of Odisha*, **2022 SCC OnLine Ori 4096**; *Kshirabadi Bala Behera v. Orissa Administrative Tribunal (2022) W.P. (C) No. 14945 of 2015*; *Abha Kumari v. Bank of India & Ors.*, **2024 SCC OnLine Pat 5529**; *Amarjit Kaur v. State of Punjab & Anr.*, **2020 SCC OnLine P&H 4490**; *Meenakshi Trivedi v. State of Rajasthan & Ors.* **(2024) 1 RLW 703**; *Shaheen Sultana & Anr. v. State of Telangana & Ors.*, **2025 SCC OnLine TS 1278**; *State of Tripura & Ors. v. Debashri Chakraborty*, **2022 SCC OnLine Tri 58**; *Udham Singh Nagar District Co-op Bank & Anr. v. Anjula Singh & Ors.*, **AIR 2019 Utt 69 – referred to.**

*Smt. Vimla Srivastava v. State of U.P. & Anr.*, **2015 SCC OnLine All 6776 – approved.**

*Smt. Kusumlata*, **Special Appeal No. 89 of 2022**; *Saida Begum* **2023:AHC-LKO:11230-DB – disapproved.**

### List of Acts

Essential Commodities Act, 1955; Constitution of India.

**Kulsum Nisha v. State of U.P. & Ors.****List of Keywords**

Denial of allotment of fair price shop to married daughter in her capacity as dependent; Definition of 'family'; Exclusion of married daughter from definition of 'family' as defined under Clause 2(p) of the 2016 Order; Appointment of fair price shop under dependent quota after death of dealer; Fair price shop; Order of attachment; Appointment as a fair price shop dealer on compassionate ground.

**Case Arising From**

CIVIL APPELLATE JURISDICTION: Civil Appeal No. 7667 of 2025

From the Judgment and Order dated 05.03.2025 of the High Court of Judicature at Allahabad, Lucknow Bench in WC No. 1401 of 2025

**Appearances for Parties**

Ms. Rukhmini Bobde, *Amicus Curiae*.

*Advs. for the Appellant(s):*

Anand Verma, Vivek Sura, Ms. Simran Verma, Shreyuss Shankar Joshi, Rohit Amit Sthalekar, Siddhant Singh.

*Advs. for the Respondent(s):*

S. R. Singh, Sr. Adv., Ankur Prakash, Rajat Singh.

**Judgment / Order of the Supreme Court****Judgment**

**Alok Aradhe, J.**

1. This appeal emanates from an order dated 05.03.2025 passed by the High Court of Judicature at Allahabad, Lucknow Bench (hereinafter referred to as "the High Court") by which the claim of the appellant, who is a married daughter of the deceased dealer, for appointment as a fair price shop dealer on compassionate ground, has been rejected.

**FACTUAL BACKGROUND**

2. On 27.10.2012, a fair price shop located at village panchayat Aariyawan, Development Block and Tehsil Tilo, District Amethi, was allotted to Smt. Badrun Nisha who was the mother of the appellant.

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3. In exercise of the powers under Section 3 of the Essential Commodities Act, 1955 ('1955 Act'), the UP Government through Notification dated 10.08.2016 notified the Uttar Pradesh Essential Commodities (Regulation of Sale and Distribution Control) Order, 2016 ('2016 Order'). Clause 7(2)(i) of the 2016 Order refers to a 'person appointed' to run a fair price shop and does not prescribe any eligibility criteria of marital status. The power to identify dependents is delegated to the State Government. The State of Uttar Pradesh issued G.O. No. 6 of 2019 on 05.08.2019 ('G.O.') governing the 'identification, reservation, and appointment of fair price shops in rural areas. Paragraph V of G.O. describes the procedure for appointment of fair price shop under the dependent quota, after the death of the dealer. Paragraph IV of G.O. prescribes the essential qualifications and conditions for selection in rural areas. Sub-Paragraph 10 of Paragraph IV, defines the expression 'family' which excludes 'married daughter'.
4. On 04.03.2024, the mother of the appellant passed away leaving, the appellant as the sole earning member of the household responsible for her four sisters, one of whom is visually impaired. The appellant even after her marriage continued to reside with her mother and sisters. The sub-Divisional Magistrate, Tiloi ('SDM') by an order dated 05.03.2024 ordered attachment of the fair price shop on the demise of the dealer, namely the mother of the appellant. On 19.03.2024, the appellant filed an application before the SDM seeking allotment of the shop in her capacity as a dependent. The SDM, by an order dated 16.07.2024, rejected the application solely on the ground that the appellant is a married daughter and is not covered within the definition of 'family' as provided in G.O. The Deputy Commissioner by an order dated 07.01.2025 affirmed the order of the SDM and dismissed the appeal.
5. The appellant challenged the aforesaid orders dated 16.07.2024 and 07.01.2025 passed by the SDM and the Deputy Commissioner respectively, in a Writ Petition. The High Court by an order dated 05.03.2025 *inter alia* held that it is bound by the Division Bench decisions of the High Court in **Smt. Kusumlata**<sup>1</sup> and **Saida Begum**<sup>2</sup>

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and held that the appellant is not entitled for compassionate appointment, as a dealer to run the fair price shop. The learned Single Judge however, noted the contrary view taken by the Bombay High Court<sup>3</sup> and observed that the question raised is of seminal importance, as it concerns the rights of married daughters who are adversely affected solely on the ground of the marriage. The High Court, therefore, granted a certificate under Article 134-A of the Constitution of India and held that the matter involves a substantial question of law of general importance. The writ petition was, however, dismissed. In the aforesaid factual background, this appeal arises for our consideration.

**SUBMISSIONS**

6. Mr. Anand Verma, learned counsel for the appellant submitted that exclusion of married daughter from beneficial allotment scheme, lacks any intelligible differentia or rational nexus with the object of the scheme, and violates Fundamental Rights guaranteed under Articles 14, 15(1), 19(1)(g) and 21 of the Constitution of India. It is urged that the marital status of a woman bears no constitutional relevance to eligibility for a welfare scheme. It is pointed out that there is conflict of opinion amongst the High Courts with regard to the eligibility of the married daughters for welfare schemes, which warrants an authoritative resolution by this Court to ensure consistency and uniformity in the application of the Fundamental Rights. In support of his submissions, reliance has been placed on the decisions of the Calcutta and Karnataka High Courts<sup>4</sup>.
7. Mr. S.R. Singh, learned senior counsel for the State of Uttar Pradesh, on the other hand, submitted that the plea of discrimination involving Articles 14, 15 and 19(1)(g) of the Constitution is misconceived and the classification between an unmarried daughter, a judicially separated daughter and a married daughter is a reasonable classification and the issue regarding violation of Articles 14, 15 and 19(1)(g) of the

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3 Ranjana Murlidhar Anerao v. State of Maharashtra & Ors.; 2014 (5) Mah LJ 543

4 State of West Bengal & Ors. v. Purnima Das & Ors., 2017 SCC OnLine Cal 13121; Anjana Modak v. State of West Bengal & Ors., 2019 SCC OnLine Cal 6775; Sulekha Gorain v. State of West Bengal & Ors., 2019 SCC OnLine Cal 9354; Smt. G.V. Hemavathi v. State of Karnataka & Ors.; Writ Pet. No.51361 pf 2019 (GM-PDS); Indira & Anr. v. State of Karnataka & Anr., 2024, SCC OnLine Kar 6749 and Bhuvaneshwari V. Puranik v. State of Karnataka, Department of Personnel and Administrative Reforms & Ors., 2020 SCC OnLine Kar 3397

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Constitution of India does not arise, as discrimination is among the same class. It is contended that one of the essential qualifications mentioned in sub-Paragraph 5 of Paragraph IV of G.O. provides that an applicant must be a local resident and it cannot be gainsaid that a married daughter is not a resident of the village as she shifts to her in-laws house in a different village. It is submitted that equal protection means Right to Equal treatment in similar circumstances, both in privileges conferred and liabilities imposed and persons who are unequally circumstanced cannot be treated on a par. In support of the aforesaid submissions, reliance has been placed on the decisions of this Court<sup>5</sup>.

8. Ms. Rukhmini Bobde, learned Amicus Curiae submitted that the compassionate appointment is an exception to the general rule of public employment based on merit and open competition, which is intended to provide immediate financial relief to the family of deceased employee and is not a matter of inheritance or automatic entitlement. It is urged that the same is granted on humanitarian grounds to meet the sudden crisis occurring in a family on account of death of breadwinner of a family. It is contended that marital status alone of an applicant is an irrelevant consideration and would fall foul of Articles 14 to 16 of the Constitution of India. It is urged that the dependency is a pure question of fact which an applicant must satisfy to be considered for appointment or allotment on compassionate grounds. It is urged that the definition of 'family' as provided in the scheme offends the object and purpose of the scheme and is violative of Articles 14 and 16 of the Constitution of India.
9. It is submitted that the divergent views have been taken by various High Courts with regard to entitlement of married daughters for beneficial schemes. It is urged that impugned Clause excluding married daughters, deserves to be struck down being violative of Articles 14 to 16 of the Constitution. It is pointed out that in the instant case, the appellant has actively assisted her mother in running the fair price shop and on her demise has assumed the responsibility of

5 Agnigundala Venkata Ranga Rao v. Indukuru Ramachandra Reddy (D) by Lrs & Ors., (2017) 7 SCC 694; Kishan Singh & Ors. v. State of Rajasthan & Ors., (1955) 2 SCC 136; T.M.A. Pai Foundation & Ors. v. State of Karnataka & Ors., (2002) 8 SCC 481; Govt. of A.P. & Anr. v. Maharashi Publishers Pvt. Ltd. & Ors., (2003) 1 SCC 95; Amita v. U.O.I. & Anr., (2005) 13 SCC 721; State of U.P. & Ors. v. Maqbool Ahmad, (2006) 7 SCC 521; Soma Chakravarty v. State Thr. CBI, (2007) 5 SCC 403 and State of Punjab & Anr. v. Balkaran Singh, (2006) 12 SCC 709

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maintaining visually impaired sister. It is, therefore, contended that the application of the appellant ought to be considered on its own merit by the competent authority. In support of the aforesaid submissions, reliance has been placed on the decisions of this Court<sup>6</sup> as well as various High Courts<sup>7</sup>.

10. We have considered the rival submissions and have perused the records.

**RELEVANT PROVISIONS OF 2016 ORDER AND THE G.O.**

11. Before proceeding further, it is apposite to make note of relevant provisions of 2016 Order, and the G.O. Clause 2(p) of 2016 Order defines ‘family’ means groups of following persons:

- Head of the family
- Husband/wife, including legally adopted Children
- Adult Children, who are fully dependent on the head of the family
- Unmarried, legally separated, and widowed daughters; and
- Fully dependent mother/father of the head of the family.”

6 State of Karnataka v. C.N. Apoorva Shree (Order dated 17.12.2021); Savita Samvedi (Ms) and Anr. Union of India & Ors., (1996) 2 SCC 380; C.B. Muthama v. Union of India, (1979) 4 SCC 260; Director of Treasuries in Karnataka and Anr. v. V. Somyashree; (2021) 12 SCC 20; State of Maharashtra and Anr. v. Madhuri Maruti Vidhate, 2022 SCC OnLine 1327

7 Smt. Vimla Srivastava v. State of U.P. & Anr., 2015 SCC OnLine All 6776; Kusumlata v. State of U.P. & Ors. U.P., 2021 SCC OnLine All 826; Saida Begum (supra); Sripalli Ammulu v. State of Andhra Pradesh & Ors., 2024 SCC OnLine AP 4718; Aparna Narendra Zambre & Anr. v. ASE Sangli and Ors., 2011 (5) Mah LJ 290; Ranjana Murlidhar Anerao (supra); Sou. Swara Sachin Kulkarni (Kumari Deepa Ashok Kulkarni) v. Superintending Engineer, Pune Irrigation Project Circle & Anr., 2013 SCC OnLine Bom 1549; State of West Bengal (supra); Smt. Sarojini Bhoi v. State of Chhattisgarh & Ors., 2015 SCC OnLine Chh 395; Deepa Rani Das v. State of Assam & Ors., (2017) 4 Gau LR 423; Mamta Devi v. State of H.P. & Ors., 2020 SCC OnLine HP 2125; Central Coalfields Limited v. Hemanti Devi & Ors., 2018 SCC OnLine Jhar 918; Bhuvaneshwari V. Puranik (supra); Manjula v. State of Karnataka; ILR 2004 KAR 4881; V. Somyashree v. Director of Treasuries in Karnataka & Anr., ILR 2019 KAR 3139; Meenakshi Dubey v. M.P. Poorva Kshetra Vidyut Vitran Co. Ltd. & Ors., ILR 2020 MP 647; N. Uma v. Director of Elementary School Education, DPI Compound & Ors., 2017 SCC OnLine Mad 37756; R. Govindammal v. The Principal Secretary, Social Welfare and Nutritious Meal Programme Department & Ors., (2015) 3 LW 756; Bhanuprava Garnaik v. State of Odisha, 2022 SCC OnLine Ori 4096; Kshirabadi Bala Behera v. Orissa Administrative Tribunal, (2022) W.P. (C) No.14945 of 2015; Abha Kumari v. Bank of India & Ors., 2024 SCC OnLine Pat 5529; Amarjit Kaur v. State of Punjab & Anr., 2020 SCC OnLine P&H 4490; Meenakshi Trivedi v. State of Rajasthan & Ors., (2024) 1 RLW 703; Shaheen Sultana & Anr. v. State of Telangana & Ors., 2025 SCC OnLine TS 1278; State of Tripura & Ors. v. Debashri Chakraborty, 2022 SCC OnLine Tri 58 and Udhham Singh Nagar District Co-op Bank & Anr. v. Anjula Singh & Ors., AIR 2019 Utt 69

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- 11.1 Clause 7 of 2016 Order deals with appointment and regulation of fair price shop. Clause 7(2) empowers the State Government to provide essential qualifications and conditions of eligibility of a person entitled to run a fair price shop. Clause 7(2)(ii) mandates a person who runs a fair price shop, to act as an agent of the Government.
12. In pursuance of the 2016 Order, the State Government has issued G.O. which provides for identification, reservation and appointment of fair price shops in rural areas. Clause IV of the G.O. prescribes the essential qualifications and conditions of selection in rural areas which reads as under:

**“IV. Essential Qualifications & Conditions for Selection in Rural Areas:**

1. Applicant must have a minimum balance of Rs.40,000/- in their bank account to ensure financial capability to lift one month's stock at once.
2. Applicant must submit a character certificate issued by the District Magistrate.
3. Applicant must have passed at least High School (10th standard) or equivalent examination.
4. Applicant must be at least 21 years old, and no other family member, should be an allottee of a fair price shop.
5. Applicant must be a local resident.
6. Applicant must deposit an earnest money of Rs.1000/- via bank draft in favor of the District Supply Officer. This amount will be adjusted in the security deposit upon appointment.
7. Upon appointment, the applicant must deposit Rs.10,000/- as security and submit a Rs.100/- non-judicial stamp paper. This will apply to new appointees. Existing dealers will be required to deposit security at prescribed rates.
8. No criminal case should be registered against the applicant or their family member, nor should they have been convicted in any criminal matter.

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9. Neither the applicant nor any family member should have been an allottee of a fair price shop previously cancelled due to irregularities or involved in any heinous offence under Section 3/7 of the Essential Commodities Act, 1955, or any criminal offence under the Indian Penal Code.
10. Allotment of fair price shops shall not be made in favor of Gram Pradhan (Village Head) or their family members. The definition of "family" shall be as provided under the Uttar Pradesh Essential Commodities (Regulation of Sale and Distribution) Order, 2016, which is:
  - Head of the family
  - Husband/wife, including legally adopted Children
  - Children fully dependent on the head of the family
  - Unmarried, legally separated, and widowed daughters
  - Parents fully dependent on the head of the family
11. If any fair price dealer or their family member, as defined above, is elected as Gram Pradhan, the allotment of their shop; shall be cancelled. This provision shall be effective from Government Order No.-276/29-6-02-162Sa()/01 dated 18.07.2002."
13. Paragraph (V) of the G.O. deals with procedure for allotment of a fair price shop under dependent quota after the death of the dealer. Paragraph (V) of the G.O. reads as under:

**“(V) Procedure for Appointment of Fair Price Shop under Dependent Quota after Death of Dealer:**

  - (i) The dependent shall Submit an application to the Sub-Divisional Magistrate within 30 days of the dealer’s death, along with a dependency certificate and No Objection Certificates (NOCs) from other adult family members.

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- (ii) The dependent must fulfil the eligibility conditions prescribed under Para-IV of this Government Order.
- (iii) The definition of “family” under the dependent category shall be as per Para-IV (10) of this order.
- (iv) An additional period of 15 days may be given beyond the initial 30 days for submitting the application.
- (v) The eligibility of the dependent shall be examined by the Tehsil Level Selection Committee, which will verify the dependency certificate, NOCs from other family members, and other documents.
- (vi) Upon fulfilment of all conditions, the committee will recommend allotment of the shop to the dependent.
- (vii) The entire process shall be completed within two months from the date of receipt of the application.

Clause (IV)5 requires that an applicant must be a local resident, whereas Clause IV(10) excludes married daughter from the definition of ‘family’.

### **REASONS AND ANALYSIS**

14. Article 14 of the Constitution of India, guarantees equality before the law and equal protection of the laws. Article 15(1) prohibits discrimination on the grounds of religion, race, caste, sex or place of birth. Article 21 protects the right to live with dignity. These guarantees must be interpreted in light of the constitutional commitment to secure social and economic justice embodied in the Directive Principles of State Policy. Article 39(a), in particular, mandates that the State direct its policy towards securing that men and women equally have the right to an adequate means of livelihood. Article 39(c) provides that the State shall direct its policy to ensure that operation of economic system does not result in the concentration of wealth and means of production to the common detriment.
15. The 1955 Act and 2016 Order have been framed to ensure equitable distribution of essential commodities through the public distribution system. Fair price shop dealers perform an important public function in furtherance of this constitutional objective. The scheme providing allotment under the dependent quota upon the death of a dealer is

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intended to mitigate the immediate hardship suffered by the family of the deceased dealer and to ensure continuity in the functioning of the public distribution system.

16. The solitary issue which arises for consideration in this appeal is whether exclusion of the married daughter from the definition of ‘family’ as defined under Clause 2(p) of the 2016 Order and as referred to in Paragraph (IV)10 of the G.O. is constitutionally sustainable.
17. A Constitution Bench of this Court<sup>8</sup> after taking note of a decision rendered by seven Judge Bench of this Court<sup>9</sup> has held that Article 14 of the Constitution forbids class legislation, but permits reasonable classification for the purposes of legislation. A classification, however, must satisfy two conditions, firstly, it must be founded upon an intelligible differentia which distinguishes persons or things that are grouped together from others left out of the group, and secondly the differentia must have a rational relation to the object sought to be achieved by the statute in question. The doctrine of equality has, over time, evolved beyond a narrow classification test. State action, which is arbitrary, irrational, capricious, or founded on impermissible stereotypes is equally vulnerable to challenge under Article 14<sup>10</sup>.
18. Examined on the touchstone of these principles, the exclusion of a married daughter from the definition of “family” cannot be sustained. The object of allotment under the dependent quota is to provide immediate succour to the family of a deceased dealer facing financial hardship. The relevant considerations are dependency, financial need, residence, and the ability of the applicant to discharge the obligations attached to the dealership. Marital status bears no rational nexus to any of these considerations.
19. The impugned provision proceeds on the assumption that upon marriage a daughter ceases to be a member of, or dependent upon, her parental family. Such an assumption is constitutionally

8 Shri Ram Krishna Dalmia & Ors. v. Shri Justice S.R. Tendolkar & Ors., 1958 SCC OnLine SC 6

9 Budhan Choudhry v. State of Bihar & Ors., (1954) 2 SCC 791

10 Bombay Dyeing & Mfg. Co. Ltd. v. Bombay Environmental Action Group & Ors., (2006) 3 SCC 434; A.P. Dairy Development Corporation Federation v. B. Narasimha Reddy, (2011) 9 SCC 286; Shayara Bano v. Union of India & Ors., (2017) 9 SCC 1; K.S. Puttuswamy & Anr. v. Union of India & Ors., (2017) 10 SCC 1; Nikesh Tarachand Shah v. Union of India & Anr., (2018) 11 SCC 1

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impermissible. Marriage neither extinguishes the bond between a daughter and her parental family nor furnishes a valid basis to presume absence of dependency. Contemporary social realities demonstrate that many married daughters continue to reside with, support, or remain dependent upon their parents. Equally, there may be sons who are not dependent upon the family despite being included within the definition. Dependency is a question of fact and cannot be conclusively determined by reference to marital status alone.

20. Significantly, the scheme does not exclude a married son from consideration. A son continues to remain within the fold of the family irrespective of his marital status, whereas a daughter is excluded solely because she is married. The distinction is founded upon a gender-based stereotype that a daughter, upon marriage, becomes a member of another family and loses all ties with her natal family. Such a presumption is incompatible with the constitutional guarantee of equality and perpetuates historical notions of gender inequality which the Constitution seeks to eradicate.
21. The submission of the State that a married daughter may not satisfy the requirement of local residence is equally untenable. Residence constitutes an independent eligibility criterion under Paragraph IV(5) of the G.O. Whether an applicant satisfies that requirement must be determined on the facts of each case. A blanket exclusion of all married daughters cannot be justified on the speculative assumption that every married daughter necessarily resides elsewhere. Constitutional adjudication cannot be founded on presumptions that are overbroad and disconnected from lived realities.
22. The purpose of the dependent quota is neither to create a right of succession or inheritance in the dealership nor a reward for lineage. The object is limited and specific: to provide immediate financial relief to the dependent family of a deceased dealer and to ensure continuity in the public distribution system. Once dependency is accepted as the governing criterion, exclusion of a married daughter solely on account of her marital status becomes wholly irrational and self-defeating.
23. We are, therefore, of the considered view that the exclusion of married daughters from the definition of “family” fails the test of



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reasonable classification and is manifestly arbitrary. The distinction created by Paragraph IV(10) of the G.O. lacks any intelligible differentia having a rational nexus with the object of the scheme. The exclusion is founded solely upon marital status and gender stereotypes and consequently, violates Articles 14 and 15(1) of the Constitution of India.

**THE DOCTRINE OF PURPOSIVE CONSTRUCTION**

24. Now, we advert to the issue whether the words “unmarried, legally separated and widowed daughters” are required to be struck down or can be read in a manner so as to include married daughters. The literal meaning of aforesaid words employed in Clause 2(p) of the 2016 Order produces a result which is incompatible with constitutional guarantees of equality and non-discrimination. The principle of purposive construction is based on the understanding that the Court is supposed to attach that meaning to a provision which serves the purpose behind it, the basic approach being to ascertain is what the provision is designed to accomplish. When the language of an enactment is reasonably capable of more than one meaning, the Court is not merely permitted but is obliged to prefer that construction which promotes the provision and avoids a result that would be arbitrary or unjust. The Court should adopt purposive interpretation in cases where the literal interpretation may not serve the purpose or may lead to absurdity<sup>11</sup>.
25. Bearing in mind the object of the provision, that is to provide immediate financial relief to the dependent family of the deceased dealer and to ensure continuity of public distribution system, on purposive interpretation, the words “unmarried, legally separated and widowed daughters” in Clause 2(p) of 2016 Order, have to be read so as to include married daughters provided they fulfil other eligibility conditions laid down in G.O. for the following reasons: -
  - (i) The words “unmarried, legally separated and widowed daughters” illustrate the specific categories of daughters who are expressly included. There is no express language of exclusion. The enumeration is a description of class of daughters who

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11 Shailesh Dhairyawan v. Mohan Balkrishan Lulla, (2016) 3 SCC 619

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by reason of remaining in or returning to natal household, are most visibly placed in position of dependency. The absence of exclusionary language in respect of married daughters reflects an illustrative and not exhaustive character of enumeration;

- (ii) The 2016 Order in Clause 2(p) itself defines one of the categories of family members as “Adult children who are fully dependent on the head of the family”, without any qualification of marital status or gender.
- (iii) The object of dependent quota is unambiguously welfare oriented, that is to provide for immediate financial relief to dependent family member of deceased dealer and to ensure continuity of public distribution system. Dependency and not the marital status is the governing criteria of the G.O.
- (iv) The descriptive categories of daughters in Clause 2(p) of 2016 Order whether unmarried, legally separated or widowed share a common characteristic that is they remain or have returned to their natal family. They are united by functional criteria of dependency. A married daughter who has not departed from the natal household and is dependent upon it, shares the same functional characteristic.
- (v) The submission that a married daughter necessarily fails to satisfy the local residence requirement and therefore cannot be a dependent, needs a factual inquiry to be made in every case. A blanket exclusion of all married daughters on such a speculative presumption is unjustified and is constitutionally untenable.
- (vi) To read the words “unmarried, legally separated and widowed daughters” in Clause 2(p) of 2016 Order would produce a result which is inconsistent with constitutional guarantees under Articles 14 and 15(1) as the same would amount to exclusion of a married daughter on a gender-based stereotype which is constitutionally impermissible.
- (vii) The exclusion of married daughter who is dependent upon the deceased dealer and resides with the family and is capable of running the fair price shop would directly frustrate the purpose of the provision.

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To sum up, the expression “daughter” in Clause 2(p) of 2016 Order, has to be read to include a married daughter provided she establishes the dependency on the deceased dealer and satisfies all other eligibility conditions prescribed under the G.O. including the requirement of local residence.

26. For the foregoing reasons, on a purposive construction of Clause 2(p) of 2016 Order, we hold that the expression “daughters” used in the aforesaid provision includes a married daughter who furnishes a dependency certificate along with No Objection Certificates from other adult family members of the deceased dealer and is a local resident and satisfies all other eligibility conditions prescribed in the G.O. The provision, so construed, would neither suffer from any invalidity nor any constitutional infirmity. It is saved by the very meaning it bears when understood in the light of its purpose.
27. We are in agreement with the view taken in **Vimla Srivastava** (supra) by the Division Bench of the Allahabad High Court and the decisions of the Bombay, Karnataka and Calcutta High Courts which have recognised the principle that marital status cannot constitute a valid ground for denying the benefit of a welfare measure to an otherwise eligible daughter. To the extent the contrary view expressed in **Saida Begum** and **Smt. Kusumlata** (supra), does not lay down the correct law and stand overruled.

**CONCLUSION**

28. In the present case, the material on record establishes that the appellant continued to reside in the same village even after her marriage and actively assisted her mother in the operation of the fair price shop. The appellant upon her mother’s demise, assumed responsibility for maintaining her sisters, including a visually impaired sister. The authorities have not disputed these factual assertions. The sole ground on which her application was rejected was that she is a married daughter. Once that ground is held to be constitutionally invalid, no impediment survives to the grant of relief in her favour.
29. Consequently, the orders dated 05.03.2025, 07.01.2025 and 16.07.2024 passed by the High Court, Deputy Commissioner and the SDM respectively are quashed and set aside. The competent authority shall issue the necessary allotment order in favour of the appellant within a period of four weeks.

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30. Before parting with the matter, we place on record our appreciation for the valuable assistance rendered by the learned Amicus, Ms. Rukhmini Bobde.
31. The appeal is accordingly allowed. There shall be no order as to costs.

*Result of the case:* Appeal allowed.

*<sup>†</sup>Headnotes prepared by:* Nidhi Jain

**State of Punjab  
v.  
Balraj Singh @ Billa**

(Criminal Appeal No. 3037 of 2026 )

02 June 2026

**[Sanjay Karol\* and Nongmeikapam Kotiswar Singh, JJ.]**

**Issue for Consideration**

Issue arose whether the order granting bail of the High Court is in consonance with the settled principles of law concerning s.37 of the NDPS Act.

**Headnotes<sup>†</sup>**

**Narcotic Drugs and Psychotropic Substances Act, 1985 – s.37 – Offences to be cognizable and non-bailable – FIR registered u/ss.21(c)/29/61 and 85 NDPS Act against the respondent – Case against the respondent that the co-accused persons made a disclosure that the respondent had directed them to collect the heroin from the canal area and keep it for further supply on his instructions, while lodged in the Jail – Pursuant thereto, he came to be arrayed as an accused, and that the respondent operating drug trafficking network from inside jail using illegal mobile phones – Respondent filed application seeking regular bail and was rejected – However, in the appeal, the High Court granted regular bail after relying upon the period of custody and the likelihood of the trial taking a considerable time – Correctness:**

**Held:** When it comes to cases involving commercial quantity of narcotics, the mandatory requirements of s.37 ought to be considered – Instant case involves commercial quantity – In such a scenario, consideration and reference to the twin conditions enumerated u/s.37 was mandatory – Upon a bare perusal of the impugned order, it is evident that there has been no consideration at all by the High Court on the twin conditions, thus, the impugned order cannot be sustained in the eyes of law – Upon consideration of the case of the respondent against the twin conditions laid down in s.37, no case for bail made out – There are antecedents involving commission of offences of the very same nature under

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\* Author

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the NDPS Act, thus, it cannot be said that he is not likely to commit such an offence while on bail – Moreover, the respondent has only undergone 1 year 7 months, and if found guilty a maximum sentence of twenty years may be imposed upon him – Thus, it cannot be said that he suffered incarceration for a long period, warranting interference in view of Art.21 – Paramount consideration is nothing but interest of justice for all – Should there be any conflict between the sovereignty of country and personal liberty, undoubtedly, the former shall prevail, particularly, when a war is waged against the nation, be it in the form of supply of drugs, which vitally affects the national economy and health of the people – Thus, the impugned order passed by the High Court set aside. [Paras 17-22]

### Case Law Cited

*State of Meghalaya v. Lalrintluanga Sailo & Anr.* [2024] 7 SCR 1314 : 2024 SCC OnLine SC 1751; *Union of India v. Ajay Kumar Singh*, 2023 SCC OnLine SC 346; *Ashok Dhankad v. State NCT of Delhi* [2025] 8 SCR 785 : 2025 SCC OnLine SC 1690; *State by the Inspector of Police v. B. Ramu*, 2024 SCC OnLine SC 4073; *Union of India v. Namdeo Ashruba Nakade*, 2025 SCC OnLine SC 3049; *Tasleem Ahmed v. State Govt. of NCT of Delhi*, Crl. A. @ SLP (Crl.) No. 2867/2026 – referred to.

### List of Acts

Narcotic Drugs and Psychotropic Substances Act, 1985; Bhartiya Nagrik Suraksha Sanhita, 2023; Constitution of India.

### List of Keywords

Order granting bail; Settled principles of law concerning s.37 NDPS Act; Drug trafficking network from inside jail using illegal mobile phones; Regular bail; Period of custody; Likelihood of trial taking considerable time.

### Case Arising From

CRIMINAL APPELLATE JURISDICTION: Criminal Appeal No. 3037 of 2026

From the Judgment and Order dated 15.10.2025 of the High Court of Punjab & Haryana at Chandigarh in CRM No. 46383 of 2025

**State of Punjab v. Balraj Singh @ Billa****Appearances for Parties**

*Advs. for the Appellant(s):*

Shadan Farasat, A.A.G./Sr. Adv., Rajat Bhardwaj, A.A.G., Karan Sharma, Harshit Anand, Arkaprava Das, Ms. Varisha Sharma.

*Advs. for the Respondent(s):*

M/S Mps Legal, Prabhat Chaurasia, Jashandeep Sandhu, Jasdeep Singh Dhillon, Anirudh Jamwal, Aditya Bajaj, Ms. Kenisha Savla.

**Judgment / Order of the Supreme Court****Judgment**

**Sanjay Karol, J.**

Leave granted.

2. The present appeal has been filed against impugned judgment and order dated 15.10.2025 in CRM-M No. 46383 of 2025 (O&M) passed by the High Court of Punjab and Haryana at Chandigarh, whereby the respondent herein came to be released on regular bail in connection with FIR No. 06 dated 10.01.2024 registered under Section 21(c)/29/61 and 85 of the Narcotic Drugs and Psychotropic Substances Act, 1985<sup>1</sup>.

**Brief Facts**

3. The case set up in the subject FIR against the accused persons is that on 10.01.2024, the police had set-up a check point at the bridge on Canal Road, Village Veeram, and were conducting a check of the vehicles passing. Upon seeing the police party, a car (Mahindra XUV 300) bearing registration No. UP-15-DD-6521 attempted to flee, however the car got switched off and stopped on the *katcha* side of the road. Upon enquiry, the driver of the vehicle identified himself as Gurjit Singh @ Geetu and the other occupant stated his name as Sukhwinder Singh @ Gora. Since no satisfactory response was received *qua* the papers of the the car, the police suspected presence of intoxicant material in their possession.

<sup>1</sup> Hereinafter 'NDPS Act'.

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4. Consequently, notice was issued to them under Section 50 of the NDPS Act and the Deputy Superintendent of Police, arrived at the stop to conduct search. He prepared consent memos for the search and signature of both these persons was taken. Upon search, a total of 1.465 Kg., of *heroin* was recovered from their possession. The said contraband was weighed, sealed and seized *vide* recovery memos. This was after compliance of the statutory provisions mandated under Section 50 of the NDPS Act. The FSL report confirmed that the recovered substance is *diacetylmorphine/heroin*.
5. The case against the respondent herein, Balraj Singh @ Billa, is that the co-accused persons have made a disclosure on 11.01.2024 that the respondent had directed them to collect the *heroin* from the canal area and keep it for further supply on his instructions, while lodged in Central Jail, Goindwal Sahib. Pursuant thereto, he came to be arrayed as an accused *vide* DDR dated 11.01.2024. It was further found during investigation that the respondent is operating a drug trafficking network from inside jail using illegal mobile phones.
6. The respondent preferred an application seeking regular bail before Ld. Judge Special Court Tarn Taran, which came to be numbered as B.A. 1868/2025. The same came to be rejected *vide* order dated 03.07.2025. An appeal was preferred by the respondent before the High Court of Punjab and Haryana at Chandigarh which came to be numbered as CRM-M-46383-2025 (O&M).
7. The High Court *vide* the impugned order dated 15.10.2025 granted regular bail to the respondent. On the aspect of criminal antecedents, the Court observed that antecedents alone cannot be the basis for refusal of prayer of bail. The Court relied upon the period of custody and the likelihood of the trial taking a considerable time to release the respondent on bail.
8. It is a matter of record that in relation to the very same FIR, all three accused persons had preferred applications for bail under Section 483 of the Bhartiya Nagrik Suraksha Sanhita, 2023. These applications were allowed and all three accused persons were granted bail *vide* separate orders. Here we may observe that in relation to the other two accused persons, this Court *vide* orders dated 24.04.2026 in CrI. Appeal @ SLP (CrI.) No. 5075 of 2026 and CrI. Appeal @ SLP (CrI) No. 5020 of 2026 has already set aside the order granting bail



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by the High Court, hence we need not elaborately deal with the legal issues therein.

9. In the instant case after hearing the learned counsel for the parties this Court *vide* the interim order dated 07.04.2026 had directed the instant respondent Balraj Singh @ Billa to surrender. It is a matter of record that the present respondent has thus surrendered, as is evident from the affidavit of Mr. Surendra Lamba, dated 09.04.2026.

**Submissions**

10. The appellant, State of Punjab, has submitted that *vide* the impugned order the respondent has been erroneously granted bail. We have heard Mr. Shadan Farasat, learned senior counsel and Mr. Rajat Bhardwaj, learned Additional Advocate General. The substantial grounds of challenge are as follows:
- (a) The bar under Section 37 of the NDPS Act has been ignored by the High Court, in violation of the *ratio* laid down in ***State of Meghalaya v. Lalrintluanga Sailo & Anr.***<sup>2</sup> and ***Union of India v. Ajay Kumar Singh***<sup>3</sup>;
  - (b) The present case involves commercial quantity, therefore, the respondent ought not to have been released on bail; and
  - (c) Respondent has 3 antecedents of similar nature, which has been ignored by the High Court.
11. The respondent has submitted that the High Court has rightly released him on regular bail. He has no connection with the subject FIR and has been falsely implicated in the matter. Pertinently, no reference has been made to him in the FIR and no recovery was effected from him. The respondent has been incarcerated for 1 year 7 months and investigation stood completed. Only 2 out of 24 prosecution witnesses were examined, therefore the trial is not likely to conclude soon.

**Our View**

12. At the outset, it has been reiterated by this Court that on many occasions, an appeal against grant of bail and an application for

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2 2024 SCC OnLine SC 1751.

3 2023 SCC OnLine SC 346.

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cancellation of bail stand on a different footing [See: **Ashok Dhankad v. State NCT of Delhi**<sup>4</sup>]. Coming to the case at hand, in our view, the issue which arises for our consideration is whether the order granting bail of the High Court is in consonance with the settled principles of law concerning Section 37 of the NDPS Act?

13. For ready reference, Section 37 of the NDPS Act reads as follows:

**“37. Offences to be cognizable and non-bailable. –**

(1) Notwithstanding anything contained in the Code of Criminal Procedure, 1973 (2 of 1974), –

(a) every offence punishable under this Act shall be cognizable;

(b) no person accused of an offence punishable for [offences under Section 19 or Section 24 or Section 27-A and also for offences involving commercial quantity] shall be released on bail or on his own bond unless—

(i) the Public Prosecutor has been given an opportunity to oppose the application for such release, and

(ii) where the Public Prosecutor oppose the application, the court is satisfied that there are reasonable grounds for believing that he is not guilty of such offence and that he is not likely to commit any offence while on bail.

(2) The limitations on granting of bail specified in clause (b) of sub-section (1) are in addition to the limitations under the Code of Criminal Procedure, 1973 (2 of 1974)<sup>4</sup>, or any other law for the time being in force on granting of bail.]”

*(emphasis supplied)*

14. As rightly submitted by the appellant State, this Court, in **Lalrintluanga Sailo** (Supra) while setting aside the bail granted by the High Court therein had held that consideration on the twin conditions under

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Section 37 of the NDPS Act is essential by the concerned Court. It was observed:

**“5. There cannot be any doubt with respect to the position that in cases involving commercial quantity of narcotic drugs or psychotropic substances, while considering the application of bail, the court is bound to ensure the satisfaction of conditions under Section 37(1)(b)(ii) of the NDPS Act. The said provision reads thus:**

“**37. (1)(b)(ii)** where the Public Prosecutor opposes the application, the court is satisfied that there are reasonable grounds for believing that he is not guilty of such offence and that he is not likely to commit any offence while on bail.”

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7. In the decision in *Collector of Customs v. Ahmadaliev* *Nodira* [*Collector of Customs v. Ahmadaliev Nodira*, (2004) 3 SCC 549 : 2004 SCC (Cri) 834], the three-Judge Bench of this Court considered the provisions under Section 37(1) (b) as also Section 37(1)(b)(ii) of the NDPS Act, with regard to the expression “reasonable grounds” used therein. This Court held that it means something more than the prima facie grounds and that it contemplates substantial and probable causes for believing that the accused is not guilty of the alleged offence. Furthermore, it was held that the reasonable belief contemplated in the provision would require existence of such facts and circumstances as are sufficient in themselves to justify satisfaction that the accused is not guilty of the alleged offence.

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**10.** Thus, the provisions under Section 37(1)(b)(ii) of the NDPS Act and the decisions referred supra revealing the consistent view of this Court that while considering the application for bail made by an accused involved in an offence under the NDPS Act a liberal approach ignoring the mandate under Section 37 of the NDPS Act is impermissible. Recording a finding mandated under

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Section 37 of the NDPS Act, which is sine qua non for granting bail to an accused under the NDPS Act cannot be avoided while passing orders on such applications.”

(emphasis supplied)

15. To the similar effect, this Court in ***State by the Inspector of Police v. B. Ramu***<sup>5</sup> reiterated that satisfaction with the conditions laid down under Section 37 of the NDPS Act is mandatory while entertaining a prayer for bail involving commercial quantity of narcotic drugs. [See also: ***Ajay Kumar Singh alias Pappu (Supra)***]
16. In similar circumstances, this Court in ***Union of India v. Namdeo Ashruba Nakade***<sup>6</sup> observed that the mandatory nature of Section 37 cannot be dispensed with:

“12. *Prima facie* this Court is of the opinion that the Respondent-accused is involved in drug trafficking in an organized manner. Consequently, no case for dispensing with mandatory requirement of Section 37 of the NDPS Act is made out in the present matter.

13. Moreover, this Court is of the view that as the accused has been charged with offences punishable with ten to twenty years rigorous imprisonment, it cannot be said that the Respondent has been incarcerated for an unreasonably long time.”

(emphasis supplied)

17. Keeping in view the above expositions of law, we now proceed to examine the impugned order. The abovementioned decisions of this Court display the consistent view that when it comes to cases involving commercial quantity of narcotics, the mandatory requirements of Section 37 ought to be considered. It is not in dispute that the case at hand, involves commercial quantity. In such a scenario, consideration and reference to the twin conditions enumerated under Section 37 of the NDPS Act was mandatory. Upon a bare perusal of the impugned order, it is evident that there has been no consideration at all by the

5 2024 SCC OnLine SC 4073.

6 2025 SCC OnLine SC 3049.

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High Court on the twin conditions. In such a scenario, the impugned order cannot be sustained in the eyes of law.

18. Upon consideration of the case of the respondent against the twin conditions laid down in Section 37, we are of the view that no case for bail is made out. There are antecedents involving commission of offences of the very same nature under the NDPS Act, therefore it cannot be said that he is not likely to commit such an offence while on bail.
19. Moreover, the respondent has only undergone 1 year 7 months, and if found guilty a maximum sentence of twenty years may be imposed upon him. Therefore, it cannot be said that he has suffered incarceration for a long period, warranting interference in view of Article 21 of the Constitution.
20. While this Court has recognized on several occasions that prolonged incarceration warrants the grant of bail in view of Article 21 of the Constitution, we have noticed that the application thereof is not uniform. Moreover, there is no doubt that what constitutes “prolonged incarceration” for the purposes of bail, has not been expounded by this Court or the law of the land.
21. While judicial discretion is an important facet of justice dispensation, this Court cannot overlook the fact that similarly situated persons in custody may receive different outcomes, dependent on the approach adopted by the respective bench. At this stage, we deem it appropriate to refer to a chart of decisions by coordinate benches of this Court, including a chart submitted by Mr. Mr. Shadan Farasat, learned senior counsel on this aspect:

| Case Name                                                                | Period of Incarceration | Outcome                       | Bench | Statute involved |
|--------------------------------------------------------------------------|-------------------------|-------------------------------|-------|------------------|
| Harpreet Singh Talwar @ Kabir Talwar v. State of Gujarat [2025 INSC 662] | 2 years 9 months        | Bail not granted              | 2JB   | NDPS & UAPA      |
| Union of India v. Vigin K. Varghese [2025 SCC OnLine SC 2440]            | More than 3 years       | Order granting bail set aside | 2JB   | NDPS             |
| Union of India v. Namdeo Ashruba Nakade [2025 SCC OnLine SC 3049]        | More than 2 years       | Order granting bail set aside | 2JB   | NDPS             |

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|                                                                      |                   |              |     |      |
|----------------------------------------------------------------------|-------------------|--------------|-----|------|
| Rabi Prakash v. State of Odisha [2023 SCC OnLine SC 1109]            | 3 years 6 months  | Bail granted | 2JB | NDPS |
| Ankur Chaudhary v. State of M.P. [2024 SCC OnLine SC 2730]           | More than 2 years | Bail granted | 2JB | NDPS |
| Narcotic Control Bureau v. Lakhwinder Singh [2025 SCC OnLine SC 366] | 4 years 6 months  | Bail granted | 2JB | NDPS |
| Badsha Sk. v. State of W.B. [2023 SCC OnLine SC 1867]                | 2 years 4 months  | Bail granted | 2JB | NDPS |

22. However, we note that recently this Court in ***Tasleem Ahmed v. State Govt. of NCT of Delhi***<sup>†</sup> has referred the question concerning the approach of constitutional Courts in bail matters under special statutes, where “*Article 21, prolonged incarceration and statutory restrictions intersect*”. In view of the said reference, we do not wish to deliberate on this issue further, save and except that in our view paramount consideration is nothing but interest of justice for all. Should there be any conflict between the sovereignty of country and personal liberty, undoubtedly, the former shall prevail, particularly, when a war is waged against the nation, be it in the form of supply of drugs, which vitally affects the national economy and health of the people.
23. Consequently, the appeal is allowed. The impugned order dated 15.10.2025 in CRM-M No. 46383 of 2025 (O&M) passed by the High Court of Punjab and Haryana at Chandigarh is set aside.
24. Pending applications, if there are any, stand dismissed.

*Result of the case:* Appeal allowed.

<sup>†</sup>Headnotes prepared by: Nidhi Jain

**Sonal Talpada  
v.  
Veerbhan Singh**

(Civil Appeal No. 8391 of 2026)

02 June 2026

**[Sanjay Karol and Augustine George Masih,\* JJ.]**

**Issue for Consideration**

Whether the Respondent-husband was subjected to ‘cruelty’ within the meaning of law and; whether the marital bond between the parties has ruptured to such an extent that the marriage has broken down irretrievably, rendering any reconciliation impossible and thus, deserves to be dissolved in exercise of powers u/Art.142 of the Constitution of India.

**Headnotes<sup>†</sup>**

**Constitution of India – Art.142 – Hindu Marriage Act, 1955 – ss.13(1)(ia), 13(1)(ib) – ‘cruelty’; ‘desertion’ – Dissolution of marriage in exercise of powers u/Art.142, on the ground of irretrievable breakdown – Family Court dismissed the divorce petition filed by the Respondent-husband holding that he failed to prove the cruelty committed by the Appellant-wife against him – Order set aside by High Court, granting divorce in favour of Respondent holding that cruelty was committed by the Appellant against the Respondent as she denied sexual relations on several occasions; desertion due to long absence from matrimonial home; and parties were living separately since 15 years – Correctness:**

**Held:** Decree of divorce as granted by High Court is upheld – Denial of conjugal rights including persistent refusal of sexual intercourse without a reasonable cause constitutes mental cruelty and is a valid ground for divorce u/s.13(1)(ia) – Withholding sexual intimacy inflicts severe emotional distress and undermines the bedrock of marriage – Appellant has not denied the fact that they used to sleep in different rooms – Thus, the acceptance of the ground of cruelty for grant of divorce is correct – Moreover, even during the short period of cohabitation parties failed to perform their conjugal responsibilities – They have strongly held

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\* Author

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views with regard to the approach towards matrimonial life and refused to accommodate each other for a long period of time – In situations where parties have been living separately for a considerable time without any hope for reconciliation amounts to cruelty to both the parties – Parties had a prolonged physical separation spanning more than a decade and a half – Although the Appellant contended that she had left her job in Gujarat and started residing in Bharatpur, Rajasthan in their matrimonial home but there is no evidence to substantiate the same – Rather the evidence is to the contrary and it is not disputed that she still continues with her job in Gujarat – Further, while the statutory ground of ‘desertion’ u/s.13(1)(ib) was not formally pleaded by the Respondent however, the element of desertion can be viewed neutrally through an objective lens where spouses choose independent professional and geographical paths and remain completely estranged without any reciprocal effort to bridge the distance – In such circumstances, desertion ceases to be merely a matter of individual malice or unilateral fault rather it assumes the character of a shared, *de facto* abandonment of the matrimonial covenant – Parties have objectively deserted the matrimonial framework itself – The intentional maintenance of distinct lifestyles, separate domiciles, and the total cessation of marital interaction over fifteen years establishes a *de facto* abandonment of the marital covenant by both sides – Marriage between the Appellant and the Respondent has broken down irretrievably and is dissolved in exercise of powers u/Art.142 of the Constitution of India. [Paras 18, 19, 22, 24, 27, 28, 30, 34]

**Constitution of India – Art.142 – Hindu Marriage Act, 1955 – Exercise of inherent powers u/Art.142, for dissolution of a marriage on the ground of its irretrievable breakdown, though the facts of the case do not provide a ground in law on which the divorce could be granted – It is in the best interest of parties and the society if ties are severed between parties in cases where litigation has been pending for a considerably long period of time:**

**Held:** This Court has exercised its inherent powers u/Art.142 for dissolution of a marriage where it finds that the marriage is totally unworkable, emotionally dead, beyond salvage and has broken down irretrievably, even if the facts of the case do not provide a ground in law on which the divorce could be granted – In the



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present case, admittedly, the Appellant-wife and the Respondent-husband have been living separately for more than 15 years, all efforts to reconcile them have failed and therefore, it will not be possible for the parties to live together – Therefore, this is a fit case to exercise the powers u/Art.142 and to dissolve the marriage between the parties – Though, the approach of the Courts should be to preserve the sanctity of marriage and the Court should be reluctant to dissolve the marriage at the mere asking of one of the parties but, in the present case, the parties have lived separately for far too long a period of time and there is no sanctity left in the marriage – Although, the Appellant contended that she had left her job in Gujarat and started residing in Bharatpur, Rajasthan in their matrimonial home but there is no evidence to substantiate the same – Rather the evidence on record is to the contrary and it is not disputed that she still continues with her job in Gujarat – There appears to be no intention on her part to join company of the husband – Grant of divorce in the present proceedings would not have a devastating effect on any third party, as there are no children from the wedlock – Moreover, prolonged pendency of matrimonial litigation only leads to perpetuity of marriage on paper – It is in the best interest of parties and the society if ties are severed between parties in cases where litigation has been pending for a considerably long period of time. [Paras 34-36, 38]

**Hindu Marriage Act, 1955 – Mental cruelty, allegations of – Withdrawal from the foundational aspects of marriage have legal consequences while evaluating allegations of mental cruelty:**

**Held:** Marriage, in its legal and constitutional dimension, can never be reduced to a mere contractual intersection of individual rights, nor can it be viewed strictly through the narrow lens of a petition for conjugal rights – It is a deeply personal and social partnership built on mutual respect, shared expectations and equal responsibility – When two parties enter into matrimony, they weave a tapestry of interdependence that demands a continuous balancing of interests – Conjugal rights do not exist in a vacuum; they are the structural counterparts to conjugal duties – To demand the fulfilment of the former while wilfully abandoning the sanctity of the latter is to undermine the very essence of the institution – Therefore, matrimony is not a one-sided right to be enforced, but a shared covenant of emotional support, fidelity, responsibility and care, where the rights of one are always tied to the duties they

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owe to the other – Persistent withdrawal from the foundational aspects of marriage may have legal consequences while evaluating allegations of mental cruelty. [Para 22]

**Hindu Marriage Act, 1955 – ss.13(1)(ia), 13(1)(ib) – ‘cruelty’; ‘desertion’ – Appellate Court entitled to consider the conduct of the parties during the pendency of litigation – Family Court dismissed the divorce petition filed by the Respondent-husband holding that he failed to prove the cruelty committed by the Appellant-wife against him – High Court allowed the appeal filed by the Respondent, granting divorce in his favour holding that cruelty was committed by the Appellant against the Respondent as she denied sexual relations on several occasions; desertion due to long absence from matrimonial home; and parties were living separately since 15 years:**

**Held:** High Court rightly assessed that where parties have been living separately for several years and at this stage asking them to live together after a prolonged duration would amount to cruelty to both the parties and divorce can be granted on this ground as provided u/s.13 (1)(ia) – Further, though, desertion as a ground requires an initial period as mentioned under the statute but if such desertion continues for a long period of time without any effort on the part of the parties to restore cohabitation would itself be a ground to be considered by the Appellate Court – Human relations are dynamic and once the initial mandate under the statute stands satisfied, continuation thereof during the litigation would aggravate the said agony which could be confirmational in substantiating the basis and pleaded ground for divorce – The same can be taken into consideration for formation of an opinion to accept the prayer by the Appellate Court – Appeal is the continuation of a suit and therefore, the Appellate Court would be entitled and justified to consider the conduct of the parties during the pendency of litigation – The same can also be looked into to support or reject an opinion on the ground in question – An Appellate Court, while carefully ensuring that a party does not profit from their own manifest wrong or unilateral desertion, may legitimately treat a prolonged period of separation as an indicator of mental cruelty within the meaning of s.13(1)(ia) – Appellate Court is not precluded from examining whether continuous separation over a substantial period, coupled with absence of any genuine effort at reconciliation, complete cessation of cohabitation and emotional alienation has resulted in mental cruelty – Subsequent events

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occurring during pendency of proceedings may legitimately be taken into consideration while undertaking such assessment – In such circumstances, the confirmation of a decree of divorce by an Appellate Court is not an invocation of extraordinary constitutional jurisdiction u/Art.142, but a lawful and realistic application of the statutory ground of cruelty to the facts of the case. [Paras 25, 26]

**Case Law Cited**

*Samar Ghosh v. Jaya Ghosh* [2007] 4 SCR 428 : (2007) 4 SCC 511; *Vikas Kanaujia v. Sarita* [2024] 7 SCR 933 : (2025) 3 SCC 748; *Amutha v. A.R. Subramanian* 2024 INSC 1033 : [2024] 12 SCR 755 : 2024 SCC OnLine SC 3822; *Shilpa Sailesh v. Varun Sreenivasan* [2023] 5 SCR 165 : (2023) 14 SCC 231; *Nayan Bhowmick v. Aparna Chakraborty*, 2025 INSC 1436 : 2025 SCC OnLine SC 2798; *R. Srinivas Kumar v. R. Shametha* [2019] 12 SCR 873 : (2019) 9 SCC 409 – relied on.

*Darshan Gupta v. Radhika Gupta* [2013] 10 SCR 937 : (2013) 9 SCC 1; *Vishnu Dutt Sharma v. Manju Sharma* [2009] 3 SCR 891 : (2009) 6 SCC 379; *Naveen Kohli v. Neelu Kohli* [2006] 3 SCR 53 : (2006) 4 SCC 558; *Savitri Pandey v. Prem Chandra Pandey* [2002] 1 SCR 50 : (2002) 2 SCC 73 – referred to.

**List of Acts**

Constitution of India; Hindu Marriage Act, 1955.

**List of Keywords**

Irretrievable breakdown of marriage; Marriage dissolved in exercise of powers under Article 142 of the Constitution of India; Section 13(1) (ia) of the Hindu Marriage Act, 1955; Section 13(1) (ib) of the Hindu Marriage Act, 1955; ‘mental cruelty’; ‘desertion’; Ground of ‘desertion’ not formally pleaded; Desertion for a long period of time; Prolonged physical separation; Long absence from matrimonial home; Denial of conjugal rights; Persistent refusal of sexual intercourse; Sexual intimacy withheld; Severe emotional distress; Decree of divorce upheld; Denial of conjugal rights; Short period of cohabitation; Failure to perform conjugal responsibilities; Marriage totally unworkable; Marriage emotionally dead; Marriage beyond salvage; Approach towards matrimonial life; Refusal to accommodate; Parties living separately for a considerable time; No hope for reconciliation; Parties living separately for more than

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15 years; All efforts to reconcile failed; All efforts of reconciliation failed; Not possible for the parties to live together; Distinct lifestyles; Separate domiciles; Total cessation of marital interaction; *de facto* abandonment of marital covenant.

### Case Arising From

CIVIL APPELLATE JURISDICTION: Civil Appeal No. 8391 of 2026  
From the Judgment and Order dated 02.01.2025 of the High Court of Judicature for Rajasthan at Jaipur in DBCM No. 5127 of 2019

### Appearances for Parties

*Advs. for the Appellant(s):*

Neeraj Shekhar, Mrs. Kshama Sharma, Ram Bacchan Choudhary.

*Advs. for the Respondent(s):*

Mithilesh Jha, Ms. Rishika Chahar, Tarun Chauhan.

### Judgment / Order of the Supreme Court

#### Judgment

#### **Augustine George Masih, J.**

1. Leave granted.
2. The instant Appeal assails the judgment and order dated 02.01.2025 (hereinafter referred to as “Impugned Judgment”) passed by the High Court of Rajasthan at Jaipur (hereinafter referred to as “High Court”), whereby the D.B. Civil Miscellaneous Appeal No. 5127 of 2019 filed by the Respondent-husband (Divorce Petitioner) herein stands allowed by setting aside the judgment and decree dated 21.08.2019 passed by the Family Court at Bharatpur, Rajasthan (hereinafter referred to as “Family Court”), vide which petition seeking divorce from the Appellant-wife filed by the Respondent-husband was dismissed.
3. Brief facts are that the marriage of the Appellant-wife and the Respondent-husband took place on 05.12.2007 as per the Hindu rites in Nadiyad Khera, Gujarat. No child was born out of their wedlock. At the time of marriage, Appellant-wife was working as a Gynaecologist in a government hospital in Nadiyad Khera,

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Gujarat and Respondent-husband, also a doctor, in State service in Rajasthan.

4. It appears that there were sociocultural differences between the parties and according to the Respondent-husband, cruelty was meted out to him. Appellant-wife lived with him for hardly two to three months in their matrimonial home at Bharatpur, Rajasthan during their matrimonial period of two years. Leading to the Respondent-husband filing a divorce petition in the year 2009 before the Family Court. The said petition was filed under Section 13(1) (ia) of the Hindu Marriage Act, 1955 (hereinafter referred to as "HMA"). The Family Court on 21.08.2018 dismissed the said divorce petition holding therein that the Respondent-husband has failed to prove the cruelty committed by the Appellant-wife against him.
5. Feeling aggrieved and dissatisfied with the judgment and order passed by the Family Court dismissing the divorce petition, the Respondent-husband preferred an appeal before the High Court. By the impugned judgment and order, the High Court allowed the said appeal. Hence, the Appellant-wife is before this Court by way of the present appeal.
6. The learned counsel appearing for the Appellant-wife submits that she has never abandoned the Respondent-husband and was always ready and willing to lead a matrimonial life with him. Respondent-husband cannot be allowed to take advantage of his own wrong. It was further contended that Respondent-husband did not allow Appellant-wife to perform her conjugal duties.
7. The learned counsel further submits that the grounds for desertion and irretrievable breakdown of marriage were not pleaded in the Divorce Petition. In fact, it was Respondent-husband who deserted the Appellant-wife. Appellant-wife had left her government service in Gujarat and started living in Bharatpur to save her matrimonial life. Father of the Respondent-husband had allowed the Appellant-wife to work in Gujarat till construction of Nursing home in Bharatpur. However, construction of said nursing home never commenced and therefore, Appellant-wife continued working in Gujarat. Respondent-husband has failed to produce any evidence to establish that Appellant-wife has committed any cruelty against him. Therefore, present appeal be allowed and decree of Divorce granted by the High Court vide the impugned judgment in favour of Respondent-husband be set aside.

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8. Learned counsel for Appellant-wife has heavily relied upon decisions of this Court in ***Darshan Gupta v. Radhika Gupta***<sup>1</sup>, ***Vishnu Dutt Sharma v. Manju Sharma***<sup>2</sup> and ***Samar Ghosh v. Jaya Ghosh***<sup>3</sup>.
9. The present appeal is vehemently opposed by the learned counsel of the Respondent husband. The learned counsel submits that the Appellant-wife has never made any efforts to save her matrimonial life. The parties are living separately for more than 15 years and have co-habited for merely 2-3 months in the span of 18 years. The Appellant-wife has denied establishment of sexual relations to Respondent-husband on several occasions. Therefore, the Appellant-wife has committed cruelty and has deserted the Respondent-husband.
10. Learned counsel for the Respondent-husband further submits that the Appellant-wife has failed to build any mutual trust, companionship and shared experiences with the Respondent-husband which led to irretrievable breakdown of marriage. The parties have different lifestyle and personal preferences. To overcome such differences is beyond the control of both the parties. There is no chance of reconciliation. Parties were engaged in matrimonial litigation from last many years. It is denied that Appellant-wife has left her job in Gujarat. He asserts that it is a fit case to dissolve the marriage between the Appellant-wife and the Respondent-husband on the ground of irretrievable breakdown of marriage. Therefore, the present appeal deserves to be dismissed.
11. The learned counsel for the Respondent-husband has relied upon decisions of this Court in ***Naveen Kohli v. Neelu Kohli***<sup>4</sup>, ***Vikas Kanaujia v. Sarita***<sup>5</sup>, ***Amutha v. A.R. Subramanian***<sup>6</sup>, ***Shilpa Sailesh v. Varun Sreenivasan***<sup>7</sup> and ***Savitri Pandey v. Prem Chandra Pandey***<sup>8</sup>.

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1 (2013) 9 SCC 1

2 (2009) 6 SCC 379

3 (2007) 4 SCC 511

4 (2006) 4 SCC 558

5 (2025) 3 SCC 748

6 2024 INSC 1033 : 2024 SCC OnLine SC 3822

7 (2023) 14 SCC 231

8 (2002) 2 SCC 73

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12. We have heard the learned counsel for the respective parties at length and with their assistance have gone through the relevant pleadings and evidence lead by the parties before the Courts below. It is pertinent to mention, that the Appellant-wife has, right from the stage of trial till this Court, rigidly maintained her stand that she does not want to dissolve the marriage and wants to continue her matrimonial life with the Respondent-husband. No other civil or criminal proceedings were instituted by either party against each other.
13. The parties have been living separately for about fifteen (15) years and there is no child from the wedlock. Despite repeated efforts by Courts, there has been no reconciliation between the parties. At the stage of admission of appeal, this Court had referred the parties to mediation vide order dated 23.05.2025. However, mediation was unsuccessful which is evident from the Mediation report dated 27.11.2025. No efforts have been made since then, by either of the parties, to reconcile their matrimonial differences.
14. At the outset, it is required to be noted that the High Court granted the divorce in favour of Respondent-husband on the following grounds:
  - a) Appellant-wife had insulted the Respondent-husband before a shopkeeper while on their visit to Taj Mahal;
  - b) Cruelty was committed by the Appellant-wife against the Respondent-husband as she denied sexual relations on several occasions;
  - c) Desertion due to long absence from matrimonial home; and
  - d) Parties were living separately since 15 years.
15. Adverting to findings recorded by the High Court, this Court is called to adjudicate upon whether the Respondent-husband was subjected to 'cruelty' within the meaning of law, and whether the marital bond between the parties has ruptured to such an extent that the marriage has broken down irretrievably, rendering any reconciliation impossible.
16. Though with respect to 'cruelty' no uniform standard can ever be laid down for guidance, yet this Court in **Samar Ghosh** (supra) deemed it appropriate to enumerate some instances of human behaviour which may be relevant in dealing with the cases of 'mental cruelty':

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“Para 101.....(xii) Unilateral decision of refusal to have intercourse for considerable period without there being any physical incapacity or valid reason may amount to mental cruelty. (xiii) Unilateral decision of either husband or wife after marriage not to have child from the marriage may amount to cruelty. (xiv) Where there has been a long period of continuous separation, it may fairly be concluded that the matrimonial bond is beyond repair. The marriage becomes a fiction though supported by a legal tie. By refusing to sever that tie, the law in such cases, does not serve the sanctity of marriage; on the contrary, it shows scant regard for the feelings and emotions of the parties. In such like situations, it may lead to mental cruelty.”

**(emphasis supplied)**

17. Reverting to facts of the present case, with regards to contention that the Appellant-wife had insulted the Respondent-husband before the shopkeeper, the Family Court has correctly assessed that the Respondent-husband himself admitted that Taj Mahal was closed on that day so, there was no requirement of hiring a drunk guide. There is nothing wrong in wife asking for a Teddy bear.
18. However, on the question of cruelty from the evidence of the Respondent-husband it also, comes out that even during that short period of cohabitation the Appellate-wife used to sleep early in night, lock her room from inside and never open the door on knocking. The Respondent-husband used to sleep in other separate room. The Appellant-wife has not denied the fact that they used to sleep in different rooms. The acceptance of the ground of cruelty for grant of divorce is, thus, correct.
19. As held in the case of **Samar Ghosh** (supra) and other catena of judgments by this Court, denial of conjugal rights including persistent refusal of sexual intercourse without a reasonable cause constitutes mental cruelty and is a valid ground for divorce under Section 13(1) (ia) of the HMA. The courts in India have repeatedly established that withholding sexual intimacy inflicts severe emotional distress and undermines the bedrock of marriage. Therefore, the conclusion of the High Court is sustained. The decree of divorce as granted by allowing the appeal of the Respondent-husband is upheld.



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20. As regarding the ground of desertion, the Family Court has pointed out that the father of Respondent-husband had admitted during his cross-examination that he had asked father of Appellant-wife that she can continue to work in Nadiyad Khera, Gujarat till a nursing home was constructed in Bharatpur, Rajasthan. Merely because father-in-law had said so would not in itself means a licence for not joining and fulfilling the matrimonial obligations which arise upon the parties having entered into the relationship of husband and wife. Seeing when the things were not moving with regards to the construction of the nursing home, steps need to have been taken by the parties to cohabit. Nothing has come on record indicating any effort on the part of the Appellant-wife or even the Respondent-husband in this direction.
21. While the statutory ground of desertion may not have been pleaded but matrimonial disputes are seldom confined to isolated legal labels. The Court is also required to examine the overall conduct of the parties and the manner in which they have discharged their matrimonial obligations. It is from this broader perspective issue of cruelty deserves further consideration.
22. Marriage, in its legal and constitutional dimension, can never be reduced to a mere contractual intersection of individual rights, nor can it be viewed strictly through the narrow lens of a petition for conjugal rights. It is a deeply personal and social partnership built on mutual respect, shared expectations and equal responsibility. When two parties enter into matrimony, they weave a tapestry of interdependence that demands a continuous balancing of interests. Conjugal rights do not exist in a vacuum; they are the structural counterparts to conjugal duties. To demand the fulfilment of the former while wilfully abandoning the sanctity of the latter is to undermine the very essence of the institution. Matrimony, therefore, is not a one-sided right to be enforced, but a shared covenant of emotional support, fidelity, responsibility and care, where the rights of one are always tied to the duties they owe to the other. Persistent withdrawal from the foundational aspects of marriage may have legal consequences while evaluating allegations of mental cruelty.
23. From the conduct of parties, it is clear that even during the short period of cohabitation they failed to perform their conjugal responsibilities. The parties have strongly held views with regard to the approach

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towards matrimonial life and they have refused to accommodate each other for a long period of time. As held in the case of **Nayan Bhowmick v. Aparna Chakraborty**<sup>9</sup>, this Court is of the view that in matrimonial matters involving two individuals, it is not for the society or for the Court to sit in judgment over which spouse's approach is correct or not. It is their strongly held views and their refusal to accommodate each other that amounts to cruelty to one another.

24. This Court in multitude of cases, has held that in situations where parties have been living separately for a considerable time without any hope for reconciliation amounts to cruelty to both the parties.
25. In the light of the above, it can be said that the High Court has rightly assessed that where parties have been living separately for several years and at this stage asking them to live together after a prolonged duration would amount to cruelty to both the parties and divorce can be granted on this ground as provided under section 13 (1)(ia) of HMA. It may be added here that desertion as a ground requires an initial period as mentioned under the statute but if such desertion continues for a long period of time without any effort on the part of the parties to restore cohabitation would itself be a ground to be considered by the Appellate Court. This we say in the light of the fact that human relations are dynamic and once the initial mandate under the statute stands satisfied, continuation thereof during the litigation would aggravate the said agony which could be confirmational in substantiating the basis and pleaded ground for divorce. The same can be taken into consideration for formation of an opinion to accept the prayer by the Appellate Court. Appeal is the continuation of a suit and therefore, the Appellate Court would be entitled and justified to consider the conduct of the parties during the pendency of litigation. The same can also be looked into to support or reject an opinion on the ground in question.
26. An Appellate Court, while carefully ensuring that a party does not profit from their own manifest wrong or unilateral desertion, may legitimately treat a prolonged period of separation as an indicator of mental cruelty within the meaning of Section 13(1)(ia) of the HMA. The Appellate Court is not precluded from examining whether continuous separation over a substantial period, coupled with absence of any

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genuine effort at reconciliation, complete cessation of cohabitation and emotional alienation has resulted in mental cruelty. Subsequent events occurring during pendency of proceedings may legitimately be taken into consideration while undertaking such assessment. In such circumstances, the confirmation of a decree of divorce by an Appellate Court is not an invocation of extraordinary constitutional jurisdiction under Article 142 of the Constitution of India, but a lawful and realistic application of the statutory ground of cruelty to the facts of the case.

27. A significant aspect of this case is the prolonged physical separation spanning more than a decade and a half. While the statutory ground of 'desertion' under Section 13(1)(ib) of the HMA has not been formally pleaded by the Respondent-husband however, the element of desertion can be viewed neutrally through an objective lens where spouses choose independent professional and geographical paths and remain completely estranged without any reciprocal effort to bridge the distance.
28. In such circumstances, desertion ceases to be merely a matter of individual malice or unilateral fault rather it assumes the character of a shared, de facto abandonment of the matrimonial covenant. The parties have objectively deserted the matrimonial framework itself. The intentional maintenance of distinct lifestyles, separate domiciles, and the total cessation of marital interaction over fifteen years establishes a de facto abandonment of the marital covenant by both sides.
29. In any event, this Court in exercise of power to do "complete justice" under Article 142(1) of the Constitution of India has the discretion to dissolve the marriage on the ground of irretrievable breakdown.
30. In present case, it is not disputed that since more than last 15 years both the Appellant-wife and the Respondent-husband are residing separately. It also appears that all efforts to continue the marriage have failed and there is no possibility of re-union because of the strained relations between the parties. Thus, it is apparent that marriage between the Appellant-wife and the Respondent-husband has also, broken down irretrievably.
31. In the case of **Vikas Kanaujia** (supra), where the husband and wife lived together for total 43 days and period for separation was more than 22 years, this Court held that:

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*“17. The husband and wife have lived together on their own will for hardly 23 days since marriage. They further lived together for 20 more days from 15.06.2005 to 05.07.2015 as Sessions Court passed order for conciliation. Thus, in total the parties have not lived together for more than 43 days. The Respondent left her matrimonial house within the first month of marriage. The period of separation has been more than 22 years. The possibility of parties living together is further reduced as parties are in their early 50s now and have built independent lives. Further, the parties have fought multiple legal battles against each other since 2002 itself with six cases filed against each other, including criminal cases. The Respondent had filed a criminal case against the Appellant and his family members where they were arrested although subsequently discharged and acquitted.*

*18. Although the respondent claims that she is willing to live with the Appellant believing in the sanctity of marriage, her actions are not in consonance with her claim. In this long period of 22 years, there was no one to stop her from living together with the Appellant. The mediation and conciliation proceedings have failed. The Appellant on the other hand states that the claim of willingness to live together is falsely projected claim before the Court of law only to mislead the Court, delay the proceedings and harass the appellant.*

*19. Thus, the effective cumulation of actions of both the parties in past 22 years since marriage has resulted in demolition of their matrimonial bond beyond repair. The marriage has ceased to exist both in substance and in reality. The relation has even taken a sour taste as the families of parties have also developed rivalries. The act of Respondent to lodge a missing complaint against Appellant after the delivery of impugned order is also indicative of the bitter relation between the parties. Considering the long separation period of 22 years, lack of existence of marriage between the parties and the sour relations developed due to continuous legal battles, we deem this case to be*

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*fit for exercise of extraordinary powers conferred under Article 142 of the Constitution.*

20. In **Rajib Kumar Roy vs Sushmita Saha**, this Court exercised the power conferred under Article 142 of the Constitution of India by dissolving the marriage between parties who were living separately for 12 years. Paragraph Nos. 8, 9 and 10 of the judgement are reproduced hereunder:

*'8. Continued bitterness, dead emotions and long separation, in the given facts and circumstances of a case, can be construed as a case of 'irretrievable breakdown of marriage', which is also a facet of 'cruelty'. In **Rakesh Raman v. Kavita**, 2023 SCC OnLine SC 497, this is precisely what was held, that though in a given case cruelty as a fault, may not be attributable to one party alone and hence despite irretrievable breakdown of marriage keeping the parties together amounts to cruelty on both sides. Which is precisely the case at hand.*

*9. Whatever may be the justification for the two living separately, with so much of time gone by, any marital love or affection, which may have been between the parties, seems to have dried up. This is a classic case of irretrievable breakdown of marriage. In view of the Constitution Bench Judgment of this court in **Shilpa Sailesh v. Varun Sreenivasan**, 2023 SCC OnLine SC 544 which has held that in such cases where there is irretrievable breakdown of marriage then dissolution of marriage is the only solution and this Court can grant a decree of divorce in exercise of its power under Article 142 of the Constitution of India.*

*10. We therefore declare the marriage to have broken down irretrievably and therefore in exercise of our jurisdiction under Article 142 of the Constitution of India we are of the considered opinion that this being a case of irretrievable breakdown of marriage must now be dissolved by grant of decree of divorce.' "*

**(emphasis supplied)**

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32. In the case of **Shilpa Shailesh** (supra), while considering the cases of **Darshan Gupta** (supra) and **Vishnu Dutt Sharma** (supra) as relied upon by the Appellant-wife, the Constitution Bench clarified that this Court, in exercise of power under Article 142(1) of the Constitution of India, has the discretion to dissolve the marriage on the ground of its irretrievable breakdown. This discretionary power is to be exercised to do 'complete justice' to the parties, wherein this Court is satisfied that the facts established show that the marriage has completely failed and there is no possibility that the parties will cohabit together, and continuation of the formal legal relationship is unjustified. The Court, as a court of equity, is required to also balance the circumstances and the background in which the party opposing the dissolution is placed. Further, it was held that:

*"62. Having said so, we wish to clearly state that grant of divorce on the ground of irretrievable breakdown of marriage by this Court is not a matter of right, but a discretion which is to be exercised with great care and caution, keeping in mind several factors ensuring that "complete justice" is done to both parties. It is obvious that this Court should be fully convinced and satisfied that the marriage is totally unworkable, emotionally dead and beyond salvation and, therefore, dissolution of marriage is the right solution and the only way forward.*

*63. That the marriage has irretrievably broken down is to be factually determined and firmly established. For this, several factors are to be considered such as the period of time the parties had cohabited after marriage; when the parties had last cohabited; the nature of allegations made by the parties against each other and their family members; the orders passed in the legal proceedings from time to time, cumulative impact on the personal relationship; whether, and how many attempts were made to settle the disputes by intervention of the court or through mediation, and when the last attempt was made, etc. The period of separation should be sufficiently long, and anything above six years or more will be a relevant factor. But these facts have to be evaluated keeping in view the economic and social status of the parties, including their educational qualifications, whether the parties have any children, their age, educational qualification, and whether*

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*the other spouse and children are dependent, in which event how and in what manner the party seeking divorce intends to take care and provide for the spouse or the children. Question of custody and welfare of minor children, provision for fair and adequate alimony for the wife, and economic rights of the children and other pending matters, if any, are relevant considerations. We would not like to codify the factors so as to curtail exercise of jurisdiction under Article 142(1) of the Constitution of India, which is situation specific. Some of the factors mentioned can be taken as illustrative, and worthy of consideration.”*

**(emphasis supplied)**

33. In the similar set of facts and circumstances of the case, this Court in the case of **R. Srinivas Kumar v. R. Shametha**<sup>10</sup> had directed to dissolve the marriage on the ground of irretrievable breakdown of marriage as parties were living separately for more than 22 years, in exercise of powers under Article 142 of the Constitution of India.
34. This Court, in a series of judgments, has exercised its inherent powers under Article 142 of the Constitution of India for dissolution of a marriage where the Court finds that the marriage is totally unworkable, emotionally dead, beyond salvage and has broken down irretrievably, even if the facts of the case do not provide a ground in law on which the divorce could be granted. In the present case, admittedly, the Appellant-wife and the Respondent-husband have been living separately for more than 15 years, all efforts to reconcile them have failed and therefore, it will not be possible for the parties to live together. Therefore, we are of the considered opinion that this is a fit case to exercise the powers under Article 142 of the Constitution of India and to dissolve the marriage between the parties.
35. This Court is conscious of the view that approach of the Courts should be to preserve the sanctity of marriage and the Court should be reluctant to dissolve the marriage at the mere asking of one of the parties. But, in the present case, the parties have lived separately for far too long a period of time and there is no sanctity left in the marriage. Although plea had been taken that the Appellant-wife had left her job in Gujarat and started residing in Bharatpur, Rajasthan but



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no evidence has come on record to substantiate the same. Rather the evidence on record is to the contrary and it is not disputed that she still continues with her job in Gujarat. There appears to be no intention on her part to join company of the husband as actions speak more than the dry words. Grant of divorce in the present proceedings would not have a devastating effect on any third party, as there are no children from the wedlock. Both the wife and husband are doctors and are in government service in State of Gujarat and Rajasthan respectively, therefore, financially well off and independent.

36. This Court is also of the view that prolonged pendency of matrimonial litigation only leads to perpetuity of marriage on paper. It is in the best interest of parties and the society if ties are severed between parties in cases where litigation has been pending for a considerably long period of time. Prolongation of a matrimonial relationship would further lead not only to escalation of frustration in a dead relationship, which has already decayed and is decomposing day by day creating foul sociological, psychological and mental hollowness in life resulting in denial of a free and independent environment to flourish which each human strives in body and soul. Consequently, this Court is of the opinion that such matrimonial litigation pending in Court needs to be put to end by granting effective release to the parties from a stale and frozen relationship.
37. In the light of what has been stated above, in our considered view, this would be a fit case where the relationship of marriage should come to an end for which exercise of powers under Article 142 of the Constitution of India would be essential to do complete justice. Accordingly, the marriage between the Appellant-wife and the Respondent-husband deserves to be dissolved in exercise of powers under Article 142 of the Constitution of India.
38. As a consequence of the above, the present appeal stands dismissed.
39. There shall be no order as to cost.
40. Pending application(s), if any, also stand disposed of.

*Result of the case:* Appeal dismissed.



[2026] 7 S.C.R. 67 : 2026 INSC 626

**Sahil Abdulsattar Mansuri & Ors.**  
**v.**  
**Safimahamad Fafirbhai Mansuri & Ors.**

(Criminal Appeal No. 3058 of 2026)

04 June 2026

**[Sanjay Karol\* and Augustine George Masih, JJ.]**

**Issue for Consideration**

Matter pertains to inordinate delay of nearly two decades in the investigation of the criminal complaint.

**Headnotes<sup>†</sup>**

**Constitution of India – Arts.136, 226, 14 – Inordinate delay in the investigation of the criminal complaint – Complaint by the father of the appellants-original complainant, in the year 2007, before the Judicial Magistrate against respondents 1 to 4 u/ss.120B, 406, 420, 463, 468, 471, and 114 IPC alleging that while he was away on Haj pilgrimage, the accused persons forged his signatures and prepared bogus partition deed and fake sale deed, mutated their names in the Revenue Records – Applications by the original complainant seeking directions to the investigating officer to file chargesheet – Thereafter, writ petition praying for a direction to respondent no. 6 to file charge-sheet in their criminal complaint – High Court refused to issue any such direction – Correctness:**

**Held:** High Court ought to have taken note of the inordinate delay of nearly two decades in filing of the chargesheet and intervened in the matter – However, matter of serious concern is that despite the lapse of such an inordinate period of time the investigation is yet to reach any meaningful conclusion – It is incumbent upon constitutional courts to not remain mute spectators, when such prolonged investigations are brought to its notice – Thus, in such peculiar circumstances, the High Court ought to have exercised its extraordinary jurisdiction to intervene – State submitted that detailed report, along with original case papers, during transit to the Magistrate, were misplaced and was never received by the Magistrate, and thereafter, re-investigation was ordered by the

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\* Author

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High Court – During re-investigation, original case papers remained untraceable – Disciplinary proceedings were initiated against the officer concerned and appropriate action was taken – Stand of the State is that in the absence of the original case records and inability to conclusively trace all relevant witnesses, the investigation could not be carried out to its logical conclusion – Upon consideration of the stand of the State, it is found that from the order of the High Court ordering re-investigation, nearly a decade has passed – Even in the case that during the investigation the police were not able to trace the relevant witnesses, ordinarily an appropriate report seeking closure should have been filed before the Magistrate – No reason, as to why the complaint and investigation have remained pending till date – Moreover, incidents wherein case records are lost during an active investigation, have to be taken with utmost seriousness – Such incidents strike at the very core of the criminal justice system, rendering *bonafide* complaints inactionable – Thus, in the interest of justice, the State of Gujarat and Police Station to conclude investigation within the stipulated period and file an appropriate report with the Magistrate containing all investigative material and if so, the lack thereof. [Paras10-18]

### Case Law Cited

*Robert Lalchungnunga Chongthu v. State of Bihar*, 2025 SCC OnLine SC 2511 – referred to.

### List of Acts

Penal Code, 1860; Constitution of India.

### List of Keywords

Inordinate delay of two decades in the investigation of the criminal complaint; Haj pilgrimage; Forging of signatures; Preparation of bogus partition deed and fake sale deed; Directions to the investigating officer to file chargesheet.

### Case Arising From

CRIMINAL APPELLATE JURISDICTION: Criminal Appeal No. 3058 of 2026

From the Judgment and Order dated 26.06.2025 of the High Court of Gujarat at Ahmedabad in SCRA(D) No. 2029 of 2024

**Sahil Abdulsattar Mansuri & Ors. v.  
Safimahamad Fafirbhai Mansuri & Ors.**

**Appearances for Parties**

*Advs. for the Appellant(s):*

Ms. Aastha Mehta, Satyam Chhayya, Ms. Prerana Mohapatra,  
Ms. Prina Sharma, Anshuman Srivastava.

*Advs. for the Respondent(s):*

Mehmood Umar Faruqui, Aman Rawat, Ms. Swati Ghildiyal,  
Ms. Neha Singh.

**Judgment / Order of the Supreme Court**

**Order**

**Sanjay Karol, J.**

Leave granted.

2. *Justice delayed is justice denied.* While this proverb has been reiterated by Courts for time immemorial, the case at hand is an unfortunate occasion where despite repeatedly knocking the doors of the Courts below, there has been an inordinate delay of nearly two decades in the investigation of the criminal complaint, which compels interference by this Court.
3. The present appeal arises from the impugned order dated 26.06.2025 in Special Criminal Application (Direction) No. 2029 of 2024 passed by the High Court of Gujarat at Ahmedabad, whereby the writ petition preferred by the predecessor of the appellants praying for a direction to respondent no. 6 to file charge-sheet in their criminal complaint dated 14.09.2007, came to be dismissed.

**Brief Facts**

4. The father of the appellant(s)<sup>1</sup> instituted a complaint before the Judicial Magistrate First Class, Bhiloda<sup>2</sup> against respondent no. 1 to 4, under Sections 120B, 406, 420, 463, 468, 471, and 114 of the Indian Penal Code, 1860<sup>3</sup>. It was alleged therein that the subject property, being Survey No. 761, Bhiloda Village, was self-acquired by him

<sup>1</sup> Hereinafter 'original complainant'.

<sup>2</sup> Hereinafter 'JMFC'.

<sup>3</sup> Hereinafter 'IPC'.

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on 11.12.1975. Subsequently, when he was on Haj pilgrimage from 05.02.2002 to 21.03.2002, the aforesaid accused persons forged his signature and prepared a forged partition deed alongwith a bogus sale deed *qua* the subject property. On the basis of such forgery, their names were entered into the Revenue Records.

5. On 10.10.2014, the police presented C-Summary before the JMFC which came to be rejected, and further investigation was directed, to be concluded within 60 days. Thereafter, upon consideration of an application filed by the original complainant<sup>4</sup> before the High Court of Gujarat at Ahmedabad<sup>5</sup>, on 20.07.2017, the Court directed preparation of the investigation report within six weeks while recording that some of the material collected during the investigation had gone missing from the custody of the concerned Police Station.
6. Consequently, on 29.08.2017, the FSL Report was prepared and forwarded to JMFC on 27.11.2017. In this report, it was stated that the accused persons had prepared forged documents and forged signatures of the complainant. Pursuant thereto, on 27.11.2017, in Summary No.59 of 2017 the JMFC directed the police to take further action and carry out further investigation.
7. Thereafter, on 21.01.2018, an application was filed by the original complainant before the JMFC praying for appropriate orders to the investigating officer as neither the investigation was concluded nor a final report was submitted in the complaint. In the said application, the JMFC directed the investigating officer to specify within a period of 10 days as to whether investigation remains pending or has been concluded.
8. On 14.09.2022, the Addl. Judicial Magistrate Bhiloda, again directed the investigating officer to carry out investigation and file charge sheet in accordance with law. The original complainant was constrained to file another application<sup>6</sup> before the High Court, praying for directions to the investigating officer to file chargesheet.
9. *Vide* the impugned order, the High Court refused to issue any such direction and disposed of the application. It was observed that no case is made out for issuance of direction under Article 226 of the

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4 Special Criminal Application (Direction) No. 4455 of 2017.

5 Hereinafter 'High Court'.

6 Special Criminal Application (Direction) No. 2029 of 2024.

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Constitution and since the JMFC had already passed an order to similar effect, an appropriate proceeding should have been initiated before the JMFC.

**Our View**

10. We have heard the learned counsel for the parties. At the outset, in the considered view of this Court, the High Court ought to have taken note of the inordinate delay in filing of the chargesheet and intervened in the matter at hand.
11. The right to speedy trial is intrinsically linked to Article 21 of the Constitution. On this aspect, we advert to the observations of this Court in **Robert Lalchungnunga Chongthu v. State of Bihar**<sup>7</sup>:

“**14.** Various judgments of this Court have emphasised the right to speedy trial as being an important facet of Article 21 of the Constitution. Timely completion of investigation is inherent thereto.

**15.** Moving further, it is to be noted that this aspect of prompt investigation has received statutory recognition as well in the CrPC, which of course, is the comprehensive code laying down detailed procedure for stages of investigation, trial and appeal among other things. It must be stated that statutory recognition of prompt investigation is a pre-constitutional stipulation.

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**17.** The inescapable conclusion arrived at from the above discussion in the Indian context, is that there has been an evolution in legislative wisdom over the years and the criminal procedure have moved from a period of no timelines and minimal judicial interventions/oversight to progressively more oversight and recognition of the need to conclude investigations in time. It may be true that no strict timelines are provided in the CrPC, but it is equally so that investigations are to be completed in reasonable time.

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**21.** Before parting with this matter, we deem it fit to issue the following directions:

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ii) Reasons are indispensable to the proper functioning of the machinery of criminal law. They form the bedrock of fairness, transparency, and accountability in the justice system. If the Court finds or the accused alleges (obviously with proof and reason to substantiate the allegation) that there is a large gap between the first information report and the culminating chargesheet, it is bound to seek an explanation from the investigating agency and satisfy itself to the propriety of the explanation so furnished.

The direction above does not come based on this case alone. This Court has noticed on many unfortunate occasions that there is massive delay in filing chargesheet/taking cognizance etc. This Court has time and again, in its pronouncements underscored the necessity of speedy investigation and trial as being important for the accused, victim and the society. However, for a variety of reasons there is still a lag in the translation of this recognition into a reality.

(iii) While it is well acknowledged and recognised that the process of investigation has many moving parts and is therefore impractical to have strict timelines in place, at the same time, the discussion made in the earlier part of this judgement, clearly establishes that investigations cannot continue endlessly. The accused is not out of place to expect, after a certain point in time, certainty- about the charges against him, giving him ample time to preparing plead his defence. If investigation into a particular offence has continued for a period that appears to be unduly long, that too without adequate justification, such as in this case, the accused or the complainant both, shall be at liberty to approach the High Court under Section 482 BNSS/482 CrPC, seeking an update on

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the investigation or, if the doors of the High Court have been knocked by the accused, quashing. It is clarified that delay in completion of investigation will only function as one of the grounds, and the Court, if in its wisdom, decides to entertain this application, other grounds will also have to be considered.”

(emphasis supplied)

12. In the present factual matrix, nearly two decades have passed since the initiation of the complaint by the original complainant. However, it is a matter of serious concern that despite the lapse of such an inordinate period of time the investigation is yet to reach any meaningful conclusion. From a bare perusal of the record, it is evident that the original complainant had run from pillar to post, for filing of a chargesheet in connection with his complaint, but to no avail.
13. This Court is of the view that it is incumbent upon constitutional courts to not remain mute spectators, when such prolonged investigations are brought to its notice. Therefore, in such peculiar circumstances, the High Court ought to have exercised its extraordinary jurisdiction to intervene in the present matter.
14. At this stage, it becomes appropriate to consider the stand put forth by the State of Gujarat. It has been submitted that the materials seized during the course of investigation were sent for FSL examination, wherein it was opined that the original complainant had not authored the signatures on the forged documents. A detailed report, along with original case papers, was sent to the JMFC Court through Police Station Bhiloda, *via* Outward No. 564/15. However, during transit, the said material is stated to have been misplaced and was never received by the JMFC. Thereafter, re-investigation was ordered by the High Court of Gujarat *vide* order dated 20.07.2017.
15. It has been submitted that during re-investigation, the original case papers remained untraceable. Disciplinary proceedings were initiated against the officer concerned and appropriate action was taken in accordance with law. The stand of the State is that in the absence of the original case records and inability to conclusively trace all relevant witnesses, the investigation could not be carried out to its logical conclusion.

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16. Upon consideration of the stand of the State, we find that from the order of the High Court ordering re-investigation, nearly a decade has passed. Even in the case that during the investigation the police were not able to trace the relevant witnesses, ordinarily an appropriate report seeking closure should have been filed before the JMFC. We find no reason from the record, as to why the complaint and investigation have remained pending till date.
17. Moreover, we are of the view that incidents such as this, wherein case records are lost during an active investigation, have to be taken with utmost seriousness. Moreover, such incidents strike at the very core of the criminal justice system, rendering *bonafide* complaints inactionable.
18. Therefore, in the interest of justice, we direct the State of Gujarat and Police Station Bhiloda, to conclude investigation within a period of six weeks from today and file an appropriate report with the JMFC containing all investigative material and if so, the lack thereof. Furthermore, the State of Gujarat to file an affidavit indicating:
  - a. Specific action taken against the officer involved, the stage of such action and whether taken to its logical conclusion;
  - b. Despite directions of the JMFC to conclude further investigation after the loss of records, why was the JMFC not informed of the inability to reconstruct records and track witnesses etc.; and
  - c. Compliance with direction to conclude investigation.
19. List on 14.07.2026 at 2.00 P.M. as part heard.

*Result of the case:* Listed for further hearing.



**Dr. Ramesh**  
**v.**  
**State of Maharashtra & Anr.**

(Criminal Appeal No. 3064 of 2026)

11 June 2026

**[Sanjay Karol\* and Prashant Kumar Mishra, JJ.]**

**Issue for Consideration**

Matter pertains to implementation of Pre-Natal Diagnostic Techniques (Prohibition of Sex Selection) Act, 1994.

**Headnotes<sup>†</sup>**

**Pre-Natal Diagnostic Techniques (Prohibition of Sex Selection) Act, 1994 – ss.20(1), 23, 4(3), 5, 6 and 29 – Authority conducted search and seized equipment belonging to the appellant and issued notice to him u/s.20(1), calling upon him to offer an explanation – Pursuant thereto, the appellant appeared before the Advisory Committee, and it was concluded that *prima facie* material existed in so far as the violations under PCPNDT were concerned – Suspension of the sonography center and seizure of the sonography machine was ordered – Same was challenged and was released in favour of the appellant – Proceedings before the trial court, initiated and trial court directed the issuance of process u/s.204 CrPC for the offences punishable u/s.23 of PCPNDT for violation of ss.4(3), 5, 6 and 29 of the Act and Rules 9, 8(5) and 18(9) – Criminal revision thereagainst on the ground that competence of the Civil Surgeon, as the appropriate Authority and, the maintenance and updating of records being the responsibility of the hospital staff and not the responsibility of the appellant – Revision dismissed – Thereafter, the High Court rejected the challenge to the order taking cognizance passed by the Judicial Magistrate – Correctness:**

**Held:** District Civil Surgeon is the appropriate Authority under the Act, and as such, the instant proceedings were in accordance with law – Keeping of records is essential to the Act and its avowed purpose – Errors in maintaining the records were not a trivial matter and compromises in maintaining the record apart from being a

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\* Author

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substantive offence under the proviso to s.4(3), would also be offensive to the scope of the Act – Extent and manner of violations in maintaining the record is a question of trial and had to be determined in such proceedings – Order of the Magistrate suffered from no error – Furthermore, in general terms, the declining sex ratio issue is better and has shown considerable improvement but, however, diluting the provisions of law, or letting infractions thereof slide cannot be countenanced – According to official Government of India data, the country's sex ratio has shown clear signs of improvement in recent years – These schemes are indicative of continued efforts to eradicate the systemic bias suffered by the girl child in an inherently patriarchal system – Much progress has been made, and yet, much is left to be desired – While the situation is markedly better than it was in the mid-1990s, the data does not support complacency – Statistics show that the progress made is incomplete and uneven – Thus, the integrity and strict enforcement of welfare-oriented legislation such as the PCPNDT Act remain essential along with efforts continued and earnest, till the time there is a widespread change in mentality and what till now, is perceived as the 'inherent weakness' of the woman, is replaced by true equality, when there will dawn a realization that efforts such as these are no longer required. [Paras 7, 14, 16]

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**List of Acts**

Pre-Natal Diagnostic Techniques (Prohibition of Sex Selection) Act, 1994; Code of Criminal Procedure, 1973; Pre-Natal Diagnostic Techniques (Prohibition of Sex Selection) Rules, 1996.

**List of Keywords**

Implementation of Pre-Natal Diagnostic Techniques (Prohibition of Sex Selection) Act, 1994; Search and seizure; Advisory Committee; Violations under PCPNDT; Suspension of sonography center and seizure of sonography machine; Competence of Civil Surgeon; Appropriate Authority; Maintenance and updating of records.

**Case Arising From**

CRIMINAL APPELLATE JURISDICTION: Criminal Appeal No. 3064 of 2026

From the Judgment and Order dated 26.09.2018 of the High Court of Judicature at Bombay at Aurangabad in CRLWP No. 1363 of 2017

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### Appearances for Parties

*Advs. for the Appellant(s):*

Makrand Adkar, Pravin Waman Satale, Rishabh Jain, Sushant Sarkar, Shantanu Makrand Adkar, Miss.shambhvee Bhushan Kanade, Bhushan, Ms. Priya, Rajiv Shankar Dvivedi.

*Advs. for the Respondent(s):*

Aniruddha Joshi, Sr. Adv., Siddharth Dharmadhikari, Aaditya Aniruddha Pande, Shrirang B. Varma.

### Judgment / Order of the Supreme Court

#### Judgment

**Sanjay Karol, J.**

Leave granted.

2. In the larger context of this appeal, we are reminded of the words of Subhadra Kumari Chauhan in the poem '*Balika ka parichay*'. It powerfully describes the beautiful joy of a mother upon the birth of her daughter:

“यह मेरी गोदी की शोभा, सुख सोहाग की है लाली  
 शाही शान भिखारन की है, मनोकामना मतवाली  
 दीप-शिखा है अँधेरे की, घनी घटा की उजियाली  
 उषा है यह काल-भृंग की, है पतझर की हरियाली  
 सुधाधार यह नीरस दिल की, मस्ती मगन तपस्वी की.  
 जीवित ज्योति नष्ट नयनों की, सच्ची लगन मनस्वी की.  
 बीते हुए बालपन की यह, क्रीड़ापूर्ण वाटिका है.  
 वही मचलना, वही किलकना, हँसती हुई नाटिका है.  
 मेरा मंदिर, मेरी मसजिद, काबा काशी यह मेरी.  
 पूजा पाठ, ध्यान, जप, तप, है घट-घट वासी यह मेरी.  
 कृष्णचन्द्र की क्रीड़ाओं को अपने आंगन में देखो.  
 कौशल्या के मातृ-मोद को, अपने ही मन में देखो.

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प्रभु ईसा की क्षमाशीलता, नबी मुहम्मद का विश्वास.  
जीव-दया जिनवर गौतम की, आओ देखो इसके पास.

परिचय पूछ रहे हो मुझसे, कैसे परिचय दूँ इसका.  
वही जान सकता है इसको, माता का दिल है जिसका”

Well, to our mind the objective of the Pre-Natal Diagnostic Techniques (Prohibition of Sex Selection) Act, 1994<sup>1</sup> is to enable a woman to feel the joy that has been described above.

From our own scriptures, the once much cherished, but now largely forgotten value is also worth reminding ourselves of:

“यत्र नार्यस्तु पूज्यन्ते रमन्ते तत्र देवताः”<sup>2</sup>

3. This appeal challenges the judgment and order of the High Court of Judicature at Bombay, Aurangabad Bench in CrWP No. 1363 of 2017, whereby the challenge to the order taking cognizance dated 9<sup>th</sup> June 2016 in RCC No.16 of 2016 passed by the Judicial Magistrate First Class, Ardhapur<sup>3</sup> was rejected.
4. The Trial Court has directed the issuance of process under Section 204 of the Code of Criminal Procedure<sup>4</sup> for the offences punishable under Section 23 of the Pre-Conception and Pre-Natal Diagnostic Techniques (Prohibition of Sex Selection) Act, 1994<sup>5</sup> for violation of Sections 4(3), 5, 6 and 29 of the Act and Rules 9, 8(5) and 18(9).  
Also under challenge was the order dated 21<sup>st</sup> August 2017 which dismissed the Criminal Revision No. 82 of 2016 preferred by the appellant against the issuance of process.
5. In short, an Authority (delegation of power to whom is in fact, a point of challenge raised before us) conducted a search and seized the equipment belonging to the appellant and issued notice to him under Section 20(1) of the PCPNDT, calling upon him to offer an explanation. Pursuant to letter dated 18<sup>th</sup> March 2016 issued by

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1 PCPNDT

2 [‘Yatra naryastu pujiyante ramante tatra dewatah’] (where woman is worshipped, there is abode of God).

3 Trial Court

4 CrPC

5 PCPNDT

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such Authority, he also appeared before the Advisory Committee, constituted under the Act on 22<sup>nd</sup> March 2016. Having heard him, it was concluded that *prima facie* material existed in so far as the violations under PCPNDT were concerned. The suspension of the sonography center and seizure of the sonography machine was ordered by communication dated 23<sup>rd</sup> March 2016. Here itself, it may be noted that this seizure of machine was challenged as per law, and as on date it stands released in favour of the appellant as also registration thereof restored. The same is, therefore, a non- issue before us. Proceedings before the Trial Court, as already noted, were initiated on 28<sup>th</sup> April 2016. The order under challenge was issued on 9<sup>th</sup> June 2016.

6. A Revision Petition was preferred against this Order which was disposed of by judgment dated 21<sup>st</sup> August 2017. Both grounds raised, i.e., the competence of the Civil Surgeon, as the appropriate Authority and, the maintenance and updating of records being the responsibility of the hospital staff and not the responsibility of the appellant herein were rejected.
7. In the judgment impugned before us, the grounds of challenge raised by the appellant were two –fold. *One*, that Civil Surgeon was not the appropriate Authority under the Act and as such, the cognizance taken by the Magistrate was without basis; *Two*, it was urged that the errors or blanks in Form ‘F’ were technical errors and inadvertent. They were not errors backed by intention.

Regarding the first contention, notification dated 15<sup>th</sup> May 2015 was taken note of which made the District Civil Surgeon, the appropriate Authority under the Act, and as such, the instant proceedings were in accordance with law.

About the second contention, it was concluded by the Court that the errors in maintaining the records were not a trivial matter and compromises in maintaining the record apart from being a substantive offence under the *proviso* to Section 4(3), would also be offensive to the scope of the Act. The extent and manner of violations in maintaining the record is a question of trial and had to be determined in such proceedings. The order of the Magistrate suffered from no error.

8. The appellant, therefore, has carried the matter in appeal before this Court. We have heard the learned counsel for the parties and

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perused the record. The short question to be considered is whether the Magistrate was correct in taking cognizance.

9. At the outset, we may profitably refer to the observations in ***Voluntary Health Assn. of Punjab v. Union of India***<sup>6</sup>, wherein this court observed:

*“14. Female foeticide has its roots in the social thinking which is fundamentally based on certain erroneous notions, egocentric traditions, perverted perception of societal norms and obsession with ideas which are totally individualistic sans the collective good. All involved in female foeticide deliberately forget to realise that when the foetus of a girl child is destroyed, a woman of the future is crucified. To put it differently, the present generation invites the sufferings on its own and also sows the seeds of suffering for the future generation, as in the ultimate eventuate, the sex ratio gets affected and leads to manifold social problems. I may hasten to add that no awareness campaign can ever be complete unless there is real focus on the prowess of women and the need for women empowerment.”*

Even after more than a decade our sentiment is similar.

10. The relevant provisions of the PCPNDT Act are as follows:

*2. Definitions.- In this Act, unless the context otherwise requires,— (a) “Appropriate Authority” means the Appropriate Authority appointed under section 17*

*“pre-natal diagnostic procedures” means all gynaecological or obstetrical or medical procedures such as ultrasonography, foetoscopy, taking or removing samples of amniotic fluid, chorionic villi, blood or any other tissue or fluid of a man, or of a woman for being sent to a Genetic Laboratory or Genetic Clinic for conducting any type of analysis or pre-natal diagnostic tests for selection of sex before or after conception; (j) “pre-natal diagnostic techniques” includes all pre-natal diagnostic procedures and pre-natal diagnostic tests;*

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“

### CHAPTER III

#### REGULATION OF PRE-NATAL DIAGNOSTIC TECHNIQUES

**4. Regulation of pre-natal diagnostic techniques.**— On and from the commencement of this Act,—

1. no place including a registered Genetic Counselling Centre or Genetic Laboratory or Genetic Clinic shall be used or caused to be used by any person for conducting pre-natal diagnostic techniques except for the purposes specified in clause (2) and after satisfying any of the conditions specified in clause (3);

2. no pre-natal diagnostic techniques shall be conducted except for the purposes of detection of any of the following abnormalities, namely:—

...

3. no pre-natal diagnostic techniques shall be used or conducted unless the person qualified to do so is satisfied for reasons to be recorded in writing that any of the following conditions are fulfilled, namely:—

(i) age of the pregnant woman is above thirty-five years;

...

Provided that the person conducting ultrasonography on a pregnant woman shall keep complete record thereof in the clinic in such manner, as may be prescribed, and any deficiency or inaccuracy found therein shall amount to contravention of provisions of section 5 or section 6 unless contrary is proved by the person conducting such ultrasonography;

4. ...

5. ...

**“5. Written consent of pregnant woman and prohibition of communicating the sex of foetus.**

1. No person referred to in clause (2) of section 3 shall conduct the pre-natal diagnostic procedures unless—



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*(a) he has explained all known side and after effects of such procedures to the pregnant woman concerned;*

*(b) he has obtained in the prescribed form her written consent to undergo such procedures in the language which she understands; and*

*(c) a copy of her written consent obtained under clause (b) is given to the pregnant woman.*

*2. No person including the person conducting pre-natal diagnostic procedures shall communicate to the pregnant woman concerned or her relatives or any other person the sex of the foetus by words, signs or in any other manner.*

*6. Determination of sex prohibited.- On and from the commencement of this Act, —*

*(a) no Genetic Counselling Centre or Genetic Laboratory or Genetic Clinic shall conduct or cause to be conducted in its Centre, Laboratory or Clinic, pre-natal diagnostic techniques including ultrasonography, for the purpose of determining the sex of a foetus;*

*(b) no person shall conduct or cause to be conducted any pre-natal diagnostic techniques including ultrasonography for the purpose of determining the sex of a foetus;*

*(c) no person shall, by whatever means, cause or allow to be caused selection of sex before or after conception.”*

*(emphasis supplied)*

...

...

...

...

**23. Offences and penalties.-** *(1) Any medical geneticist, gynaecologist, registered medical practitioner or any person who owns a Genetic Counselling Centre, a Genetic Laboratory or a Genetic Clinic or is employed in such a Centre, Laboratory or Clinic and renders his professional or technical services to or at such a Centre, Laboratory or Clinic, whether on an honorary basis or otherwise, and who contravenes any of the provisions of this Act or rules made thereunder shall be punishable with imprisonment for a term which may extend to three years and with fine*

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which may extend to ten thousand rupees and on any subsequent conviction, with imprisonment which may extend to five years and with fine which may extend to fifty thousand rupees.

2. The name of the registered medical practitioner shall be reported by the Appropriate Authority to the State Medical Council concerned for taking necessary action including suspension of the registration if the charges are framed by the court and till the case is disposed of and on conviction for removal of his name from the register of the Council for a period of five years for the first offence and permanently for the subsequent offence.

3. Any person who seeks the aid of a Genetic Counselling Centre, Genetic Laboratory, Genetic Clinic or ultrasound clinic or imaging clinic or of a medical geneticist, gynaecologist, sonologist or imaging specialist or registered medical practitioner or any other person for sex selection or for conducting pre- natal diagnostic techniques on any pregnant women for the purposes other than those specified in sub-section (2) of section 4, he shall, be punishable with imprisonment for a term which may extend to three years and with fine which may extend to fifty thousand rupees for the first offence and for any subsequent offence with imprisonment which may extend to five years and with fine which may extend to one lakh rupees.

4. For the removal of doubts, it is hereby provided, that the provisions of sub-section (3) shall not apply to the woman who was compelled to undergo such diagnostic techniques or such selection.

(emphasis supplied)

... ..

## 28. Cognizance of offences.

1. No court shall take cognizance of an offence under this Act except on a complaint made by—

(a) the Appropriate Authority concerned, or any officer authorised in this behalf by the Central Government or

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*State Government, as the case may be, or the Appropriate Authority; or*

*(b) a person who has given notice of not less than fifteen days in the manner prescribed, to the Appropriate Authority, of the alleged offence and of his intention to make a complaint to the court.*

*Explanation.—For the purpose of this clause, “person” includes a social organisation.*

*2. No court other than that of a Metropolitan Magistrate or a Judicial Magistrate of the first class shall try any offence punishable under this Act.*

*3. Where a complaint has been made under clause (b) of subsection (1), the court may, on demand by such person, direct the Appropriate Authority to make available copies of the relevant records in its possession to such person.”*

(emphasis supplied)

11. Section 32 of the Act, although not reproduced *supra*, provides the rule-making power. Under this Authority, the Central Government has framed the Pre-Conception and Pre-Natal Diagnostic Techniques (Prohibition of Sex Selection) Rules, 1996. The Scheme thereof was discussed in a recent judgment of this Court speaking through Bhuyan J., in ***Naresh Kumar Garg (Dr.) v. State of Haryana***<sup>7</sup>.
12. For our purposes, since the errors or blanks in Form ‘F’ is at ‘*front and centre*’ it would be apposite to reproduce the same as prescribed under the Rules:

**“Form F**

*[See Proviso to Section 4(3), Rule 9(4) and Rule 10(1-A)]*

**FORM FOR MAINTENANCE OF RECORD IN CASE  
OF PRE-NATAL DIAGNOSTIC TEST/PROCEDURE BY  
GENETIC CLINIC/ULTRASOUND CLINIC/IMAGING  
CENTRE**

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### **Section A: To be filled in for all Diagnostic Procedures/ Tests**

1. Name and complete address of Genetic Clinic/Ultrasound Clinic/Imaging centre: .....

2. Registration No. (Under PC & PNDT Act, 1994)

.....

3. Patient's name ..... Age .....

4. Total Number of living children: .....

(a) Number of living sons with age of each living son (in years or months): .....

(b) Number of living daughters with age of each living daughter (in years or months): .....

5. Husband's/Wife's/Father's/Mother's Name:

.....

6. Full postal address of the patient with Contact Number, if any .....

7.(a) Referred by (Full name and address of Doctor(s)/ Genetic Counseling Centre): .....

(Referral slips to be preserved carefully with Form F)

(b) Self-Referral by Gynaecologist/Radiologist/Registered Medical Practitioner conducting the diagnostic procedures:

.....

(Referral note with indications and case papers of the patient to be preserved with Form F)

**Self-referral does not mean a client coming to a clinic and requesting for the test or the relative/s requesting for the test of a pregnant woman**

.....

8. Last menstrual period or weeks of pregnancy:

.....

**Section B : To be filled in for performing non-invasive diagnostic Procedures/Tests only**

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9. Name of the doctor performing the procedure/s:

.....

10. Indication/s for diagnosis procedure .....

(specify with reference to the request made in the referral slip or in a self-referral note)

(Ultrasonography prenatal diagnosis during pregnancy should only be performed when indicated. The following is the representative list of indications for ultrasound during pregnancy. **(Put a “Tick” against the appropriate indication/s for ultrasound)**

i. To diagnose intra-uterine and/or ectopic pregnancy and confirm viability.

ii. Estimation of gestational age (dating).

iii. Detection of number of fetuses and their chorionicity.

iv. Suspected pregnancy with IUCD in-situ or suspected pregnancy following contraceptive failure/MTP failure.

v. Vaginal bleeding/leaking.

vi. Follow-up of cases of abortion.

vii. Assessment of cervical canal and diameter of internal os.

viii. Discrepancy between uterine size and period of amenorrhea.

ix. Any suspected adenexal or uterine pathology/ abnormality. x. Detection of chromosomal abnormalities, fetal structural defects and other abnormalities and their follow-up.

xi. To evaluate fetal presentation and position.

xii. Assessment of liquor amnii.

xiii. Preterm labor/preterm premature rupture of membranes.

xiv. Evaluation of placental position, thickness, grading and abnormalities (placenta praevia, retro-placental hemorrhage, abnormal adherence, etc.).

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xv. *Evaluation of umbilical cord-presentation, insertion, nuchal encirclement, number of vessels and presence of true knot.*

xvi. *Evaluation of previous Caesarean Section scars.* xvii. *Evaluation of fetal growth parameters, fetal weight and fetal well being.*

xviii. *Color flow mapping and duplex Doppler studies.*

xix. *Ultrasound guided procedures such as medical termination of pregnancy, external cephalic version, etc. and their follow-up.*

xx. *Adjunct to diagnostic and therapeutic invasive interventions such as chorionic villus sampling (CVS), amniocenteses, fetal blood sampling, fetal skin biopsy, amnio-infusion, intrauterine infusion, placement of shunts, etc.*

xxi. *Observation of intra-partum events.*

xxii. *Medical/surgical conditions complicating pregnancy.*

xxiii. *Research/scientific studies in recognised institutions.*

**11. Procedures carried out (Non-Invasive) (Put a “Tick” on the appropriate procedure)**

i. *Ultrasound*

**(Important Note :** *Ultrasound is not indicated/advised/ performed to determine the sex of fetus except for diagnosis of sex-linked diseases such as Duchene Muscular Dystrophy, Hemophilia A & B etc.)*

ii. *Any other (specify) .....*

**12. Date on which declaration of pregnant woman/person was obtained:** .....

**13. Date on which procedures carried out:** .....

**14. Result of the non-invasive procedure carried out (report in brief of the test including ultrasound carried out)**  
.....

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15. The result of pre-natal diagnostic procedures was conveyed to ..... on .....

16. Any indication for MTP as per the abnormality detected in the diagnostic procedures/tests .....

Date: (.....)

Place: Name, Signature and Registration Number with Seal of the Gynaecologist/Radiologist/Registered Medical Practitioner performing Diagnostic Procedure/s

**Section C: To be filled for performing invasive Procedures/Tests only**

17. Name of the doctor/s performing the procedure/s:

.....

18. History of genetic/medical disease in the family (specify): ..... Basis of diagnosis ("Tick" on appropriate basis of diagnosis):

(a) Clinical (b) Bio-chemical

(c) Cytogenetic (d) other (e.g. radiological, ultrasonography, etc. specify)

19. Indication/s for the diagnosis procedure ("**Tick**" on **appropriate indication/s**):

A. Previous child/children with:

(i) Chromosomal disorders (ii) Metabolic disorders

(iii) Congenital anomaly (iv) Mental Disability

(v) Haemoglobinopathy (vi) Sex-linked disorders

(vii) Single gene disorder (viii) Any other (specify)

B. Advanced maternal age (35 years)

C. Mother/father/sibling has genetic disease (specify)

D. Other (specify) .....

20. Date on which consent of pregnant woman/person was obtained in Form G prescribed in PC & PNDT Act, 1994:

.....

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21. Invasive procedures carried out (**“Tick” on appropriate indication/s**)

- i. Amniocentesis ii. Chorionic Villi aspiration
- iii. Fetal biopsy iv. Cordocentesis
- v. Any other (specify)

22. Any complication/s of invasive procedure (specify)...

23. Additional tests recommended (Please mention if applicable)

- (i) Chromosomal studies (ii) Biochemical studies
- (iii) Molecular studies (iv) Pre-implantation gender diagnosis
- (v) Any other (specify)

24. Result of the Procedures/Tests carried out (report in brief of the invasive tests/procedures carried out)  
.....

25. Date on which procedures carried out: .....

26. The result of pre-natal diagnostic procedures was conveyed to ..... on .....

27. Any indication for MTP as per the abnormality detected in the diagnostic procedures/tests .....

|        |                                                                                                                            |
|--------|----------------------------------------------------------------------------------------------------------------------------|
|        | (.....)                                                                                                                    |
| Date:  | Name, Signature and Registration                                                                                           |
| Place: | Number with Seal of the Gynaecologist/<br>Radiologist/Registered Medical Practitioner<br>performing Diagnostic Procedure/s |

Section D: Declaration

DECLARATION OF THE PERSON UNDERGOING  
PRE-NATAL DIAGNOSTIC TEST/PROCEDURE

I, Mrs./Mr. .... declare that by undergoing ..... Prenatal Diagnostic Test/Procedure. I do not want to know the sex of my foetus.



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(.....)

*Date: Signature/Thumb impression of the person undergoing the Prenatal Diagnostic Test/Procedure*

***In Case of thumb Impression:***

*Identified by (Name) ..... Age: ..... Sex: .....*

*Relation (if any): ..... Address & Contact No.: .....*

*Signature of a person attesting thumb impression: .....*

*Date: .....*

***DECLARATION OF DOCTOR/PERSON CONDUCTING PRE-NATAL DIAGNOSTIC PROCEDURE/TEST***

*I, ..... (name of the person conducting ultrasonography/image scanning) declare that while conducting ultrasonography/image scanning on Ms./ Mr. .... (name of the pregnant woman or the person undergoing pre-natal diagnostic procedure/test), I have neither detected nor disclosed the sex of her fetus to anybody in any manner.*

*Signature: .....*

|                    |                                                                                                                                                                                         |
|--------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <i>Date: .....</i> | (.....)<br><br><i>Name in Capitals, Registration<br/>Number with Seal of the Gynaecologist/<br/>Radiologist/Registered Medical<br/>Practitioner Conducting Diagnostic<br/>procedure</i> |
|--------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|

13. The importance and essentiality of the form to the proper functioning of the Act is no longer up for debate. The position stands settled in ***Federation of Obstetrics & Gynaecological Societies of India v. Union of India***<sup>8</sup>. It was held as follows:

*“97. In light of the nature of offences which necessitated the enactment of the Act and the grave consequences*

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*that would ensue otherwise, suspension of registration under Section 23(2) of the Act serves as a deterrent. ...*

**98.** *Non-maintenance of record is springboard for commission of offence of foeticide, not just a clerical error. In order to effectively implement the various provisions of the Act, the detailed forms in which records have to be maintained have been provided for by the Rules. These Rules are necessary for the implementation of the Act and improper maintenance of such record amounts to violation of provisions of Sections 5 and 6 of the Act, by virtue of proviso to Section 4(3) of the Act.* In addition, any breach of the provisions of the Act or its Rules would attract cancellation or suspension of registration of Genetic Counselling Centre, Genetic Laboratory or Genetic Clinic, by the appropriate authority as provided under Section 20 of the Act.

**99.** *There is no substance in the submission that provision of Section 4(3) be read down. By virtue of the proviso to Section 4(3), a person conducting ultrasonography on a pregnant woman, is required to keep complete record of the same in the prescribed manner and any deficiency or inaccuracy in the same amounts to contravention of Section 5 or Section 6 of the Act, unless the contrary is proved by the person conducting the said ultrasonography. The aforementioned proviso to Section 4(3) reflects the importance of records in such cases, as they are often the only source to ensure that an establishment is not engaged in sex determination.*

**100.** *Section 23 of the Act, which provides for penalties of offences, acts in aid of the other sections of the Act is quite reasonable. It provides for punishment for any medical geneticist, gynaecologist, registered medical practitioner or a person who owns a Genetic Counselling Centre, a Genetic Clinic or a Genetic Laboratory, and renders his professional or technical services to or at the said place, whether on honorarium basis or otherwise and contravenes any provisions of the Act, or the Rules under it.*

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101. Therefore, dilution of the provisions of the Act or the Rules would only defeat the purpose of the Act to prevent female foeticide, and relegate the right to life of the girl child under Article 21 of the Constitution, to a mere formality.

102. In view of the above, no case is made out for striking down the proviso to Section 4(3), provisions of Sections 23(1), 23(2) or to read down Section 20 or 30 of the Act. Complete contents of Form F are held to be mandatory. Thus, the writ petition is dismissed. No costs."

*(Emphasis supplied)*

We notice that prior to the position having been authoritatively stated as above, High Courts also echoed similar positions, *inter alia*, the Gujarat High Court in ***Suo Motu v. State of Gujarat***<sup>9</sup>, and the Bombay High Court in ***Sai v. State of Maharashtra***<sup>10</sup>.

14. The provisions reproduced above and also the judicial interpretation thereof leave no room for doubt. The keeping of records is essential to the Act and its avowed purpose. It is true that in general terms, the declining sex ratio issue is better and has shown considerable improvement but, however, diluting the provisions of law, or letting infractions thereof slide cannot be countenanced. According to official Government of India data, the country's sex ratio has shown clear signs of improvement in recent years, though the story is not entirely straightforward. The National Family Health Survey-5 (2019–21)<sup>11</sup>, conducted under the Ministry of Health and Family Welfare, records the sex ratio to be 1,020 females per 1,000 males, compared to 991 in NFHS-4 (2015–16).<sup>12</sup> At the same time, the sex ratio at birth, which reflects the number of girls born relative to boys in the five years preceding the survey, stood at 929 females per 1,000 males. As per Census Commissioner's report<sup>13</sup>, the position is as follows:

9 2008 SCC OnLine Guj 294

10 2016 SCC OnLine Bom 8812

11 <https://dhsprogram.com/pubs/pdf/FR375/FR375.pdf>

12 <https://sansad.in/getFile/loksabhaquestions/annex/1714/AU926.pdf?source=pqals>

13 Sample Registration System Statistical Report 2021 and Sample Registration System Statistical Report 2024 released by Office Of The Registrar General & Census Commissioner, India Ministry Of Home Affairs, Government Of India;

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| CATEGORY     | 2015-17    | 2016-18    | 2017-19    | 2018-20    | 2019-21    | 2022-24    |
|--------------|------------|------------|------------|------------|------------|------------|
| <b>RURAL</b> | <b>898</b> | <b>900</b> | <b>904</b> | <b>907</b> | <b>912</b> | <b>914</b> |
| <b>URBAN</b> | <b>890</b> | <b>897</b> | <b>906</b> | <b>910</b> | <b>918</b> | <b>928</b> |
| <b>TOTAL</b> | <b>896</b> | <b>899</b> | <b>904</b> | <b>907</b> | <b>913</b> | <b>918</b> |

Although this represents some improvement compared to previous reports, it remains below the biologically expected level of around 950 or higher.<sup>14</sup> On a global level though, unfortunately, the data does not present a positive outlook. The World Economic Forum's Global Gender Gap Report 2025<sup>15</sup> records a drop in our ranking in terms of overall gender parity score from the previous year to 131 out of 148, from 129 the previous year.

15. Turning back the page of history confirms this assessment. Census data shows that the national child sex ratio declined from 945 in 1991 to 927 in 2001 and further to 919 in 2011, reflecting the severity of the imbalance that prompted stringent implementation of the PCPNDT Act. The recovery to 929 at birth signals a partial course correction, but yet, not a path of true equality and acceptability. Differences across State drive whom this point. For example, Haryana and Punjab, which recorded child sex ratios below 900 in the years immediately after the turn of the century have demonstrated improvement in subsequent surveys showing the success of the regulations as enforced and the awareness measures being implemented. Nonetheless, several states still do report sex ratios at birth below the national average. This shows the continuing presence of deep-seated patriarchal preferences towards a male child and the '*behind the curtains*' prevalence of sex selection practices<sup>16</sup>. The following extract is from Statistics of India based on the Civil Registration System 2023:

14 Chakravarty N, Dabla V, Sagar M, Neogi S, Markan M, Segan M, Agnani S, Kapahi P, Neogi S. Cultural and Social Bias Leading to Prenatal Sex Selection: India Perspective. Front Glob Womens Health. 2022 Accessible at: <https://pmc.ncbi.nlm.nih.gov/articles/PMC9234277/>

15 <https://www.weforum.org/publications/global-gender-gap-report-2025/>

16 Vital Statistics of India Based on the Civil Registration System 2023 as on 10.10.2025 <https://dc.crsorgi.gov.in/assets/download/Annual-Reports/crs/2023.pdf>

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| Sl. No. | States/Union Territories        | 2017                        | 2018               | 2019       | 2020       | 2021       | 2022       | 2023       |
|---------|---------------------------------|-----------------------------|--------------------|------------|------------|------------|------------|------------|
|         | <b>States</b>                   |                             |                    |            |            |            |            |            |
| 1.      | Andhra Pradesh                  | 935                         | 931                | 935        | 939        | 935        | 938        | 931        |
| 2.      | Arunachal Pradesh               | 1047                        | 1084               | 1024       | 1011       | 997        | 1036       | 1085       |
| 3.      | Assam                           | 921                         | 904                | 903        | 956        | 863        | 933        | 960        |
| 4.      | Bihar                           | N.A.                        | N.A.               | N.A.       | 964        | 908        | 891        | 900        |
| 5.      | Chhattisgarh                    | 968                         | 934                | 931        | 940        | 949        | 965        | 960        |
| 6.      | Goa                             | 910                         | 943                | 948        | 947        | 947        | 943        | 973        |
| 7.      | Gujarat                         | 898                         | 897                | 901        | 909        | 909        | 908        | 910        |
| 8.      | Haryana                         | N.A.                        | 914                | 923        | 916        | 911        | 916        | 911        |
| 9.      | Himachal Pradesh                | 934                         | 930                | 918        | 936        | 947        | 936        | 939        |
| 10.     | Jharkhand                       | N.A.                        | N.A.               | N.A.       | 948        | 955        | 925        | 899        |
| 11.     | Karnataka                       | 949                         | 957                | 947        | 949        | 954        | 947        | 947        |
| 12.     | Kerala                          | 965                         | 963                | 960        | 969        | 967        | 971        | 967        |
| 13.     | Madhya Pradesh                  | N.A.                        | 902                | 905        | 921        | 934        | 921        | 948        |
| 14.     | Maharashtra                     | N.A.                        | N.A.               | N.A.       | N.A.       | 910        | 906        | 909        |
| 15.     | Manipur                         | N.A.                        | 757                | 934        | 880        | 974        | 922        | 924        |
| 16.     | Meghalaya                       | 937                         | 942                | 927        | 922        | 960        | 972        | 956        |
| 17.     | Mizoram                         | 964                         | 964                | 975        | 954        | 958        | 959        | 911        |
| 18.     | Nagaland                        | 948                         | 965                | 1001       | 953        | 962        | 1068       | 1007       |
| 19.     | Odisha                          | 930                         | 928                | 947        | 941        | 933        | 937        | 926        |
| 20.     | Punjab                          | 890                         | 896                | 914        | 925        | 924        | 923        | 922        |
| 21.     | Rajasthan                       | 931                         | 949                | 916        | 952        | 905        | 933        | 945        |
| 22.     | Sikkim                          | N.A.                        | N.A.               | N.A.       | N.A.       | N.A.       | N.A.       | N.A.       |
| 23.     | Tamil Nadu                      | 932                         | 933                | 942        | 939        | 941        | 940        | 941        |
| 24.     | Telangana                       | 915                         | 924                | 953        | 937        | 922        | 907        | 906        |
| 25.     | Tripura                         | 962                         | 945                | 949        | 974        | 948        | 960        | 972        |
| 26.     | Uttarakhand                     | 929                         | 956                | 960        | 954        | 975        | 933        | 955        |
| 27.     | Uttar Pradesh                   | N.A.                        | N.A.               | N.A.       | N.A.       | 995        | 945        | 926        |
| 28.     | West Bengal                     | N.A.                        | N.A.               | 941        | 951        | 948        | 944        | 951        |
|         | <b>Union Territories</b>        |                             |                    |            |            |            |            |            |
| 1.      | A & N Islands                   | 957                         | 953                | 965        | 984        | 957        | 959        | 961        |
| 2.      | Chandigarh                      | 907                         | 909                | 938        | 943        | 925        | 921        | 913        |
| 3.      | D & N Haveli and<br>Daman & Diu | D & N Haveli<br>Daman & Diu | 936<br>879         | 923<br>877 | 921<br>926 | 898<br>879 | 879<br>913 | 929<br>929 |
| 4.      | Delhi                           |                             | 918                | 929        | N.A.       | 941        | 935        | 926        |
| 5.      | Jammu & Kashmir (J&K)           |                             | 909                | 952        | 909        | 967        | 933        | 909        |
| 6.      | Ladakh                          |                             | Included in UT J&K |            | 1104       | 949        | 1027       | 972        |
| 7.      | Lakshadweep                     |                             | 914                | 839        | 953        | 957        | 963        | 934        |
| 8.      | Puducherry                      |                             | 931                | 941        | 934        | 947        | 941        | 957        |

*Note : Sex Ratio of Registered Births arrived at after deducting figures of delayed Registration of More than 1 year from the respective Total Registered Births*

*N.A. – Not Available*

The current scenario, good, or not so good, with scope of improvement, as it may be, is a result of continued efforts by Central and State Governments. We may only observe that more than seventy-five years after we have set out to chart our own path, even today seeing posters for education and upliftment, including financial security, of a girl child is not a sight out of the ordinary, in any town or city,

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including Delhi, where it is most often visible on the buses of the Delhi Transport Corporation. The various schemes brought in over the years are *inter-alia* as follows:

| NAME OF THE SCHEME                                   | IMPLEMENTED BY     | AIMS OF THE SCHEME                                                                                                                                                                                                                                                                                                                                                                                                         |
|------------------------------------------------------|--------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>SCHEME WITH EMPHASIS TO CURB FEMALE FOETICIDE</b> |                    |                                                                                                                                                                                                                                                                                                                                                                                                                            |
| <b><i>Beti Bachao Beti Padhao</i></b> <sup>17</sup>  | Central Government | This scheme was launched on 22nd January, 2015 (addresses the declining child sex ratio and promotes the survival, protection, and education of the girl child.                                                                                                                                                                                                                                                            |
| <b><i>Janani Suraksha Yojana</i></b> <sup>18</sup>   | Central Government | It is a safe motherhood intervention under the National Health Mission. It is being implemented with the objective of reducing maternal and neonatal mortality by promoting institutional delivery among poor pregnant women. The scheme, launched on 12 April 2005 by the Hon'ble Prime Minister, is under implementation in all states and Union Territories (UTs), with a special focus on Low Performing States (LPS). |
| <b><i>Aapki Beti Hamari Beti</i></b> <sup>19</sup>   | Haryana Government | scheme by the Haryana government provides financial support to empower girls, offering ₹2,500 per year for five years to registered beneficiaries, regardless of caste or income. The scheme aims to improve the child sex ratio, promoting the birth and education of girls. It applies to first-born girls in SC/BPL families and all second-born girls.                                                                 |

17 [https://www.pmindia.gov.in/en/government\\_tr\\_rec/beti-bachao-beti-padhao-caring-for-the-girl-child/](https://www.pmindia.gov.in/en/government_tr_rec/beti-bachao-beti-padhao-caring-for-the-girl-child/)

18 <https://nhm.gov.in/index1.php%3Fflang%3D1%26level%3D3%26lid%3D309%26sublinkid%3D841>

19 <https://wcdhry.gov.in/schemes-for-children/abhb/>

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|                                                                                                                           |                       |                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
|---------------------------------------------------------------------------------------------------------------------------|-----------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b><i>Cradle Baby Scheme</i></b> <sup>20</sup>                                                                            | Tamil Nadu Government | Programme that allows mothers to safely surrender unwanted girl children.                                                                                                                                                                                                                                                                                                                                                                                         |
| <b><i>Chief Minister's Girl Child Protection Scheme-I</i></b> <sup>21</sup>                                               | Tamil Nadu Government | Social Welfare and Women Empowerment Department, Government of Tamil Nadu. The scheme aims to provide financial assistance to girl children of poor families as well as to promote girl child education, small family norms, increase the child sex ratio, discourage the preference for male child & eradicate female infanticide.                                                                                                                               |
| <b><i>Chief Minister Kanya Utthan Yojana</i></b> <sup>22</sup>                                                            | Bihar Government      | This is a scheme to stop female feticide, encourage girl birth, encourage birth registration, complete vaccination of 02-year-old girls, increase the gender ratio, reduce girl child mortality rate, promote girl education, curb child marriage, reduce the total fertility rate and bring girls into the mainstream of society by making them self-reliant, as a result of which girls will contribute significantly to the development of family and society. |
| <b>Nirbhaya Kadhi, Mo Gelha Jiya, Kalpana Avijan, Swarna Kalika and Veerangana Yojana under BBBP Scheme</b> <sup>23</sup> | Odisha Government     | Schemes launched for adolescent girls to prevent child marriages, to combat sex selection and female foeticide, and to boost Self-Esteem and Confidence                                                                                                                                                                                                                                                                                                           |

20 <https://www.google.com/url?sa=t&source=web&rct=j&opi=89978449&url=https://www.tnsocialwelfare.tn.gov.in/en/specilisationschild-welfare/cradle-baby-scheme&ved=2ahUKEwj5z8vd9OqUAxXSTWcHHRXuPlQFnoECBwQAQ&usq=AOvVaw3RyZQHt28CJ3Ssieq1INwD>

21 <https://www.tnsocialwelfare.tn.gov.in/en/specilisationschild-welfare/chief-ministers-girl-child-protection-scheme>

22 <https://www.myscheme.gov.in/schemes/cmkuu>

23 <https://www.pib.gov.in/PressReleaselframePage.aspx?PRID=2100589&reg=3&lang=2>

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| SCHEMES WITH EMPHASIS TO IMPROVE CONDITION OF WOMEN IN SOCIETY  |                    |                                                                                                                                                                                                                                                                                                                            |
|-----------------------------------------------------------------|--------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b><i>Vigyan Jyoti Scheme</i></b> <sup>24</sup>                 | Central Government | Implemented by the Department of Science & Technology to encourage meritorious girls to pursue careers in STEM (Science, Technology, Engineering, and Math) fields.                                                                                                                                                        |
| <b><i>Bal Vivah Mukti Bharat</i></b> <sup>25</sup>              | Central Government | Campaign aimed at eradicating child marriage through strict enforcement of the Prohibition of Child Marriage Act, 2006.                                                                                                                                                                                                    |
| <b><i>Pradhan Mantri Matru Vandana Yojana</i></b> <sup>26</sup> | Central Government | Under Mission Shakti, this maternity benefit scheme provides financial assistance for the first living child. It was revamped to offer ₹6,000 for the second child if it is a girl, encouraging families to embrace a second daughter.                                                                                     |
| <b><i>The Sukanya Samriddhi Account</i></b> <sup>27</sup>       | Central Government | Small savings scheme under the 'Beti Bachao, Beti Padhao' campaign designed for the girl child, offering a high-interest rate (currently 8.2%) and tax benefits. Parents can open this account for a girl under 10, with a minimum yearly deposit of ₹250 and a maximum of ₹1.5 lakh until 15 years, maturing in 21 years. |
| <b><i>Balika Samriddhi Yojana</i></b> <sup>28</sup>             | Central Government | Initiative supporting girl children born on or after August 15, 1997, to below-poverty-line (BPL) families. It provides a ₹500 post-birth grant and annual education scholarships (₹300-₹1,000) through a dedicated interest-bearing account, aimed at promoting education and delaying marriage.                          |

<sup>24</sup> <https://www.pib.gov.in/PressReleaseDetailm.aspx?PRID=2220196&reg=3&lang=2>

<sup>25</sup> <https://www.pib.gov.in/PressReleasePage.aspx?PRID=2212352&reg=3&lang=2>

<sup>26</sup> <https://wcd.delhi.gov.in/wcd/pradhan-mantri-matru-vandana-yojana-pmmv/>

<sup>27</sup> [https://www.nsiindia.gov.in/\(S\(vfuo55454y3hkhuyhkb3pry0\)\)/InternalPage.aspx?Id\\_Pk=89](https://www.nsiindia.gov.in/(S(vfuo55454y3hkhuyhkb3pry0))/InternalPage.aspx?Id_Pk=89)

<sup>28</sup> <https://socialwelfare.mn.gov.in/en/rules-regulations/balika-samridhi-yojana-bys/>



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|                                                                                  |                                         |                                                                                                                                                                                                                                                             |
|----------------------------------------------------------------------------------|-----------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b><i>Ladli Lakshmi Yojana</i></b> <sup>29</sup>                                 | Madhya Pradesh/<br>Delhi/Goa Government | Scheme provides financial deposits that mature into a lump sum of ₹1 lakh when the girl turns 21.                                                                                                                                                           |
| <b><i>Mukhyamantri Kanya Sumangala Yojana</i></b> <sup>30</sup>                  | Uttar Pradesh Government                | Scheme provides financial assistance up to ₹25,000 in six instalments.                                                                                                                                                                                      |
| <b><i>Kanyashree Prakalpa</i></b> <sup>31</sup>                                  | West Bengal Government                  | Scheme provides annual scholarships and a one-time grant for unmarried girls between 13-18 years.                                                                                                                                                           |
| <b><i>Informer reward scheme under PC &amp; PNDT Act, 1994</i></b> <sup>32</sup> | Delhi Government                        | The government provides cash rewards to expose illegal sex-determination centres and practices. Informers who provide actionable tips receive up to ₹50,000, while pregnant women who act as decoy patients during stings are eligible for up to ₹1,50,000. |
| <b><i>Delhi Lakhpati Bitiya Yojana</i></b> <sup>33</sup>                         | Delhi Government                        | A revamped version of the former Ladli scheme. It provides a phased financial support, to girl child of families having annual income not more than Rs.1,20,000 (One Lakh Twenty Thousand).                                                                 |

16. These schemes are indicative of continued efforts to eradicate the systemic bias suffered by the girl child in an inherently patriarchal system. Much progress has been made, and yet, much is left to be desired. In sum, while the situation is markedly better than it was in the mid-1990s, the data does not support complacency. The statistics referred to above show that the progress made is incomplete and uneven. Consequently, the integrity and strict enforcement of welfare-oriented legislation such as the PCPNDT Act remain essential along

29 <https://betul.nic.in/en/scheme/ladli-laxmi-yojna/>

30 <https://www.myscheme.gov.in/schemes/ksy>

31 [https://wbkanyashree.gov.in/kp\\_scheme.php](https://wbkanyashree.gov.in/kp_scheme.php)

32 [https://health.delhi.gov.in/sites/default/files/Health/covid-19/PC\\_PNDT\\_Act/IS+DFW.pdf](https://health.delhi.gov.in/sites/default/files/Health/covid-19/PC_PNDT_Act/IS+DFW.pdf)

33 <https://wcd.delhi.gov.in/wcd/delhi-ladli-scheme-2008>

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with efforts continued and earnest, till the time there is a widespread change in mentality and what till now, is perceived as the '*inherent weakness*' of the woman, is replaced by true equality, when there will dawn a realization that efforts such as these are no longer required. This is not to say that the laws protecting women within legislation such as IPC/BNS will no longer be required but at least, there will no longer be a question on whether a girl child deserves to be born.

17. The appeal, in view of the cumulative assessment above, is bereft of merit and is accordingly dismissed. Pending applications (if any) shall be disposed of.

*Result of the case:* Appeal dismissed.

*<sup>†</sup>Headnotes prepared by: Nidhi Jain*

**The Commissioner, Bruhat Bangalore Mahanagara Palike  
v.**

**K.K. Umesh Kumar & Ors.**

(Civil Appeal No. 8455 of 2026)

11 June 2026

**[Sanjay Karol\* and Nongmeikapam Kotiswar Singh, JJ.]**

**Issue for Consideration**

Issue arose whether the appellant can be held liable under the Motor Vehicles Act, 1988 for the injuries sustained by respondent no.1 that were caused due to the falling of a roadside tree on the vehicle by which the respondent no.1 was travelling, but had stopped under the tree waiting for the rain to subside and then proceed further.

**Headnotes<sup>†</sup>**

**Motor Vehicles Act, 1988 – Compensation – Claim petition – Falling of a tree on an auto, if would qualify as an accident for which claim can be filed – Respondent was traveling in auto and due to heavy rain, stopped under the tree waiting for the rain to subside and then proceed – However, branch of the tree got detached and fell on the top of the vehicle, injuring the respondent who was then admitted to the hospital and received treatment – Claim petition filed seeking compensation – Tribunal dismissed the petition on the ground that the incident was a natural calamity – In the first round, the High Court dismissed the matter on the point of delay – In the second round, the High Court awarded Rs.17,10,500/- as compensation and, directed the Insurance Company of the auto to pay 50% of the amount, while the appellant and the State Horticulture Department were to pay one-fourth each – Challenge to:**

**Held:** In view of the liberal interpretation of the term ‘use’, in ordinary circumstances, the presence of the respondent in the auto rickshaw suffice as ‘use’ – Motor vehicle itself does not play an active role in the accident – It is not part of the proximate cause of the accident, thus, a claim u/s.166 specifically may not be appropriate – However, person who has suffered such life

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\* Author

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altering grievous injuries, being left in lurch, without any money to sustain himself, does not appeal to the conscience of justice – It is within the domain of this Court, as the final Court to ensure the law, as implemented, specially in cases like these, is humane and in accordance with the salutary principles of the Constitution – Compensation as determined by the High Court, insufficient, owing to technical approach adopted by the High Court – In view thereof, total compensation enhanced to Rs.25,00,000/- along with interest as determined by the High Court, to be calculated from the date of filing of the claim petition – Apportionment of liability remain undisturbed – Constitution of India – Art.142. [Paras 13, 15]

### Case Law Cited

*S. Vedantacharya v. Highways Deptt. of South Arcot* (1987) 3 SCC 400; *Vohra Sadikbhai Rajakbhai v. State of Gujarat* [2016] 2 SCR 772 : (2016) 12 SCC 1; *Rajkot Municipal Corpn. v. Manjulben Jayantilal Nakum* [1997] 1 SCR 304 : (1997) 9 SCC 552; *Shivaji Dayanu Patil v. Vatschala Uttam More* [1991] 3 SCR 26 : (1991) 3 SCC 530 – referred to.

*Nichols v. Marsland* (1876) 2 Ex D 1; *Rylands v. Fletcher* (1868) LR 3 HL 330; *Greenock Corporation v. Caledonian Railway Co.* [1917] UKHL 3; *The Majestic*, 166 U.S.375 (1897) – referred to.

### List of Acts

Motor Vehicles Act, 1988; Constitution of India.

### List of Keywords

Injuries sustained due to falling of a roadside tree on the vehicle; Compensation; Falling of a tree on an auto, if would qualify as accident to file claim; Incident was natural calamity; Apportionment of liability.

### Case Arising From

CIVIL APPELLATE JURISDICTION: Civil Appeal No. 8455 of 2026

From the Judgment and Order dated 10.09.2020 of the High Court of Karnataka at Bengaluru in MFA No. 6470 of 2015.

**The Commissioner, Bruhat Bangalore Mahanagara Palike v.  
K.K. Umesh Kumar & Ors.**

**Appearances for Parties**

*Advs. for the Appellant(s):*

Anand Sanjay M Nuli, Sr. Adv., Suraj Kaushik, Shiva Swaroop,  
M/S. Nuli & Nuli.

*Advs. for the Respondent(s):*

Ms. Shweta Garg, Pankaj Seth, Ms. Manjeet Chawla, Ms. Jyoti,  
Ms. Shruti Jain, Ms. Sheetal Sharma, Ms. Patil Rekha Chandra  
Gouda.

**Judgment / Order of the Supreme Court**

**Judgment**

**Sanjay Karol, J.**

Leave Granted.

2. The issue for our consideration is whether the appellant can be held liable under the Motor Vehicles Act, 1988 for the injuries sustained by respondent no.1 that were caused due to the falling of a roadside tree on the vehicle by which the respondent no.1 was travelling, but had stopped under the tree waiting for the rain to subside and then proceed further.
3. The facts in which this question arose are as follows:

Respondent no.1 was travelling on 23<sup>rd</sup> June 2007 in an auto from Queens Road to Chinnaswamy Stadium when due to heavy rain it was requested by respondent no.1 that the vehicle be pulled up to the side of the road. Along the road were older trees, some even as old as hundred years and when the vehicle was stationary underneath one of these trees, a branch got detached from the tree fell on top, injuring the respondent. Thereafter, he was admitted to Mallya Hospital and received treatment.

A claim petition<sup>1</sup> was filed before the Motor Accidents Claim Tribunal, Bangalore, seeking compensation of Rs.50 lakhs. The Claims Tribunal in terms of order dated 10<sup>th</sup> April 2013 dismissed the claim

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on account of it being a natural calamity. The High Court of Karnataka at Bangaluru<sup>2</sup> dismissed the claim on the point of delay. This is the proceeding in the *first round*. This concurrent dismissal was challenged before this Court<sup>3</sup> which remanded the matter on the point of non-condonation of delay. In the *second round* of proceedings, the High Court allowed the appeal and awarded 17,10,500/- out of which 25% was directed to be paid by the appellant herein, 50% was to be paid by the Insurer of the autorickshaw and further 25% by respondent no.4-Horticulture Department, Government of Karnataka. It is this apportionment of liability towards the appellant which has been challenged before us.

4. We have heard learned senior counsel and counsel appearing for the parties.
5. In essence, the case of the appellant as also respondent no.4 that is the Horticulture Department, State of Karnataka is that they bore no responsibility for the unfortunate act that has quite literally, befallen respondent no.1. What happened was a natural occurrence over which the State authorities obviously had no control. That being the case, we must understand the position of law when it comes to such natural calamities, or in other words, the cases that deal with the proposition of '*Act of God*'.
  6. Naturally, let us turn to the House of Lords to understand the origins of the doctrine. In ***Nichols v. Marsland***<sup>4</sup>, the Court of Appeal had a case where the respondent had, on his land, artificial ponds with built-in safety mechanisms allowing excess water to flow out. Due to an incident of extremely heavy rainfall, there was a lot of excess water which flowed into the plaintiff's land. He claimed damages under the strict liability rule of ***Rylands v. Fletcher***<sup>5</sup>, however outcome was in favour of the defendant since the flooding was not reasonably foreseeable. '*Act of God*' or '*Vis Major*' was accepted as a defence to strict liability. Next, we must consider ***Greenock Corporation v.***

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2 MFA No.6470/2015 (MV)

3 Civil Appeal No.20865/2017

4 (1876) 2 Ex D 1.

5 (1868) LR 3 HL 330

**The Commissioner, Bruhat Bangalore Mahanagara Palike v.  
K.K. Umesh Kumar & Ors.**

***Caledonian Railway Co***<sup>6</sup> in this case, flooding of an artificially created public playground and paddling pool which eventually damaged the nearby land that belonged to the respondent. The ***House of Lords*** eventually dismissed the Plaintiff's claim of *damnum fatale* **since they had altered the course of the stream. The Supreme Court of the United States in its 1897 decision titled *The Majestic***<sup>7</sup> discussed the rule as follows:

“The act of God, said Chancellor Kent (vol. 2, p. 597), means “inevitable accident, without the intervention of man and public enemies” and again (vol. 3, p. 216) that “perils of the sea denote natural accidents peculiar to that element, which do not happen by the intervention of man, nor are to be prevented by human prudence.”

A “*casus fortuitous*” was defined in the civil law to be *quod damno fatali contingit, cuivis diligentissimo possit contingere*. It is a ‘loss happening in spite of all human effort and sagacity.’ The words ‘perils of the sea’ may indeed have grown to have a broader signification than ‘the act of God,’ but that is unimportant here.

Judge Shipman in the Court of Appeals quotes from 1 Parsons on Shipping 255, the definition there given of the “act of God,” and the reason for it, as follows:

“The ‘act of God’ is limited to causes in which no man has any agency whatever, because it was never intended to raise, in the case of the common carrier, the dangerous and difficult question whether he actually had any agency in causing the loss; for if this were *possible*, he should be held.”

7. We now move to the decisions of this Court. In ***S. Vedantacharya v. Highways Deptt. of South Arcot***<sup>8</sup>, this Court observed that when it comes to bridges and culverts, heavy rain or flood are not possibilities outside the contemplation of the department concerned. Since there

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6 [1917] UKHL 3

7 166 U.S.375 (1897)

8 (1987) 3 SCC 400

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was nothing on record in the case to show that the concerned department had taken any preventive action, the finding of the High Court dismissing the claim was overturned and judgment was entered for the plaintiffs. Another case was ***Vohra Sadikbhai Rajakbhai v. State of Gujarat***<sup>9</sup> wherein certain landowners claimed compensation on account of severe damage and submersion of their lands leading to widespread loss of crops and other vegetation. The same was resisted, averring that there had been a great amount of rainfall leading to the dam being overfilled, necessitating 60000 cusecs of water having to be released in order to protect the dam. The Court in order to complete justice gave Rs 5 lacs as compensation against a claim of Rs.21,50,000/-:

“22. There are two exceptions to the aforesaid rule of strict liability, which were recognised in *Rylands v. Fletcher* [*Rylands v. Fletcher*, (1868) LR 3 HL 330 : 37 LJ Ex 161] itself viz.:

(a) where it can be shown that the escape was owing to the plaintiff's default, or

(b) the escape was the consequence of vis major or the act of God.

An act of God is that which is a direct, violent, sudden and irresistible act of nature as could not, by any amount of ability, have been foreseen, or if foreseen, could not by any amount of human care and skill have been resisted. Generally, those acts which are occasioned by the elementary forces of nature, unconnected with the agency of man or other cause will come under the category of acts of God. Examples are : storm, tempest, lightning, extraordinary fall of rain, extraordinary high tide, extraordinary severe frost, or a tidal bore which sweeps a ship in mid-water. What is important here is that it is not necessary that it should be unique or that it should happen for the first time. It is enough that it is extraordinary and such as could not reasonably be anticipated. We would



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like to discuss a few cases having bearing on this issue with which we are confronted in the instant appeal.”

8. Before proceeding further, we must also deal with ***Rajkot Municipal Corpn. v. Manjulben Jayantilal Nakum***<sup>10</sup> on which extensive reliance has been placed by the appellants. In that case, the deceased Jayantilal, was walking on the footpath when a tree fell upon him, leading to grievous injuries and eventual death. Against the claim of Rs.1,00,000/- against the appellant Corporation, the Trial Court granted the claim to the extent of Rs.45,000/-. The same was confirmed by the High Court on appeal. This Court, in its detailed judgment considered extensively the concept of negligence, the duty of municipal authorities etc. in the following words:

“59. ... When the defendant is under a statutory duty to take care not to create latent source of physical danger to the property or the person who in the circumstances is considered to be reasonably foreseeable as likely to be affected thereby, the defendant would be liable for tort of negligence. If the latent defect causes actual physical damages to the person, the defendant is liable to damages for tortious liability. The negligent act or omission of the statutory authority must be examined with reference to the statutory provisions, creating the duty and the resultant consequences. The negligent act or omission must be specifically directed to safeguard the public or some sections of the public to which the plaintiff was a member, from the particular danger which has resulted.”

9. In view of the law as discussed above, let us move to applying the law. A tree has been on the side of the road for many years. Because it is part of the city, the Municipal Corporation does have a duty to ensure that those trees are looked after, from the point of view of not only keeping the trees hale and healthy but also that periodic maintenance thereof is undertaken to ensure that unfortunate incidents such as these do not happen. It is a reality that the boundaries of City are ever expanding in India, in view of the constant migration, and so the

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number of people that a Corporation is serving increases overtime. It would be unrealistic to expect that authorities of the Corporation can maintain a constant vigil over each tree/shrub. In the similar vein, while it may be perfectly within contemplation that an old branch of an old tree may give way at any time, the prudent call cannot be that all branches are slashed with a saw.

10. The importance of trees especially in the ever-expanding concrete jungles that we call cities today cannot be overstated. In our city of Delhi, for example, we find vast differences in green cover depending on the area you travel to. In such a situation, it is the primary duty of Centre and state level authorities to increase greencover in cities howsoever possible, with due consultation from experts facilitating the long term survival of each tree or plant sown into the soil.
11. Let it be stated, lest we be misunderstood that we are not even for a moment trivializing the injuries of the respondent or affording any escape to the appellant from its duty of maintaining the trees in the city. All that we are saying is that in the facts and circumstances of this case neither was taking a shelter under the tree was anything out of the ordinary nor was the unfortunate falling of a branch within contemplation of any Authority or even the driver of the autorickshaw. In these circumstances, it would be unfair to fasten the liability upon the appellant under the MVA. Under Section 166, MVA a claim can be filed for an accident as described in Section 165(1). The latter reads as follows:

“165. Claims Tribunals.—(1) A State Government may, by notification in the Official Gazette, constitute one or more Motor Accidents Claims Tribunals (hereafter in this Chapter referred to as Claims Tribunal) for such area as may be specified in the notification for the purpose of adjudicating upon claims for compensation in respect of accidents involving the death of, or bodily injury to, persons arising out of the use of motor vehicles, or damages to any property of a third party so arising, or both.

Explanation.—For the removal of doubts, it is hereby declared that the expression “claims for compensation in respect of accidents involving the death of or bodily injury to persons arising out of the use of motor vehicles”

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includes claims for compensation under section 140 [and  
section 163A]...”

(emphasis supplied)

12. The question that arises is whether the falling of a tree on an autorickshaw, would qualify as an accident for which a claim can be filed. The phrase emphasised by us in the Section above was, in its corresponding form in the preceding legislation interpreted by this Court in ***Shivaji Dayanu Patil v. Vatschala Uttam More***<sup>11</sup>, :

“26. These decisions indicate that the word “use”, in the context of motor vehicles, has been construed in a wider sense to include the period when the vehicle is not moving and is stationary, being either parked on the road and when it is not in a position to move due to some breakdown or mechanical defect. ... In our opinion, the word “use” has a wider connotation to cover the period when the vehicle is not moving and is stationary and the use of a vehicle does not cease on account of the vehicle having been rendered immobile on account of a breakdown or mechanical defect or accident. In the circumstances, it cannot be said that the petrol tanker was not in the use at the time when it was lying on its side after the collision with the truck.

...

**33.** ...The words “arising out of” were not construed to mean “arising under” as in *Union of India v. E.B. Aaby’s Rederi A/S* [1975 AC 797 : (1974) 2 All ER 874] which decision was held inapplicable to the construction of Section 20(2)(1)(h) and it was observed by Lord Brand-on:

“With regard to the first point, I would readily accept that in certain contexts the expression ‘arising out of’ may, on the ordinary and natural meaning of the words used, be the equivalent of the expression ‘arising under’, and not that of the wider expression ‘connected with’. In my view,

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however, the expression 'arising out of' is, on the ordinary and natural meaning of the words used, capable, in other contexts, of being the equivalent of the wider expression 'connected with'. Whether the expression 'arising out of' has the narrower or the wider meaning in any particular case must depend on the context in which it is used."

Keeping in view the context in which the expression was used in the statute it was construed to have the wider meaning viz. "connected with".

**34.** In the context of motor accidents the expressions "caused by" and "arising out of" are often used in statutes. Although both these expressions imply a causal relationship between the accident resulting in injury and the use of the motor vehicle but they differ in the degree of proximity of such relationship. This distinction has been lucidly brought out in the decision of the High Court of Australia in *Government Insurance Office of N.S.W. v. R.J. Green case* [(1965) 114 CLR 437], wherein Lord Barwick, C.J. has stated : (CLR p. 433)

"Bearing in mind the general purpose of the Act I think the expression 'arising out of' must be taken to require a less proximate relationship of the injury to the relevant use of the vehicle than is required to satisfy the words 'caused by'. It may be that an association of the injury with the use of the vehicle while it cannot be said that that use was causally related to the injury may yet be enough to satisfy the expression 'arise out of' as used in the Act and in the policy."

**35.** In the same case, Windeyer, J. has observed as under : (CLR p. 447)

"The words 'injury caused by or arising out of the use of the vehicle' postulate a causal relationship between the use of the vehicle and the injury.

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‘Caused by’ connotes a ‘direct’ or ‘proximate’  
relationship of cause and effect. ‘Arising out of’  
extends this to a result that is less immediate;  
but it still carries a sense of consequence.”

13. In view of the stated liberal interpretation of this term, will the presence of the respondent in the auto rickshaw suffice as ‘use’. In ordinary circumstances, it probably would have. But take for instance a scenario where the respondent was a pedestrian and stood near or under the tree in an attempt to take shelter from the heavy rain and now the branch falls on him. This is an entirely likely scenario. In other words, the motor vehicle itself does not play an active role in the accident. It is not part of the proximate cause of the accident. For that reason, a claim under Section 166 specifically may not be appropriate.
14. In that view of the matter, the question of law is accordingly settled.
15. A question however refuses to leave us. Will the respondent be forced to contend for compensation in another round of litigation? Is this conclusion in the interest of justice? Should we have to decide only the question of law then actual money reaching the hands of the respondent would be delayed. It appears to us, to be not so. A person who has suffered such life altering grievous injuries, being left in lurch, without any money to sustain himself, does not appeal to the conscience of justice. For ready reference the injuries as noticed by the High Court, is extracted hereunder:-

“The doctor has also stated that on clinical and radiological assessment, the following disabilities are found:

“1. Total paraplegia both lower limbs with bladder and bowel incontinence.

2. ‘X’ ray of the spin shows fracture healing and implants position good.”

It is within our domain, as the final Court of the country to ensure the law, as implemented, specially in cases like these, is humane and in accordance with the salutary principles of the Constitution. That apart, we may observe that the compensation as determined by the High Court in itself, is insufficient as per the settled principles of law, owing to a somewhat technical approach adopted by the High Court. In that view of the matter, we enhance the total compensation

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to Rs.25,00,000/- along with interest as determined by the High Court, to be calculated from the date of filing of the claim petition. The apportionment of liability shall remain undisturbed. This we do under the exercise of Article 142 of the Constitution.

16. The appeal is disposed of in terms of the above. The amount of compensation along with the interest shall be deposited into the bank account of the respondent directly. Learned counsel for the respondent shall furnish the bank details of the respondent to the learned counsel for the appellant. The amount shall be disbursed to the respondent within four weeks from the pronouncement of this judgment. The other parties who have been directed to pay the amount i.e., the Insurance Company and the Horticulture Department, Government of Karnataka, shall also do so within four weeks.

Pending application(s), if any, shall stand disposed of. No costs.

*Result of the case:* Appeal disposed of.

*†Headnotes prepared by:* Nidhi Jain

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v.  
Kamta Prasad Mishra and Others**

(Criminal Appeal No. 3743 of 2024)

15 June 2026

**[J.K. Maheshwari and Atul S. Chandurkar,\* JJ.]**

**Issue for Consideration**

Issue arose whether the Special Police Establishment-SPE as constituted u/s.2(1) of the Madhya Pradesh Special Police Establishment Act, 1947 for investigating offences specified by the State Government u/s.3 of the Act of 1947 entitled to exemption from the application of the Act of 2005 by virtue of s.24(4) thereof, on the ground that it is an ‘intelligence and security’ organisation; and whether the Notification dated 25.08.2011 provides for a matter beyond the parent legislation or whether it is *intra vires* s.24(4) of the Act of 2005.

**Headnotes<sup>†</sup>**

**Right to Information Act, 2005 – ss.8(1)(h), 24(4) – Exemption from disclosure of information – First respondent-Town Inspector implicated by the Special Police Establishment in a trap case – Registration of FIR – Sanction granted for his prosecution by the State Government – First respondent sought information under the 2005 Act, with regard to the decision making process in the grant of sanction, however, the request was rejected – State Information Commission rejected the appeal filed by the first respondent since he was not entitled to be supplied the said information in view of s.8(1)(h) – However, the High Court found that the investigation in the criminal proceedings was complete and thus, the first respondent could not be denied such information by relying upon s.8(1)(h), and directed the appellant-SPE to supply the information sought by the first respondent as per his application – Interference:**

**Held:** Absence of a prayer seeking declaration of invalidity of a piece of subordinate legislation by itself would not deter the Court from testing its validity – Such issue can be examined but after granting opportunity to the concerned authority to justify its validity – This

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\* Author

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Court can examine the validity of the Notification dated 25.08.2011, especially when the same had not been challenged by the first respondent in his writ petition before the High Court – Offences or classes of offences to be investigated by the SPE are limited to those punishable under the Act of 1988 and u/ss.409, 420 and Chapter XVIII of the Penal Code – Insofar as issues of ‘intelligence’ and ‘security’ are concerned, neither the Lokayukt nor the Up-Lokayukt under the Act of 1981 has been conferred jurisdiction to make any enquiry – Though s.24(4) states that the Act would apply to such ‘intelligence and security organisations’ established by the State Government as notified, the SPE though established by the State Government, not empowered to investigate any offences or classes of offences related to ‘intelligence’ and ‘security’ – Statutory scheme under which the SPE stands constituted coupled with the jurisdiction conferred on the Lokayukt or Up-Lokayukt clearly indicate that the SPE cannot be termed to be an ‘intelligence and security’ organisation when it assists the Lokayukt or Up-Lokayukt in matters specified by s.7 of the Act of 1981 – Thus, the Notification dated 25.08.2011 issued by the GAD of the State of Madhya Pradesh to the extent it seeks to exclude the SPE from the purview of the Act of 2005 in view of s.24(4) thereof set aside as being bad in law as it provides for matters not enumerated s.7 of the Act of 1947 – SPE having been conferred jurisdiction only to investigate offences punishable under the Act of 1988, ss.409, 420 and Chapter XVIII of the Penal Code, it cannot be termed to be an ‘intelligence and security’ organisation for the purposes of s.24(4) of the Act of 2005 – Notification dated 28.05.2011 does not conform to s.24(4), thus, excessive in nature – Thus, while maintaining the judgment of the High Court, the Notification dated 25.08.2011 seeking to exclude the SPE from the applicability of the provisions of the Act of 2005 struck down – Madhya Pradesh Special Police Establishment Act, 1947 – Prevention of Corruption Act, 1988. [Paras 20-22]

### Case Law Cited

*Bihar Rajya Dafadar Chaukidar Panchayat (Magadh Division) v. State of Bihar and Others* **SLP(C) No. 18983 of 2023 decided on 02.04.2025**; *University and Another v. All India Council for Technical Education and Others*, **2001 INSC 454 : [2001] Supp. 3 SCR 253**; *Union of India and Others v. Manjurani Routray and Others*, **2023 INSC 787**; *Indian Express Newspapers (Bombay)*



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*Private Ltd. and Others Etc. v. Union of India and Others Etc.* **1984 INSC 231 : [1985] 2 SCR 287**; *State of Tamil Nadu and Another v. P. Krishnamurthy and Others* **2006 INSC 177 : [2006] 3 SCR 396**; *Dr.Nutan Thakur v. State of U.P., Through Principal Secretary, Department of Vigilance, Misc. Case No. 1748 of 2013 decided on 02.11.2017 – referred to.*

**List of Acts**

Prevention of Corruption Act, 1988; Right to Information Act, 2005; Madhya Pradesh Lokayukt Evam Up-Lokayukt Adhiniyam, 1981; Constitution of India; Code of the Criminal Procedure, 1973; Madhya Pradesh Special Police Establishment Act, 1947; Foreign Exchange Regulations Act, 1947; Foreign Exchange Management Act, 1999; Central Reserve Police Force Act, 1949; Border Security Force Act, 1968; Central Industrial Security Force Act, 1968; Penal Code, 1860; Lokpal and Lokayuktas Act, 2013; U. P. Lokayukt and Up-Lokayukt Act, 1975.

**List of Keywords**

Special Police Establishment-SPE; Investigating offences; Exemption from the application of RTI Act; Intelligence and security' organisation; Notification dated 25.08.2011; Exemption from disclosure of information; Town Inspector; Trap case; Sanction; Decision making process in the grant of sanction; State Information Commission.

**Case Arising From**

CRIMINAL APPELLATE JURISDICTION: Criminal Appeal No. 3743 of 2024

From the Judgment and Order dated 20.12.2021 of the High Court of M.P Principal Seat at Jabalpur in WP No. 1575 of 2021

**Appearances for Parties**

*Adv. for the Appellant(s):*

Nishant Ramakantrao Katneshwarkar.

*Adv. for the Respondent(s):*

Prashant Singh, Advocate General, Sridhar Potaraju, Ms. Manisha T. Karia, D.S. Parmar, A.A.Gs., Rajeev Singh, Naveen Kumar Singh, Harmeet Singh Ruprah, Abhimanyu Singh Ga, Karan Singh.

**Supreme Court Reports****Judgment / Order of the Supreme Court****Judgment****Atul S. Chandurkar, J.**

1. The appellant is aggrieved by the direction to supply information to the first respondent as regards details of the process of grant of sanction for his prosecution under the Prevention of Corruption Act, 1988<sup>1</sup> as well as the response of the Lokayukt to the queries made by him on various points.

According to the appellant, by virtue of Notification dated 25.08.2011 issued by the General Administration Department<sup>2</sup> of the State of Madhya Pradesh in exercise of power under Section 24(4) of the Right to Information Act, 2005<sup>3</sup> and in view of Section 8(1)(h) thereof, it could not have been directed to supply such information. On the other hand, according to the first respondent, the information sought is liable to be provided as there is no legal impediment in doing so.

**Background facts**

2. Bereft of unnecessary details, the first respondent while serving as Town Inspector, Police Station Madhav Nagar, Katni came to be implicated by the Special Police Establishment, Bhopal, Madhya Pradesh under the Act of 1988 in a trap case. A First Information Report was registered on 11.04.2017. The Home Department of the State Government on 20.05.2020 granted sanction for his prosecution. The first respondent desired information with regard to the decision making process in the grant of sanction and thus moved an application dated 01.07.2020 under Section 6(1) of the Act of 2005. The request for supply of information having been turned down, the proceedings reached the State Information Commission<sup>4</sup> at the behest of the first respondent which, however, rejected the appeal filed by him on 16.12.2020. According to the Commission, the

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1 For short, 'the Act of 1988'

2 For short, 'GAD'

3 For short, 'the Act of 2005'

4 For short, 'the Commission'

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first respondent was not entitled to be supplied the said information in view of Section 8(1)(h) of the Act of 2005. Being aggrieved, the first respondent approached the High Court of Madhya Pradesh<sup>5</sup>. The Division Bench after hearing the first respondent found that the investigation in the criminal proceedings was complete and therefore the first respondent could not be denied such information by relying upon Section 8(1)(h) of the Act of 2005. The appellant was, accordingly, directed to supply the information sought by the first respondent as per his application dated 01.07.2020. Being aggrieved by this direction, the present appeal has been preferred.

**Submissions of parties**

3. Mr. Nishant Katneshwarkar, learned counsel appearing for the appellant submitted that the High Court erred in directing the appellant to supply the information sought by the first respondent. According to him, in view of the provisions of Section 8(1)(h) of the Act of 2005, the appellant was exempted from disclosing the information sought by the first respondent inasmuch as that information was likely to impede the process of investigation of the criminal proceedings that had been initiated against him. He further submitted that pursuant to Section 24(4) of the Act of 2005, the GAD of the State Government had issued a Notification on 25.08.2011 by virtue of which the Act of 2005 was not made applicable to the Madhya Pradesh Special Police Establishment of Lokayukt Organisation<sup>6</sup>. The investigation against the first respondent having been carried out by the SPE, it was not permissible to supply the information sought by him as the provisions of the Act of 2005 were inapplicable. The High Court failed to notice the provisions of Section 8(1)(h) of the Act of 2005 and directed supply of such information. Reference was made to the Notification dated 25.08.2011 before the High Court but it was not taken into consideration. On a plain reading of the same, it was clear that the provisions of the Act of 2005 were not applicable to the SPE. It was, therefore, submitted that the impugned judgment of the High Court was liable to be set aside and the order passed by the Commission ought to be restored.

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5 For short, 'the High Court'

6 For short, 'SPE'

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4. Mr. Naveen Kumar Singh, learned counsel appearing for the first respondent supported the impugned order. According to him, the provisions of Section 8(1)(h) of the Act of 2005 were not at all attracted to the facts of the present case inasmuch as the investigation of the offence registered against the first respondent under the Act of 1988 was completed and a charge-sheet had been filed. The object behind the provisions of Section 8(1)(h) of the Act of 2005 was that information that was likely to impede the process of investigation or apprehension or prosecution of offenders was not liable to be furnished. The first respondent had merely sought information as to the manner in which sanction was granted to his prosecution and the communications exchanged in that regard. Supply of such information was not likely to impede the process of investigation. The High Court was, therefore, justified in directing supply of the information sought by the first respondent on 01.07.2020. No case was, thus, made out to interfere with the judgment of the High Court.

#### **Issue re: applicability of Notification dated 25.08.2011**

5. On behalf of the appellant, the issue as regards applicability of the Notification dated 25.08.2011 was argued. Relying heavily upon the same, it was urged that in view of the said Notification, the impugned order could not have been passed. During the course of hearing, the question whether the SPE while assisting the Lokayukt in carrying out functions assigned to it under Section 3 of the Madhya Pradesh Lokayukt Evam Up-Lokayukt Adhiniyam, 1981<sup>7</sup> could be treated as an 'intelligence and security' organisation arose for consideration. Applicability of the said Notification to the SPE in the absence of it being an 'intelligence and security' organisation for the purposes of Section 24 (4) of the Act of 2005 was, *prima facie*, doubted. There was no appearance on behalf of the State of Madhya Pradesh on 14.05.2026. With a view to have the response of the State Government, the following order insofar as it is material for the present adjudication was therefore passed:

“1. In the instant case order impugned dated 20.12.2021 passed by the High Court of Madhya Pradesh, Principal Bench at Jabalpur in Writ Petition No. 1575 of 2021 is

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<sup>7</sup> For short, 'the Act of 1981'

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under challenge whereby the High Court directed that the order dated 17.08.2020 issued by the Assistant Public Information Officer and order dated 16.12.2020 of the Chief Information Commissioner are liable to be quashed. It was further directed that the respondent shall supply information as sought by the appellant as per his request dated 01.07.2020 within 30 days and imposed a costs of Rs. 5,000/-.

2. The said order has been assailed in this appeal on the pretext that as per Notification of the State Government dated 25.08.2011 exemption is granted to Madhya Pradesh Special Police Establishment of Lokayukta Organisation, however, without taking note of the said notification directions have been issued.

3. During the course of hearing, the provisions of Section 24(1) of the Right to Information Act, 2005, (in short, “the RTI Act), applies to the intelligence and security organisation of the Central Government specified in the Second Schedule. In the Second Schedule, certain organisations have been specified which are of the Central Government.

4. Sub-section (4) of Section 24 of the RTI Act further specifies that the provisions of the Act shall not apply to such intelligence and security organisations established by the State Government if notified in the Official Gazette. Thus, for issuance of the notification of exemption under Section 24(4), it is incumbent to understand how Lokayukta established is an intelligence and security organisation; but nothing has been brought on record. In absence, the notification dated 25.08.2011 is contrary to the spirit of Section 24(1) read with Section 24(4) of the RTI Act. The counter affidavit filed by the State is silent on this point, however, response of the State Government, if any, may be filed, otherwise such notification do not have any sanction of law.”

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“8. The Advocate General of the State may clarify about paragraph 4 above and to appear for argument on the

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next date, if he wish to appear virtually, he is at liberty to do so. In absence of clarification, appropriate orders may be passed.”

6. On 20.05.2026, Ms. Manisha Karia, learned Senior Advocate as well as Mr. Prashant Singh, learned Advocate General for the State of Madhya Pradesh were heard. It was submitted by them that the Notification dated 25.08.2011 had not been challenged by the first respondent in the writ petition preferred by him before the High Court. There were no pleadings whatsoever raised in that regard. In absence of any such material pleadings, it was submitted that the validity of the said Notification may not be examined for the first time by this Court. Without prejudice to the aforesaid, it was submitted that the State Legislature was competent to enact the Act of 1981. Reference was made to the Seventh Schedule to the Constitution of India and Entries 1 and 2 of List II to justify the exercise of power in this regard. Referring to the object behind enacting the Act of 1981, it was submitted that the Lokayukt was a statutory investigative authority vested with plenary powers of enquiry and its jurisdiction extended to allegations of corruption, misconduct and malfeasance by a public servant. The SPE functioned as an investigative arm under the superintendence of the Lokayukt. It was in this backdrop that the power conferred by Section 24(4) of the Act of 2005 had been exercised and the Notification dated 25.08.2011 had been issued keeping in mind the principle of institutional parity. The object behind Section 24 of the Act of 2005 would be defeated if the State Government was compelled to furnish information which was sought to be exempted by virtue of that provision. Reference was made to Section 207 of the Code of the Criminal Procedure, 1973 to urge that at the initial stage of investigation, material collected by the investigating agency could not be sought by an accused.

It was, therefore, submitted that the view taken by the Commission was correct and the High Court was not justified in directing supply of information sought by the first respondent. In view of the Notification dated 25.08.2011, the impugned order was liable to be set aside.

#### **Consideration**

7. We have heard the learned counsel for the parties at length. We have also given due consideration to the relevant material on

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record as well as material furnished by the learned counsel for the parties. The High Court while allowing the writ petition preferred by the first respondent held that the information sought by him could not be denied by relying upon Section 8(1)(h) of the Act of 2005. Before this Court, the Notification dated 25.08.2011 was relied upon to urge that the High Court could not have directed supply of such information. It is in that context that the applicability of the Notification dated 25.08.2011 was debated. Besides its inapplicability, the question whether the SPE was an 'intelligence and security' organisation for the purposes of Section 24(4) of the Act of 2005 arose for consideration. It is true that the said Notification was not specifically challenged in the writ petition before the High Court. It is also a fact that the appellant had not specifically supported the order passed by the Commission by relying upon the same. The Notification was placed before this Court in the present proceedings and the impugned order was sought to be assailed by relying upon the Notification dated 25.08.2011. It was at this stage that the issue as regards applicability of the Notification dated 25.08.2011 arose. It would, therefore, be necessary to consider whether this Court should examine the validity of the Notification dated 25.08.2011, especially when the same had not been challenged by the first respondent in his writ petition before the High Court.

**Exercise of *suo motu* jurisdiction**

8. The exercise of *suo motu* jurisdiction by the Court in examining the validity of a subordinate piece of legislation has been the subject matter of consideration in various decisions. Recently, in **Bihar Rajya Dafadar Chaukidar Panchayat (Magadh Division) Vs. State of Bihar and others**<sup>8</sup>, it was observed in paragraph 33 as under:

“33. ...While not suggesting for a moment that the course of action which the Division Bench adopted in this case can routinely be adopted, we see no reason as to why the power to *suo motu* declare a subordinate legislation invalid, on the ground of its being manifestly contrary to a Fundamental Right read with binding precedents in terms of Article 141, should not be conceded to be within the vast

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reserve of powers of the Constitutional Courts. Though exercise of powers, *suo motu*, in an appropriate case in exercise of jurisdiction under Article 226 of the Constitution cannot be doubted, it is indubitable that such power has to be exercised sparingly and with due care, caution and circumspection. We are minded and do hold that, a writ court, when its finds its conscience to be pricked in a rare and very exceptional case by the patent unconstitutionality of a subordinate legislation connected with the issue it is seized of, may, upon grant of full opportunity to the State to defend the subordinate legislation and after hearing it, grant a declaration as to unconstitutionality and/or invalidity of such legislation. After all, as the sentinel on the *qui vive*, it is not only the duty of the writ courts in the country to enforce Fundamental Rights of individuals, who approach them, but it is equally the duty of the writ courts to guard against breach of Fundamental Rights of others by the three organs of the State. This power is a plenary power resident in all the Constitutional Courts. Should, in a given case, it be found that there has been an egregious violation of a Fundamental Right as a result of operation of a subordinate legislation and the issue I concluded by a binding decision of this Court, we consider it the duty of the writ courts to deliver justice by declaring the subordinate legislation void to safeguard rights of others who might not still have been affected thereby. We reiterate, it can only be done rarely and in cases which stand out from the ordinary.”

9. Absence of a prayer seeking declaration of invalidity of a piece of subordinate legislation by itself would not deter the Court from testing its validity. Such issue can be examined but after granting opportunity to the concerned authority to justify its validity. We may in this regard refer to the decision in **Bharathidasan University and another Vs. All India Council for Technical Education and others**<sup>9</sup>. The issue related to examining the validity of a regulation duly framed. It was found that the regulation provided for a matter that was beyond its authority. In that context, the following observations are material for the present purpose:



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“The AICTE cannot, in our view, make any regulation in exercise of its powers under Section 23 of the Act, notwithstanding sub-section (1), which though no doubt enables such regulations being made generally to carry out the purposes of the Act, when such power is circumscribed by the specific limitation engrafted therein to ensure them to be “not inconsistent with the provisions of the Act and the rules.....” So far as the question of granting approval, leave alone prior or post, Section 10(1)(k) specifically confines the limits of such power of AICTE only to be exercised vis-a-vis technical institutions, as defined in the Act and not generally. When the language is specific, unambiguous and positive, the same cannot be over-looked to give an expansive meaning under the pretext of a purposive construction to perpetuate an ideological object and aim, which also, having regard to the Statement of Objects and Reasons for the AICTE Act, are not warranted or justified. Therefore, the regulation insofar as it compels the universities to seek for and obtain prior approval and not to start any new department or course or programme in technical education (Regulation 4) and empower itself to withdraw such approval, in a given case of contravention of the regulations (Regulation 12) are directly opposed to and inconsistent with the provisions of Section 10(1)(k) of the Act and consequently void and unenforceable.

The fact that the regulations may have the force of law or when made have to be laid down before the legislature concerned do not confer any more sanctity or immunity as though they are statutory provisions themselves. Consequently, when the power to make regulations are confined to certain limits and made to flow in a well defined canal within stipulated banks, those actually made or shown and found to be not made within its confines but outside them, the courts are bound to ignore them when the question of their enforcement arise and the mere fact that there was no specific relief sought for to strike down or declare them *ultra vires*, particularly when the party in sufferance is a respondent to the lis or proceedings cannot confer any further sanctity or authority and validity which

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it is shown and found to obviously and patently lack. It would, therefore, be a myth to state that regulations made under Section 23 of the Act have “Constitutional” and legal status, even unmindful of the fact that anyone or more of them are found to be not consistent with specific provisions of the Act itself. Thus, the regulations in question, which the AICTE could not have made so as to bind universities/UGC within the confines of the powers conferred upon it, cannot be enforced against or bind an University in the matter of any necessity to seek prior approval to commence a new department or course and programme in technical education in any university or any of its departments and constituent institutions.”

(emphasis supplied by us)

10. We are conscious of the fact that in **Union of India and others vs. Manjurani Routray and others**<sup>10</sup>, this Court has held that before any provision of law is struck down or any Rule is declared as *ultra vires*, specific pleadings raising a challenge and seeking of such relief is necessary. Therein, an original application was filed by a private respondent raising a challenge to the order of promotion issued to her juniors. The Central Administrative Tribunal directed the employer to indicate the reasons for non-promotion of the private respondent by assigning reasons in that regard. This order was challenged by the said respondent before the High Court. While deciding the writ petition, the High Court examined the *vires* of Rule 4(b) of the Ministry of Information Technology (in-situ Promotion under Flexible Complementing Scheme) Rules, 1998 and held the same to be invalid in law. The Union of India challenged the judgment urging that in absence of any specific challenge being raised by the private respondent to the *vires* of Rule 4(b), the High Court could not have entertained such challenge. In that context, this Court held that in absence of specific pleadings being raised for challenging the *vires* of Rule 4 (b), there would be no opportunity to the other side to justify the validity of such Rule. It was held that the High Court was not justified in declaring Rule 4(b) of the Ministry of Information Technology (in-situ Promotion under Flexible Complementing Scheme) Rules,

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1998 as *ultra vires*. One of us (J. K. Maheshwari, J) was a party to the aforesaid decision.

In the present case, it is true that there is no specific challenge raised by the first respondent to the Notification dated 25.08.2011. However, while assailing the order passed by the High Court, the Notification dated 25.08.2011 has been relied upon by the appellant to urge that the information sought by the first respondent could not be supplied to him as the SPE was an 'intelligence and security' organisation that was excluded from the applicability of the Act of 2005. The issue of applicability as well as validity of the Notification dated 25.08.2011 having arisen, due opportunity was granted to the State Government to justify the same. Time was granted to the learned Advocate General to place on record the stand of the State Government and also to substantiate the contention that the Notification dated 25.08.2011 was in consonance with Section 24(4) of the Act of 2005. The opportunity so granted was utilised and the State Government through Ms. Manisha Karia, learned Senior Advocate as well as Mr. Prashant Singh, learned Advocate General for the State of Madhya Pradesh were heard extensively. The State was also permitted to place on record its written submissions in that regard. The same have been accordingly filed.

It is, thus, evident that sufficient opportunity was granted to the State Government to make its stand clear with regard to the Notification dated 25.08.2011 and also to justify its validity in the context of Section 24(4) of the Act of 2005.

11. In the present case, we are concerned with the aspect as to whether the SPE as constituted under Section 2(1) of the Madhya Pradesh Special Police Establishment Act, 1947<sup>11</sup> for investigating offences specified by the State Government under Section 3 of the Act of 1947 is entitled to exemption from the application of the Act of 2005 by virtue of Section 24(4) thereof. What requires examination is whether the SPE is an 'intelligence and security' organisation, given the nature of offences it can investigate. To put it differently, whether the SPE can seek exemption from the application of the Act of 2005 on the ground that it is an 'intelligence and security' organisation. A pure question of interpretation of the relevant provisions of the Act

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11 For short, 'the Act of 1947'

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of 1947 and the Act of 1981 in the context of Section 24 of the Act of 2005 arises. The issue whether the Notification dated 25.08.2011 provides for a matter beyond the parent legislation or whether it is *intra vires* Section 24(4) of the Act of 2005 has to be examined. In absence of any factual adjudication being required to be undertaken and a pure question of interpretation having arisen, we are inclined to examine this legal question though it was not specifically raised before the High Court.

### Grounds for challenging subordinate legislation

12. It is by now well settled that a piece of subordinate legislation does not carry the same degree of immunity that is enjoyed by a statute passed by a competent legislature. Besides the grounds on which plenary legislation can be challenged, subordinate legislation can also be challenged on the ground that it fails to conform to the statute under which it is made or it exceeds the limits of authority conferred by the enabling statute. In **Indian Express Newspapers (Bombay) Private Ltd. and others etc. Vs. Union of India and others etc.**<sup>12</sup>, a three Judge Bench of this Court observed as under:

“A piece of subordinate legislation does not carry the same degree of immunity which is enjoyed by a statute passed by a competent legislature. Subordinate legislation may be questioned on any of the grounds on which plenary legislation is questioned. In addition it may also be questioned on the ground that it does not conform to the statute under which it is made. It may further be questioned on the ground that it is contrary to some other statute.”

This view has been consistently followed. In **State of Tamil Nadu and another Vs. P. Krishnamurthy and others**<sup>13</sup>, it was held as under:

“There is a presumption in favour of constitutionality or validity of a subordinate legislation and the burden is upon him who attacks it to show that it is invalid. It is also well recognized that a subordinate legislation can be challenged under any of the following grounds:

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12 1984 INSC 231

13 2006 INSC 177

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- (a) Lack of legislative competence to make the subordinate legislation.
- (b) Violation of fundamental rights guaranteed under the Constitution of India.
- (c) Violation of any provision of the Constitution of India.
- (d) Failure to conform to the statute under which it is made or exceeding the limits of authority conferred by the enabling Act.
- (e) Repugnancy to the laws of the land, that is, any enactment.
- (f) Manifest arbitrariness/unreasonableness (to an extent where the court might well say that the legislature never intended to give authority to make such rules)."

#### **Statutory scheme**

13. For considering the aforesaid question, it would be necessary to refer to some relevant provisions of the Act of 2005. Section 3 recognises the right of all citizens to information. A request for obtaining 'information' as defined by Section 2(f) is required to be made under Section 6 of the Act of 2005. While such request has to be considered and disposed in accordance with Section 7, Section 8(1) exempts disclosure of information in certain contingencies. Section 8(1)(h) reads thus:

**"8. Exemption from disclosure of information.-**

(1) Notwithstanding anything contained in this Act, there shall be no obligation to give any citizen,-

(h) information which would impede the process of investigation or apprehension or prosecution of offenders;"

Since the appellant has relied upon the provisions of Section 24 and especially Section 24(4) of the Act of 2005, the said provision is reproduced hereunder:

**"24. Act not to apply in certain organizations-(1)** Nothing contained in this Act shall apply to the intelligence and security organisations specified in the Second Schedule, being organisations established by the Central Government

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or any information furnished by such organisations to that Government:

Provided that the information pertaining to the allegations of corruption and human rights violations shall not be excluded under this sub-section:

Provided further that in the case of information sought for is in respect of allegations of violation of human rights, the information shall only be provided after the approval of the Central Information Commission, and notwithstanding anything contained in Section 7, such information shall be provided within forty-five days from the date of the receipt of request.

(2) The Central Government may, by notification in the Official Gazette, amend the Schedule by including therein any other intelligence or security organisation established by that Government or omitting therefrom any organisation already specified therein and on the publication of such notification, such organisation shall be deemed to be included in or, as the case may be, omitted from the Schedule.

(3) Every notification issued under sub-section (2) shall be laid before each House of Parliament.

(4) Nothing contained in this Act shall apply to such intelligence and security organisations, being organisations established by the State Government, as that Government may, from time to time, by notification in the Official Gazette, specify:

Provided that the information pertaining to the allegations of corruption and human rights violations shall not be excluded under this sub-section:

Provided further that in the case of information sought for is in respect of allegations of violation of human rights, the information shall only be provided after the approval of the State Information Commission and, notwithstanding anything contained in Section 7, such information shall be provided within forty-five days from the date of the receipt of request.

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(5) Every notification issued under sub-section (4) shall be laid before the State Legislature.”

It is to be noted that Section 24(1) and Section 24(4) use the expression ‘intelligence and security organisations’. This would indicate that an organisation governed by the said provision ought to be empowered to go into aspects of ‘intelligence’ and ‘security’.

14. Section 24(1) of the Act of 2005 states that the provisions of the Act would not apply to ‘intelligence and security’ organisations specified in the Second Schedule to the Act of 2005. Perusal of the Second Schedule indicates reference to about twenty-six organisations concerned with ‘intelligence’ and ‘security’ that have been established by the Central Government. Section 24(4) states that nothing contained in the Act of 2005 would apply to such ‘intelligence and security’ organisations established by the State Government as notified in the Official Gazette. The exemption from application of the provisions of the Act of 2005 is, therefore, restricted to ‘intelligence and security’ organisations that have been established by the State Government by publishing Notification in the Official Gazette. The first proviso to Section 24(4) of the Act of 2005, however, does not exclude information pertaining to allegations of corruption and violation of human rights.
15. The expression ‘intelligence and security’ organisations found in Section 24 has not been defined in the Act of 2005. We may, therefore, consider the nature of various organisations established by the Central Government which are concerned with ‘intelligence and security’ that are referred to in the Second Schedule. For example, the Directorate of Enforcement (ED) was established on 01.05.1956 for handling Exchange Control laws violations under the Foreign Exchange Regulations Act, 1947. One of its functions is to collect, develop and disseminate intelligence relating to the Foreign Exchange Management Act, 1999. The Central Reserve Police Force has been mentioned in the Second Schedule. As per the Central Reserve Police Force Act, 1949, it is an armed force maintained by the Central Government and is concerned with internal security. A member of the force has to execute all orders and warrants lawfully issued to him, detect and bring offenders to justice and also apprehend all persons whom he is legally authorised to apprehend. Then, the Border Security Force constituted under the

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Border Security Force Act, 1968 is an armed force of the Union for ensuring the security of the borders of India. Similarly, the Central Industrial Security Force is an armed force of the Union constituted under the Central Industrial Security Force Act, 1968 for better protection and security of industrial undertakings owned by the Central Government. The National Investigation Agency is also referred to in the Second Schedule. It is an investigation agency at the national level constituted to investigate and prosecute offences affecting the sovereignty, security and integrity of India.

It is, thus, clear that organisations referred to in the Second Schedule to the Act of 2005 are specifically concerned with 'intelligence' and 'security', having been constituted by the Central Government with that object in mind. On the other hand, the SPE has been clothed with limited jurisdiction to investigate offences punishable under the Act of 1988, Sections 409, 420 and Chapter XVIII of the Penal Code. The submission on behalf of the State of Madhya Pradesh that the principle of institutional parity was considered while issuing the Notification dated 25.08.2011 therefore cannot be accepted.

#### **Notification dated 25.08.2011**

16. In exercise of the power conferred by Section 24(4) of the Act of 2005, the GAD of the State of Madhya Pradesh has issued Notification dated 25.08.2011 wherein it is stated that the provisions of the Act of 2005 would not apply to cases under investigation by the SPE and the State Bureau of Investigation of Economic Offences. The Notification dated 25.08.2011 reads as under:

“Whereas the State Government considers that the disclosure of the information regarding names of informers or complainants in the economic offences under investigation in Madhya Pradesh Special Police Establishment of Lokayukta Organization and State Bureau of Investigation of Economic Offences under the Right to Information Act, 2005 (No. 22 of 2005) may likely to endanger the life or physical safety of such informers or complainants;

And whereas the State Government also considered that the disclosure of the information in the economic offences



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under the investigation in the said organization would impede the process of investigation or apprehension or prosecution of offenders;

And whereas Section 8(1) of the Right to Information Act, 2005 (No. 22 of 2005) provides for exemption from disclosure of information on certain grounds, whereas clause (g) provides that information, the disclosure of which would endanger the life of physical safety of any person or identify the source of information, and clause (h) provides that information which would impede the process of investigation or apprehension or prosecution of offenders shall be denied to any citizen;

Now, therefore, in exercise of the powers conferred by sub-section (4) of Section 24 of the said Act, the State Government, hereby specify that the provisions of the said Act shall not apply with respect to the cases under investigation by the following organizations:-

1. Madhya Pradesh Special Police Establishment of Lokayukta Organization.
2. State Bureau of Investigation of Economic Offences."

**SPE whether an 'intelligence' and 'security' Organization**

17. It would now be necessary to consider whether the SPE is an 'intelligence' and 'security' organisation. For this purpose, relevant provisions of the Act of 1981 may be noticed. The Statement of Objects and Reasons behind enacting the Act of 1981 reads as under:

"Statement of Objects and Reasons

Currently there is no mechanism in place to investigate into allegations of corruption, etc., against high ranking individuals such as the Chief Minister, other elected officials and senior officers under the control of the State Government and in order to maintain ethical standards in public life, there has been a need since long time to establish an independent mechanism for this purpose. Therefore, this Bill has been formulated to establish such a mechanism.

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Hence, this Bill is presented.

Bhopal:

Date : 19 September 1980.

Arjun Singh  
Member-in-Charge

Recommended by His Excellency the Governor under  
Article 207 of the Constitution of India.”

The Statement of Objects and Reasons indicates the absence of a mechanism to investigate into allegations of corruption against high ranking individuals and the need to establish such independent mechanism. The preamble of the Act of 1981 reads as under:

“An Act to make provision for the appointment and functions of certain authorities for the enquiry into the allegations against [public servants] [*Substituted by M.P.Act No.1 of 1987 (w.e.f. 9-1-1987).*] and for matters connected therewith.”

Section 2(b) defines the expression ‘allegation’ which reads as under:

“2. Definitions – In this Act, unless the context otherwise requires,-

(b) “allegation” in relation to a public servant means any affirmation that such public servant,-

(i) has abused his position as such to obtain any gain or favour to himself or to any other person or to cause undue harm to any person;

(ii) was actuated in the discharge of his functions as such public servant by improper or corrupt motives;

(iii) is guilty of corruption; or

(iv) is in possession of pecuniary resources or property disproportionate to his known source of income and such pecuniary resources or property is held by the public servant personally or by any member of his family or by some other person on his behalf.

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Explanation:– For the purpose of this sub-clause “family” means husband, wife, sons and unmarried daughters living jointly with him;”

Section 7 of the Act of 1981 specifies the matters that may be enquired into by the Lokayukt or Up-Lokayukt. Section 7 reads as under:

“<sup>14</sup>7. Matters which may be enquired into by Lokayukt or Up-Lokayukt-Subject to the provision of this Act, on receiving complaint or other information-

(i) the Lokayukt may proceed to enquire into an allegation made against a public servant in relation to whom the Chief Minister is the competent authority;

(ii) the Up-Lokayukt may proceed to enquire into an allegation made against any public servant other than referred to in clause(i):

Provided that the Lokayukt may enquire into an allegation made against any public servant referred to in clause (ii).]

<sup>15</sup>[*Explanation.* – For the purposes of this section the expressions “may proceed to enquire”, and “may enquire,” include investigation by police agency put at the disposal of Lokayukt and Up-Lokayukt in pursuance of sub-section (3) of section 13.]”

18. The official website of Lokayukt Organisation, Madhya Pradesh at *mplokayukt.nic.in* gives the following information:

#### “About Lokayukt Organization

The Lokayuykt Organization in Madhya Pradesh came into existence in Feb.1982 after the Madhya Pradesh Lokayuykt and Up-Lokayukt Act, 1981 (hereinafter called the Act) was enacted by the State Legislature. Attempt to establish an independent Organization on the lines of “Ombudsman” started way back in mid 70’s after the State Administrative Reforms Commission recommended

14 Subs. by M.P. Act No.7 of 1982 (w.e.f. 28-1-1982)

15 Ins. By M.P. Act No.20 of 1984 (w.e.f. 16-5-1984)

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that the State Vigilance Commission, which was then functioning as an instrument to prevent/check corruption should be replaced by an organization with statutory base and powers. Examining the role and limitations of the State Vigilance Commission, the ARC had observed that in the absence of a constitutional or even statutory recognition of its position, the Vigilance Commission might act at best as a department of the Government to check corruption. In view of the above observations of the ARC and on the basis of various recommendations received from the Government of India, a bill was moved in the M.P. Legislative Assembly in the year 1975 which was sent for President's assent after its passage by the Assembly. But due to certain rethinking at the level of the Union Government the bill was returned to the State Government for reconsideration and the same was passed in April 1981 with certain modifications. The bill so passed became the Act after it received the Presidential assent in September 1981.

The Lokayukt Organization constituted under the Act replaced the Vigilance Commission. Having received the statutory base the Lokayukt Organization is totally free from the executive influence. Indeed, the organization functions as an instrument of control over the executive by the legislature as its annual reports are submitted to the Governor to be laid and discussed in the State Legislative Assembly."

Thus, even the Lokayukt Organisation states that it is an organisation that functions to prevent/check corruption. We may also refer to Section 63 of the Lokpal and Lokayuktas Act, 2013 which reads as under:

**"63. Establishment of Lokayukta.**—Every State shall establish a body to be known as the Lokayukta for the State, if not so established, constituted or appointed, by a law made by the State Legislature, to deal with complaints relating to corruption against certain public functionaries, within a period of one year from the date of commencement of this Act."

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Though this is a later central legislation, it is indicative of the fact that the Lokayukt of a State is a body to deal only with complaints relating to corruption against certain public functionaries.

19. The SPE has been established and constituted pursuant to the power conferred by Section 2(1) of the Act of 1947. The purpose behind its constitution is the investigation of offences notified under Section 3 of the Act of 1947. Notification dated 01.11.1959 by which the SPE was constituted reads as under:

“the 1st November 1959-Kartika 10, 1881  
NOTIFICATION

No. 111-89-I(VI) 59.-In exercise of the powers conferred by sub-section (1) of section 2 of the Madhya Pradesh Special Police Establishment Act, 1947 (XVII of 1947), the State Government hereby constitutes a special police force to be called the Madhya Pradesh Special Police Establishment for the investigation of offences which may from time to time be specified under section 3 of the said Act.”

Section 3 of the Act of 1947 empowers the State Government to specify the offences that can be investigated by the SPE. It reads as under:

“3. Offences to be investigated by special police establishment:- The State Government may, by notification, specify the offences or classes of offences which are to be investigated by [Madhya Pradesh]<sup>16</sup> Special Police Establishment.”

On 01.11.1959, another Notification was issued under Section 3 of the Act of 1947 specifying the offences that could be investigated by the SPE. The same reads as under:

“No. 113.89-I(VI)-59.-In exercise of the powers conferred by section 3 of the Madhya Pradesh Special Police Establishment Act, 1947 (XVII of 1947), the State Government hereby specifies the following to be the offences or classes of offences which are to be investigated

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16 Subs. By A.O. 1950, for Central Provinces and Berar

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by the Madhya Pradesh Special Police Establishment, namely:-

(a) offences punishable under sections 161, 165 and 165-A of the Indian Penal Code, 1860 (XLV of 1860);

(b) offences punishable under the Prevention of Corruption Act, 1947 (II of 1947);

(c) offences under sections 409 and 420 and Chapter XVIII of the Indian Penal Code, when they are committed, attempted or abetted by public servants or the employees of a local authority or a statutory corporation, when such offences adversely affect the interests of the State Government or the local authority or the statutory corporation, as the case may be; and

(d) attempts, abetment and conspiracies in respect of offences mentioned in items (a) and (b) above, by whomsoever committed.”

The subsequent Notification dated 28.11.1989 issued under Section 3 of the Act of 1947 reads as under:

“Bhopal, the 28<sup>th</sup> November 1989

No.F.15-2(I)-89-XLIC-10.- In Exercise of the powers conferred by Section 3 of the Madhya Pradesh Special Police Establishment Act, 1947 (XVII of 1947), the State Government hereby specifies the following to be the offences of classes or offences which are to be investigated by the Madhya Pradesh Special Police Establishment, namely :-

a) Offences punishable under the Prevention of Corruption Act, 1988 (No.49 of 1988);

b) Offences under Sections 409 and 420 and Chapter XVIII of the Indian Penal Code, 1860 (XLV of 1860) when are committed, attempted or abetted by public servants or the employees of a local authority or a statutory corporation, when such offences adversely affect the interests of the State Government or the local authority or the status corporation, as the case may be; and

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- c) Conspiracies in respect of offences mentioned in items (a) above.
- 2. (1) The General Administration Department Notification No.113-89-1 (VI)-59, dated the 1<sup>st</sup> November, 1959 is hereby repealed.
- (3) Notwithstanding such repeal, any investigation or legal proceeding pending on the date of commencement of the prevention of Corruption Act, 1988 (No.49 of 1988) shall be continued as if the repealing Notification had not been issued.

By order and in the name of the Governor of Madhya Pradesh.”

Thereafter, on 14.09.2000 the earlier Notification dated 28.11.1989 was superseded and a fresh Notification was published in the Official Gazette. The Notification dated 14.09.2000 reads as under:

“Notification No.F.15(1)(1)-2000-I-10 dated the 14th September, 2000.-In exercise of the powers conferred by Section 3 of the Madhya Pradesh Special Police Establishment Act, 1947 (No.17 of 1947) and in supersession of this Department Notification No.15(2) (1) 89-1-49-10 dated the 28<sup>th</sup> November, 1989, the State Government, hereby specify the following offences to be the offences of class of offences which are to be investigated by the Madhya Pradesh Special Police Establishment, namely :-

(a) Offences punishable under the Prevention of Corruption Act, 1988 (No.49 of 1988) :

(b) Offences under Section 409 and 420 and Chapter XVIII of the Indian Penal Code, 1860 (No.XLV of 1860) when they are committed, attempted or abetted by Public Servants or employees of a local authority or a statutory corporation, when such offences adversely affect the interests of the State Government or the local authority or the statutory corporation, as the case may be;

(c) Conspiracies in respect of offences mentioned in item (a) and (b) above; and

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(d) Conspiracies in respect of offences mentioned in item (a) and (b) shall be charged with simultaneously in one trial under the provisions of Criminal Procedure Code, 1973 (No.2 of 1974).

*[Published in M.P. Rajpatra (Asadharan) dated 14-9-2000 Pages 1099-1100]"*

Yet again on 03.05.2001, the GAD issued a fresh Notification after superseding the earlier Notification dated 14.09.2000. The Notification dated 03.05.2001 reads as under:

“No.15-(1)-(1)-2000-I-10.- In exercise of powers conferred by Section 3 of the Madhya Pradesh Special Police Establishment Act, 1947 (No.17 of 1947) and in supersession of this Department Notification No.15-(1)-(1)-2000-I-10, dated 14<sup>th</sup> September, 2000, The State Government hereby specify the following offences to be the offences or class of offences which are to be investigated by the Madhya Pradesh Special Police Establishment namely :

(a) Offences punishable under the Prevention of Corruption Act, 1988 (No.49 of 1988);

(b) Offences under Section 409 and 420 and Chapter XVIII of the Indian Penal Code, 1860 (No.XLV of 1860) when they are committed, attempted or abetted by Public Servants or employees of a local authority or a statutory corporation, when such offences adversely affect the interest of the Government or the local authority or the statutory corporation, as the case may be;

(c) Conspiracies in respect of offences mentioned in item (a) and (b), above, and;

(d) Conspiracies in respect of offences mentioned in item (a), (b) and (c) shall be charged with simultaneously in one trial under the provisions of Criminal Procedure Code, 1973 (No.2 of 1974).”

20. From the Notification dated 03.05.2001, it becomes clear that offences under the Act of 1988 as well as offences under Sections 409, 420



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and Chapter XVIII of the Indian Penal Code, 1860<sup>17</sup> committed or attempted or abetted by public servants or employees of a local authority or a statutory corporation adversely affecting the interest of the Government or a local authority or a statutory corporation, as the case may be, have to be investigated by the SPE. Conspiracies in respect of aforesaid offences are also to be investigated by the SPE. Thus, offences or classes of offences to be investigated by the SPE are limited to those punishable under the Act of 1988 and under Sections 409, 420 and Chapter XVIII of the Penal Code. The Act of 1988 seeks to prevent corruption involving public servants. Section 409 of the Penal Code provides for punishment for criminal breach of trust by a public servant or by a banker, merchant or agent while Section 420 provides for punishment for cheating and dishonestly inducing delivery of property. Chapter XVIII of the Penal Code relates to offences concerning documents and property marks. Considering the nature of offences covered by the aforesaid provisions, the jurisdiction of the SPE is clearly limited. This is for the reason that under the Act of 1981, the Lokayukt has been conferred a limited jurisdiction to enquire into an 'allegation' as defined by Section 2(b) when made against a public servant. It is, thus, clear that insofar as issues of 'intelligence' and 'security' are concerned, neither the Lokayukt nor the Up-Lokayukt under the Act of 1981 has been conferred jurisdiction to make any enquiry. The various Notifications issued by the State Government under Section 3 of the Act of 1947 from time to time are limited to offences punishable under the Act of 1988, Sections 409, 420 and Chapter XVIII of the Penal Code. Though Section 24(4) of the Act of 2005 states that the Act would apply to such 'intelligence and security organisations' established by the State Government as notified, the SPE though established by the State Government, it is not empowered to investigate any offences or classes of offences related to 'intelligence' and 'security'. The sphere of operation of the SPE constituted under the Act of 1947 would be governed and guided only by matters that may be enquired into by the Lokayukt or Up-Lokayukt under Section 7 of the Act of 1981. The jurisdiction, in that sense, is limited to an allegation in relation to a public servant in the context of the Act of 1988. The statutory

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17 For short, 'the Penal Code'

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scheme under which the SPE stands constituted coupled with the jurisdiction conferred on the Lokayukt or Up-Lokayukt clearly indicate that the SPE cannot be termed to be an 'intelligence and security' organisation when it assists the Lokayukt or Up-Lokayukt in matters specified by Section 7 of the Act of 1981.

21. We may note that the Allahabad High Court in **Dr.Nutan Thakur vs State of U.P., through Principal Secretary, Department of Vigilance**<sup>18</sup> considered the validity of Notification dated 03.08.2012 issued by the Principal Secretary Vigilance, Government of U.P. through which the Lokayukt agency was brought out of the purview of the Act of 2005 in view of Section 24(4) of that Act. After considering the matter in detail, it was found that the office of the Lokayukt had been constituted in view of the U. P. Lokayukt and Up-Lokayukt Act, 1975<sup>19</sup>. It was mainly concerned with the issue of corruption of public servants as defined under the Act of 1975. In the context of Section 24(4) of the Act of 2005, it was held that the office of Lokayukt was not concerned with the issues of 'intelligence and security'. It was, thus, held that the Notification dated 03.08.2012 issued by the State Government by which the office of Lokayukt and Up-Lokayukt was sought to be brought out of the purview of the Act of 2005 was illegal and it travelled beyond the provisions of Section 24(4) of the Act of 2005.

### Conclusion

22. Thus, having considered the entire matter, we are of the considered opinion that the Notification dated 25.08.2011 issued by the GAD of the State of Madhya Pradesh to the extent it seeks to exclude the SPE from the purview of the Act of 2005 in view of Section 24(4) thereof is liable to be set aside as being bad in law as it provides for matters not enumerated under Section 7 of the Act of 1947. The SPE having been conferred jurisdiction only to investigate offences punishable under the Act of 1988, Sections 409, 420 and Chapter XVIII of the Penal Code, it cannot be termed to be an 'intelligence and security' organisation for the purposes of Section 24(4) of the Act of 2005. The Notification dated 28.05.2011 does not conform to Section 24(4) of the Act of 2005 and is, thus, excessive in nature.

<sup>18</sup> Misc. Case No.1748 of 2013 decided on 02.11.2017

<sup>19</sup> For short, 'the Act of 1975'

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Thus, while maintaining the judgment of the High Court dated 20.12.2021 in W.P. No.1575 of 2021, the Notification dated 25.08.2011 issued by the GAD seeking to exclude the SPE from the applicability of the provisions of the Act of 2005 is struck down. It is clarified that we have not examined the applicability of the said Notification vis-a-vis the State Bureau of Investigation of Economic Offences and therefore, the said Notification shall continue to operate to that extent.

Subject to aforesaid, the Criminal Appeal is dismissed. Pending interlocutory applications are also disposed of.

*Result of the case:* Appeal dismissed.

*<sup>†</sup>Headnotes prepared by: Nidhi Jain*

**Bhikhani Devi and Etc.  
v.  
Union of India and Others**

(Civil Appeal No(s). 8354-8356 of 2026)

01 June 2026

**[Sanjay Karol and Augustine George Masih,\* JJ.]**

**Issue for Consideration**

Whether temporary status casual labourer, in the absence of a formal order of regularisation, would be entitled to pensionary benefits on superannuation or not.

**Headnotes<sup>†</sup>**

**CCS (Temporary Service) Rules, 1965 – r.10(1-B) – CCS (Pension) Rules, 1972 – A temporary status casual labourer, if entitled to pensionary benefits in absence of regularization – Appellants are either former employees or legal representatives of employees who had rendered long, continuous, and uninterrupted service under the Department of Posts as casual labourers (Night Guards) spanning several decades till superannuation – They were conferred “temporary status” under the “Casual Labourers (Grant of Temporary Status and Regularisation) Scheme, 1991” (Scheme) – Subsequently, Circular dtd.30.11.1992 provided that, the casual labourers who were conferred with temporary status under the Scheme and had rendered three years of continuous service with such temporary status be treated at par with ‘temporary Group ‘D’ employees’ and were held entitled to the benefits admissible to such employees – Notwithstanding the conferment of temporary status and the extension of benefits akin to Group ‘D’ employees, the Appellants or their predecessors-in-interest were never formally regularised in service – Appellants sought grant of pensionary benefits/family pension requesting that the service rendered under temporary status be counted for the purpose of pensionary benefits – Claim rejected on the ground that the employees were not ‘formally regularised’ as Group ‘D’ employees – Appellants sought pensionary benefits/family pension under the Central Civil Services (Pension)**

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\* Author

**Bhikhani Devi and Etc. v. Union of India and Others****Rules, 1972 – Allowed by Tribunal – Order set aside by High Court – Interference with:**

**Held:** A temporary status casual labourer would be entitled to pensionary benefits on superannuation even in the absence of regularization – The submission advanced on behalf of the Respondents is that under the Scheme the employees continue merely as temporary status casual labourers and are distinct from the temporary Government servants, and so would be the pensionary framework applicable – At first blush, this contention appears to be correct to an extent however, on due consideration and deliberation of the Scheme and its various clauses as a whole, the submission is misplaced – Although, it may be correct to say that conferment of temporary status on a casual labourer under the Scheme does not *ipso facto* transform such employee into a temporary Government servant, however, what falls short from the aforesaid submission is that while the status of such employee continues unchanged i.e., of a ‘temporary status casual labourers’, the Scheme consciously and specifically extends to such employees benefits admissible to temporary Group ‘D’ employees upon completion of three years of continuous service under temporary status – The service conditions, at this juncture, of the casual temporary status employee under the Scheme gets substantially changed and carries all the benefits that are available to temporary government employees – Therefore, while the nomenclature and category of their service status remain unchanged, the nature and extent of benefits now available to them stand significantly enlarged and aligned with those admissible to temporary Government employees, blurring the distinction between both categories as far as benefits available to them are concerned – The distinction that remains is one relating to nomenclature, formal status and mode of regularisation but not to the nature of extended benefits – When the statutory framework including CCS (Temporary Service) Rules, 1965 is read in conjunction with the Scheme and the circular dtd.30.11.1992, the inescapable conclusion which emerges is that a casual labour, on being conferred the temporary status, upon completion of three years of continuous service as temporary status casual labourer becomes entitled to benefits admissible to temporary Group ‘D’ employees, which necessarily includes pensionary benefits available u/r.10(1-B) of the CCS (Temporary Service) Rules, 1965 subject to fulfilling the eligibility criteria provided therein – This right is not dependent on

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regularization – Impugned judgments proceeded on an erroneous interpretation of the Scheme and the circular dated 30.11.1992, set aside – Appellants entitled to pensionary and consequential retiral benefits in accordance with law – Constitution of India – Arts.14, 300A. [Paras 66, 67, 75, 76, 84]

#### **Constitution of India – Art.300A – Pension is not a bounty but a vested and enforceable constitutional right:**

**Held:** Pension is a hard-earned benefit amassed by an employee by virtue of long and continuous service and is in the nature of “property” within the meaning of Art.300A of the Constitution of India – Once pension is recognised as a constitutional right in the nature of property, it cannot be taken away except by authority of law – A statutory right cannot be rendered illusory on account of inaction of the employer, and such inaction cannot defeat or deny a constitutional right. [Paras 41, 42]

**Service Law – In furtherance of the “Casual Labourers (Grant of Temporary Status and Regularisation) Scheme, 1991” (Scheme), circular dtd.30.11.1992 provided that the casual labourers conferred with temporary status as per the Scheme be treated at par with temporary Group ‘D’ employees with effect from the date of completion of three years of service in the temporary status – The benefits listed in the circular dtd. 30.11.1992 included leave, holidays, GPF, medical facilities, LTC, bonus, and other service benefits admissible to Temporary Group ‘D’ employees – Plea of the Respondents that temporary status casual labourers are extended only the benefits that are specified in the Scheme and Circular dtd.30.11.1992 and are not entitled for pensionary benefits:**

**Held:** Said submission is misconceived – The enumeration of benefits listed in the circular dtd.30.11.1992, includes leave, holidays, GPF, medical facilities, LTC, bonus, and other service benefits admissible to Temporary Group ‘D’ employees, clearly demonstrates that temporary status employees are to be functionally assimilated into the service framework of Temporary Group ‘D’ employees – The expression “benefits admissible to temporary Group ‘D’ employees such as”, made use of in the circular is of considerable importance – The utilisation of the words “such as” clearly indicates that the benefits enumerated therein are illustrative and neither restrictive nor exhaustive – The circular,

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being a beneficial legislation, cannot be read and understood in a restrictive manner rather the correct approach of interpretation would be to analyse it in the letter and spirit of the legislative and administrative intent *i.e.* to extend all benefits as are available to temporary Group 'D' employees, to temporary status casual labourers including pensionary benefits. [Paras 54, 55]

**CCS (Temporary Service) Rules, 1965 – r.10(1-B) – CCS (Pension) Rules, 1972 – Plea of the Respondents that the Appellants were paid out of contingencies and therefore stood excluded from the purview of the CCS (Temporary Service) Rules, 1965:**

**Held:** Said contention cannot be accepted in the particular facts of the present case – Such exclusion may have relevance at the stage of initial engagement as casual labourers – However, the service conditions of the Appellants underwent a substantial transformation upon extension of benefits admissible to temporary Group 'D' employees – The continued reliance by the Respondents upon the original mode of engagement, while simultaneously extending pay parity, increments, GPF facilities, leave benefits and other service entitlements akin to temporary Group 'D' employees, would amount to selectively accepting one part of the Scheme while disregarding the other – Such an approach would defeat the very object underlying the Scheme and the circular dtd.30.11.1992 – Once parity in service benefits with temporary Group 'D' employees is consciously extended under the Scheme, pensionary benefits flowing u/r.10(1-B) of the Rules of 1965 cannot be selectively denied by ignoring or overlooking the statutory right – The argument founded upon financial burden is equally untenable – Pension is not a matter of grace dependent upon the financial convenience of the employer, but a deferred wage earned through long years of service – Pension is recognised as a constitutional right in the nature of property protected u/Art.300A of the Constitution of India and, therefore, it cannot be denied on the plea of financial burden. [Para 73]

**Service Law – Constitution of India – Arts.14; 38, 39, 43 – State, a model employer – Long-serving employees, casual or temporary, if conferred a recognised status and extended benefits akin to regular employees, cannot be denied corresponding benefits including social security and pensionary benefits:**

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**Held:** Long-serving employees, whether casual or temporary, particularly those who have been conferred a recognised status and extended benefits akin to regular employees, cannot be denied corresponding benefits including social security and pensionary benefits – The emphasis must be on ensuring that the State does not retain such employees in a precarious condition while extracting services identical to those performed by regular employees – This approach is firmly rooted in the constitutional mandate of equality enshrined u/Art.14 – Any classification, resulting in denial of any benefits to a class of employees who are otherwise similarly situated in terms of duties and responsibilities would fall foul of constitutional ethos – Further, the Directive Principles of State Policy, particularly Arts.38, 39 and 43, cast a positive obligation upon the State to ensure social and economic justice, fair conditions of work, and a decent standard of life for labourers – Pension, in this context, is not a gratuitous benefit but a facet of social welfare and economic justice – State as a model employer, read in conjunction with the aforesaid constitutional mandate, reinforces the obligation upon the State to extend fair and equitable treatment to employees who have rendered long and continuous service and the State cannot extract services of a permanent nature while denying corresponding benefits. [Paras 38-40]

### **Service Law – Pensionary benefits – Delay and laches:**

**Held:** Pensionary benefits constitute a continuing cause of action, and a claim for pension cannot be defeated solely on the ground of delay – At the same time, the claim for arrears is required to be balanced with settled principles governing limitation – In the present case, nothing has been brought on record to indicate that the Appellants had raised any claim for pensionary benefits prior to filing of the respective Original Applications before the Tribunal – In such circumstances, while the entitlement of the Appellants to pensionary and consequential retiral benefits stands established, the arrears thereof, wherever applicable, shall remain confined to the period of three years and two months preceding the date of filing of the respective Original Applications before the Tribunal, consistent with settled principles governing service jurisprudence. [Para 81]

**Service Law – Casual Labourers (Grant of Temporary Status and Regularisation) Scheme, 1991” – Different categories of employees engaged within the service framework in the**



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**Department of Posts viz., Casual labourers; Temporary status casual labourers; Temporary Government employees; and Regular Government employees – Distinction between, stated – CCS (Temporary Service) Rules, 1965. [Paras 59-65]**

**Service Law – Parity in service benefits vis-à-vis identity of service status:**

**Held:** The Scheme in question nowhere provides that upon completion of three years' service under temporary status, the employee becomes a temporary Government servant – What it specifically provides is that such employee shall be treated at par with temporary Group 'D' employees for purposes of extension of admissible benefits – The parity contemplated under the Scheme is thus parity in service benefits and not identity of service status – Once the Scheme and the circular dtd.30.11.1992 consciously extend benefits admissible to temporary Group 'D' employees, the Respondents cannot rely solely upon the nomenclature of 'temporary status casual labourer' to deny those very benefits – The entire framework of the Scheme proceeds upon extension of substantive service benefits despite continuance of the original nomenclature as temporary status casual labourer. [Para 68]

**Service Law – Plea of the Respondents that Clause 6 of the “Casual Labourers (Grant of Temporary Status and Regularisation) Scheme, 1991” (Scheme) contemplates counting of 50% service rendered under temporary status towards retirement benefits only after formal regularisation as Group 'D' employee and, therefore, in the absence of regularisation, no pensionary benefits can be granted:**

**Held:** Said submission cannot be accepted – Clause 6 cannot be read in isolation divorced from the principles and purpose underlying the Scheme and the circular dtd.30.11.1992 – The judgment of this Court in *Jagrit Mazdoor Union*, which forms the basis of the Scheme itself, categorically directed that upon completion of three years of continuous service under temporary status, casual labourers 'would thereby be entitled to benefits as are admissible to Group 'D' employees on regular basis' – The circular dtd.30.11.1992 further clarifies that such employees would be entitled to counting of service for pension and terminal benefits as admissible to temporary Group 'D' employees – The expression “after regularisation” occurring in Clause 6 cannot be

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construed in a narrow or restrictive manner so as to defeat the beneficial object underlying the Scheme and must be construed in its proper context – Clause 6 has to be interpreted harmoniously and would construe to mean that in cases where formal orders of regularisation are passed, 50% of the service rendered under temporary status would be liable to be counted towards retirement and pensionary benefits as additional benefit apart from the benefits as available under the rules which become applicable to a regular government employee – Consequently, while Clause 6 may operate to confer an additional advantage in cases where regularisation takes place, the absence of formal regularisation cannot be construed as extinguishing or defeating the underlying entitlement to pensionary benefits. [Paras 56, 57]

### Case Law Cited

*Jagrit Mazdoor Union (Regd.) and Others v. Mahanagar Telephone Nigam Ltd. and Another* (1990) Supp. SCC 113; *Vinod Kumar and Others v. Union of India and Others* [2024] 1 SCR 1230 : (2024) 9 SCC 327; *Jaggo v. Union of India and Others* [2024] 12 SCR 1235 : 2024 SCC OnLine SC 3826; *Yashwant Hari Katakkar v. Union of India and Others* (1996) 7 SCC 113; *State of Jharkhand and Others v. Jitendra Kumar Srivastava and Another* [2013] 8 SCR 177 : (2013) 12 SCC 210 – relied on.

*M.L. Patil (Dead) through Lrs. v. State of Goa and Another* [2022] 3 SCR 362 : (2023) 1 SCC 660; *Indian Council of Agricultural Research and Another v. Santosh* (2006) 11 SCC 157 – referred to.

### List of Acts

Central Civil Services (Pension) Rules, 1972; Central Civil Services (Temporary Service) Rules, 1965.

### List of Keywords

Casual labourers; Temporary Government servant; Temporary Government employees; Temporary status casual labourer; “Temporary status”; Absence of a formal order of regularization; Absence of regularization; Pensionary benefits; Temporary status casual labourer entitled to pensionary benefits; Casual and temporary employees; Rights of casual labourers; Rights of temporary employees; Casual labourers (Night Guards); Department of Posts; Casual Labourers (Grant of Temporary Status and

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Regularisation) Scheme, 1991; Temporary Group 'D' employees; Casual temporary status employee; State a model employer; Article 300A of the Constitution of India; Pension a constitutional right in the nature of property; Pension not a bounty; Pension a vested and enforceable constitutional right; Claim for pension cannot be defeated on the ground of delay; Long-serving employees; Long years of service; Long, continuous, and uninterrupted service; Long, continuous service as casual labourers (Night Guards); Service spanning several decades; Parity in service benefits; Identity of service status; Claim for pension a continuing cause of action; Nomenclature of 'temporary status casual labourer'; Regular Government employees.

### **Case Arising From**

CIVIL APPELLATE JURISDICTION: Civil Appeal No(s). 8354-8356 of 2026

From the Judgment and Order dated 14.10.2019 of the High Court of Judicature at Patna in CWJC Nos. 15420, 11564, 13980 of 2019

### **Appearances for Parties**

*Advs. for the Appellant(s):*

Akhilesh Kumar Pandey, Amrish Kumar, Sudarshan Lamba.

*Advs. for the Respondent(s):*

Bijender Chahar, A.S.G., Sudarshan Lamba, Kumar Murlidhar, Atul Verma, Akhilesh Kumar Pandey, Sunil Kumar Verma, Shariq Ahmed, Tariq Ahmed, M/s Ahmadi Law Offices, Mohan Prasad Gupta, Rohit Khare, Ms. Vimla Sinha, Ms. Seema Bengani, Rajesh Kr. Singh, Jagdish Chandra, Mohan Prasad Gupta, Sushil Raaja, Amrish Kumar.

### **Judgment / Order of the Supreme Court**

#### **Judgment**

**Augustine George Masih, J.**

1. Leave Granted.
2. These Civil Appeals challenge the judgments and final orders dated 14.10.2019 ("Impugned Judgments") passed by the High Court of

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Judicature at Patna (“High Court”) in Civil W.P. Case No.15420 of 2019, Civil W.P. Case No.11564 of 2019 and Civil W.P. Case No.13980 of 2019, whereby the writ petitions preferred by the Respondent–Union of India were allowed, resulting in the setting aside of the Orders of Central Administrative Tribunal, Patna (“Tribunal”) dated 27.03.2018, 30.07.2018 and 03.08.2018 passed in Original Applications, filed by the Appellants herein, granting relief to them.

3. The Appellants before this Court are either former employees or legal representatives of employees who had rendered long years of service under the Department of Posts as casual labourers (Night Guards).
4. Appellant, Bhikhani Devi, is the widow of Late Suraj Sah, who was initially appointed as a paid casual labourer (Night Guard) at the Rajnagar Post Office in Madhubani District, Bihar, on 12.02.1972. Appellant, Bahuru Sahu, was appointed on 10.10.1971 and Appellant, Pitamber Jha, was similarly appointed as a casual labourer (Night Guard) on 20.06.1981.
5. It is not in dispute that all three employees rendered long, continuous, and uninterrupted service spanning several decades in the said capacity and continued to discharge duties as a casual labourer till superannuation.
6. On 12.04.1991, pursuant to directions of this Court in ***Jagrit Mazdoor Union (Regd.) and Others v. Mahanagar Telephone Nigam Ltd. and Another***<sup>1</sup>, the Department of Posts formulated the “Casual Labourers (Grant of Temporary Status and Regularisation) Scheme, 1991” (“Scheme”), with the avowed objective of providing improved service conditions and a measure of social security to casual labourers. The said scheme was communicated to all concerned Departments on 15.05.1991.
7. In furtherance of the said Scheme, Late Suraj Sah, along with Bahuru Sahu and Pitamber Jha, were conferred “temporary status” vide departmental memo dated 20.11.1992, with effect from 29.11.1989. The conferment of such status marked a significant shift in the service conditions, entitling them to certain benefits and bringing them within the structured service framework of the Department.

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<sup>1</sup> (1990) Supp. SCC 113

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8. Subsequently, by a circular/letter dated 30.11.1992, the Department of Posts conveyed decision being taken that the casual labourers who had been conferred with temporary status under the Scheme and have rendered three years of continuous service with such temporary status would be treated at par with 'temporary Group 'D' employees' and would be entitled to the benefits admissible to such employees, including leave, holidays and other service-related entitlements.
9. In terms of the said circular, upon completion of the requisite period of service, a further memo dated 03.05.2000 was issued directing that Late Suraj Sah, along with Appellant - Bahuru Sahu, be treated at par with "temporary Group 'D' employees", thereby entitling them to the benefits admissible to that category, including consideration of service for the purpose of pension and other terminal benefits upon regularisation.
10. Notwithstanding the conferment of temporary status and the extension of benefits akin to Group 'D' employees, the Appellants or their predecessors-in-interest were never formally regularised in service. It is the case of the Appellants that such non-regularisation was not attributable to any lapse on their part or intimation about non-eligibility but was a consequence of administrative inaction on the part of the Respondents.
11. Late Suraj Sah continued in service until attaining the age of superannuation and retired on 31.12.2008. Appellant, Bahuru Sahu, retired earlier on 30.04.2008, while Appellant, Pitamber Jha, retired on 31.10.2015. Following his retirement, Late Suraj Sah was issued a communication dated 06.04.2010 informing him of payment under the Central Government Employees Group Insurance Scheme (CGEGIS).
12. Late Suraj Sah subsequently passed away on 10.04.2015, leaving behind his widow, Appellant, Bhikhani Devi and minor children. Thereafter, Appellant, Bhikhani Devi approached the Respondent authorities seeking grant of family pension requesting that the service rendered under temporary status be counted for the purpose of pensionary benefits. The other Appellants similarly submitted representations in the years 2016 and 2017 seeking grant of pensionary benefits.
13. The Respondents, however, rejected their claims on the ground that the employees had not been 'formally regularised' as Group 'D'

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- employees, which, according to the Respondents, was a mandatory prerequisite for entitlement to pension under the applicable Scheme.
14. Aggrieved by such denial, Appellant - Bhikhani Devi instituted O.A. No. 050/00372 of 2017 before the Tribunal, seeking grant of family pension under the Central Civil Services (Pension) Rules, 1972 [**“CCS (Pension) Rules, 1972”**], while the other two Appellants similarly approached the Tribunal by filing O.A. No. 050/00081 of 2018 and O.A. No. 050/00609 of 2017, respectively, seeking pensionary benefits.
  15. The Tribunal, by order dated 27.03.2018, allowed the Original Application filed by Bhikhani Devi and directed the Respondents to consider her claim in light of earlier decisions rendered in favour of similarly situated employees. The Tribunal, by subsequent orders 30.07.2018 and 03.08.2018, allowed the Original Applications filed by Appellants Bahuru Sahu and Pitambar Jha and issued similar directions.
  16. The Respondent–Union of India challenged the said orders by filing writ petitions before the High Court. The High Court, vide the Impugned Judgments, allowed the writ petitions and set aside the orders passed by the Tribunal. The High Court, inter alia, held that the claims were liable to be rejected on the ground of delay and laches, and further observed that in the absence of formal regularisation, the Appellants were not entitled to pensionary benefits. The High Court also took the view that the earlier decisions relied upon by the Tribunal did not constitute binding precedent, as they had not considered certain clauses of the Scheme.
  17. Aggrieved by the Impugned Judgments, the present Appeals by way of filing Special Leave Petitions before this Court have been preferred by the Appellants.
  18. Learned counsel appearing on behalf of the Appellants submits that that the claims of the Appellants could not have been rejected on the ground of delay and **laches**, inasmuch as the claim for pension constitutes a **continuing cause of action**. Reliance in this regard has been placed upon the decision of this Court in ***M.L. Patil (Dead) through LRs v. State of Goa and Another***<sup>2</sup>, wherein it has been held that pension is a recurring cause and therefore cannot be denied on the ground of delay.

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19. On merits, the counsel submits that the Appellants having rendered **long and continuous uninterrupted service extending over decades**, and having been conferred **temporary status**, are entitled to pensionary benefits under the applicable statutory framework. It is contended that temporary government servants are not excluded from the purview of pension, reliance is placed upon the **Central Civil Services (Temporary Service) Rules, 1965** [**“CCS (Temporary Service) Rules, 1965”**], to contend that a temporary government servant who retires upon attaining the age of superannuation after rendering not less than the prescribed period of 10 years service, shall be governed by the provisions of the **CCS (Pension) Rules, 1972**, and shall be entitled to superannuation pension, gratuity, and family pension.
20. He further submits that an Office Memorandum bearing No. 2/4/87-PIC dated 14.04.1987 issued under the CCS (Pension) Rules, 1972, clarifies that even temporary government servants, upon rendering the requisite period of service, are to be brought within the purview of pensionary benefits, and that the requirement of holding a substantive pensionable post stands dispensed with in such cases. It is thus urged that the statutory framework does not exclude temporary employees from pensionary entitlement, and any interpretation to the contrary would be erroneous.
21. Learned counsel submits that in similar factual circumstances, pensionary benefits have been extended to similarly situated employees. Reference is made to the Order dated 03.09.2015 passed by the Tribunal in O.A. No. 570 of 2013, granting pensionary benefits, which was upheld by the High Court, and the same has subsequently been implemented by the Respondents. It is contended that there exists no distinguishing feature between the said case and the present case.
22. Learned counsel has also placed reliance upon the decision of this Court in **Jagrit Mazdoor Union (supra)**, to contend that upon completion of three years of continuous service with temporary status, casual labourers are to be treated at par with Group ‘D’ employees and are entitled to benefits admissible to regular employees.
23. Reliance is also placed upon the decision of this Court in **Vinod Kumar and Others v. Union of India and Others**<sup>3</sup> and

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*Jaggo v. Union of India and Others*<sup>4</sup> to submit that employees performing essential and continuous duties over long periods cannot be treated as temporary or casual merely on account of nomenclature.

24. Learned counsel further submits that the circular/letter dated 30.11.1992 does not make **regularisation** a precondition for entitlement to pension, but merely provides that **50% of the service rendered under temporary status shall be counted for the purpose of pension computation**. It is contended that the said circular deals with the **quantum of pension**, and not with the **entitlement**, and any interpretation to the contrary is arbitrary.
25. He further submits that the Appellants upon being granted temporary status were receiving regular pay and not contingency wages, therefore, they cannot be said to be a part of an “extra-temporary establishment”. He rests his submissions by stating that denial of pensionary benefits to employees who have rendered long years of service, particularly those belonging to economically weaker sections, on the ground of financial burden, is arbitrary and contrary to constitutional principles of **social justice and fairness**.
26. Per contra, learned A.S.G. appearing on behalf of the Respondents—Union of India supported the impugned judgments and contends that the Department has strictly acted in accordance with the **Scheme**, which exclusively governs the service conditions of the Appellants.
27. He submits that **conferment of temporary status does not confer any right to regularisation**. Reliance is placed upon Paragraphs 6 and 7 of the Scheme to contend that **50% of the service rendered under temporary status is to be counted for the purpose of retirement benefits only after regularisation as a Group ‘D’ employee**, and that conferment of temporary status does not automatically entail appointment against a regular post. It is contended that appointments to Group ‘D’ posts are governed by the applicable Recruitment Rules and are subject to availability of vacancies and selection in accordance with the prescribed procedure.
28. He contends that, as per Paragraph 8 of the Scheme and departmental letter dated 30.11.1992, after rendering three years of continuous service with temporary status, casual labourers are merely treated at



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par with temporary Group 'D' employees for **limited purposes**, such as contribution to the General Provident Fund and eligibility for certain advances. However, such parity does not extend to **pensionary or retiral benefits**, which are contingent upon formal regularisation.

29. Learned A.S.G. further submits that the service conditions of the Appellants are governed exclusively by the Scheme and not by the **CCS (Temporary Service) Rules, 1965** or the **CCS (Pension) Rules, 1972**. It is contended that a clear distinction exists between a "temporary government servant" and a "temporary status casual labourer", the former being governed by statutory service rules, whereas the latter is governed by the Scheme. Reliance is placed upon Rule 1(4)(d) and (e) of the CCS (Temporary Service) Rules, 1965, to contend that the said Rules do not apply to persons employed in **extra-temporary establishments** or those paid out of contingencies.
30. It is further submitted that the Department has, in fact, framed successive Recruitment Rules, which provide for a channel of regularisation, including reservation of a percentage of vacancies for casual labourers with temporary status. However, since the Appellants were never selected or regularised under these Rules during their service tenure, they cannot now claim pensionary benefits. Reliance is placed upon the decision of this Court in **Indian Council of Agricultural Research and Another v. Santosh**<sup>5</sup>, to contend that in the absence of regularisation, no pensionary benefits entitlement could be claimed.
31. Lastly, learned A.S.G. submits a chart indicating the service particulars of the employees, to demonstrate that none of the Appellants were regularised prior to their retirement, and did not fulfil the eligibility criteria for pensionary benefits, and extending such benefits would have significant **financial implications** for the Respondents.
32. Having heard the counsel for both the parties and on perusal of pleadings and material on record, the issue that arises for consideration can be carved out as follows:

‘Whether temporary status casual labourer, in the absence of a formal order of regularisation, would be entitled to pensionary benefits on superannuation or not?’

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33. Before adverting to the above question and interpreting the Scheme involved in the present factual matrix, we find it apposite to delineate the legal framework governing the rights of casual and temporary employees. This Court has over the years developed jurisprudence concerning rights of casual labourers and temporary employees which needs to be adverted to.
34. In ***Jagrit Mazdoor Union (supra)***, this Court held that upon conferment of temporary status and completion of three years of continuous service, casual labourers are to be treated at par with Group 'D' employees and would thereby be entitled to such benefits admissible to regular employees. The Court observed that there could be no justification in withholding benefits from such employees and emphasised the obligation of the State, as a model employer, to act in consonance with the Directive Principles of State Policy as provided in the Constitution of India.
35. Further, in ***Vinod Kumar (supra)***, this Court recognised that where employees have rendered continuous service, performing duties indistinguishable from those discharged by regular employees, the distinction between temporary and permanent employment becomes substantively illusory and the failure to recognise the true nature of such service would be contrary to the principles of equity and fairness.
36. In ***Jaggo (supra)***, this Court reiterated that employees labelled as temporary or part-time, but who have in fact rendered continuous and essential service over long periods, cannot be denied benefits available to regular employees merely on account of nomenclature. The Court held that such engagement is neither sporadic nor casual, but is in the nature of regular employment, thereby necessitating extension of all corresponding service benefits.
37. In this context, the principle laid down by this Court in ***Yashwant Hari Katakhar v. Union of India and Others***<sup>6</sup> also assumes significance, wherein this Court held that where an employee has rendered long years of service and there is no justifiable reason for not conferring permanent status, it would be a travesty of justice to deny pensionary benefits merely on the ground of absence of formal regularisation, and such an employee is liable to be treated as having attained permanent status.

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38. Perusal of the above decisions of this Court establish a consistent judicial approach that long-serving employees, whether casual or temporary, particularly those who have been conferred a recognised status and extended benefits akin to regular employees, cannot be denied corresponding benefits including social security and pensionary benefits. The emphasis must be on ensuring that the State does not retain such employees in a precarious condition while extracting services identical to those performed by regular employees.
39. This approach is firmly rooted in the constitutional mandate of equality enshrined under Article 14 of the Constitution of India. Any classification, resulting in denial of any benefits to a class of employees who are otherwise similarly situated in terms of duties and responsibilities would fall foul of constitutional ethos. Further, the Directive Principles of State Policy, particularly Articles 38, 39 and 43, cast a positive obligation upon the State to ensure social and economic justice, fair conditions of work, and a decent standard of life for labourers. Pension, in this context, is not a gratuitous benefit but a facet of social welfare and economic justice.
40. The concept of the State as a model employer, read in conjunction with the aforesaid constitutional mandate, reinforces the obligation upon the State to extend fair and equitable treatment to employees who have rendered long and continuous service and that the State cannot extract services of a permanent nature while denying corresponding benefits.
41. At this stage, it is also necessary to note that pension is not a bounty but a vested and enforceable constitutional right. This Court in ***State of Jharkhand and Others v. Jitendra Kumar Srivastava and Another***<sup>7</sup> has categorically held that pension is a hard-earned benefit amassed by an employee by virtue of long and continuous service and is in the nature of “property” within the meaning of Article 300A of the Constitution of India.
42. Once pension is recognised as a constitutional right in the nature of property, it cannot be taken away except by authority of law. A statutory right cannot be rendered illusory on account of inaction of the employer, and such inaction cannot defeat or deny a constitutional

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right. It is in the light of this above discussed judicial approach of this Court over a period of time, the provisions of the Scheme and the subsequent applicable circulars must be read, understood and interpreted.

43. Let us, now, turn to the Scheme that is applicable to the facts of the present case. The principles emanating from ***Jagrit Mazdoor Union (supra)***, as discussed hereinabove, are directly incorporated in formation of the said Scheme. The relevant portion of the decision is reproduced herein:

*“...After rendering three years of continuous service with temporary status, the casual labourers shall be treated at par with temporary Grade ‘D’ employees of the Department of Posts and would thereby be entitled to such benefits as are admissible to Group ‘D’ employees on regular basis.”*

**(emphasis supplied)**

44. In compliance of the above, the Department of Posts formulated the Scheme for integration of casual labourers within the structured service framework, progressive extension of service benefits to such employees ultimately leading to their regularization in service. It would be apposite to refer to the text of the 1991 Scheme, which reads as follows:

“  
Government of India  
Ministry of Communications  
Department of Posts  
Dak Bhavan, Sansad Marg  
New Delhi-110001

NO: 45-95/87-SPB.I

New Delhi, dated 12.4.1991

To:  
All CPMG/PMG  
All Principals, PTC  
Controller Foreign Mails, Mumbai  
Director, Rafi Ahmed Kidwai National Postal Academy,  
Ghaziabad  
Heads of all other Administrative Offices.

**Bhikhani Devi and Etc. v. Union of India and Others**

*Subject: Casual Labourers (Grant of Temporary Status and Regularisation) Scheme.*

*Sir,*

*In compliance with the directions of the Hon'ble Supreme Court, a scheme was drawn up by this Department in consultation with the Ministries of Law, Finance & Personnel, and the President has been pleased to approve the said scheme. The Scheme is as follows:*

- 1. "Temporary Status" would be conferred on the casual labourers in employment as on 29.11.89 and who continue to be currently employed and have rendered continuous service of at least one year. During the year they must have been engaged for a period of 240 days (206 days in the case of offices observing five days weeks)*
- 2. Such casual workers engaged for full working hours viz., 8 hours including ½ hour's lunch time will be paid at daily rates on the basis of the minimum of the pay scale for a regular Group D official including DA, HRA and CCA.*
- 3. Benefit of increment at the same rate as applicable to a Group D employee would be taken into account for one year of service from the date of conferment of Temporary Status. Such increment will be taken into account after every one year of service subject to performance of duty for at least 240 days (206 days in establishments observing five days week) in the year.*
- 4. Leave entitlement will be one day for every 10 days of work. Casual Leave or any other kind of leave except maternity leave, will not be admissible. No encashment of leave is permissible on termination of services for any reason or on the casual labourers quitting service.*
- 5. Maternity leave to lady full time casual labourers will be allowed as admissible to regular Group D employees.*

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6. *50% of the service rendered under Temporary Status would be counted for the purpose of retirement benefits after regularization as a regular Group D official.*
7. *Conferment of Temporary Status does not automatically imply that the casual labourers would be appointed as a regular Group D employee within any fixed time frame. Appointment to Group D vacancies will continue to be done as per extant recruitment rules, which stipulate preference to eligible LD employees.*
8. *After rendering three years continuous service after conferment of temporary status, the casual labourers would be treated at par with temporary group D employees for the purpose of contribution to GPF. They would also further be eligible for the grant of Festival Advance/Flood Advance on the same conditions as are applicable to temporary group D employees, provided they furnish two sureties from permanent Govt. Servants of this Department.*
9. *Their entitlement to Productivity Linked Bonus will continue to be at the rate applicable to casual labourers.*
10. *Temporary status does not debar dispensing with the services of a casual labourer after following the due procedure.*
11. *If a labourer with temporary status commits a misconduct and the same is proved in an enquiry after giving him reasonable opportunity, his services will be dispensed with.*
12. *Casual Labourers may be regularised in units other than recruiting units also, subject to availability of vacancies.*
13. *For purpose of appointment as a regular group D official, the casual labourers will be allowed age relaxation to the extent of service rendered by them as casual labourers.*

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14. *The casual labourers can be deployed, anywhere within the recruitment unit /territorial circle on the basis of availability of work.*
15. *The engagement of casual labourers will continue to be on daily rates of pay on need basis.*
16. *The conferment of temporary status has no relation to availability of sanctioned regular group D posts.*
17. *No recruitment from open market for group D posts except compassionate appointments will be done till casual labourers with the requisite qualifications are available to fill up the posts in question.*

*Further action may be taken in regard to the casual labourers by each unit, as per the above said scheme. This issues with the approval of Ministry of Finance and concurrence of Integrated Finance vide their Dy.No.1282-FA/91 dated 10.4.91.*

*Hindi version will follow.*

*Sd/-  
(T.S. GOVINDRAJAN)  
DIRECTOR (Staff)*

*Copy to:*

1. *The Officer-in Charge, APS Record Office*
2. *SPB.II/Admn./Vig.I, II, III/NCG/PAP/FAP/ Pension/PE-I/ PE.II/EB/SR/Inspn./SR/ STN/Civil Wing (Postal)/ Postal Accounts Section of the Directorate.*
3. *All recognized Unions/Associations*
4. *All dealing hands.*

*Sd/-  
(R. KRINSHNAMOORTHY)  
Asstt. Director General (SPN)"*

45. Clause 2 of the Scheme provides that casual labourers, upon conferment of temporary status, shall be paid wages on the basis of the minimum of the pay scale applicable to regular Group 'D'

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employees together with Dearness Allowance, House Rent Allowance and City Compensatory Allowance. The grant of pay and such other service benefits clearly indicates that the Scheme intended to move casual labourers away from the purely casual or daily-rated framework to progressively align their service conditions with the regular establishment.

46. Clause 4 further grants leave entitlement to temporary status employees. Though the nature of leave admissible thereunder may not be identical to that available to regular employees, the very conferment of leave entitlement signifies that such employees are no longer to be treated as mere casual labourers engaged on a day-to-day basis, but as employees occupying a recognised and continuing position within the service structure.
47. Clause 6 of the Scheme is of considerable significance and forms the central feature of the present controversy. The said clause provides for counting of a part of the service rendered under temporary status for the purpose of retirement benefits on regularisation as Group 'D' employee. The very incorporation of such a stipulation recognises the pensionable character of service rendered under temporary status.
48. Although clause 7 indicates that conferment of temporary status does not automatically imply appointment as a regular Group 'D' employee within a fixed time frame and that appointments to Group 'D' vacancies would continue to be governed by the applicable Recruitment Rules. However, the said clause cannot be read in isolation so as to defeat the overall beneficial structure of the Scheme. The clause merely clarifies that automatic absorption is not contemplated immediately upon conferment of temporary status; it does not dilute the clear intent of the Scheme to progressively integrate such employees within the regular service framework.
49. Clause 8 further reinforces the aforesaid position. The said clause expressly provides that after rendering three years of continuous service under temporary status, casual labourers shall be treated at par with temporary Group 'D' employees for purposes of contribution to General Provident Fund and grant of advances admissible to such employees. The phrase "treated at par with temporary Group 'D' employees" assumes considerable significance. The Scheme



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contemplates extension of benefits admissible to temporary Group 'D' employees after completion of the prescribed period of service under temporary status.

50. Clauses 12 and 13 further indicate that the Scheme was intended as a pathway towards regularisation and not as a mechanism for perpetual retention in temporary status. Clause 12 permits regularisation even in units other than recruiting units subject to availability of vacancies, thereby enlarging avenues for absorption. Clause 13 grants age relaxation equivalent to the service rendered as casual labourers for purposes of regular appointment. These provisions unmistakably demonstrate that the Scheme consciously sought to facilitate eventual integration by absorption/regularisation of such employees into the regular establishment.
51. Clause 17 assumes equal significance in understanding the true intent underlying the Scheme. It mandates that no recruitment from open market for Group 'D' posts, except compassionate appointment, shall be undertaken so long as eligible casual labourers possessing requisite qualifications are available for appointment. Such a provision clearly manifests the intention of the Scheme to accord primacy to existing temporary status casual labourers for eventual absorption against Group 'D' posts and to ensure that such employees are not indefinitely deprived of regular service benefits despite long years of continuous service.
52. A cumulative reading of the Scheme clearly establishes that it was conceived as a beneficial and progressive framework intended to gradually extend to temporary status casual labourers the service conditions and benefits associated with Group 'D' employees and it cannot be construed in any other manner so as to restrict and defeat its object of assimilation of casual labourers to regular employees.
53. In furtherance of the Scheme, a circular dated 30.11.1992 came to be issued by the Respondents. The said circular provided that the casual labourers conferred with temporary status as per the Scheme be treated at par with temporary Group 'D' employees with effect from the date of completion of three years of service in the temporary status. It would be apposite to reproduce the said circular dated 30.11.1992, which reads as follows:

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“  
GOVERNMENT OF INDIA  
MINISTRY OF COMMUNICATIONS  
(DEPARTMENT OF POSTS)  
DAK BHAVAN, SANSAD MARG

No.66-9/91-SPB-I

New Delhi dated the 30, Nov., 1992

To,

All Chief Postmasters  
General/Postmaster General  
All Principals, Postal Training Centres,  
Controller Foreign Mails, Bombay  
Director Postal Staff College, Ghaziabad.  
Heads of all other Administrative Offices.

*Subject: Regularisation of Casual labourers.*

Sir,

*Vide this office circular letter No.45-95/87-SPB-I dated 12.4.1991, a scheme for giving temporary status to casual labourers fulfilling certain conditions was circulated.*

*2. In their judgement dated 29.11.1989, the Hon'ble Supreme Court have held that after rendering three years of continuous service with temporary status, the casual labourers shall be treated at par with temporary Group 'D' employees of the Department of Posts and would thereby be entitled to such benefits as are admissible to Group D employees on regular basis.*

*3. In compliance with the above-said directive of the Hon'ble Supreme Court it has been decided that the Casual labourers of this Department conferred with temporary status as per the scheme circulated in the above-said circular No.45-95/87-SPB-I dated 12.4.1991 be treated at par with temporary Group 'D' employees with effect from the date they complete three years of service in the newly acquired temporary status as per the above-said scheme. From that date they will be entitled to benefits admissible to temporary Group employees such as:*

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1. *All kinds of leave admissible to temporary employees.*
2. *Holidays as admissible to regular employees.*
3. *Counting of service for the purpose of pension and terminal benefits as in the case of temporary employees appointed on regular basis for those temporary employees who are given temporary status and who complete 3 years of service in that status while granting them pension and retirement benefits after their regularisation.*
4. *Central Government Employees Insurance Scheme.*
5. *G.P.F.*
6. *Medical Aid.*
7. *L.T.C.*
8. *All advances admissible to temporary Group D employees*
9. *Bonus.*
4. *Further action may be taken accordingly and proper service records of such employees may also be maintained.*
5. *Hindi version will follow.*

*Yours faithfully*

*Sd/-*

*(R.KRISHNAMOORTHY)*

*ASSISTANT DIRECTOR GENERAL (SPN)*

*Copy to:-*

*The Officer in Charge – APS Record Office, Kamptee, APO*

*SPB-/Admn/Vig.III/II/1/NCG/PAP/Pen./PE-I&II/EB/SR/STN/  
Civil Wing(P)/Postal Accounts Section of the Directorate.*

*All Recognised Unions/Associations.*

*Sd/-*

*(R.KRISHNAMOORTHY)*

*ASSISTANT DIRECTOR GENERAL (SPN)”*

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54. The enumeration of benefits listed in the circular dated 30.11.1992, includes leave, holidays, GPF, medical facilities, LTC, bonus, and other service benefits admissible to Temporary Group 'D' employees, clearly demonstrates that temporary status employees are to be functionally assimilated into the service framework of Temporary Group 'D' employees.
55. It may be noted here that the Respondents contend that temporary status casual labourers are extended only the benefits that are specified in the Scheme and Circular dated 30.11.1992 and are not entitled for pensionary benefits. The said submission, in our considered opinion, is misconceived. The expression "*benefits admissible to temporary Group 'D' employees such as*", made use of in the circular is of considerable importance. The utilisation of the words "such as" clearly indicates that the benefits enumerated therein are illustrative and neither restrictive nor exhaustive. This is also evident from the observations in ***Jagrit Mazdoor Union (supra)***, which form basis of the Scheme and Circular dated 30.11.1992, and provides to extend all benefits as admissible to temporary Group 'D' employees without any restrictions. Therefore, the circular, as earlier observed, being a beneficial legislation, cannot be read and understood in a restrictive manner rather the correct approach of interpretation would be to analyse it in the letter and spirit of the legislative and administrative intent i.e. to extend all benefits as are available to temporary Group 'D' employees, to temporary status casual labourers including pensionary benefits.
56. Before proceeding further, it becomes necessary to deal with another contention advanced on behalf of the Respondents that Clause 6 of the Scheme contemplates counting of 50% service rendered under temporary status towards retirement benefits only after formal regularisation as Group 'D' employee and, therefore, in the absence of regularisation, no pensionary benefits can be granted. The said submission cannot be accepted in the manner sought to be canvassed. Clause 6 cannot be read in isolation divorced from the principles and purpose underlying the Scheme and the circular dated 30.11.1992. The judgment of this Court in ***Jagrit Mazdoor Union (supra)***, which forms the basis of the Scheme itself, categorically directed that upon completion of three years of continuous service under temporary status, casual labourers 'would thereby be entitled to benefits as are admissible to Group 'D' employees on regular basis'.

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The circular dated 30.11.1992 further clarifies that such employees would be entitled to counting of service for pension and terminal benefits as admissible to temporary Group 'D' employees.

57. The expression "after regularisation" occurring in Clause 6 cannot be construed in a narrow or restrictive manner so as to defeat the beneficial object underlying the Scheme and must be construed in its proper context. Clause 6 does not create the pensionary entitlement itself, rather, it provides an additional benefit by directing that half of the service rendered under temporary status to be counted towards grant of retirement benefits upon regularisation. The pensionary entitlement of temporary status employees who have completed the prescribed period of service flows independently from the Scheme and the circular dated 30.11.1992. Clause 6 has to be interpreted harmoniously and would construe to mean that in cases where formal orders of regularisation are passed, 50% of the service rendered under temporary status would be liable to be counted towards retirement and pensionary benefits as additional benefit apart from the benefits as available under the rules which become applicable to a regular government employee. Consequently, while Clause 6 may operate to confer an additional advantage in cases where regularisation takes place, the absence of formal regularisation cannot be construed as extinguishing or defeating the underlying entitlement to pensionary benefits.
58. At this stage, it also becomes necessary to appreciate the distinction between different categories of employees engaged within the service framework in the Department of Posts. Broadly, four categories of employees emerge from the statutory and administrative work structure involved in the matter at hand, namely: (i) casual labourers; (ii) temporary status casual labourers; (iii) temporary Government employees; and (iv) regular Government employees.
59. A casual labourer is merely a daily-rated worker engaged on need basis and is entitled only to daily wages for the period during which work is performed. Such employee does not possess any structured service status nor entitled to any service benefits ordinarily available to Government employees.
60. The second category is that of a temporary status casual labourer. The conferment of temporary status not only initiates the process of integration of such employee within a structured service framework but

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extends certain service protections and benefits under the Scheme. Nevertheless, such employee remains a temporary status casual labourer and does not become a temporary Government servant.

61. The third category is that of temporary Government employees which are governed by the CCS (Temporary Service) Rules, 1965, while the fourth category comprises of regular Government employees governed by the regular service rules applicable to permanent Government servants.
62. It is to be noted that these aforesaid four categories are not to be conflated as stages required to be gone through to become a regular employee. It may be pointed here that a casual labourer can directly become a regular employee, if the Scheme provides for such transition. A temporary Government employee, however, definitely has two stages leading to permanent employment i.e. initial appointment as temporary Government employee and upon confirmation in service, his status is changed to regular government employee.
63. For casual labourers, the Scheme provides for a progression to regular employment. Initially the employee enters service as a casual labourer. Thereafter, upon satisfying the conditions prescribed under Clause 1 of the Scheme, he/she is conferred temporary status and continues under such status. Upon completion of the prescribed conditions and subject to the applicable Recruitment Rules, the employee becomes eligible for regularisation against Group 'D' posts and ultimately regularized and appointed as regular employee on availability of vacancies.
64. The Scheme, in question, which provides for grant of temporary status and regularisation for casual labourers recognises four categories of employees operating within the service structure, however, the progression contemplated therein essentially unfolds in three stages i.e. engagement as a casual labourer, conferment and continuance of temporary status, and eventual regularisation against Group 'D' posts.
65. It is apposite to highlight and emphasize that although under the Scheme the temporary status of casual labourers continues till his regularization in service, however, on completion of the period of three years, the service conditions are materially changed as he is treated at par with temporary Group 'D' employees and extended all benefits that are admissible to such employees.

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66. The submission advanced on behalf of the Respondents, that under the Scheme the employees continue merely as temporary status casual labourers and are distinct from the temporary Government servants, and so would be the pensionary framework applicable. At first blush, this contention appears to be correct to an extent. However, on due consideration and deliberation of the Scheme and its various clauses as a whole, the submission aforesaid is found to be misplaced.
67. Although, it may be correct to say that conferment of temporary status on a casual labourer under the Scheme does not *ipso facto* transform such employee into a temporary Government servant, however, what falls short from the aforesaid submission is that while the status of such employee continues unchanged i.e., of a 'temporary status casual labourers', the Scheme consciously and specifically extends to such employees benefits admissible to temporary Group 'D' employees upon completion of three years of continuous service under temporary status. The service conditions, at this juncture, of the casual temporary status employee under the Scheme gets substantially changed and carries all the benefits that are available to temporary government employees. Therefore, while the nomenclature and category of their service status remain unchanged, the nature and extent of benefits now available to them stand significantly enlarged and aligned with those admissible to temporary Government employees, blurring the distinction between both categories as far as benefits available to them are concerned. The distinction that remains is one relating to nomenclature, formal status and mode of regularisation but not to the nature of extended benefits.
68. In other words, the Scheme nowhere provides that upon completion of three years' service under temporary status, the employee becomes a temporary Government servant. What it specifically provides is that such employee shall be treated at par with temporary Group 'D' employees for purposes of extension of admissible benefits. The parity contemplated under the Scheme is thus parity in service benefits and not identity of service status.
69. Once the Scheme and the circular dated 30.11.1992 consciously extend benefits admissible to temporary Group 'D' employees, the Respondents cannot rely solely upon the nomenclature of 'temporary

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status casual labourer' to deny those very benefits. The entire framework of the Scheme proceeds upon extension of substantive service benefits despite continuance of the original nomenclature as temporary status casual labourer.

70. As already discussed hereinabove, the Scheme and the circular dated 30.11.1992 extend to temporary status employees all the benefits that are available to temporary Group 'D' employees. Now, it becomes necessary to examine the nature of pensionary benefits available to such temporary Government employees under the statutory framework.
71. The services of the temporary Government servants are governed by the CCS (Temporary Service) Rules, 1965. It is not disputed that a temporary Government servant is entitled to terminal benefits including pension and on his death family pension. Rule 10(1-B) of the said Rules specifically provides that where a temporary Government servant retires on attaining the age of superannuation after rendering temporary service of not less than ten years, such employee shall be entitled to superannuation pension and retirement gratuity and on death family pension in accordance with the provisions of the CCS (Pension) Rules, 1972. Rule 10(1-B) is reproduced herein:

***“10. Terminal gratuity payable to temporary Government servants.***

XXX

XXX

XXX

*(1-B) In the case of a temporary Government servant who retires from service on attaining the age of superannuation or on his being declared to be permanently incapacitated for further Government service by the appropriate medical authority, after he has rendered temporary service of not less than 10 years or who has sought voluntary retirement by giving three months' notice in writing on completion of 20 years' service, provisions of sub-rule (1) shall not apply and in accordance with the provisions of the Central Civil Services (Pension) Rules, 1972-*

*(i) such a Government servant shall be eligible for the grant of superannuation, invalid or retiring pension, as the case may be, and retirement gratuity; and*



**Bhikhani Devi and Etc. v. Union of India and Others**

*(ii) in the event of his death after retirement, the members of his family shall be eligible for the grant of family pension.*

xxx

xxx

xxx

72. As is apparent from the above, the statutory framework governing temporary Government employees itself accepts and acknowledges entitlement of pensionary benefits and that the same are not confined only to regular permanent employees but are also available to temporary Government servants upon completion of the prescribed qualifying service. The CCS (Temporary Service) Rules, 1965 thus constitute the statutory source recognising pensionary entitlement of temporary employees who have rendered specified and continuous service.
73. The contention of the Respondents that the Appellants were paid out of contingencies and therefore stood excluded from the purview of the CCS (Temporary Service) Rules, 1965 also cannot be accepted in the particular facts of the present case. Such exclusion may have relevance at the stage of initial engagement as casual labourers. However, the service conditions of the Appellants underwent a substantial transformation upon extension of benefits admissible to temporary Group 'D' employees. The continued reliance by the Respondents upon the original mode of engagement, while simultaneously extending pay parity, increments, GPF facilities, leave benefits and other service entitlements akin to temporary Group 'D' employees, would amount to selectively accepting one part of the Scheme while disregarding the other. Such an approach would defeat the very object underlying the Scheme and the circular dated 30.11.1992. Once parity in service benefits with temporary Group 'D' employees is consciously extended under the Scheme, pensionary benefits flowing under Rule 10(1-B) of the Rules of 1965 cannot be selectively denied by ignoring or overlooking the statutory right.
74. The argument founded upon financial burden is equally untenable. Pension is not a matter of grace dependent upon the financial convenience of the employer, but a deferred wage earned through long years of service. As already noticed hereinabove, this Court has recognised pension as a constitutional right in the nature of property protected under Article 300A of the Constitution of India as held in ***Jitendra Kumar Srivastava Case (supra)*** and it, therefore, cannot be denied on the plea of financial burden.

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75. From the above discussion what follows is that when the statutory framework including CCS (Temporary Service) Rules, 1965 is read in conjunction with the Scheme and the circular dated 30.11.1992, the inescapable conclusion which emerges is that a casual labourer, on being conferred the temporary status, upon completion of three years of continuous service as temporary status casual labourer becomes entitled to benefits admissible to temporary Group 'D' employees, which necessarily includes pensionary benefits available under Rule 10(1-B) of the CCS (Temporary Service) Rules, 1965 subject, of course, to fulfilling the eligibility criteria provided therein. This right is not dependent on regularisation. What is conceived is conferring of additional benefit of previous service under the Scheme as would be available to an employee on regularisation apart from the benefits conferred under the rules becoming applicable on this now acquired new status of a regular employee.
76. The question as framed in para 32 above stands answered as follows:
- ‘A temporary status casual labourer would be entitled to pensionary benefits on superannuation even in the absence of regularisation.’
77. What remains to be seen now is whether the Appellants, in the cases before us, fulfil the eligibility criteria under Rule 10 (1-B) of CCS (Temporary Service) Rules, 1965 so as to be entitled for pensionary benefits.
78. The service trajectory of Late Suraj Sah as per the material placed on record, thus falls into three distinct phases: (i) service as a casual labourer from 1972 till 29.11.1989; (ii) service as a temporary status casual labourer from 29.11.1989 till 30.11.1992; and (iii) continuance as a temporary status casual labourer with entitlement to benefits admissible to temporary Group 'D' employees from 30.11.1992 till his superannuation on 31.12.2008.
79. From the above what emerges is that Late Suraj Sah was initially engaged as a casual labourer in the year 1972 and continued as such till 29.11.1989. During this period, he remained a daily-rated worker and was not entitled to any service benefits. Upon introduction of the Scheme, he was conferred temporary status with effect from 29.11.1989. Thereafter, upon completion of three years of continuous service under temporary status on 30.11.1992, though his formal status continued to remain that of a temporary status casual labourer,

**Bhikhani Devi and Etc. v. Union of India and Others**

he became entitled to the benefits admissible to temporary Group 'D' employees. Thus, while his nomenclature remained unchanged, his service benefits thereafter stood aligned with those admissible to temporary Group 'D' employees as per the Scheme and the circular dated 30.11.1992. He ultimately superannuated on 31.12.2008 while continuing as a temporary status casual labourer. So from 30.11.1992 till the date of superannuation i.e. 31.12.2008, the period being more than the minimum of 10 years, he became entitled for benefits under Rule 10(1-B) of the CCS (Temporary Service) Rules, 1965 read with the CCS (Pension) Rules, 1972. Thereby making him entitled to grant of superannuation pension and other retirement benefits as admissible under the above rules.

80. The service records of Bahuru Sahu and Pitamber Jha would also reflect that they were, after initial appointment as casual labourers, conferred temporary status, w.e.f. 29.11.1989 till 30.11.1992 and continued as temporary status casual labourers till their date of superannuation 30.04.2008 and 31.10.2015 respectively. The period being in excess of minimum qualifying service of ten years for entitlement of pension, they would be entitled to grant of all retiral benefits as available under the Rules.
81. Insofar as the contention of the Respondents with regard to delay and laches is concerned, it is well settled that pensionary benefits constitute a continuing cause of action, and a claim for pension cannot be defeated solely on the ground of delay. At the same time, the claim for arrears is required to be balanced with settled principles governing limitation. In the present case, nothing has been brought on record to indicate that the Appellants had raised any claim for pensionary benefits prior to filing of the respective Original Applications before the Tribunal. In such circumstances, while the entitlement of the Appellants to pensionary and consequential retiral benefits stands established, the arrears thereof, wherever applicable, shall remain confined to the period of three years and two months preceding the date of filing of the respective Original Applications before the Tribunal, consistent with settled principles governing service jurisprudence.
82. Consequently, Appellant, Bhikhani Devi, being the widow and legal representative of Late Suraj Sah, shall be entitled to pensionary benefits accrued to Late Suraj Sah, if any, together with admissible family pension. Similarly, Appellant, Bahuru Sahu shall be entitled to pensionary and consequential retiral benefits in accordance with

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law. However, the arrears payable to them shall remain confined to the period of three years and two months preceding the date of filing of the Original Application before the Tribunal.

83. Likewise, Appellant, Pitamber Jha, who superannuated from service on 31.10.2015, shall also be entitled to pensionary and consequential retiral benefits in accordance with law from the date of his retirement.
84. In view of the foregoing discussion and findings recorded hereinabove, we are of the considered opinion that the Impugned Judgments passed by the High Court proceeded on an erroneous interpretation of the Scheme and the circular dated 30.11.1992. The same are unsustainable in law and are, therefore, set aside.
85. The Respondents are accordingly directed to compute and release the pensionary and consequential retiral benefits payable to the Appellants in accordance with law within a period of three months from the date of this judgment. In case of default, interest @ 6% per annum from the date of accrual till disbursement shall be payable to the appellants.
86. The Appeals are allowed in above terms.
87. There shall be no order as to cost.
88. Pending application(s), if any, also stands disposed of.

*Result of the case:* Appeals allowed.

*<sup>†</sup>Headnotes prepared by: Divya Pandey*

[2026] 7 S.C.R. 175 : 2026 INSC 647

**Maniyar Iliyaz @ Shaik Riyaz & Anr.**  
**v.**

**P. Ayyappan & Ors.**

(Civil Appeal No(s). 4665-4666 of 2025)

19 June 2026

**[Pamidighantam Sri Narasimha and  
Atul S. Chandurkar, JJ.]**

#### **Issue for Consideration**

Whether the right to walk is a Fundamental Right; whether the High Court erred in reducing the compensation awarded by the Motor Accident Claims Tribunal.

#### **Headnotes<sup>†</sup>**

**Constitution of India – Art.19(1)(d) r/w Arts.19(1)(a), (b), (c) and Art.21 – Right to walk on demarcated footpaths alongside motorised roads, a fundamental right:**

**Held:** The right to walk is a fundamental right under Part III of the Constitution – It is integral to the right to movement guaranteed u/Art.19(1)(d), r/w Art.19(1)(a), Art.19(1) (b), Art.19(1) (c) and Art.21 – The fundamental right to walk will take within its sweep the right to demarcated footpaths – These rights are primary and shall have priority over movement by motorised vehicles – The fundamental right to walk on demarcated footpaths has a correlative duty – If the road exists, there is a duty to ensure that there are demarcated and well-maintained footpaths for walkers – The duty bearers are the urban development authorities, municipal corporations, municipalities and even panchayats, who must endeavour to demarcate, construct, maintain, and safeguard footpaths and other necessary pedestrian infrastructure, as walking is integral to life – The violation of the right to walk on demarcated footpaths will entitle the citizens to invoke constitutional and legal remedies against duty bearers for restitution and compensation – This remedy is independent of the remedies that are available under the Motor Vehicles Act, 1988. [Paras 4,5, 20(a)-(c)]

**Constitution of India – Art.19(1)(d) r/w Arts.19(1)(a), (b), (c) and Art.21 – Right to walk on demarcated footpaths, a fundamental**

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**right – Need for legal framework not only for declaring the right, but also to recognise the duty bearers; establishment of a regulatory body:**

**Held:** The Motor Vehicles Act, 1988, is not and has never been the statute that recognises the fundamental right to walk – In fact, it has been an impediment and, in many ways, undermined the precious rights of walkers – Though the right to walk on demarcated footpaths is integral to Arts.21 and 19(1) (d), there is no legislation – It is compelling to lay down a statutory framework not only for declaring the right, but also to recognise the duty bearers – The Act must protect, enhance, and provide quick remedies for violations, and also establish a full-time regulator to plan, enforce, and implement this precious right – Registry to send a copy of the judgment to the Ministries of Housing and Urban Affairs, Rural Development, Road Transport and Highways, to reflect on the compelling necessity for initiating the necessary legal framework – A copy may also be sent to the Law Commission for examining the statutory framework for protecting the right, identifying the duty bearers and provisioning remedies – Constitutional Courts also have a duty to declare with clarity the existence of this fundamental right and ensure that the existing civil and the constitutional remedies are accessible and effective – To enhance and effectuate the fundamental right to walk on demarcated footpaths, it is necessary to establish a regulatory body – Role of, discussed – Registry to re-number this case as a petition u/Art.32 of the Constitution by changing the cause title to Re: Fundamental Right to Walk and Footpath – The Government of India, through the Ministries of Housing and Urban Affairs, Rural Development and Road Transport and Highways, impleaded as a party in person. [Paras 6, 13, 16, 21]

**Motor Accidents Claim – Reduction of compensation, when not justified – Appellant's five-year old son died as a result of the injuries after he was hit by a tanker while they were walking towards his school – Claim petition filed by appellant for compensation of Rs. 25,00,000/- – MACT granted Rs.7,82,000/- with interest @ 6% p.a. from the date of the petition till realisation – Appeal filed by the appellant as well as the Insurance Company, High Court dismissed the appellant's appeal and, while allowing the respondent's appeal, reduced the compensation to Rs. 4,70,000/- – Interference with:**

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**Held:** High Court erred in reducing the compensation granted by MACT – In *Karuna Parmar v. Prakash Sinha*, involving a similar factual situation in which the deceased minor was 6 years old, this Court fixed the child's daily income at Rs.223/- and, by referring to the notification issued under the Minimum Wages Act, 1948, it prescribed the wages payable to a skilled worker for the year 2014 – Consequently, the monthly income was calculated at Rs. 6,690/-, and the deceased's annual income was taken as Rs. 80,280/- (6,690 × 12) – After adding 40% towards future prospects, the annual income was assessed as Rs.1,12,392/- (80,280 + 32,112) – Upon deduction of 50% towards personal and living expenses, the annual loss of dependency was determined as Rs.56,196/- – Applying the multiplier of 18, the total loss of dependency was computed as Rs.10,11,528/- – Applying the same to the instant case, the compensation is recalculated as Rs.10,11,528/- towards loss of dependency, Rs.96,800/- towards loss of consortium, Rs.18,150/- towards loss of estate and Rs. 18,150 towards funeral expenses –Appellant entitled to compensation of Rs.11,44,628/- – Minimum Wages Act, 1948. [Paras 18,19]

**Case Law Cited**

*Karuna Parmar v. Prakash Sinha*, 2025 INSC 1244 – relied on.

*S. Rajaseekaran v. Union of India* in W.P. (C) No. 295/2012; *Lucknow Public School, Eldico v. State of Uttar Pradesh*, 2026 INSC 422 – referred to.

**List of Acts**

Constitution of India; Motor Vehicles Act, 1988; Minimum Wages Act, 1948; Motor Vehicles Act 1939; Right of Children to free and Compulsory Education Act, 2009; The National Food Security Act, 2013; Right to Information Act, 2005; Motor Vehicles (Driving) Regulations, 2017; Specific Relief Act, 1963.

**List of Keywords**

Right to walk is a Fundamental Right; Right to walk; Right to move; Right of movement; Article 19(1)(d); Article 21 of the Constitution; Fundamental Right to Walk; Right to demarcated footpaths; Fundamental right to walk on demarcated footpath; Violation of

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right to walk on demarcated footpaths; Demarcated footpaths; Movement by motorised vehicles; Compensation recalculated; Footpath; Pedestrian crossing; Urban development authorities, municipal corporations, municipalities and even panchayats; Hit by a tanker; Five-year old boy died; Reduction of compensation not justified.

### Case Arising From

CIVIL APPELLATE JURISDICTION: Civil Appeal No(s). 4665-4666 of 2025

From the Judgment and Order dated 26.03.2024 of the High Court of Karnataka Circuit Bench at Dharwad in MFA Nos. 103294 and 103254 of 2016

### Appearances for Parties

*Advs. for the Appellant(s):*

Ms. Supreeta Sharanagouda, Sharanagouda Patil, Mrs. Supreeta Sharanagouda, Mamidipudi Venkatarama Mukunda.

*Advs. for the Respondent(s):*

Zorawar Singh, Jayant Rastogi, Shubham, Abhishth Kumar.

### Judgment / Order of the Supreme Court

#### Judgment

1. Like any young father, the appellant lovingly readied his five-year-old son and left home at 9 am to drop him at the neighbourhood school. Who could have ever imagined that it would be the last walk with his son? As father and son were walking towards the school, a tanker came from behind and struck the boy, crushing his waist and lower body. He succumbed to the injuries.
2. Take it for granted, there was neither a footpath nor a pedestrian crossing.
3. Accidents like this continue to occur, perhaps they are inevitable till we restructure our rights regime as regards access to roads and recognise their correlative duties. Till then, we will continue to cope with these tragedies by routinely transforming them into FIRs and Motor Accidents Claims. We are not referring to road safety, for this Court is deeply concerned about it and is, in fact, monitoring the



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implementation of safety guidelines<sup>1</sup>. The issue is something more fundamental, and it is in recognition of the simplest of the simple human activity- “Walking”. While the right to walk is inextricably connected to life, our Constitution recognises and guarantees it as a fundamental right – “*All citizens shall have the right...to move freely throughout the territory of India*”.<sup>2</sup>

4. It is necessary, rather compelling, that we first disabuse our minds of associating this “right to move” only with movement on wheels. We have started walking long before wheels were put on our path. The primary right of movement under Article 19(1)(d) is the Fundamental Right to Walk, a right that precedes the right to move on wheels and this precious right must extend to guaranteeing access to safe and well demarcated footpath. The citizen’s fundamental right to walk on a demarcated footpath is primary and shall have priority over movement by motorised vehicles.
5. It is rather strange that we failed to focus on recognizing and securing this “right to walk”. It may be because wheels eclipsed our imagination, and our municipal administration was busy creating roads that are suitable for motorised vehicles. It could also be elitism to start with, for machines with wheels were only for the rich, but as economies progressed and cheaper motor vehicles were introduced, the entire spectrum of motorised transportation dominated the roads, pushed aside the walkers to the extent that they are treated as a nuisance for the drivers who routinely run over the walkers and their footpaths. This should stop from now on as we declare the fundamental right to walk on demarcated footpaths alongside motorised roads.
6. The Motor Vehicles Act, 1988, is not and has never been the statute that recognises the fundamental right to walk. In fact, the Motor Vehicles Act has been an impediment and, in many ways, undermined the precious rights of walkers. The absence of safe and comfortable footpaths to walk on, and even when they exist, their subjugation to motor transport, has been a civilizational problem.
7. It is not at all difficult to imagine how a wide, well-demarcated and uninterrupted footpath can change the beauty of and equitable

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1 *S. Rajaseekaran v. Union of India* in W.P. (C) No. 295/2012; this Court also passed certain guidelines in *In Re: Phalodi Accident*, 2026 INSC 388 as well.

2 Article 19(1)(d).

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access to our cities and towns - this could truly be transformative of our urban and rural living. In reality, how much does it take to create a well-demarcated footpath wherever a road exists? All that the fundamental right to walk demands is a comfortable space for an easy and carefree walk. Should this not be the minimum of the minimum duty that a municipal authority owes to the citizens?

8. Walking has always triggered the Indian imagination- it has deep cultural,<sup>3</sup> social,<sup>4</sup> religious,<sup>5</sup> political,<sup>6</sup> and reformative<sup>7</sup> roots. Walking is a struggle for the not so fortunate, meditation in motion for many, resistance for others, discovery for the inquisitive, a cohesive strategy for sharp socio-political minds. It certainly did inspire and ignite some of the ideals of the freedom struggle – which we have a duty to cherish Article 51-A of the Constitution. In that sense, walking is not just motion, it certainly embodies expressional, congregational and associational rights under Article 19(1)(a), Article 19(1)(b) and Article 19 (1)(c). Unfortunately, we have failed to recognize these aspects to such an extent that the phrase “pedestrian” has acquired pejorative shades. We labour to emphasize the freedom to walk subject to reasonable restrictions, only to ensure that access to common spaces- in both urban areas and rural areas is distributed in such a way that it is not a monopoly of the motorized class alone.
9. Though late in the day, we must affirm and secure to our citizens this fundamental *right to walk* on demarcated footpaths. Clear articulation and declaration of such a right is necessary to recognise the correlative duty to provision and maintain footpaths. The duty bearers are the Urban Development Authorities, Municipal Corporations, Municipalities, and even Panchayats.
10. If a road exists, there must then be a duty to ensure that a footpath is demarcated and maintained for the walkers. This is an enforceable

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3 For instance, the Nagar Sankirtan, a traditional neighbourhood procession where communities walk through streets singing devotional folk songs to reclaim public spaces as sites of shared cultural and musical heritage.

4 For instance, the Pandharpur Wari, an 800-year-old pilgrimage that temporarily dissolves caste hierarchies as thousands walk together in egalitarian devotion.

5 For instance, the Kanwar Yatra, an annual monsoon trek where devotees of Lord Shiva carry sacred Ganges water over hundreds of miles as an act of physical penance.

6 For instance, the Dandi March, when Mahatma Gandhi's 241-mile padayatra transformed a simple act of walking into a powerful tool of anti-colonial resistance.

7 For instance, the Bhodan Movement, led by Vinoba Bhave, who walked over 70,000 km to persuade landowners to voluntarily redistribute land to the landless.

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duty. The fundamental right to walk on demarcated footpaths shall override the privilege of a motorised vehicle.

11. Part III of our Constitution guaranteeing fundamental rights has a unique relationship with Parliament and State Legislatures. While it injuncts and limits the legislature from making “*laws that are inconsistent with or in derogation of fundamental rights*”<sup>8</sup>, it also envisages a positive role for the legislature to effectuate the exercise and enjoyment of the fundamental rights. Following this, Parliament and State Legislatures have enacted laws effectuating each of the fundamental rights. Modern legislatures have devised and adopted a statutory regime that not only reiterates the concerned fundamental right but also recognises the duty bearers and provisions legal remedies. Apart from the declaration, recognition, and provision of the right, duty, and remedy, modern statutes have been entrenching a new character of institutional governance by establishing regulatory bodies. These bodies institutionalise memory through perpetual seal and succession, institutionalise expertise by incorporating specialisation, institutionalise diversity through composition and also institutionalise integrity through accountability. For example, the 2009 enactment, the Right to Education Act, declares the fundamental right to free and compulsory elementary education under Article 21 A in Sections 3-5.<sup>9</sup> The Act recognises the duty bearers as the appropriate government, the local authority, the neighbourhood schools, parents, and the primary school teachers.<sup>10</sup> The remedies are provided under Section 32, and the National Commission for Protection of Child Rights<sup>11</sup> is recognised as the regulator.
12. Similarly, the National Food Security Act, 2013, recognises the basic human sustenance under Article 21 in Sections 3-7.<sup>12</sup> The Act obligates the Central, State Governments, and the local authorities to procure, allocate, and deliver subsidised foodgrains.<sup>13</sup> Remedies are provided under Chapter VII, and the Food Commissions alongside District Grievance Redressal Officers (DGROs), are recognised as

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8 Article 13.

9 Chapter II, The Right of Children to free and Compulsory Education Act, 2009.

10 Lucknow Public School, Eldico v. State of Uttar Pradesh, 2026 INSC 422.

11 Section 31, RTE Act, 2009.

12 Chapter II (Sections 3–7), The National Food Security Act, 2013.

13 Sections 24, 25 and 26, The National Food Security Act, 2013.

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the regulators.<sup>14</sup> On similar lines, the Right to Information Act, 2009, declares the right to information under Sections 3 and 4, recognises the duty bearers as the Public Authorities, the Heads of Departments, and the designated Public Information Officers (PIOs).<sup>15</sup> The remedies against non-disclosure or delay are provided under Section 19, and the Central and State Information Commissions are recognised as the regulators.<sup>16</sup>

13. Insofar as the *right to walk on demarcated footpaths* is concerned, though it is integral to Articles 21 and 19(1) (d), there is no legislation. It is compelling to lay down a statutory framework not only for declaring the right, but also to recognise the duty bearers. The Act must protect, enhance, and provide quick remedies for violations, and also establish a full-time regulator to plan, enforce, and implement this precious right. We direct the Registry to send a copy of our judgment to the Ministries of Housing and Urban Affairs, Rural Development, Road Transport and Highways, to reflect on the compelling necessity for initiating the necessary legal framework. A copy may also be sent to the Law Commission for examining the statutory framework for protecting the right, identifying the duty bearers and provisioning remedies. Constitutional Courts also have a duty to declare with clarity the existence of this fundamental right and ensure that the existing civil and the constitutional remedies are accessible and effective.
14. We have clarified at the very outset that the Motor Vehicles Act, 1988, is not a legislation for protecting the right to walk on the footpath. Its predecessor, the Motor Vehicles Act 1939, was enacted with the primary concern of the State to standardise commercial transport and to create a revenue-generating system through registration, licensing, and permits. Its successor the present 1988 Act, continues the same tradition of laying down the entire infrastructure for licensing of drivers of motor vehicles<sup>17</sup>, licensing of conductors of stage carriages<sup>18</sup>, registration of motor vehicles<sup>19</sup>,

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14 Section 14 and Section 15, The National Food Security Act, 2013.

15 Section 5, The Right to Information Act, 2005.

16 Section 12 and Section 15, The Right to Information Act, 2005.

17 Chapter II, Sections 3 to 28.

18 Chapter III, Sections 29 to 38.

19 Chapter IV, Sections 39 to 65.

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control of transport vehicles<sup>20</sup>, special provisions relating to state transport undertakings<sup>21</sup>, construction, equipment and maintenance of motor vehicles<sup>22</sup>, control of traffic<sup>23</sup>, insurance of motor vehicles<sup>24</sup>, claims tribunals<sup>25</sup> and such other provisions. The Motor Vehicles Act is built upon “vehicle” as the subject of the legislation, while “human” interests are incidental, which a motor vehicle must avoid violating – that’s all, and no further. In its discourse, the right of a pedestrian is incidental; the mainstay of this legislation is the Motor Vehicle. In the year 2017, the Ministry of Road, Transport and Highways notified i.e., on 23.06.2017, the Motor Vehicles (Driving) Regulations, 2017, which defines Road User to include a person driving or travelling on the road in a vehicle or otherwise and a pedestrian (Regulation 2(o)). Regulation 3 contemplates a duty of a vehicle towards road users and general public. Regulation 5 imposes a duty on drivers to take special care and precautions to ensure safety of vulnerable road users such as pedestrians, cyclists, children etc. Regulation 9 speaks about precautions to be taken at intersections where there is *inter alia* a pedestrian crossing. These regulations are nothing more than guiding principles for a motor vehicle driver, they neither recognise the fundamental right to walk on demarcated footpaths nor prioritise the right to footpath over a motorised road. Unfortunately, as of today, even under the Motor Vehicles Act, 1988, the Parliament has not put in place a full time regulatory body for motor transport. The Transport Authorities contemplated under Chapter V are not regulatory bodies. This Court has long been struggling to squeeze in pedestrian rights in the nooks and crannies of the Motor Vehicles Act and the attempt is still continuing with monitoring the implementation of its directions issued since 2012.<sup>26</sup>

15. It is important to recognise that if the fundamental right to walk on a demarcated footpath is violated, a citizen is entitled to enforce restitutionary remedy. This remedy is distinct from that of the claim that

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20 Chapter V, Sections 66 to 96.

21 Chapter VI, Sections 97 to 108

22 Chapter VII, Sections 109-111.

23 Chapter VIII, Sections 112 to 138.

24 Chapter XI, Sections 145 to 164.

25 Chapter XII, Sections 165 to 176.

26 Directions issued in *S. Rajaseekaran v. Union of India* in W.P. (C) No. 295/2012.

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a person may make under the Motor Vehicles Act. The restitutionary remedy under the Constitution or under Sections 38-40 of the Specific Relief Act, 1963 for the enforcement of public duties can be enforced against the Urban Development Authorities, Municipal Corporations, Municipalities, or the Panchayats.

16. To enhance and effectuate the fundamental right to walk on demarcated footpaths, it is necessary to establish a regulatory body. Working with perpetual seal and succession, such a regulator will develop and retain *institutional memory* so that it can act on the basis of the experience, data, and information it has gathered and processed. *Institutional expertise* is critical, and such a regulator will employ human resources with domain expertise and talent. The regulator will maintain *institutional integrity* by taking independent and objective decisions without governmental or industrial control. These values shall flow naturally if there is *institutional transparency and accountability*. It is in this perspective that we need to effectuate the *fundamental right to walk*.
17. Returning to the facts of the present case, the claim petition filed by the father for compensation of Rs. 25,00,000/- was considered and MACT, by its award dated 30.05.2016, granted Rs. 7,82,000/- with interest at the rate of 6% p.a. from the date of the petition till realisation. In an appeal filed by the appellant as well as the Insurance Company, by the order impugned before us, the High Court dismissed the appellant's appeal and, while allowing the respondent's appeal, reduced the compensation to Rs. 4,70,000/-.
18. We are of the opinion that the High Court committed an error in reducing the compensation granted by the MACT. In a recent decision in *Karuna Parmar v. Prakash Sinha*<sup>27</sup>, involving a similar factual situation in which the deceased minor was 6 years old, this Court fixed the child's daily income at Rs. 223/- and, by referring to the notification issued under the Minimum Wages Act, 1948, it prescribed the wages payable to a skilled worker for the year 2014. Consequently, the monthly income was calculated at Rs. 6,690/-, and the deceased's annual income was taken as Rs. 80,280/- (6,690 × 12). After adding 40% towards future prospects, the annual income was assessed as Rs. 1,12,392/- (80,280 + 32,112). Upon deduction of 50% towards

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personal and living expenses, the annual loss of dependency was determined as Rs. 56,196/-. Applying the multiplier of 18, the total loss of dependency was computed as Rs. 10,11,528/-. Applying the same to the instant case, the compensation is required to be recalculated as an amount of Rs. 10,11,528/- towards loss of dependency, an amount of Rs. 96,800/- towards loss of consortium, an amount of Rs. 18,150/- towards loss of estate and Rs. 18,150 towards funeral expenses.

19. In this view of the matter, the appellant(s) will be entitled to compensation of Rs. 11,44,628/- and the amount shall be paid within a period of two months from today.
20. Returning to the discussion and the articulation of the right, the correlative duty and followed by the constitutional statutory remedies, in conclusion, we declare as under:
  - a. The right to walk is a fundamental right under Part III of the Constitution. It is integral to the right to movement guaranteed under Article 19(1)(d), read with Article 19(1)(a), Article 19(1)(b), Article 19(1)(c) and Article 21 of the Constitution of India. The fundamental right to walk will take within its sweep the right to demarcated footpaths. These rights are primary and shall have priority over movement by motorised vehicles.
  - b. The fundamental right to walk on demarcated footpaths has a correlative duty. If the road exists, there is a duty to ensure that there are demarcated and well-maintained footpaths for walkers. The duty bearers are the urban development authorities, municipal corporations, municipalities and even panchayats, who must endeavour to demarcate, construct, maintain, and safeguard footpaths and other necessary pedestrian infrastructure, as walking is integral to life.
  - c. The violation of the right to walk on demarcated footpaths will entitle the citizens to invoke constitutional and legal remedies against duty bearers for restitution and compensation. This remedy is independent of the remedies that are available under the Motor Vehicles Act, 1988.
21. We place on record the valuable assistance rendered by Mr. Mamidipudi V Mukunda, learned counsel appointed as *amicus curiae*. We direct the Registry to re-number this case as a petition

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under Article 32 of the Constitution by changing the cause title to *Re: Fundamental Right to Walk and Footpath*. The Government of India, through the Ministries of Housing and Urban Affairs, Rural Development and Road Transport and Highways, is impleaded as a party in person. We request Mr. K.M. Nataraj, ASG, to assist the court.

22. The appeal(s) and pending application(s), if any, are disposed of accordingly. No order as to costs.

*Result of the case:* Appeals disposed of.

*<sup>†</sup>Headnotes prepared by: Divya Pandey*



[2026] 7 S.C.R. 187 : 2026 INSC 648

**Rajat Kumar and Others**

**v.**

**S D Adarsh Jain Kanya Maha  
Vidyalaya Sadhaura and Others**

(Civil Appeal No(s). 19552-19553 of 2017)

19 June 2026

**[S.V.N. Bhatti and Atul S. Chandurkar,\* JJ.]**

#### **Issue for Consideration**

Whether the High Court erred in reversing the decree for mandatory injunction for removal of encroachment in favour of the plaintiff passed by the Trial Court and upheld by the first Appellate Court and, undertaking an exercise to compensate the legal heirs of the plaintiff in monetary terms without any prayer being made in that regard.

#### **Headnotes<sup>†</sup>**

**Relief – Not prayed for – Grant of – Impermissibility – Original plaintiff filed suits against the respondents-original defendants seeking mandatory injunction for removal of alleged illegal encroaching wall; removal of lintel of the school building erected by defendants on the wall of the plaintiff's house – Suits decreed by Trial Court, defendants were directed to remove the constructions and also restrained from raising any further construction – Decrees affirmed by First Appellate Court – High Court, in second appeals modified the decrees, directed the defendants to pay compensation and to treat the wall as 'common' between the parties – In previous round of litigation, High Court's judgment was set aside by Supreme Court on the ground that the modification of the decrees by the High Court without entering into the merits of the controversy was impermissible and no substantial questions of law were framed while deciding the Second Appeals; matter remanded for fresh consideration – On remand, the High Court yet again set aside the decrees and directed the Executing Court to assess the value of the construction for payment of compensation to the legal heirs of the plaintiff; the defendants**

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<sup>\*</sup> Author

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**were directed to deposit such amount in the Executing Court to be paid to the legal heirs of the plaintiff – Challenge to:**

**Held:** High Court erred in reversing the decrees passed by the Trial Court and affirmed by the first Appellate Court on irrelevant considerations – The initial suit filed by the original plaintiff was essentially for a decree for mandatory injunction seeking removal of the alleged encroachment undertaken at the behest of the defendants on the common open space beyond the construction of the plaintiff – According to the original plaintiff, such construction interfered with the right of the plaintiff to enjoy air and light through the ventilators as well as obstructed the passing of water through the common path – Defendants could not prove any right, title or interest on the land on which they had erected the wall – The decree was, thus, passed to remove the wall illegally erected by them – In the other suit, the Trial Court found that the defendants had put up a lintel of the school building on the wall of the plaintiff's house illegally – A decree directing removal of the same and restraining the defendants from doing so in the future was passed – Both these decrees were upheld by the first Appellate Court – There was no prayer whatsoever made by the original plaintiff seeking any damages or compensation from the defendants for the encroachment committed by them – In absence of any such relief sought by the original plaintiff, the decree passed in his favour could not have been set aside by the High Court by compelling his legal heirs to accept compensation that was directed to be assessed by a valuer – The legal heirs of the plaintiff did not consent for such course to be followed – High Court could not have undertaken such exercise of seeking to compensate one party at the cost of the other without any prayer being made in that regard – Once the decrees passed by the Trial Court in favour of the plaintiff were set aside, there would be no occasion for the Executing Court to proceed with the execution proceedings since there would be no decree holding the field for being executed – Thus, directing the Executing Court to assess the value of the wall in question would be requiring it to undertake an exercise not supported by any decree whatsoever – The course adopted by the High Court does not find support u/Or.XXI, CPC – There being no prayer made by the original plaintiff in the suit for grant of any compensation nor any consent having been offered by

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the legal heirs of the plaintiff in that regard, the High Court could not have imposed such a direction on them, especially when there was a decree operating in their favour – Judgment of High Court unsustainable, set aside – High Court to re-consider both the appeals in accordance with s.100, CPC. [Paras 5(a)-(c), 6]

**List of Acts**

Code of Civil Procedure, 1908.

**List of Keywords**

Mandatory injunction; No prayer made by plaintiff for grant of compensation; Prayer for monetary relief not made; No prayer was made for damages or compensation for encroachment; Legal heirs compelled to accept compensation; Decree for mandatory injunction; Removal of alleged encroachment; No substantial questions of law; Miscarriage of justice; Illegal encroachment.

**Case Arising From**

CIVIL APPELLATE JURISDICTION: Civil Appeal No(s). 19552-19553 of 2017

From the Judgment and Order dated 02.05.2016 of the High Court of Punjab and Haryana at Chandigarh in RSA Nos. 363 and 364 of 2008

**Appearances for Parties**

*Advs. for the Appellant(s):*

Ms. Sangeeta Kumar, Ms. Vidushi Garg.

**Judgment / Order of the Supreme Court**

**Judgment**

**Atul S. Chandurkar, J.**

1. The appellants are the legal heirs of the original plaintiff-Om Parkash. The original plaintiff filed Civil Suit No.426 of 1996 against the respondents-original defendants seeking mandatory injunction for removal of alleged illegal encroachment in the form of a wall constructed by them on the common open space beyond the plaintiff's

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house. He further sought permanent injunction seeking to restrain the defendants from raising any further construction thereon. The Trial Court on 06.02.2006 decreed the suit and directed the defendants to remove the encroachment committed by raising the said walls. It also restrained them from raising any further construction over the said walls.

Regular Civil Appeal No.137 of 2006 preferred by the defendants was dismissed on 05.09.2007 and the decree passed by the Trial Court was upheld.

The defendants being aggrieved preferred Regular Second Appeal No.364 of 2008 before the Punjab and Haryana High Court<sup>1</sup>. By the judgment dated 25.11.2011, the High Court disposed the Second Appeal with a direction to the defendants to pay an amount of ₹10,000/- with interest @ 12% per annum being half the amount of expenditure incurred on construction of the walls in question. It further held that on making such payment, the wall would be treated as 'common' between the parties. The legal heirs of the plaintiff challenged the reversal of the decree before this Court, reference to which would be made a bit later.

2. The original plaintiff also filed another Civil Suit being CS No.148 of 2000 against the same defendants, this time with a prayer for mandatory injunction for removal of lintel of the school building that had been erected by the defendants on the wall of the plaintiff's house. The Trial Court by its judgment dated 08.11.2004 decreed the said suit and directed the defendants to remove the lintel of the school building from the said wall. The defendants were also restrained from putting any lintel on any wall of the plaintiff's house.

Being aggrieved, the plaintiff preferred Regular Civil Appeal No.143 of 2004 which came to be dismissed by the first Appellate Court on 05.09.2007. Being aggrieved, the defendants preferred Regular Second Appeal No.363 of 2008 before the High Court. The Second Appeal was decided on 25.11.2011 and a similar decree directing the defendants to pay an amount of ₹7,000/- being half of the amount spent on construction of the wall with interest @ 12% per annum

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<sup>1</sup> For short, 'the High Court'

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was passed. It was further directed that on making such payment, the wall would be treated as 'common' between the parties.

3. The legal heirs of the original plaintiff being aggrieved by the reversal of the aforesaid decrees by the High Court filed appeals before this Court. By order dated 13.09.2013 passed in Civil Appeal Nos.8203 of 2013 and 8281 of 2013, it was held that the modification of the decrees by the High Court without entering into the merits of the controversy was impermissible. No substantial questions of law had been framed while deciding the Second Appeals. On these counts, the judgments delivered in the Second Appeals by the High Court were set aside and the proceedings were remanded for fresh consideration in accordance with law.
4. On remand, the High Court was of the view that the construction of the wall had been raised long back. There was no valuation report on record and the claim alleged to be put forth by the plaintiff had not been proved. By observing that the other party could be compensated in terms of money that could be assessed by a valuer and with a view to do justice between the parties, it directed the Executing Court to assess the value of the construction. The defendants were accordingly directed to deposit such amount in the Executing Court to be paid to the legal heirs of the plaintiff. With these directions, the decree passed by the Trial Court as affirmed by the first Appellate Court came to be set aside.

The legal heirs of the original plaintiff are aggrieved by the reversal of the said decrees and have, thus, preferred the present appeals.

5. Despite service, there has been no appearance on behalf of the respondents since 23.04.2019. After hearing Ms. Sangeeta Kumar, learned counsel for the appellants and on perusal of the record, we are of the view that the High Court committed an error in reversing the decrees passed by the Trial Court and affirmed by the first Appellate Court on irrelevant considerations. We say so for the following reasons:
  - a) The initial suit filed by the original plaintiff was essentially for a decree for mandatory injunction seeking removal of the alleged encroachment undertaken at the behest of the defendants on the common open space beyond the construction of the plaintiff. According to the original plaintiff, such construction interfered

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with the right of the plaintiff to enjoy air and light through the ventilators as well as obstructed the passing of water through the common path. It found that the defendants could not prove any right, title or interest on the land on which they had erected the wall. The decree was, thus, passed to remove the wall illegally erected by them. In the other suit, the Trial Court found that the defendants had put up a lintel of the school building on the wall of the plaintiff's house illegally. A decree directing removal of the same and restraining the defendants from doing so in the future was passed. Both these decrees were upheld by the first Appellate Court. There was no prayer whatsoever made by the original plaintiff seeking any damages or compensation from the defendants for the encroachment committed by them. In absence of any such relief sought by the original plaintiff, the decree passed in his favour could not have been set aside by the High Court by compelling his legal heirs to accept compensation that was directed to be assessed by a valuer. The legal heirs of the plaintiff did not consent for such course to be followed. The High Court, therefore, could not have undertaken such exercise of seeking to compensate one party at the cost of the other without any prayer being made in that regard.

- b) The High Court by the impugned judgment reversed the decree for mandatory injunction for removal of encroachment passed by the Trial Court which was upheld by the first Appellate Court. It, however, directed the Executing Court to assess the value of the offending wall put up by the defendants so as to compensate the plaintiff in terms of money. Once the decrees passed by the Trial Court in favour of the plaintiff were set aside, there would be no occasion for the Executing Court to proceed with the execution proceedings since there would be no decree holding the field for being executed. In such a situation, directing the Executing Court to assess the value of the wall in question would be requiring it to undertake an exercise not supported by any decree whatsoever. Indeed, the course adopted by the High Court does not find support under Order XXI of the Code of Civil Procedure, 1908<sup>2</sup>.

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2 For short, 'the Code'

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S D Adarsh Jain Kanya Maha Vidyalaya Sadhaura and Others**

- c) The High Court ought to have been mindful of the fact that a similar exercise undertaken by it earlier while deciding the respective Second Appeals and directing the payment of compensation to the original plaintiff was set aside by this Court. The High Court, on remand however again committed the same error, this time by directing the Executing Court to undertake valuation of the wall in question so as to compensate the legal heirs of the plaintiff in monetary terms. There being no prayer made by the original plaintiff in the suit for grant of any compensation nor any consent having been offered by the legal heirs of the plaintiff in that regard, the High Court could not have imposed such a direction on them, especially when there was a decree operating in their favour.
  - d) The impugned order of the High Court proceeds on a factually wrong premise that the Trial Court in Civil Suit No.426 of 1996 had recorded a finding that the wall in question was a common wall. No such finding was recorded by the Trial Court. In fact, a decree for removal of the offending wall came to be passed by the Trial Court. Further, though the High Court has referred to three questions in the impugned judgment and has stated that the defendants urged the Court to frame the said questions as ‘substantial questions of law’, the impugned order does not indicate that the said questions were treated as substantial questions of law. However, the order concludes by observing that the substantial questions were answered in favour of the defendants and the decree passed in favour of the original plaintiff was set aside. It is, thus, clear that without an available question of law for consideration and also by making out a new prayer, the decrees passed in favour of the original plaintiff have been set aside. The legal heirs of the plaintiff have been required to accept monetary relief for which a prayer was never made. Such course has resulted in miscarriage of justice.
6. For all the aforesaid reasons, we find the judgment of the High Court to be unsustainable. Accordingly, the common judgment dated 02.05.2016 passed in RSA No.363 of 2008 and 364 of 2008 by the High Court is set aside. Since the appeals have not been adjudicated on merits, there is no option but to request the High Court to reconsider both the appeals in accordance with Section 100 of the

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Code and decide the same on their own merits. Considering the fact that the Second Appeals are of the year 2008, we request the High Court to consider the same expeditiously.

7. The Civil Appeals are allowed in aforesaid terms with no order as to costs.

*Result of the case:* Appeals allowed.

*†Headnotes prepared by:* Divya Pandey



**The Oriental Insurance Company Limited**

**v.**

**Kalu Ram and Others**

(Civil Appeal No. 8706 of 2026)

23 June 2026

**[Prashant Kumar Mishra\* and N.V. Anjaria, JJ.]**

**Issue for Consideration**

Issue arose as regards the correctness of the concurrent finding of negligence and the quantum of compensation awarded by the courts below; and the enhancement of compensation on the ground that the future earning potential of the deceased was not adequately assessed and that compensation under the conventional heads was not fully granted.

**Headnotes<sup>†</sup>**

**Motor Vehicles Act, 1988 – ss.166 and 140 – Enhancement of the compensation – Victim, aged 20 years pursuing Chartered Accountancy (Final), and undergoing articleship, was travelling in the car driven by his roommate, which collided with a truck stationed in the middle of the road without parking lights, indicators, reflectors or any cautionary sign, making it completely invisible due to the darkness, at night – Victim, met with an accident resulting in fatal injuries and succumbed thereto, while his roommate also suffered injuries – FIR registered and charge-sheet filed against the truck driver – Parents of the victim sought compensation – Truck driver, owner and insurer of the offending truck’s case that the truck had suffered puncture in its rear tyres and had been parked on the extreme left side of the road, and that the accident occurred solely due to rash and negligent driving of the car driver – Tribunal held that the accident had occurred due to the negligence of the truck driver in leaving the vehicle stationed on the road without adequate warning or precautionary measures – Tribunal assessed the compensation taking into account his educational and professional trajectory and awarded Rs.81,21,900/- – Appeals by insurer and claimants –**

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\* Author

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### **High Court affirmed the finding of the tribunal, and maintained the award in its entirety – Correctness:**

**Held:** As regards negligence, no reason to take a view different from that concurrently taken by the tribunal and the High Court – Mere fact that the car collided with the truck from behind cannot, by itself, lead to an inference of negligence on the part of its driver – Issue of negligence to be examined in the totality of circumstances – Stationary vehicle occupying the road in the dead of night without any warning indication poses an evident hazard to road users – Tribunal and the High Court, on appreciation of the evidence, rightly concluded that the proximate cause of the accident was the negligent act of the truck driver in leaving the vehicle unattended on the road without adequate precautionary measures – No evidence worth the name adduced to establish negligence on the part of the car driver, and in the absence thereof, the plea of contributory negligence cannot be accepted on mere conjecture – Determination of compensation under the MV Act is guided by the principle of awarding ‘just compensation’, which must account for the future prospects of the deceased and such determination cannot travel into the realm of conjecture – Compensation cannot be founded on assumptions of assured professional success or on salary benchmarks of unrelated successful professionals – Exercise of assessing compensation by the tribunal, sufficiently accounts for the professional promise of the deceased and leaves no room for further enhancement on the aspect of loss of dependency – Any further increase on that basis would cease to be compensatory and would enter the impermissible domain of speculation – Considering that the accident took place in 2013, no inclination to interfere with the same by reducing the award under any heads – Life of a young individual and the loss suffered by his family cannot be measured in precise monetary terms, and determination of ‘just compensation’ under the MV Act does not admit of mathematical exactitude – MV Act being a beneficial legislation, the duty of the Court is to ensure that just compensation is awarded, even if legitimate conventional head is omitted by the courts below – On facts, the claimants, being the parents of the deceased unmarried son, entitled to compensation under the head of ‘filial consortium’ – Compensation awarded by the tribunal, as affirmed by the High Court, enhanced by an amount of Rs.80,000/- towards filial consortium, payable to the claimants in equal measure, together with interest – Compensation awarded

## The Oriental Insurance Company Limited v. Kalu Ram and Others

by the tribunal, as affirmed by the High Court, modified from Rs.81,21,900/- to Rs.82,01,900/- along with interest. [Paras 14-30]

### Case Law Cited

*National Insurance Company Limited v. Pranay Sethi and Others* [2017] 13 SCR 100 : (2017) 16 SCC 680; *Magma General Insurance Company Limited v. Nanu Ram alias Chuhru Ram and Others* [2018] 11 SCR 664 : (2018) 18 SCC 130 – relied on.

### List of Acts

Constitution of India; Motor Vehicles Act, 1988.

### List of Keywords

Negligence; Quantum of compensation; Enhancement of compensation; Future earning potential of the deceased; Compensation under conventional heads; Victim, aged 20 years pursuing Chartered Accountancy; Vehicle stationed on road without adequate warning or precautionary measures; Educational and professional trajectory; Compensation to be just and reasonable.

### Case Arising From

CIVIL APPELLATE JURISDICTION: Civil Appeal No. 8706 of 2026

From the Judgment and Order dated 08.08.2022 of the High Court of Delhi at New Delhi in MACAPP No. 79 of 2018.

With

Civil Appeal No. 8707 of 2026

### Appearances for Parties

*Advs. for the Appellant(s):*

T. Mahipal, Rohit Kumar Sinha, Surya Kamal Mishra, Partap Singh, Arun Yadav, Ms. Chetna Yadav, Mayank Kumar Singh, B.N Yadav, Ashutosh Yadav, Yadav Narender Singh.

*Advs. for the Respondent(s):*

Partap Singh, Arun Yadav, Ms. Chetna Yadav, Mayank Kumar Singh, B.N Bajpai, Ashutosh Yadav, Yadav Narender Singh, T. Mahipal, Rohit Kumar Sinha, Surya Kamal Mishra.

**Supreme Court Reports****Judgment / Order of the Supreme Court****Judgment****Prashant Kumar Mishra, J.**

1. Leave granted.
2. These cross-appeals arise out of the common judgment dated 08.08.2022 passed by the High Court of Delhi<sup>1</sup> in MAC.APP. No. 79 of 2018 and MAC.APP. No. 702 of 2018, whereby the High Court dismissed the appeals preferred by the insurer as well as the claimants and affirmed the award dated 30.11.2017 passed by the Motor Accident Claims Tribunal<sup>2</sup>, Saket Courts, New Delhi, in Suit No. 3059 of 2016.
3. The case arises out of a motor vehicular accident that occurred in the early hours of 11.06.2013. The deceased, Akash Kumar, aged about 20 years, was travelling in a Wagon-R car bearing registration No. DL-6CH-6143, driven by his roommate, Nikhil Kumar Jain. At about 3:00 a.m., when the vehicle reached near Andrews Ganj Bus Stop on the BRT Corridor, Delhi, it collided with a truck bearing registration No. HR-55B-0379.
4. According to the claimants, the truck had been stationed in the middle of the road without any parking lights, indicators, reflectors or warning signs and, owing to the darkness and absence of any cautionary indication, it was not visible to the driver of the car. As a result of the collision, Akash Kumar sustained fatal injuries and succumbed thereto, while Nikhil Kumar Jain also suffered injuries. In connection with the accident, FIR No. 90n of 2013 came to be registered at Police Station Defence Colony and, upon investigation, a charge-sheet was filed against the truck driver under Sections 279, 337 and 304A of the Indian Penal Code, 1860<sup>3</sup>.
5. A Detailed Accident Report<sup>4</sup> came to be instituted before the Tribunal on 11.09.2013. Thereafter, the parents of the deceased instituted a claim petition under Sections 166 and 140 of the Motor Vehicles

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1 For short, 'High Court'

2 For short, 'Tribunal'

3 For short, 'IPC'

4 For short, 'DAR'

**The Oriental Insurance Company Limited v. Kalu Ram and Others**

Act, 1988<sup>5</sup> seeking compensation on account of the untimely death of their son. It was pleaded that the deceased was a bachelor aged 20 years, pursuing Chartered Accountancy<sup>6</sup> (Final), and undergoing articleship with M/s ASA & Associates. According to the claimants, besides his articleship stipend between Rs. 8,000/- to Rs 11,000/-, the deceased was also earning approximately Rs. 25,000/- from private tuition and had bright professional prospects, which deserved due consideration while assessing compensation.

6. The claim petition was contested by the driver, owner and insurer of the offending truck. Their defence was that the truck had suffered puncture in its rear tyres and had been parked on the extreme left side of the road, and that the accident occurred solely due to rash and negligent driving of the Wagon-R, which rammed into the truck from behind. The insurer, while admitting the insurance coverage of the offending vehicle, denied liability and supported the plea that negligence was attributable to the driver of the car.
7. In support of the claim, the claimants examined Nikhil Kumar Jain, the driver of the Wagon-R and an injured eyewitness to the occurrence. He deposed that the truck had been stationed on the road without indicators, reflectors or any warning signs and that the street lights on the road were also not functional at the relevant time, rendering the vehicle practically invisible. The Tribunal also considered the site photographs and the material collected during investigation. Significantly, neither the truck driver nor the owner entered the witness box to rebut the evidence led by the claimants.
8. Upon appreciation of the evidence on record, the Tribunal recorded a finding that the accident had occurred due to the negligence of the truck driver in leaving the vehicle stationed on the road without adequate warning or precautionary measures. The Tribunal rejected the plea that the driver of the Wagon-R was negligent or contributorily negligent.
9. On the question of compensation, the Tribunal examined the evidence led by the claimants concerning the educational and professional profile of the deceased. Apart from the testimony of the claimants themselves, the Tribunal also examined Dr. Surender Pal (PW-3), Joint

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5 For short, 'MV Act'

6 For short, 'CA'

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Director of CA Institute who had stated that students after completing CA got salaries between 1 to 2 lakhs per month and average salary offered to CA was around Rs 7.37 Lakhs during campus placement in year 2013-2014. The Tribunal also took note of the fact that the deceased was pursuing CA Final and undergoing articleship with M/s ASA & Associates. Upon appreciation of such evidence, the Tribunal noted that the deceased had already reached the final stage of a professional course and was at the threshold of entering the profession. Though the actual stipend received by the deceased was placed on record as in the range of Rs. 3,595/- to Rs. 14,410/- per month, the Tribunal considered his future professional prospects and assessed his income at Rs. 55,500/- per month on the basis of likely earnings of an entry-level Group-A officer, having regard to his educational and professional trajectory. After making deductions towards income tax and personal expenses, adding future prospects of 50% and applying the multiplier of 18, as well as providing under various conventional heads, the Tribunal awarded a total compensation of Rs. 81,21,900/- along with interest @ 9% per annum from the date of institution of the DAR, fastening the liability upon the insurer by award dated 30.11.2017. The distribution of compensation awarded by the Tribunal under various heads is reflected in table below:

| HEADS                                | MACT                                          |
|--------------------------------------|-----------------------------------------------|
| Monthly Income                       | Rs. 55,500/-                                  |
| Income Tax deduction of 10%          | Rs 55,500 – 10% of Rs 55,500 =<br>Rs 49,950/- |
| Income after future prospects of 50% | Rs 49,950 + 50% of Rs 49,950 =<br>Rs 74,925/- |
| Deduction (1/2th for two claimants)  | Rs 74,925/2 = Rs 37,462.5/-                   |
| Multiplier                           | 18                                            |
| Loss of dependency                   | Rs 37,462.5 * 18 * 12 =<br>Rs 80,91,900/-     |
| Loss of Estate                       | Rs 15,000/-                                   |
| Funeral Expenses                     | Rs 15,000/-                                   |
| <b>TOTAL COMPENSATION</b>            | <b>Rs. 81,21,900/-</b>                        |

10. Aggrieved by the said award, the insurer preferred MAC.APP. No. 79 of 2018 before the High Court under Section 173 of the MV Act,

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principally contending that the Tribunal erred in fastening negligence upon the truck driver and in assessing the income of the deceased on hypothetical considerations, resulting in an excessive award. The claimants, on the other hand, preferred MAC.APP. No. 702 of 2018 seeking enhancement of compensation on the ground that the future earning potential of the deceased had not been adequately assessed.

11. Both appeals were heard together and came to be dismissed by the High Court by the impugned common judgment dated 08.08.2022. The High Court affirmed the finding of the Tribunal that the truck had been negligently stationed on the road without warning indicators and upheld the conclusion that there was no contributory negligence on the part of the Wagon-R driver. The High Court also found the assessment of compensation to be just and reasonable and, consequently, maintained the award in its entirety.
12. It is in these circumstances that the insurer has approached this Court assailing the concurrent findings on negligence and the quantum of compensation, whereas the claimants seek enhancement of the compensation awarded, giving rise to the present cross-appeals for consideration.
13. Having heard learned counsel for the parties and upon perusal of the material on record, the controversy in the present cross-appeals lies in a narrow compass. The insurer questions the concurrent finding of negligence returned by the Tribunal and affirmed by the High Court, besides assailing the quantum of compensation awarded. The claimants, on the other hand, seek enhancement of compensation on the ground that the future earning potential of the deceased was not adequately assessed and that compensation under the conventional heads has not been fully granted.
14. Insofar as the question of negligence is concerned, we find no reason to take a view different from that concurrently taken by the Tribunal and the High Court. The evidence on record, particularly the testimony of Nikhil Kumar Jain, who himself was an injured eyewitness to the occurrence, establishes that the offending truck had been stationed on the road without parking lights, indicators, reflectors or any cautionary signs. The accident having occurred at about 3:00 a.m., the absence of such warning measures assumes significance. The said testimony has remained materially unshaken.

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15. The defence set up by the driver and owner of the offending truck was that the vehicle had suffered puncture in its rear tyres and had been stationed on the extreme left side of the road. However, neither the driver nor the owner entered the witness box to substantiate such plea. In the absence of any evidence from the side of the truck driver, the Tribunal was justified in drawing an adverse inference against them. The site photographs and the attendant circumstances also do not support the case that the truck had been stationed with due care and caution.
16. The mere fact that the Wagon-R collided with the truck from behind cannot, by itself, lead to an inference of negligence on the part of its driver. The issue of negligence has to be examined in the totality of circumstances. A stationary vehicle occupying the road in the dead of night without any warning indication poses an evident hazard to road users. The Tribunal and the High Court have, on appreciation of the evidence, rightly concluded that the proximate cause of the accident was the negligent act of the truck driver in leaving the vehicle unattended on the road without adequate precautionary measures.
17. The submission on behalf of the insurer that the accident was occasioned due to rash and negligent driving of the Wagon-R and that the case was one of contributory negligence does not merit acceptance. Save and except the plea raised in the written statement, no evidence worth the name has been adduced to establish negligence on the part of the driver of the Wagon-R. In the absence of cogent material, the plea of contributory negligence cannot be accepted on mere conjecture.
18. It is well settled that this Court, in exercise of jurisdiction under Article 136 of the Constitution of India, does not ordinarily interfere with concurrent findings of fact unless such findings are shown to be perverse, manifestly erroneous or based on no evidence. We find none of these infirmities in the present case. The challenge laid by the insurer to the finding of negligence therefore deserves to fail.
19. Turning to the issue of quantum, we find that the Tribunal took due notice of the educational advancement of the deceased, who was pursuing CA (Final) and undergoing articleship at the relevant time. The actual stipend received by the deceased during articleship was brought on record as in the range of Rs. 3,595/- to Rs. 14,410/- per month. However, instead of confining the assessment to the proved



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income, the Tribunal proceeded to determine the monthly income of the deceased at Rs. 55,500/- by taking into account his educational progression, professional prospects and likely career advancement. The High Court, upon reappreciation, found such methodology to be fair and reasonable.

20. Upon examining the methodology adopted by the Tribunal in computing compensation, as affirmed by the High Court, we find that while determining the monthly income of the deceased at Rs. 55,500/-, the Tribunal had already departed from the actual stipend proved on record and proceeded to assess the income by taking into account the deceased's professional prospects and educational progression, his imminent entry into the profession of CA and the likely increase in earning capacity attendant thereto. In other words, the multiplicand itself was arrived at on a forward-looking assessment of the deceased's professional future. In ***National Insurance Company Limited vs. Pranay Sethi and Others***<sup>7</sup>, this Court has explained that the addition towards future prospects is intended to be made to the established income of the deceased so as to account for the normal rise in income over time, and even in the case of self-employed or fixed-salary individuals, such addition is structured as a standardised percentage over the proven income. In the present case, apart from this aspect of calculation of future income of deceased, a further addition of 50% towards future prospects on the same foundation has been awarded by the Tribunal. The adjudication of compensation in the present matter cannot be viewed in sterile mathematical terms alone detached from human element underlying such claims. The case before us concerns the loss of a young life with promising professional potential, and the determination of compensation under the MV Act is ultimately guided by the principle of awarding 'just compensation'. This principle is not one of exact mathematical equivalence, rather it is an attempt by the law to provide a measure of solace, within human limitations, to those who have suffered an irreparable loss. In the present case, a young student has died on the threshold of a professional career, whose life and potential stand extinguished forever. The claimants are parents who lost their young son in an accident that occurred in the year 2013 and the award was rendered by the Tribunal in 2017.

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7 (2017) 16 SCC 680 at Para 54 to 57

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For nearly a decade, the compensation determined by the Tribunal and affirmed by the High Court has held the field.

21. Though this Court undoubtedly possesses the jurisdiction to interfere where computation results in manifest excess or legal infirmity, the exercise of such power must ultimately subserve the ends of justice. In the facts of the present case, we are of the considered view that reducing the compensation payable to the claimants at this stage on account of what is essentially a technical overlap in the methodology adopted by the Tribunal would not advance the cause of substantive justice. The loss suffered by the parents of the deceased cannot be measured with arithmetical precision, and the compensation awarded, viewed holistically, cannot be said to transgress the bounds of 'just compensation' under the MV Act. The beneficial character of the legislation, the long passage of time since the accident, the concurrent assessment made by the Tribunal and the High Court, and the impossibility of placing a precise monetary value upon the loss of a young life, together persuade us not to disturb the compensation awarded towards loss of dependency. Viewed holistically, we are of the considered view that no interference is called for with the compensation awarded towards loss of dependency.
22. It is no doubt true, as we have emphasised in the preceding paragraphs, that the determination of compensation under the MV Act is guided by the principle of awarding 'just compensation', which must account for the future prospects of the deceased. At the same time, such determination cannot travel into the realm of conjecture. In the present case, while there was evidence of the stipend being earned by the deceased, no cogent material was placed on record to establish the alleged income from private tuition. Equally, the assertion of the claimants that the deceased would certainly qualify as a Chartered Accountant and thereafter earn substantially higher income remains a matter of future uncertainty. Compensation cannot be founded on assumptions of assured professional success or on salary benchmarks of unrelated successful professionals.
23. In fact, as stated earlier, the Tribunal has already taken an exceptionally liberal and beneficial view in favour of the claimants by not restricting the assessment to the actual proved income and by adopting a substantially enhanced benchmark reflective of the deceased's future earning potential. Such determination was not arrived at in vacuum, rather the Tribunal had examined the oral and documentary evidence

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led by the claimants, including the testimony of Dr. Surender Pal (PW-3), Joint Director, along with other witnesses, while assessing the future earning potential of the deceased. That exercise, in our considered view, sufficiently accounts for the professional promise of the deceased and leaves no room for further enhancement on the aspect of loss of dependency. We say so especially on the peculiar facts of this case. Any further increase on that basis would cease to be compensatory and would enter the impermissible domain of speculation. At the same time, while it has been argued by the insurer that the compensation so assessed appears to be on the higher side considering that the accident took place in 2013, we are not inclined to interfere with the same by reducing the award under any heads. The life of a young individual and the loss suffered by his family cannot be measured in precise monetary terms, and the determination of 'just compensation' under the MV Act does not admit of mathematical exactitude.

24. However, upon examining the award of the Tribunal, as affirmed by the High Court, we find that no amount has been awarded under the conventional head of consortium. In ***Pranay Sethi (supra)***, this Court recognised consortium as one of the conventional heads under which compensation is required to be awarded in cases of death.<sup>8</sup> The said principle has thereafter been explained and expanded by this Court in ***Magma General Insurance Company Limited vs. Nanu Ram alias Chuhru Ram and Others***<sup>9</sup> to include the entitlement of parents in the case of death of an unmarried son or daughter under the head of 'filial consortium'.
25. The MV Act being a beneficial legislation, the duty of the Court is to ensure that just compensation is awarded, even if a legitimate conventional head has been omitted by the courts below. In the facts of the present case, the claimants, being the parents of the deceased unmarried son, are entitled to compensation under the head of 'filial consortium'. The omission of the Tribunal and the High Court in this regard requires correction.
26. Accordingly, in addition to the compensation already awarded, the claimants shall be entitled to an amount of Rs. 40,000/- each towards

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<sup>8</sup> As per Para 46, 52 and 59.8 of ***Pranay Sethi*** judgment.

<sup>9</sup> (2018) 18 SCC 130 at Para 21 to 24

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filial consortium, in terms of the principles, governing compensation under the conventional heads, as laid down in ***Pranay Sethi*** (*supra*).

27. In view of the foregoing discussion, we reach to the following conclusion:
- The Appeal preferred by the insurer is ***dismissed***.
  - The Appeal preferred by the claimants is ***partly allowed*** to the limited extent indicated above. Accordingly, the compensation awarded by the Tribunal, as affirmed by the High Court, shall stand enhanced by an amount of Rs. 80,000/- towards filial consortium, payable to the claimants in equal measure, together with interest at the rate awarded by the Tribunal.
28. Consequently, in terms of the findings recorded hereinabove, the compensation awarded by the Tribunal, as affirmed by the High Court, stands modified. The revised computation of compensation is set out hereunder:

| HEADS                                          | MACT                                       | HIGH COURT               | THIS COURT                               |
|------------------------------------------------|--------------------------------------------|--------------------------|------------------------------------------|
| Monthly Income                                 | Rs. 55,500/-                               | Upheld the award of MACT | Confirmed with further addition as below |
| Income Tax deduction of 10%                    | Rs 55,500 – 10% of Rs 55,500 = Rs 49,950/- |                          |                                          |
| Income after future prospects of 50%           | Rs 49,950 + 50% of Rs 49,950 = Rs 74,925/- |                          |                                          |
| Deduction (1/2th for two claimants)            | Rs 74,925/2 = Rs 37,462.5/-                |                          |                                          |
| Multiplier                                     | 18                                         |                          |                                          |
| Loss of dependency                             | Rs 37,462.5 x 18 * 12 = Rs 80,91,900/-     |                          |                                          |
| Loss of Estate                                 | Rs 15,000/-                                |                          |                                          |
| Funeral Expenses                               | Rs 15,000/-                                |                          |                                          |
| Loss of Filial Consortium (Parents/ Claimants) | <b>Not considered</b>                      |                          | Rs 40,000 x 2 = Rs 80,000/-              |
| <b>TOTAL COMPENSATION</b>                      | <b>Rs. 81,21,900/-</b>                     |                          | <b>Rs. 82,01,900/-</b>                   |

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29. The amount awarded under the conventional heads, namely, loss of consortium, loss of estate and funeral expenses, should be enhanced at the rate of 10% in every three years.<sup>10</sup>
30. Accordingly, the total compensation payable to the claimants shall stand enhanced from Rs. 81,21,900/- to Rs. 82,01,900/- along with interest in terms of the award of the Tribunal. The insurer shall deposit the enhanced amount before the Tribunal within a period of four weeks from today.
31. The Appeals are decided in the above terms.

*Result of the case:* Appeal by the insurer dismissed.

Appeal by the claimants partly allowed.

*<sup>†</sup>Headnotes prepared by: Nidhi Jain*

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<sup>10</sup> As per Para 59.8 of **Pranay Sethi** judgment.

**CA Ramchandra Dallaram Choudhary**  
**v.**  
**Adani Infrastructure and Developers Private Limited**

(Civil Appeal Diary No. 5988 of 2026)

01 June 2026

**[Dipankar Datta\* and Satish Chandra Sharma, JJ.]**

**Issue for Consideration**

Issue arose that where an appeal u/s.62 IBC is filed within time, *i.e.*, 45 (forty-five) days or beyond the said period but before expiry of 60 (sixty) days as contemplated in the sub-sections thereof and are marked defective, for whatever reason, whether this Court can condone the delay in re-filing of the appeal when the defects pointed out are not cured within 28 (twenty-eight) days.

**Headnotes<sup>†</sup>**

**Insolvency and Bankruptcy Code, 2016 – s.62 – Supreme Court Rules, 2013 – Ord.VIII r.6 Sub-rules (3) and (4) – Condonation of delay – Appeal u/s.62, at the instance of liquidator of a corporate debtor under liquidation challenging the order passed by NCLAT – Appeal presented beyond the period of limitation prescribed in s.62(1), but within the grace period stipulated in sub-section (2) – Office reported a delay of 7 days in filing the appeal – Application seeking condonation of delay filed – Office also marked the appeal defective – Upon curing the defects, the appeal came to be re-filed after a further delay of 82 days, for which a separate application seeking condonation of the delay in re-filing also filed:**

**Held:** 45 (forty-five) days is available under subsection (1) of s.62 from date of receipt of the order of the NCLT to file an appeal involving a substantial question of law before this Court – As per sub-section (2), subject to sufficient cause being shown, the Supreme Court may allow an appeal to be filed within 15 (fifteen) days after the expiry of the said 45 (forty-five) days but not beyond – Curing of defects arising out of a defectively filed appeal u/s.62 is permissible within 28 (twenty-eight) days of notification thereof by the Registry – If the defects are cured within 28 (twenty-eight) days, the appeal would deserve registration upon removal of the

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\* Author

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“D No.” – However, there being no scope for curing defects after lapse of the period of 28 (twenty-eight) days in respect of an appeal u/s.62, filing of an application for condonation of the delay in re-filing does not arise – Thus, no question of condonation of delay [even for a day beyond 60 (sixty) days (in case of an appeal which, apart from the little delay in filing beyond 45 (forty-five days), is otherwise defect-free) and 28 (twenty-eight) days (in case of a defective appeal)] arises for consideration – Where the statute itself erects an insurmountable jurisdictional bar, no enquiry into the adequacy of the cause shown would alter the legal consequence that inexorably follows – Upon a perusal of the applications seeking condonation of delay in filing and in re-filing, sufficient cause not shown to satisfactorily explain the delay – Absent any cogent or convincing justification, the delay in both the filing of the defective appeal and re-filing of the appeal not liable to be condoned – Defective appeal dismissed as time-barred having been filed beyond the maximum period condonable in terms of the IBC. [Paras 25-28]

**Case Law Cited**

*Mobilox Innovations (P) Ltd. v. Kirusa Software (P) Ltd* [2017] **10 SCR 1006** : (2018) **1 SCC 353**; *Kalparaj Dharamshi v. Kotak Investment Advisors Limited* [2021] **2 SCR 677** : (2021) **10 SCC 401**; *National Spot Exchange Ltd. v. Dunar Foods Ltd. (Resolution Professional)* [2021] **7 SCR 1024** : (2022) **11 SCC 761**; *V. Nagarajan v. SKS Ispat & Power Ltd* [2021] **14 SCR 736** : (2022) **2 SCC 244**; *Tata Steel Limited v. Raj Kumar Banerjee & Others* [2025] **5 SCR 814** : (2025) **9 SCC 483**; *PEC Ltd. v. M/s Phulchand Exports Private Ltd.*, **Civil Appeal (Diary) No. 37293 of 2022**; *Saturn Ventures and Advisors Pvt. Limited v. S. Gopalakrishnan*, **2025 SCC OnLine SC 2484**; *CA Ramchandra Dallaram Choudhary v. Adani Infrastructure & Developers (P) Ltd.*, **2025 SCC OnLine SC 1406** – referred to.

**List of Acts**

Insolvency and Bankruptcy Code, 2016; Supreme Court Rules, 2013; Constitution of India.

**List of Keywords**

Appeal u/s.62 IBC; Marked defective; Condone the delay in refiling of appeal when defects pointed out not cured within 28

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(twenty-eight) days; Condonation of delay; Liquidator of corporate debtor under liquidation; Appeal presented beyond the period of limitation; Curing of the defects.

### Case Arising From

CIVIL APPELLATE JURISDICTION: Civil Appeal Diary No. 5988 of 2026

From the Judgment and Order dated 08.12.2025 of the National Company Law Appellate Tribunal in CAAT (I) No. 2316 of 2024

### Appearances for Parties

*Advs. for the Appellant(s):*

Sunil Fernandes, Abhijeet Sinha, Sr. Advs., Atul Sharma, Pankaj Jain, Ms. Aditi Sharma, Vikram Choudhary, Shubham Bhalla.

*Advs. for the Respondent(s):*

Balbir Singh, Sr. Adv., Ms. Hetu Arora Sethi, Anirudh Bhat, Siddarth Agarwal, Shamik Bhatt, Sanidhya Kumar, Vedant Kohli.

### Judgment / Order of the Supreme Court

#### Judgment

**Dipankar Datta, J.**

1. This is an appeal under Section 62 of the Insolvency and Bankruptcy Code, 2016<sup>1</sup>, at the instance of the liquidator of a corporate debtor under liquidation. Under challenge is the judgment and order dated 08<sup>th</sup> December, 2025<sup>2</sup> passed by the National Company Law Appellate Tribunal, Principal Bench at New Delhi<sup>3</sup> in Comp. App. (AT) (Ins) No.2316 of 2024.
2. Having regard to the point on which we propose to decide the appeal, we see no reason to comment on the correctness or otherwise of the impugned order.
3. The appeal was presented on 29<sup>th</sup> January 2026, beyond the period of limitation prescribed in sub-section (1) of Section 62, IBC but within

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1 IBC

2 impugned order

3 NCLAT



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the grace period stipulated in sub-section (2) thereof. Office reported a delay of 7 (seven) days in filing the appeal. An application seeking condonation of the said delay has been filed. Office had also marked the appeal defective. Upon curing the defects, the appeal came to be re-filed after a further delay of 82 (eighty-two) days for which a separate application seeking condonation of delay in re-filing has also been filed.

4. At the outset, it must be borne in mind that the scheme of limitation under the IBC is a strict and time-bound one. The concept of condonation of delay itself is alien to the statutory framework beyond the period expressly contemplated under the statute. Section 62 of the IBC permits an appeal to be filed before this Court within 45 (forty-five) days, with a further grace period of only 15 (fifteen) days, and that too, only upon sufficient cause being shown. Thus, the outer limit statutorily permissible is 60 (sixty) days, beyond which the appeal itself becomes barred and the Court's jurisdiction to condone the delay ceases.
5. The importance of strict adherence to timelines under the IBC has been enunciated by this Court succinctly in its decision in ***Mobilox Innovations (P) Ltd. v. Kirusa Software (P) Ltd.***<sup>4</sup> as follows:

**36.** ... Even in appeals to the Supreme Court from the Appellate Tribunal under Section 62, 45 days' time is given from the date of receipt of the order of the Appellate Tribunal in which an appeal to the Supreme Court is to be made, with a further grace period not exceeding 15 days. The strict adherence of these timelines is of essence to both the triggering process and the insolvency resolution process. ... .

6. Time bound resolution is the essence of the IBC was reiterated in respect of an appeal under Section 61 thereof in ***Kalparaj Dharamshi v. Kotak Investment Advisors Limited***<sup>5</sup> in the following words:

**158.** This Court has held, that it is not open to the adjudicating authority or appellate authority to reckon any other factor

<sup>4</sup> (2018) 1 SCC 353

<sup>5</sup> (2021) 10 SCC 401

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other than specified in Sections 30(2) or 61(3) of the I&B Code. It has further been held, that the commercial wisdom of CoC has been given paramount status without any judicial intervention for ensuring completion of the stated processes within the timelines prescribed by the I&B Code. ... .

(emphasis ours)

7. Reference can also be made to the decisions in ***National Spot Exchange Ltd. v. Dunar Foods Ltd. (Resolution Professional)***<sup>6</sup>, ***V. Nagarajan v. SKS Ispat & Power Ltd***<sup>7</sup> and ***Tata Steel Limited v. Raj Kumar Banerjee and Others***<sup>8</sup> which, though arising in the context of appeals under Section 61 of the IBC, reaffirm that condonation of delay beyond the period expressly prescribed by the statute itself would be impermissible.
8. Furthermore, this Court in ***PEC Ltd. v. M/s Phulchand Exports Private Ltd.***<sup>9</sup> held pithily as follows:
  - 1 There is a delay of 21 days in filing the appeal under Section 62 of the Insolvency and Bankruptcy Code 2016. The delay is beyond the maximum period which is condonable in terms of the statute.
  - 2 Hence, the civil appeal is dismissed on the ground of limitation.
  - 3 Pending applications, if any, stand disposed of.
9. In ***Saturn Ventures and Advisors Pvt. Limited v. S. Gopalakrishnan***<sup>10</sup>, delay of two days in presentation of an appeal under Section 62 of the IBC was not condoned reasoning that the Court has no power to condone the delay.
10. Let us now ascertain what the position is under the Supreme Court Rules, 2013<sup>11</sup>. Sub-rules (3) and (4), of Rule 6 of Order VIII, SCR, lay down the regime governing re-filing of, *inter alia*, petitions and

6 (2022) 11 SCC 761

7 (2022) 2 SCC 244

8 (2025) 9 SCC 483

9 Civil Appeal (Diary) No. 37293 of 2022

10 2025 SCC OnLine SC 2484

11 SCR

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appeals after curing defects. A period of 28 (twenty-eight) days is earmarked for curing of defects. A litigant not curing the defects within 28 (twenty-eight) days may re-file the petition or the appeal, as the case may be, together with an application seeking condonation of re-filing delay. Needless to observe, condonation of re-filing delay for petitions and appeals is discretionary.

11. Is it open to this Court [where an appeal under Section 62, IBC is filed within time, i.e., 45 (forty-five) days or beyond the said period but before expiry of 60 (sixty) days as contemplated in the sub-sections thereof and are marked defective, for whatever reason] to condone the delay in re-filing of the appeal when the defects pointed out are not cured within 28 (twenty-eight) days? This was the question we posed to Mr. Fernandes, learned senior counsel for the appellant to answer.
12. Mr. Fernandes contends that the appellant is a neutral officer acting under the aegis of this Court for the benefit of all stakeholders as well as the corporate debtor under liquidation and having regard to the nature of duties imposed on him, the insignificant delay in filing the appeal as well as re-filing thereof ought to be considered liberally rather than strictly. He also contends, notwithstanding that the defects were not cured within 28 (twenty-eight) days of such defects being notified, this Court's power to condone re-filing delay of any number of days beyond 28 (twenty-eight) days is not fettered and if sufficient cause be shown to exist, which did preclude a party from acting within the timelines provided in the IBC, re-filing delay of any length of time is invariably condoned. According to him, under the SCR, delay in re-filing after curing of the defects is treated differently from delay in initial filing. If initially the appeal is filed within 45 (forty-five) days, or even within the grace period of 15 (fifteen) days and sufficient cause for condonation of filing delay is shown, the Court would generally condone the delay – in filing and re-filing - if the same is satisfactorily explained.
13. Mr. Fernandes has, in this connection, invited our attention to a coordinate Bench decision between the same parties in **CA Ramchandra Dallaram Choudhary v. Adani Infrastructure & Developers (P) Ltd.**<sup>12</sup> where re-filing delay in filing an appeal before

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the NCLAT under Section 61 of the IBC was condoned. Particular reliance was placed on the following passages:

**9.** Be that as it may, it is well-recognised principle of law that the courts view applications relating to lawyer's lapses more leniently than applications relating to litigant's lapses. The classic example is the difference in approach of courts to applications for condonation of delay in filing an appeal and applications for the condonation of delay in refilling the appeal after rectification of defects. Useful reference may be made to the decision of the co-ordinate Bench of this Court in *Perumon Bhagvathy Devaswom v. Bhargavi Amma* [(2008) 8 SCC 321; 2008 SCC OnLine SC 1049.]

**10.** Having regard to the fact that the appellant despite limitations had done all that was necessary for filing of the appeal within 30 days, and then 15 days, i.e., within the prescribed and extended period of limitation, respectively, as well as dependency of the appellant on its lawyers who, in turn, were dependent on their clerk to refile the appeal, and there were some missteps contributing to the present situation, coupled with the fact that the issue sought to be raised by the appellant in the appeal filed before the National Company Law Appellate Tribunal, if answered in its favour, would enure to the benefit of the debtors, and also that better justice is always achieved when a lis is decided on a contested hearing rather than on default, we need to take an overall view of the matter. We are of the considered opinion that the words "sufficient cause" in this case ought to have been construed liberally and that interest of justice would be best served if, upon condonation of delay in refilling of the appeal, the National Company Law Appellate Tribunal proceeds with the hearing of the appeal on merits. Ordered accordingly.

14. We propose to advert to the decision in **CA Ramchandra Dallaram Choudhary** (supra) a little later.
15. Having regard to the statutory scheme of the IBC, since validated by this Court in numerous decisions by holding that the strict timelines are meant to prevent misuse by dilatory tactics, it is difficult to accept Mr. Fernandes' contention. It is axiomatic that an

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appeal under Section 62 of the IBC to be regarded as having been instituted within the prescribed period of 45 (forty-five) days must be a defect-free appeal, which is capable of being acted upon by the Registry for being immediately placed before the appropriate Bench for consideration. Any appeal which is not filed within the stipulated period in a form shorn of defects, for all practical and legal purposes, remains a defective appeal.

16. Can or should a litigant be permitted to circumvent the rigours of limitation by filing a defective appeal as a device to save limitation and, thereafter, to opt to cure the notified defects at leisure? Can or should this Court countenance such a practice? The answers to both questions have to be a resounding 'NO'. To hold otherwise would defeat the object of the IBC and render nugatory the discipline of timelines engrafted both in Section 62 as well as the SCR. Any such practice of filing a defective appeal, if encouraged, could result in a litigant dragging the process of re-filing for months and still being heard on his application for condoning re-filing delay premised on the ground that the IBC says nothing about re-filing delay and that the SCR being a procedural law must be read in a manner to aid the rendering of substantive justice to a party who is shown to be above board.
17. Consequently, no litigant can be permitted to subvert the statutory scheme by seeking condonation of re-filing delay beyond the period of 28 (twenty-eight) days after having initially lodged a defective appeal. Once the window of 60 (sixty) days prescribed by the IBC, followed by the window of 28 (twenty-eight) days in re-filing the appeal upon curing of defects permitted by the SCR is shut, the right to appeal stands extinguished.
18. The argument that the SCR does not impose a cap beyond which re-filing delays cannot be condoned and, hence, it is the acceptability of the cause shown amounting to 'sufficient cause' which is and should be decisive, irrespective of the length of time taken to cure the defects, is equally unimpressive. The SCR is the subordinate legislation in the field and whenever the IBC and the SCR clash, the latter cannot override the express provisions of the former. The IBC must prevail being the statutory edict. Though indisputable that the standards for examining a prayer for condoning a re-filing delay is certainly less rigorous than a filing delay but such standard would stand true and be applicable for the general laws, like proceedings

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arising from the Codes of Civil and Criminal Procedure, as well as from remedies provided by the Constitution of India. Section 62, IBC is, however, a complete code in itself for filing of appeals and is different from other laws. An appeal under Section 62, IBC does not remain alive after the 28 (twenty-eight) day period allowable under the SCR for curing defects and the *lis* would stand frozen once the defects are not cured within such period. An extended window cannot be granted *de hors* the legislative intent behind stipulation of the strict timelines in the IBC.

19. We may also observe that the fact of the appellant being a neutral officer acting under the aegis of this Court for the benefit of all stakeholders and the corporate debtor under liquidation is not sufficient for us to invoke our extraordinary jurisdiction under Article 142 of the Constitution to dilute or override the express statutory timeframes engrafted under the IBC. Pertinently, the IBC does not mark a different threshold for officers like the appellant and hence, reading words into the statute which are not used by the legislature would not be a permissible interpretational exercise.
20. Moving on to the decision in **CA Ramchandra Dallaram Choudhary** (supra), which has been pressed into service by Mr. Fernandes, the peculiar factual matrix of the said appeal assumes significance and warrants a recapitulation of the events.
  - a. Appellant had earlier challenged the order dated 21<sup>st</sup> June, 2024 passed by the National Company Law Tribunal<sup>13</sup> before the NCLAT in an appeal under Section 61, IBC. However, the appeal before the NCLAT itself was not filed within the prescribed period and was beset by delay in re-filing.
  - b. *Vide* its order dated 6<sup>th</sup> February, 2025, the NCLAT declined to condone the delay. Aggrieved thereby, the appellant approached this Court by filing an appeal<sup>14</sup> under Section 62, IBC. This Court, by its order dated 5<sup>th</sup> May, 2025, set aside the order of the NCLAT and remanded the matter for consideration on merits, whereupon the NCLAT proceeded to decide the appeal and delivered the impugned order.

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<sup>13</sup> NCLT

<sup>14</sup> Civil Appeal No. 5106 of 2025

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- c. Significantly, while concluding its order dated 5<sup>th</sup> May, 2025, this Court specifically recorded that such order is not to be treated as a precedent.
21. It would, therefore, appear that notwithstanding the indulgence shown by this Court to the self-same appellant at an earlier stage, the appeal presently under consideration has been re-filed after substantial delay. The explanation for the re-filing delay reads as follows:
4. That it is most humbly submitted that essentially the delay in re-filing arose due to an internal oversight within the Office of the Liquidator. While the defects were duly communicated by the Registry, a concerned officer within the Liquidator's office either mistakenly believed that the requisite details had already been conveyed or did not promptly relay them to the Advocate-on Record. It is also pertinent to mention that this officer has since left the position, leading to a gap in communication. The delay, thus, was neither intentional nor negligent but arose from a bona fide administrative lapse within the office.
- (emphasis ours)
22. The circumstance that this Court had earlier interdicted refusal of the NCLAT to condone the delay in re-filing the appeal under Section 61 of the IBC does not advance the appellant's case, rather even on a cursory comparison of the two situations, it only accentuates the reason as to why the earlier exercise of discretion cannot be extended to the present proceedings. While setting aside the order of the NCLAT, this Court had emphasized the differing degrees of liberality, which ought to be extended in the cases of lapses attributable to the advocate-on-record and to the litigant, as far as re-filing delay is concerned. It was in this factual milieu, the controversy warranted examination on merits, thereby necessitating the condonation of delay in re-filing of the appeal before the NCLAT and restoration of the appeal before it.
23. The decision in **CA Ramchandra Dallaram Choudhary** (supra) reiterates the principle which must guide the exercise of judicial discretion in matters of condonation of delay. The present case stands on an entirely different pedestal, wherein the appellant seeks condonation not merely of delay in re-filing but also of delay

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in invoking the appellate jurisdiction of this Court under Section 62, IBC. Importantly so, the appellant approaches this Court after having availed the benefit of a liberal construction of “sufficient cause” at the previous stage of the same litigation. A litigant who has once secured indulgence in relation to delay cannot legitimately proceed on the assumption that further defaults engendered at the next appellate stage would automatically attract a similar exercise of discretion. To hold otherwise would render the law of limitation under the IBC progressively elastic at every successive stage of challenge, defeating the legislative objective of expedition and finality.

24. Restating what has already been enunciated, the appellant can derive no advantage from the earlier order condoning the delay in re-filing the appeal under Section 61, IBC before the NCLAT. That exercise of discretion was confined to the peculiar facts of that case and cannot be construed as a warrant for repeated indulgence. The discipline of limitation, particularly in the context of the IBC, does not countenance serial condonations of delay across successive appellate stages. Having once availed the benefit of a liberal approach, the appellant cannot legitimately seek a further relaxation when the present appeal under Section 62 is itself beset by delay both in filing and in re-filing.
25. To sum up our discussion, 45 (forty-five) days is available under sub-section (1) of Section 62, IBC from date of receipt of the order of the NCLT to file an appeal involving a substantial question of law before this Court. As per sub-section (2), subject to sufficient cause being shown, the Supreme Court may allow an appeal to be filed within 15 (fifteen) days after the expiry of the said 45 (forty-five) days but not beyond. Curing of defects arising out of a defectively filed appeal under Section 62, IBC is permissible within 28 (twenty-eight) days of notification thereof by the Registry. If the defects are cured within 28 (twenty-eight) days, the appeal would deserve registration upon removal of the “D No.”. However, there being no scope for curing defects after lapse of the period of 28 (twenty-eight) days in respect of an appeal under Section 62, IBC, filing of an application for re-filing delay does not arise. Consequently, no question of condonation of delay [even for a day beyond 60 (sixty) days (in case of an appeal which, apart from the little delay in filing beyond 45 (forty-five) days), is otherwise defect-free) and 28 (twenty-eight) days (in case of a defective appeal)] arises for consideration.



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26. Thus, the legal position being settled beyond cavil, it is unnecessary for us to venture into the merits of the explanations furnished in support of the applications for condonation of delay in filing and re-filing herein. Where the statute itself erects an insurmountable jurisdictional bar, no enquiry into the adequacy of the cause shown would alter the legal consequence that inexorably follows.
27. Apart from what has been held above, upon a perusal of the applications seeking condonation of delay in filing and in re-filing, we find sufficient cause not having been shown to satisfactorily explain the delay(s). Absent any cogent or convincing justification, the delay(s) in both the filing of the defective appeal and re-filing of the appeal are not liable to be condoned.
28. Be that as it may, the defective appeal stands dismissed as time-barred having been filed beyond the maximum period condonable in terms of the IBC.
29. Connected applications too stand dismissed.

*Result of the case:* Appeal dismissed.

*<sup>†</sup>Headnotes prepared by: Nidhi Jain*

**Baksish Ahmad**

**v.**

**Union of India & Anr.**

(Civil Appeal No(s). 8452-53 of 2026)

09 June 2026

**[Dipankar Datta\* and  
Satish Chandra Sharma, JJ.]**

### **Issue for Consideration**

Whether the High Court was right in refusing to entertain, try and adjudicate the writ petition of the appellant on the ground of *forum non conveniens*.

### **Headnotes<sup>†</sup>**

**Doctrine of *forum non conveniens* – Constitution of India – Art.226 – BSF Act – ss.4, 5 – Border Security Force Rules, 1969 – r.22 – Doctrine of *forum non conveniens*, misapplication in the context of writ jurisdiction – When – Appellant-BSF Constable had contracted a second marriage without permission of the competent authority, during the subsistence of his first marriage – Dismissed from service – Appellant filed statutory petition u/r.28A of the BSF Rules seeking reinstatement in service, rejected by Inspector General, Frontier Headquarters, BSF, Jammu – Challenging the orders of dismissal from service and rejection of statutory petition, appellant filed writ petition before the Delhi High Court – Dismissed on the ground of *forum non conveniens* – Review petition thereagainst also dismissed – Challenge to:**

**Held:** The doctrine of *forum non conveniens* was misapplied by the Division Bench in the context of writ jurisdiction referable to Art.226 of the Constitution – Such article permits filing of a writ petition as per situs of office of the respondent(s) – Where the question of pursuing a constitutional remedy is involved and invocation of writ jurisdiction is traceable to clause (1) of Article 226, the doctrine of *forum non conveniens* may rarely apply – Further, a 3-Judge Bench decision of this Court in *Shri Ranjeet Mal* laid down the law that the Union of India would be fastened with the liability for enforcement of an order

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\* Author

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quashing an order of dismissal/removal from service of a railway servant, and not the officer who passed it – This decision, read with ss.4 and 5 of the BSF Act, makes the position clear that the Union of India and the Director General, BSF having their offices in New Delhi were necessary parties to the appellant's writ petition and, thus, had been duly impleaded as the respondents before the Delhi High Court – Also, in terms of sub-rule (4) of Rule 22, BSF Rules, every order of dismissal/removal passed under sub-rule (3) thereof has to be reported to the Director General – There is a presumption that official acts have been regularly performed – Hence, on a cumulative assessment of these factors, the Delhi Court did have the competence to entertain and try the writ petition of the appellant – Moreover, in case any member of the CAPF, and that includes the BSF, is aggrieved by any administrative order of termination of his service issued by the competent authority, notwithstanding that the cause of action arose outside, *i.e.*, the said order was issued from a place beyond the territorial limits of the Delhi High Court or that the events which triggered such an order occurred outside its limits, etc., still the Delhi High Court would have territorial jurisdiction in light of situs of office of the Union of India and the Director General, BSF/the officer in whom is vested supervision and command of the other CAPF, as per clause (1) of Art.226 – Impugned order set aside – Appellant's writ petition revived – Central Civil Services (Conduct) Rules, 1964 – Uttar Pradesh Marriage Registration Rules, 2017 – Armed Forces Tribunal Act, 2007 – Armed Forces Tribunal Rules, 2008. [Paras 21, 27, 37, 38, 40]

**Doctrine of *forum non conveniens* – Applicability:**

**Held:** Doctrine of *forum non conveniens* applies only where multiple fora are available to a litigant for seeking the same remedy; and, when such multiple fora are available, the forum which has been approached is entitled in law to examine whether any other forum is more convenient and/or better suited to consider and decide the claim that has been raised by the aggrieved litigant – For informed reasons, the forum seized of the claim may refuse to entertain the claim and leave the said litigant free to approach the other forum – The core idea of *forum non conveniens* is that although the court which has been approached by the suitor can legally entertain and try his case, the said court may refuse to do so and require the suitor to approach an appropriate court exercising similar

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jurisdiction and having powers to grant similar relief that is more convenient to the parties – Ordinarily, it would be the respondent who is likely to raise an objection – By invoking the doctrine of *forum non conveniens*, the respondent while conceding jurisdiction would urge the court to decline its exercise – In a courteous tone, the argument would be: though the court can entertain and try the *lis* but it may not. [Paras 29, 36]

**Constitution of India – Art.226 – BSF Act – Border Security Force Rules, 1969 – Available for exercising writ jurisdiction u/Art.226, which the appellant could have approached for relief in light of clause (2) thereof:**

**Held:** First and foremost, the High Court at Calcutta since the show cause notice and the order terminating the appellant's service were issued from Narayanpur, District Malda, West Bengal; secondly, the High Court for the Union Territory of Jammu & Kashmir and Ladakh, since it is within the said high court's jurisdiction that the appellant's petition u/r.28A, BSF Rules came to be rejected; and thirdly, the Allahabad High Court's writ jurisdiction could have also been invoked by the appellant since he married the lady in Kushinagar, District Kushinagar, Uttar Pradesh, without prior permission of the competent authority and despite subsistence of his first marriage, which formed the basic ingredient of the charge of misconduct – All these high courts are empowered to grant adequate relief, if at all satisfied that a strong case on merits has been set up – Notwithstanding that the appellant could have approached any of the three high courts based on accrual of part cause of action, the Delhi High Court is indeed the fourth forum which had the competence to entertain and try the writ petition of the appellant – The Division Bench was also conscious and hence it did not dismiss the appellant's writ petition on the ground of lack of territorial jurisdiction; it applied the doctrine of "*forum non conveniens*" and held that the Delhi High Court was not "*forum conveniens*" for either party having regard to the run of events leading to dismissal of the appellant's petition u/r.28A of the BSF Rules – The refusal to exercise discretion was not legal and proper having regard to the claim presented before the Division Bench – The doctrine of *forum non conveniens* was misapplied by the Division Bench in the context of writ jurisdiction referable to Art.226 of the Constitution – Such article permits filing of a writ

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petition as per situs of office of the respondent(s) [clause (1)] and cause of action [clause (2)] which gives the right of action – Where the question of pursuing a constitutional remedy is involved and invocation of writ jurisdiction is traceable to clause (1) of Art.226, the doctrine of *forum non conveniens* may rarely apply – When a writ of or in the nature of Certiorari is prayed, Rule Nisi requires the records of the case to be placed before the Court for examining whether the order under challenge, which is part of the records, deserves to be quashed or not by a writ of or in the nature of Certiorari – Such records would invariably be available in the offices of the respondents; if not, it can readily be called for from the custodian thereof – A suitor having himself chosen the forum convenient to the respondents, application of the doctrine of *forum non conveniens* could be self-defeating and likely to deny access to justice rather than advancing it. [Paras 33, 34, 37]

**Case Law Cited**

*Abrar Ali v. CISF*, **Civil Appeal No. 6020 of 2012**; *Shri Ranjeet Mal v. General Manager, Northern Railway, Baroda House, New Delhi* [1977] 2 SCR 409 : (1977) 1 SCC 484; *Eastern Coalfields Ltd. v. Kalyan Banerjee* [2008] 3 SCR 920 : (2008) 3 SCC 456; *Dinesh Chandra Gahtori v. Chief of Army Staff* (2001) 9 SCC 525; *Kusum Ingots & Alloys Ltd. v. Union of India* [2004] 1 Supp. SCR 841 : (2004) 6 SCC 254 – referred to.

*Sumit Kumar v. Union of India & Ors.*, **W.P. (C) No. 96 of 2017**; *Sunil Kumar v. The Director General, SSB & Ors.*, **W.P. (C) No. 3983 of 2022**; *Chhattar Singh v. Union of India & Anr.*, **W.P. (C) No. 8626 of 2022** – referred to.

**List of Acts**

BSF Act; Border Security Force Rules, 1969; Central Civil Services (Conduct) Rules, 1964; Uttar Pradesh Marriage Registration Rules, 2017; Constitution of India; Armed Forces Tribunal Act, 2007; Armed Forces Tribunal Rules, 2008.

**List of Keywords**

Doctrine of *forum non conveniens*; Misapplication of Doctrine of *forum non conveniens* in the context of writ jurisdiction; Territorial jurisdiction of Delhi High Court; Territorial jurisdiction; Members of

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the Central Armed Police Forces; Member of CAPF; Member of BSF; Administrative order of termination of service; Cause of action arose outside; Place beyond territorial limits of Delhi High Court; Order of dismissal; Delhi High Court has territorial jurisdiction in light of situs of office of the Union of India and the Director General, BSF/the officer; Director General, BSF having offices in New Delhi necessary parties to writ petition; Director General, BSF; Aggrieved member of the armed forces; Delhi Court was competent to entertain and try the writ petition; Article 226 of the Constitution of India.

### Case Arising From

CIVIL APPELLATE JURISDICTION: Civil Appeal No(s). 8452-53 of 2026

From the Judgment and Order dated 10.01.2025, 29.08.2025 of the High Court of Delhi at New Delhi in WP (C) No. 229 of 2025 and RP No. 38 of 2025, respectively

### Appearances for Parties

*Advs. for the Appellant(s):*

Naresh Kumar, M. A. Inayati, Furkan Ali Mirza.

*Advs. for the Respondent(s):*

Ms. Aishwarya Bhati, A.S.G., Anukalp Jain, Rajan Kr.chourasia, Vvv Pattabhi Ram, Padmesh Mishra, Udai Khanna, Adarsh Kumar Pandey, Arvind Kumar Sharma.

### Judgment / Order of the Supreme Court

#### Judgment

**Dipankar Datta, J.**

1. Leave granted.

#### THE CHALLENGE

2. Appellant is aggrieved by the judgment and order dated 10<sup>th</sup> January, 2025<sup>1</sup> of the High Court of Delhi at New Delhi<sup>2</sup> dismissing his writ

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1 impugned order

2 Delhi High Court

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petition<sup>3</sup> as well as the order dated 29<sup>th</sup> August, 2025 of dismissal of his review petition<sup>4</sup>.

**FACTUAL MATRIX**

3. The facts, relevant for deciding this appeal, are as under:
- a) Appellant was enrolled as a member of the Border Security Force<sup>5</sup> on 31<sup>st</sup> December, 2010. At the relevant time, he was posted in the 44<sup>th</sup> Battalion<sup>6</sup>. While serving at Narayanpur, Malda, in West Bengal, a missing person report concerning one xxx<sup>7</sup> was received by the Company Commander of 44 Bn on 24<sup>th</sup> April, 2022. Appellant and another constable of the 44 Bn were suspected to be involved in abduction of the lady. In the meanwhile, the appellant's wife also lodged a complaint. It was alleged that the appellant, against her wishes, had contracted a second marriage with the lady. It was also alleged that the appellant subjected her to criminal force.
  - b) The Sector Headquarters, BSF, Malda, ordered a Staff Court of Inquiry<sup>8</sup> to investigate the allegations. During the inquiry, it was found that the appellant had contracted a second marriage with the lady, who herself was married, during the subsistence of his first marriage on 6<sup>th</sup> May, 2022. The marriage was also formally registered under the Uttar Pradesh Marriage Registration Rules, 2017 on 23<sup>rd</sup> May, 2022 at the office of the Marriage Registration Officer in Kushinagar, District Kushinagar, Uttar Pradesh, without obtaining the necessary permission of the competent authority as well as without obtaining divorce from his first wife. The SCol confirmed that the appellant had married a second time despite subsistence of his first marriage, without permission; however, exonerated him of the allegations relating to the lady's abduction.

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3 W.P. (C) No.229 of 2025

4 RP No.38 of 2025

5 BSF

6 44 Bn

7 lady

8 SCol

## Supreme Court Reports

- c) On 19<sup>th</sup> September, 2022, the appellant was served with a show cause notice<sup>9</sup> under Rules 22<sup>10</sup> and 177<sup>11</sup> of the Border Security Force Rules, 1969<sup>12</sup>, alleging violation of Rule 7<sup>13</sup> of the BSF Rules and Rule 21<sup>14</sup> of the Central Civil Services (Conduct) Rules, 1964<sup>15</sup>, on the ground that he had entered into a second

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9 SCN

10 Dismissal or removal of persons other than officer on account of misconduct.- (1) When it is proposed to terminate the service of a person subject to the Act other than an officer, he shall be given an opportunity by the authority competent to dismiss or remove him, to show cause in the manner specified in sub-rule (2) against such action:

Provided that this sub-rule shall not apply –

- (a) where the service is terminated on the ground of conduct which has led to his conviction by a criminal Court or a Security Force Court; or
- (b) where the competent authority is satisfied that, for reasons to be recorded in writing, it is not expedient or reasonably practicable to give the person concerned an opportunity of showing cause.

(2) When after considering the reports on the misconduct of the person concerned, the competent authority is satisfied that the trial of such a person is inexpedient or impracticable, but, is of the opinion that his further retention in the service is undesirable, it shall so inform him together with all reports adverse to him and he shall be called upon to submit, in writing, his explanation and defence:

Provided that the competent authority may withhold from disclosure any such report or portion thereof, if, in his opinion, its disclosure is not in the public interest.

(3) The competent authority after considering his explanation and defence if any may dismiss or remove him from service with or without pension:

Provided that a Deputy Inspector-General shall not dismiss or remove from service, a Subordinate officer of and above the rank of an Inspector.

(4) All cases of dismissal or removal under this rule, shall be reported to the Director-General.

11 Prescribed Officer under Section 11(2).- The Commandant may, under sub-section (2) or section 11, dismiss or remove from the service any person under his command other than an officer or a subordinate officer.

12 BSF Rules

13 Disqualification.- (1) No person -

- (a) who has entered into or contracted a marriage with a person having a spouse living, or
- (b) who having a spouse living, has entered into or contracted a marriage with any person, shall be eligible for appointment into Force:

Provided that the Central Government may if satisfied that such marriage is permissible under the personal law applicable to such person and the other party to the marriage and that there are other grounds for so doing, exempt any person from the operation of this rule.

14 21. Restriction regarding marriage.- (1) No Government servant shall enter into, or contract, a marriage with a person having a spouse living; and

(2) No Government servant, having a spouse living, shall enter into, or contract, a marriage with any person:

Provided that the Central Government may permit a Government servant to enter into, or contract, any such marriage as is referred to in clause (1) or clause (2), if it is satisfied that-

- (a) such marriage is permissible under the personal law applicable to such Government servant and the other party to the marriage; and
- (b) there are other grounds for so doing.

(3) A Government servant who has married or marries a person other than of Indian Nationality shall forthwith intimate the fact to the Government.

15 CCS Rules



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marriage during the subsistence of both his own marriage and that of the lady, without permission. The SCN was served on him at Narayanpur, District Malda, West Bengal.

- d) Appellant failed to submit a reply to the SCN within the stipulated period of fifteen days from its receipt. Consequently, by an order dated 27<sup>th</sup> October, 2022, the Commandant, 44 Bn, in exercise of powers conferred on him by Rules 22 and 177 of the BSF Rules, dismissed the appellant from service without any pensionary benefits. Appellant was, accordingly, struck-off strength of the BSF from the said date. This order was also served on the appellant at Narayanpur, District Malda, West Bengal.
- e) Aggrieved by the order of dismissal, the appellant preferred a statutory petition under Rule 28A<sup>16</sup> of the BSF Rules seeking reinstatement in service. Such petition was addressed to the Director General, BSF. Since the appellant was an enrolled member of the BSF, such petition should have been addressed to the Inspector General in terms of Rule 28A. The petition was, accordingly, placed before the Inspector General, Frontier Headquarters, BSF, Jammu who, by his order dated 22<sup>nd</sup> December, 2023 condoned the delay in filing the petition but proceeded to reject the same on merits.
- f) Challenging the orders of dismissal from service and rejection of his statutory petition, the appellant unsuccessfully invoked the writ jurisdiction of the Delhi High Court by filing the petition under Article 226 of the Constitution.

**IMPUGNED ORDER**

4. Appellant's contention before the Delhi High Court was that such court did have the territorial jurisdiction because the offices of the

16 Petition.- Any person subject to the Act, who considers himself aggrieved by any order of termination of his service passed under this Chapter may; in the case of an officer, present a petition to the Central Government, in the case of an Assistant Sub-Inspector or a subordinate officer, present a petition to the Director-General and in the case of an enrolled person, present a petition to the Inspector-General, who may pass such orders on the petition as deemed fit:

Provided that the limitation period for filing such petition shall be three months from the date of order of termination or from the date of its receipt, whichever is later.

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Director General, BSF and the Ministry of Home Affairs<sup>17</sup> were located in Delhi.

5. The impugned order passed by the Division Bench of the Delhi High Court is a short order spread over 8 paragraphs. We consider it appropriate to quote the entire order, hereunder:

1. This petition has been filed by the petitioner praying for the following relief:-

“(1) Issue a Writ/Order/Direction setting aside the dismissal order dated 27.10.2022 passed by the Commandant, and reinstate the petitioner in his post with all consequential benefits and back wages.”

2. The petitioner was dismissed from service *vide* the Impugned Order dated 27.10.2022 issued by the Commandant, 44 Bn. BSF, Narayanpur, District Malda, West Bengal. Aggrieved by the same, the petitioner submitted a Statutory Petition dated 18.09.2023, under Rule 28A of the BSF Rules, 1969, which was dismissed by the Inspector General, Frontier Headquarters, BSF, Jammu & Kashmir, *vide* Order dated 22.12.2023.

3. The petitioner himself is a resident of the State of Uttar Pradesh.

4. We, therefore, enquired from the petitioner as to why this petition has been filed before this Court. He submits that the petition has been filed before this Court as the office of the Director General, BSF and the Ministry of Home Affairs is situated at Delhi.

5. We do not find merit in the above submission. Merely because the offices of the respondents are situated in Delhi, would not make this court the *forum conveniens*, especially where no part of the cause of action has arisen within its jurisdiction.

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6. In the present case, the petitioner was dismissed from service *vide* Impugned Order dated 27.10.2023, which was issued at West Bengal. The petitioner subsequently submitted a statutory petition dated 18.09.2023, which has been dismissed by the Inspector General, Frontier Headquarters, BSF Jammu & Kashmir, *vide* Order dated 22.12.2023. Therefore, the cause of action for filing of the petition has arisen at West Bengal or in the Union Territory of Jammu and Kashmir. Merely because the office of the Director General, BSF and the Ministry of Home Affairs is situated at Delhi, it will not make this Court a *forum conveniens*.

7. Applying the principle of the doctrine of *forum non conveniens*, therefore, we are of the opinion that this Court would not be the appropriate/convenient Forum for entertaining the present petition. Accordingly, we decline to entertain the present petition in exercise of the discretion vested in us under Article 226 of the Constitution of India.

8. The petition and the pending application are dismissed, while reserving the liberty of the petitioner to avail of his remedies in accordance with law before the Court having jurisdiction.

**CONTENTIONS OF THE PARTIES**

6. Mr. Inayati, learned counsel for the appellant, vehemently contended that the Delhi High Court did have the territorial jurisdiction to entertain the writ petition. In support of this submission, reliance was first placed upon Article 226 of the Constitution. It was argued that clause (1) of Article 226 confers jurisdiction upon a high court where the person or authority against whom a writ, direction, or order is sought is situated within its territorial limits, whereas clause (2) of the said article enables a high court to exercise jurisdiction where the cause of action arises, wholly or in part, within its territory. According to him, the Central Government exercises overall superintendence over the BSF, while its command and administration vest in the Director General, BSF, and the offices of both the authorities are located in Delhi. Consequently, the Delhi High Court was competent to adjudicate the *lis* under clause (1) of Article 226.

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7. Mr. Inayati placed heavy reliance on the decision of this Court in ***Abrar Ali v. CISF***<sup>18</sup>. He contended that the issue involved therein was substantially similar and the decision being pat on the point, the ratio thereof squarely applies in this case. He urged that the appellant was entitled to similar relief in the present case.
8. Drawing our attention to several other Division Bench decisions<sup>19</sup> of the Delhi High Court, Mr. Inayati further contended that the decision in ***Abrar Ali*** (supra) has been consistently followed and there was no justification for the Division Bench hearing the appellant's writ petition to take a contrary view.
9. Lastly, Mr. Inayati submitted that the Delhi High Court was also the appropriate *forum conveniens* for both the appellant and the respondents, particularly in view of the proximity of the BSF Headquarters to such court.
10. Accordingly, Mr. Inayati prayed that the Delhi High Court be directed to hear and decide the appellant's writ petition on merits upon setting aside of the impugned order.
11. *Per contra*, Ms. Aishwarya Bhati, learned Additional Solicitor General appearing for the respondents, submitted that the impugned judgment warrants no interference. She contended that the Delhi High Court had correctly held that no part of the cause of action arose within its territorial jurisdiction, - the relevant events having occurred either in West Bengal (where the appellant was dismissed from service) or in the Union Territory of Jammu and Kashmir (where his statutory petition came to be rejected). It was further argued that the Delhi High Court could not be regarded as the *forum conveniens* merely because the situs of the offices of the respondents were in Delhi. On the contrary, the most appropriate forum is the High Court at Calcutta within whose territorial jurisdiction the integral and essential part of the cause of action had arisen.
12. Reference was made by Ms. Bhati to the decision of this Court in ***Arif Azim Co. Ltd. v. Micromax Informatics FZE*** where the concept of *forum non conveniens* has been dealt with by a 3-Judge Bench.

<sup>18</sup> Civil Appeal No. 6020 of 2012

<sup>19</sup> W.P. (C) No.96 of 2017 (Sumit Kumar v. Union of India & ors.), W.P. (C) No.3983 of 2022 (Sunil Kumar v. The Director General, SSB & ors.) and W.P. (C) No.8626 of 2022 (Chhattar Singh v. Union of India & anr.)

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Relying on paragraphs 71, 72 and 75 of the said decision, it was contended that the Division bench of the Delhi Court did not commit any irregularity, far less illegality, in relegating the appellant to either of the two high courts where part cause of action arose.

13. Ms. Bhati, accordingly, prayed that the appeal deserves to be dismissed.

**ANALYSIS**

14. We have heard the parties at length and examined the precedents cited by them.
15. Although the facts and the question of law are not too complicated, this is a case which calls for circumspection since it could affect not only enrolled members of the BSF like the appellant but other members of the Central Armed Police Forces<sup>20</sup> too.
16. The limited question before us is whether the Delhi High Court was right in refusing to entertain, try and adjudicate the writ petition of the appellant on the ground of *forum non conveniens*.
17. In **Abrar Ali** (supra), this Court held:

“We have heard Dr. L.S. Chaudhary, learned counsel for the petitioner, and Mr. Sidharth Luthra, learned Additional Solicitor General for the respondents.

2. Leave granted.

3. The Writ Petition filed by the appellant has been dismissed by the Delhi High Court vide order dated May 3, 2011 by holding that no cause of action has accrued within the territorial jurisdiction of that Court. From the impugned order, it appears that the High Court considered the aspect of jurisdiction with reference to Article 226(2) of the Constitution of India. We are afraid, the impugned order cannot be sustained as the High Court overlooked Article 226(1) of the Constitution of India. The appellant approached Delhi High Court as the headquarter of respondent No.1 – Central Industrial Security Force - is located in Delhi. The jurisdiction of the Delhi High Court in the matter is, thus, clearly referable to Article 226(1).

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4. We, accordingly, allow the Appeal and set aside the impugned order and restore Writ Petition being Writ Petition (Civil) No. 1241 of 2011 titled “Abrar Ali vs. C.I.S.F. & Ors.” to the Delhi High Court for consideration in accordance of law. No orders as to costs.”

(emphasis ours)

18. Bare perusal of paragraph 3 reveals that the coordinate Bench proceeded to hold the order under challenge unsustainable on the premise that the Delhi High Court overlooked clause (1) of Article 226.
19. The order under challenge in ***Abrar Ali*** (supra), however, throws light on what was considered by the Delhi High Court. It reads as follows:
  1. At the outset, learned counsel for the respondents raises the bar of territorial jurisdiction.
  2. It is not in dispute that the order dated 28.11.2000 has been passed by the Disciplinary Authority at Dhanbad and was conveyed to the petitioner at Dhanbad. It is also not in dispute that Appellate order dated 01.02.2001 has been passed at Dhanbad and conveyed to the petitioner at his village in District Muzaffarnagar, U.P. It is also not in dispute that the Revisional order dated 31.12.2010 has been passed by the Revisional Authority i.e. Inspector General, CISF at Patna and has been conveyed to the petitioner at his village in District Muzaffarnagar, U.P.
  3. It is apparent that no cause of action has accrued within the territorial jurisdiction of this Court.
  4. Merely because the seat of the Union of India or that the Director General, CISF is stationed at Delhi would thus be irrelevant in view of law laid down by a Co-ordinate Division Bench of this Court in the decision reported in *Vinod Kumar vs. Union of India* 2007(1) AD (Delhi) 284.
  5. Accordingly, we dismiss the writ petition granting liberty to the petitioner to approach the Court of competent jurisdiction.
  6. No costs.”

(underlining in original)

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20. With due respect to the coordinate Bench which decided **Abrar Ali** (supra), the observation that the Delhi High Court overlooked clause (1) of Article 226 does not appear to be wholly correct. Paragraph 4 of the order of the Delhi High Court, for whatever it is worth, provides sufficient indication of consideration of clause (1) of Article 226 in the light of an earlier decision of the same court. This part of the order under challenge seems to have been overlooked by this Court.
21. In any event, despite such oversight, we agree with the decision in **Abrar Ali** (supra). The reason lies here. A 3-Judge Bench decision of this Court in **Shri Ranjeet Mal v. General Manager, Northern Railway, Baroda House, New Delhi**<sup>21</sup> laid down the law that the Union of India would be fastened with the liability for enforcement of an order quashing an order of dismissal/removal from service of a railway servant, and not the officer who passed it. This decision, read with the provisions of Sections 4 and 5 of the BSF Act, makes the position clear that the Union of India and the Director General, BSF having their offices in New Delhi were necessary parties to the appellant's writ petition and, thus, had been duly impleaded as the respondents before the Delhi High Court. Also, we bear in mind that in terms of sub-rule (4) of Rule 22, BSF Rules, every order of dismissal/removal passed under sub-rule (3) thereof has to be reported to the Director General. There is a presumption that official acts have been regularly performed. Hence, on a cumulative assessment of these factors, there may not be any difficulty in holding that the Delhi Court did have the competence to entertain and try the writ petition of the appellant.
22. Significantly, the impugned order of the Division Bench does not say that the Delhi High Court has no jurisdiction. We presume, the Division Bench was aware of the decision in **Abrar Ali** (supra), though not formally noticed, as well as the other Division Bench decisions of the Delhi High Court which followed **Abrar Ali** (supra).
23. However, we find a somewhat discordant note having been struck in an earlier decision of another coordinate Bench of this Court in **Eastern Coalfields Ltd. v. Kalyan Banerjee**<sup>22</sup> which **Abrar Ali** (supra) did not

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21 (1977) 1 SCC 484

22 (2008) 3 SCC 456

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notice. In **Kalyan Banerjee** (supra), this Court dealt with a somewhat similar situation. Although the entire cause of action for exercising the right of action arose in Jharkhand, the order of penalty was challenged by the employee before the High Court at Calcutta since the head office of the employer was located in Sanctoria, Burdwan, within the territory of West Bengal. This is what the Court held:

13. In view of the decision of the Division Bench of the Calcutta High Court that the entire cause of action arose in Mugma area within the State of Jharkhand, we are of the opinion that only because the head office of the appellant Company was situated in the State of West Bengal, the same by itself will not confer any jurisdiction upon the Calcutta High Court, particularly when the head office had nothing to do with the order of punishment passed against the respondent.

24. A critical view of **Abrar Ali** (supra) could lead to the conclusion that the decision in **Kalyan Banerjee** (supra) and a host of other decisions on the point of territorial jurisdiction referred to therein not having been considered, it has its own consequences. Prudence dictates silence on this aspect.
25. We are, however, conscious that in **Kalyan Banerjee** (supra), this Court did not notice its earlier 3-Judge Bench decision in **Dinesh Chandra Gahtori v. Chief of Army Staff**<sup>23</sup>. In the context of a writ petition which was dismissed 7 (seven) years after it was filed on the ground of cause of action having entirely arisen within the State of Punjab including the order of penalty issued by the West (sic, Western) Command and, therefore, the court lacked territorial jurisdiction, this Court ruled that the High Court of Judicature at Allahabad<sup>24</sup> should have taken into consideration that the Chief of Army Staff can be sued anywhere in the country.
26. The decision in **Dinesh Chandra Gahtori** (supra) is notably silent both on the factual matrix pleaded and the role, if any, of the Chief of Army Staff in imposition of the order of penalty. Hence, the circumstances leading to the conclusion that the Chief of Army Staff is amenable to

<sup>23</sup> (2001) 9 SCC 525

<sup>24</sup> Allahabad High Court



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be sued across the country are difficult to discern. In any event, the decision in **Dinesh Chandra Gahtori** (supra) is prior to the introduction of the Armed Forces Tribunal Act, 2007<sup>25</sup> which, through Rule 6<sup>26</sup> of the Armed Forces Tribunal Rules, 2008, has regulated the place of filing application and designated the forum, i.e., the relevant Bench of the Tribunal which ordinarily would proceed to hear the application. Once such Bench of the Tribunal can be approached by an aggrieved member of the armed forces for remedy, to hold that **Dinesh Chandra Gahtori** (supra) still permits the Chief of Army Staff to be sued anywhere in the country would re-introduce the multiplicity of forum that the AFT Act sought to eliminate and, thereby, defeat its object. The said decision, therefore, cannot be of any relevance post the AFT Act.

27. Be that as it may, to reconcile the conflict, if any, we hold that in case any member of the CAPF, and that includes the BSF, is aggrieved by any administrative order of termination of his service issued by the competent authority, notwithstanding that the cause of action arose outside, i.e., the said order was issued from a place beyond the territorial limits of the Delhi High Court or that the events which triggered such an order occurred outside its limits, etc., still the Delhi High Court would have territorial jurisdiction in light of situs of office of the Union of India and the Director General, BSF/the officer in whom is vested supervision and command of the other CAPF, as per clause (1) of Article 226.
28. Moving on to the decision in **Arif Azim** (supra), Ms. Bhati has relied on certain paragraphs which need to be noted now. The same read as under:

**71.** ... The term “*forum non conveniens*” is a Latin term which means “an inconvenient forum” and provides that a

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25 AFT Act

26 Place of filing application. – (1) An application shall ordinarily be filed by the applicant with the Registrar of the Bench within whose jurisdiction -

(i) the applicant is posted for the time being, or was last posted or attached; or  
(ii) where the cause of action, wholly or in part, has arisen:

Provided that with the leave of the Chairperson the application may be filed with the Registrar of the Principal Bench and subject to the orders under section 14 or section 15 of the Act, such application shall be heard and disposed of by the Bench which has jurisdiction over the matter.

(2) Notwithstanding anything contained in sub-rule (1), a person who has ceased to be in service by reason of his retirement, dismissal, discharge, cashiering, release, removal, resignation or termination of service may, at his option, file an application with the Registrar of the Bench within whose jurisdiction such person is ordinarily residing at the time of filing of the application.

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court which otherwise might have jurisdiction may decline jurisdiction over a case if there is a more appropriate forum available to the parties, and is typically invoked in respect of cross-border subject-matters that are amenable to multiple concurrent jurisdictions. Depending upon the nature of the dispute, the subject-matter involved and the parties thereto, the courts by invoking this doctrine proceed to determine which one of the available forums may be more convenient and fair for entertaining and adjudicating the matter.

**72.** In order to apply the doctrine of *forum non conveniens* an adequate alternative forum must exist where the subject-matter may be espoused. The alternative forum must be capable of providing a fair and adequate remedy for the dispute, however this does not mean that the alternative forum must offer identical remedies, and this doctrine may be applied as long as the other alternative forum offers a reasonably fair process of remedy and is more convenient or appropriate in the opinion of the court invoking the doctrine. Courts in doing so must weigh the relative importance of private and public interest factors. In doing so, they exercise a high level of discretion and often issue rulings that are fact specific.

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**75.** What can be discerned from the above is that where more than one forum is available, it is the discretion of the court to entertain the matter by examining as to which is the appropriate forum more suited for the interests of all the parties and the ends of justice. Ordinarily, the burden to prove that the court or forum in *seisin* of the matter is an inconvenient forum or the proceedings therein are oppressive or vexatious lies on the party contending the same, yet the choice of forum by the other party is not decisive, and that it is for the court to determine whether the proceedings before it might be an inconvenience to the interests of the parties or less appropriate for the subject-matter in question.

29. What follows from the above passages is that the doctrine of *forum non conveniens* applies only where multiple fora are available to a

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litigant for seeking the same remedy; and, when such multiple fora are available, the forum which has been approached is entitled in law to examine whether any other forum is more convenient and/or better suited to consider and decide the claim that has been raised by the aggrieved litigant. For informed reasons, the forum seized of the claim may refuse to entertain the claim and leave the said litigant free to approach the other forum. It is, however, noticed that the decision in **Arif Azim** (supra) did not arise from writ proceedings.

30. We may, in this connection, also profitably refer to the 3-Judge Bench decision in **Kusum Ingots & Alloys Ltd. v. Union of India**<sup>27</sup>. The proposition of law, which is of importance for deciding this appeal, reads as under:

**30.** ... even if a small part of cause of action arises within the territorial jurisdiction of the High Court, the same by itself may not be considered to be a determinative factor compelling the High Court to decide the matter on merit. In appropriate cases, the Court may refuse to exercise its discretionary jurisdiction by invoking the doctrine of forum conveniens.

(emphasis ours)

31. Therefore, in **Kusum Ingots & Alloys Ltd.** (supra), an observation as to the applicability of the doctrine of *forum non conveniens* was made where causes of action arise within the jurisdiction of more than one high court, and not in relation to the situs of office of the respondent(s).
32. What then are the available fora exercising writ jurisdiction under Article 226, which the appellant could have approached for relief in light of clause (2) thereof?
33. First and foremost, the High Court at Calcutta since the SCN and the order terminating the appellant's service were issued from Narayanpur, District Malda, West Bengal; secondly, the High Court for the Union Territory of Jammu & Kashmir and Ladakh, since it is within the said high court's jurisdiction that the appellant's petition under Rule 28A, BSF Rules came to be rejected; and thirdly,

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27 (2004) 6 SCC 254

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the Allahabad High Court's writ jurisdiction could have also been invoked by the appellant since he married the lady in Kushinagar, District Kushinagar, Uttar Pradesh, without prior permission of the competent authority and despite subsistence of his first marriage, which formed the basic ingredient of the charge of misconduct. All these high courts are empowered to grant adequate relief, if at all satisfied that a strong case on merits has been set up.

34. Notwithstanding that the appellant could have approached any of the three high courts based on accrual of part cause of action, as observed earlier, the Delhi High Court is indeed the fourth forum which had the competence to entertain and try the writ petition of the appellant. The Division Bench was also conscious and hence it did not dismiss the appellant's writ petition on the ground of lack of territorial jurisdiction; it applied the doctrine of "*forum non conveniens*" and held that the Delhi High Court was not "*forum conveniens*" for either party having regard to the run of events leading to dismissal of the appellant's petition under Rule 28A of the BSF Rules.
35. It is in the conspectus of the above fact situation that we need to examine whether the approach of the Division Bench of the Delhi High Court to apply the doctrine of *forum non conveniens* to non-suit the appellant was justified and acceptable. It is obvious from a reading of the impugned order that discretion was not exercised in favour of the appellant because it was felt that the other high courts provided a more convenient forum for the appellant to approach. However, for the reason that follows, we do not find the refusal to exercise discretion to be legal and proper having regard to the claim presented before the Division Bench.
36. The core idea of *forum non conveniens* is that although the court which has been approached by the suitor can legally entertain and try his case, the said court may refuse to do so and require the suitor to approach an appropriate court exercising similar jurisdiction and having powers to grant similar relief that is more convenient to the parties. Ordinarily, it would be the respondent who is likely to raise an objection. By invoking the doctrine of *forum non conveniens*, the respondent while conceding jurisdiction would urge the court to decline its exercise. In a courteous tone, the argument would be : though the court can entertain and try the *lis* but it may not.
37. In our considered opinion, the doctrine of *forum non conveniens* has been misapplied by the Division Bench in the context of writ

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jurisdiction referable to Article 226 of the Constitution. Such article permits filing of a writ petition as per situs of office of the respondent(s) [clause (1)] and cause of action [clause (2)] which gives the right of action. Where the question of pursuing a constitutional remedy is involved and invocation of writ jurisdiction is traceable to clause (1) of Article 226, the doctrine of *forum non conveniens* may rarely apply. When a writ of or in the nature of Certiorari is prayed, Rule Nisi requires the records of the case to be placed before the Court for examining whether the order under challenge, which is part of the records, deserves to be quashed or not by a writ of or in the nature of Certiorari. Such records would invariably be available in the offices of the respondents<sup>28</sup>; if not, it can readily be called for from the custodian thereof. A suitor having himself chosen the forum convenient to the respondents, application of the doctrine of *forum non conveniens* could be self-defeating and likely to deny access to justice rather than advancing it.

38. For the foregoing reason, the impugned order merits interference; the same is set aside. The appeal thereagainst succeeds and is allowed.
39. Since no appeal lies against dismissal of a review petition, the appeal against the order of dismissal of the review petition is dismissed as not maintainable.
40. This order results in revival of the appellant's writ petition on the file of the Delhi High Court. The same may now be considered and decided on its own merits and according to law. For facilitating early disposal thereof, we grant the respondents in the writ petition two months' time to file their counter affidavit; rejoinder thereto, if any, may be filed by the appellant by a month thereafter.
41. Connected applications, if any, shall stand disposed of.

*Result of the case:* Appeal allowed.

*†Headnotes prepared by:* Divya Pandey

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<sup>28</sup> see, for this case, sub-rule (4) of Rule 22, BSF Rules

**Makardhwaj Ram**  
**v.**  
**Jagdish Rai (Dead) Th. Lrs. & Anr.**

(Civil Appeal No. 2950 of 2011)

11 June 2026

**[Sanjay Karol\* and  
Nongmeikapam Kotiswar Singh, JJ.]**

**Issue for Consideration**

Whether the earlier proceedings provided opportunity enough for the plaintiff by being substantially similar, to raise the point of his ownership of the suit properties by virtue of the 1960 sale deed when the main ground urged otherwise was cancellation of sale deed; whether the High Court in terms of the impugned judgment erred in dismissing the suit as being barred by constructive *res judicata*.

**Headnotes<sup>†</sup>**

**Code of Civil Procedure 1908 – s.11 – Principle of constructive *res judicata* – Inapplicability, when – A portion of the property totalling to 95.80 acres was transferred to the appellant, by his father ‘MR’ – ‘MR’, his wife, and mother executed a General Power of Attorney in favour of ‘R’-‘MR’s cousin who using the said GPA sold certain portions of land – However, the said GPA was subsequently cancelled – Aforesaid transfers challenged by ‘MR’ and his wife, dismissed – ‘R’ sought mutation of his name in the Revenue Records, dismissed at first instance but was allowed on appeal – Appellant filed suit for declaration of title and possession against ‘R’ – Suit was partly decreed, holding the appellant entitled to 43.69 acres as against the claim of 95.8 acres – Appeal filed by successor-in-interest of ‘R’, dismissed – Further appeal filed, High Court dismissed the suit as being barred by constructive *res judicata* holding that that in both the earlier suits the appellant could have claimed the right over subject land to be flowing from the 1960 deed executed in his favour**

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\* Author

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**by ‘MR’ but since, he did not do that and instead chose to pursue an inferior claim of cancellation of sale deed, the stronger one stood given up by application of constructive *res judicata* – Interference with:**

**Held:** Constructive *res judicata* mandates that all grounds that might and ought to have been employed in the proceedings, should be employed to avoid multiplicity of proceedings – It is a deeming fiction of law, but its application is not uniform and instead is dependent on the facts and circumstances of a particular case with ‘due regard to ambit of the earlier proceedings’ and ‘the nexus which the matter bears to the nature of the controversy’ – The issue of constructive *res judicata* was decided by Trial Court in favour of appellant – Such finding was agreed to by the First Appellate Court, but wrongly reversed in the impugned judgment by High Court – Appellant by virtue of 1960 deed was the owner of a large portion of land – According to him ‘R’, had wrongly sold off parts thereof in two independent transactions therefore, acting through his parents, he challenged both those transactions – Where and how does the question of asserting his right over the larger parcel of land emerge when the same already rests undisputedly in his favour by virtue of the 1960 deed – When the apprehension arose by virtue of ‘R’s application to mutate his name in the relevant records with respect to the entire property in excess of what was part of sale transaction, came the suit by the appellant, asserting his right which had, in his view, be hitherto unquestioned – This question missed the attention of the High Court – Further, the effect of agreeing with the High Court would be that the appellant would be deprived of the entire property given to him by ‘MR’, and that has been in his name ever since he was born or shortly thereafter – The application of law, especially when it comes to *inter family* disputes is not akin to enforcing the black letter of the law but calls upon the Judge to understand the surrounding facts and circumstances and in the light thereof come to a conclusion in accordance with law – The part of the appellant’s right which was threatened was challenged so in effect, he through his guardians, was protecting his rights – There was no occasion to do anything further – When this is the reality, to apply a principle of law which would lead to an unduly harsh and unjust consequence, would be offensive to

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both law and equity in these circumstances – Impugned judgment set aside. [Paras 8.1, 8.2, 11, 13, 14]

### **Code of Civil Procedure 1908 – s.11 – Constructive *res judicata* – Principles of:**

**Held:** Constructive *res judicata* mandates that all grounds that might and ought to have been employed in the proceedings, should be employed to avoid multiplicity of proceedings – It is a deeming fiction of law, but its application is not uniform and instead is dependent on the facts and circumstances of a particular case with ‘due regard to ambit of the earlier proceedings’ and ‘*the nexus* which the matter bears to the nature of the controversy’ – This principle is founded on public policy – It is a generally acceptable rule that one person should not be “vexed twice over” for the same kind of litigation – As such, it also applies to the proceedings u/ Art.226/32 of the Constitution of India – In respect of ‘ought’, the said word implies the threshold to be above mere possibility – The parties while conducting litigation are expected to apply ‘reasonable diligence’, ‘legitimate purview’ – It is from this lens that it shall be adjudicated whether all issues that were properly arising to the litigation; which ought to have been raised; were raised or not – The principle applies with equal force in cases where the ground that might and ought to have been raised was not done, on account of negligence, inadvertence or accident – In other words, might and ought to apply cumulatively with full force, without exception – The party therefore commits these errors at their own peril. [Paras 8.1-8.6]

### Case Law Cited

*Nagabhushanammal v. C. Chandikeswaralingam* [2016] 2 SCR 19 : (2016) 4 SCC 434; *Daryao v. State of U.P.*, 1961 SCC OnLine SC 21; *State of Karnataka v. All India Manufacturers Organisation* [2006] Supp. 1 SCR 86 : (2006) 4 SCC 683; *Samir Kumar Majumder v. Union of India* (2024) 16 SCC 738 – referred to.

*Kameswar Pershad v. Rajkumari Ruttun Koer*, 1892 SCC OnLine PC 16 – referred to.

### List of Acts

Code of Civil Procedure 1908; Constitution of India.



**Makardhwaj Ram v. Jagdish Rai (Dead) Th. Lrs. & Anr.****List of Keywords**

Constructive *res judicata*; Suit not barred by constructive *res judicata*; Constructive *res judicata* also applies where the ground that might and ought to have been raised was not done on account of negligence, inadvertence or accident; All grounds that might and ought to have been raised; “might”; “ought”; Inter family disputes; Earlier proceedings substantially similar; Earlier suits; Subject matter of suit separate and distinct from the earlier suits; Law and equity; Mutation of name with respect to the entire property in excess of what was part of sale transaction; Inferior claim of cancellation of sale deed; Right over larger parcel of land; Deprived of entire property.

**Case Arising From**

CIVIL APPELLATE JURISDICTION: Civil Appeal No. 2950 of 2011

From the Judgment and Order dated 18.09.2009 of the High Court of Chhatisgarh at Bilaspur in SA No. 617 of 1996.

**Appearances for Parties**

*Advs. for the Appellant(s):*

Vivek Singh, Lakshmi Raman Singh, Ms. Udit Singh, C.P. Rajwar, Krishan Kumar, Mrs. Divya Sharma.

*Advs. for the Respondent(s):*

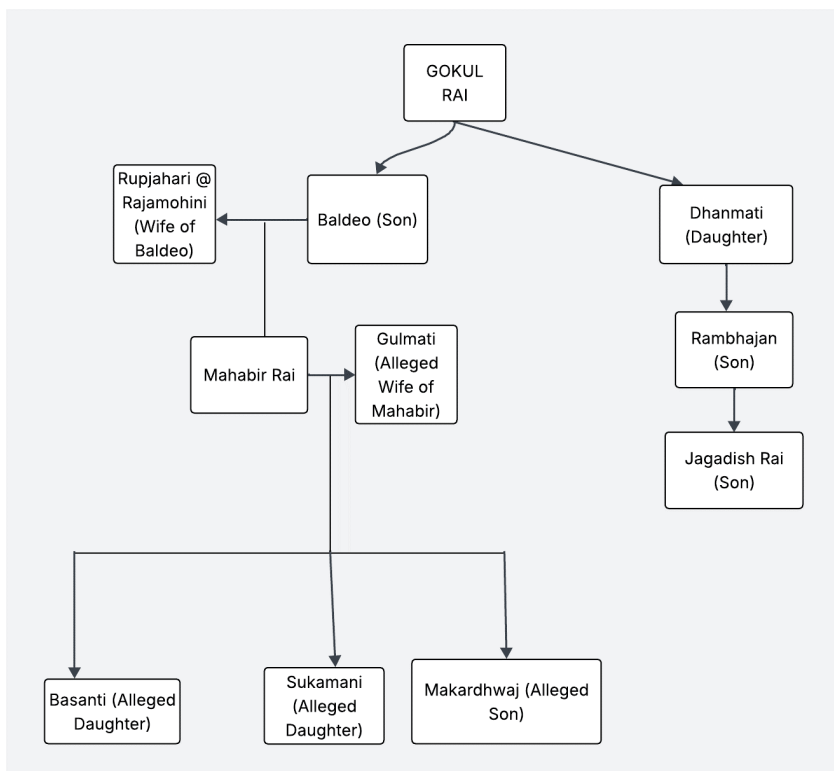
Ms. Shalya Agarwal, Gopal Prasad.

**Judgment / Order of the Supreme Court****Judgment**

**Sanjay Karol, J.**

1. This Civil Appeal has been preferred by the original plaintiffs laying challenge to judgment and order dated 18<sup>th</sup> September 2009 passed by the High Court of Chhattisgarh, Bilaspur in Second Appeal No. 617 of 1996. At hand is a long-standing property dispute that began somewhere in the 1960s. The parties in the dispute are in one way or another related to one Gokul Rai. A family chart shall be useful in contextualising the parties and the facts:

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2. The properties in question belonged to the grandson of said Gokul Rai i.e., Mahabir Rai. On 27<sup>th</sup> July 1960, Mahabir Rai, transferred a portion of his property totalling to 95.80 acres in favour of his mother, Raj Mohani @Roopjhari and his son, the present appellant, Makardhwaj. On 23<sup>rd</sup> April 1962, Mahabir Rai, his wife Gulmati, and mother Raj Mohani @ Rupjhari, executed a General Power of Attorney<sup>1</sup> in favour of Rambhajan, who is Mahabir Rai's cousin that is the son of Baldeo's sister-Dhanmati. In 1969 on two separate occasions i.e., 27<sup>th</sup> January 1969 and 4<sup>th</sup> February 1969, Rambhajan, using the said GPA sold 21.43 acres land to one Prem Prakash, and 33.76 acres to one Chandra Sao. The said GPA was cancelled by the grantors on 25<sup>th</sup> June 1969. Thereafter, Mahabir Rai, filed a suit seeking cancellation of sale deed *qua* the transfer of 21.43 acres of land dated 27<sup>th</sup> January 1969. Said suit was eventually dismissed by

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1 GPA

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the Civil Judge, Class II, Jaishpor Nagar, *vide* judgment dated 21<sup>st</sup> October 1989 on the ground that the present appellant, successor-in-interest of the original plaintiff Mahabir Rai, could not establish his position as his successor-in-interest. The second transfer of 33.76 acres was challenged by Gulmati, as legal guardian of her minor children which too was dismissed by judgment dated 31<sup>st</sup> July 1975. In the year 1985 Rambhajan applied for mutating his name in the Revenue Records which was dismissed at the first instance but allowed on appeal. This mutation pushed the plaintiff, Makardhwaj, the appellant herein to file yet another civil suit. It is this proceeding that has culminated into the present appeal.

3. The suit<sup>2</sup> has been filed for declaration of title and possession against Rambhajan. By judgment dated 7<sup>th</sup> May 1993, the suit was partly decreed. As against the claim of 95.8 acres the plaintiff was held to be entitled to 43.69 acres. Aggrieved thereof successor- in-interest of Rambhajan i.e., Jagdish Rai, further represented through LR's, appealed to the Additional District Judge, Raigarh, which came to be dismissed on 11<sup>th</sup> March 1996. Still aggrieved, he took the matter to the High Court, where, in terms of the impugned judgment, the judgment and decree of the Courts below were set aside, dismissing the suit as being barred by constructive *res judicata*.
4. The case of the appellant is that there is a difference between the two rounds of litigation regarding the properties since the earlier suits were filed on the basis of sale deeds seeking to recover the lands lost as a result thereof and the latter have been filed seeking a declaration of title and possession in respect of the land that remained after the alienations that have been made. In other words, the subject matter of the suit is separate and distinct from the earlier suits. With reference to ***Nagabhushanammal v. C. Chandikeswaralingam***<sup>3</sup>, it is submitted that for *res judicata* to apply, it has to be shown that not only the cause of action was the same, but also that the plaintiff had the occasion to seek the same relief in the earlier proceedings. As a secondary argument, it is submitted that the question of *res judicata* is a mixed question of law and fact and while the defendants did take the plea, but they did not file the

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2 Civil Suit No.195A/87

3 (2016) 4 SCC 434

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requisite documents such as the plaint, written statement and other documents to establish their claim.

5. *Per contra*, the respondents contend that there is no requirement of furnishing plaint, written statement and other documents to plead *res judicata*, when the judgment in the case reflects same and similar cause of action. It is further submitted that if the sale deed of 1960 was indeed the source of claim of the plaintiff, that ought to have been pleaded as the main ground and that the ground of being the exclusive owner of the lands in question by virtue of 1960 sale deed was although available, not taken. The same was also available to them to challenge the subsequent authorization/alienation (*to Rambhajan through GPA*) but was not taken and as such, while claiming right over the land based on inheritance, such ground was intentionally given up and is thus barred.
6. Section 11 of the Code of Civil Procedure 1908<sup>4</sup> deals with *res judicata*. It reads as under:

“11. *Res judicata*.—No Court shall try any suit or issue in which the matter directly and substantially in issue has been directly and substantially in issue in a former suit between the same parties, or between parties under whom they or any of them claim, litigating under the same title, in a Court competent to try such subsequent suit or the suit in which such issue has been subsequently raised, and has been heard and finally decided by such Court.”

Explanation IV thereof provides for rule of constructive *res judicata* which is as follows:

“Explanation IV.—Any matter which might and ought to have been made ground of defence or attack in such former suit shall be deemed to have been a matter directly and substantially in issue in such suit.”

7. The concept of constructive *res judicata* has been extensively dealt with by this Court as also the Privy Council in its judgments. Some of those judgments are referred to hereinbelow to facilitate an understanding:

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4 CPC

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- 7.1. Morris LJ in **Kameswar Pershad v. Rajkumari Ruttun Koer**<sup>5</sup>, observed:

*...That it “might” have been, made a ground of attack is clear. That it “ought” to have been, appears to their Lordships to depend upon the particular fact of each case. Where matters are so dissimilar that their union might lead to confusion, the construction of the word “ought” would become important...*

- 7.2. In **Daryao v. State of U.P.**<sup>6</sup>, it was held that the principle of *res judicata* applies to writ proceedings as well. Regarding the nature of the rule, it has been observed as follows:

**“9.** But, is the rule of *res judicata* merely a technical rule or is it based on high public policy? If the rule of *res judicata* itself embodies a principle of public policy which in turn is an essential part of the rule of law then the objection that the rule cannot be invoked where fundamental rights are in question may lose much of its validity. Now, the rule of *res judicata* as indicated in Section 11 of the Code of Civil Procedure has no doubt some technical aspects, for instance the rule of constructive *res judicata* may be said to be technical; but the basis on which the said rule rests is founded on considerations of public policy. It is in the interest of the public at large that a finality should attach to the binding decisions pronounced by Courts of competent jurisdiction, and it is also in the public interest that individuals should not be vexed twice over with the same kind of litigation. If these two principles form the foundation of the general rule of *res judicata* they cannot be treated as irrelevant or inadmissible even in dealing with fundamental rights in petitions filed under Article 32.”

(emphasis supplied)

5 1892 SCC OnLine PC 16

6 1961 SCC OnLine SC 21

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7.3. In ***State of Karnataka v. All India Manufacturers Organisation***<sup>7</sup>, B.N. Srikrishna J., writing for the Court, while dealing with this issue referred to a number of English judgments in the following manner:

“38. The spirit behind Explanation IV is brought out in the pithy words of Wigram, V.C. in *Henderson v. Henderson* [(1843-60) All ER Rep 378 : (1843) 3 Hare 100 : 67 ER 313] as follows: (All ER pp. 381 I-382 A)

“The plea of res judicata applies, except in special case (sic), not only to points upon which the court was actually required by the parties to form an opinion and pronounce a judgment, but to every point which properly belonged to the subject of litigation and which the parties, exercising reasonable diligence, might have brought forward at the time.” [*Ibid.*, at pp. 381-82]

39. In *Greenhalgh v. Mallard* [(1947) 2 All ER 255 (CA)] (hereinafter “*Greenhalgh* [(1947) 2 All ER 255 (CA)]”), Somervell, L.J. observed thus:

“I think that on the authorities to which I will refer it would be accurate to say that res judicata for this purpose is not confined to the issues which the court is actually asked to decide, but that it covers issues or facts which are so clearly part of the subject-matter of the litigation and so clearly could have been raised that it would be an abuse of the process of the court to allow a new proceeding to be started in respect of them.” [*Ibid.*, at p. 257 H (emphasis supplied)]

40. The judgment in *Greenhalgh* [(1947) 2 All ER 255 (CA)] was approvingly referred to by this Court in *State of U.P. v. Nawab Hussain* [(1977) 2 SCC 806 at p. 809, para 4 : 1977 SCC (L&S) 362]. Combining all these principles, a Constitution Bench of this Court in *Direct Recruit Class*

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*Il Engg. Officers' Assn. v. State of Maharashtra* [(1990) 2 SCC 715 : 1990 SCC (L&S) 339 : (1990) 13 ATC 348] expounded on the principle laid down in *Forward Construction Co.* [(1986) 1 SCC 100] by holding that:

“[A]n adjudication is conclusive and final not only as to the actual matter determined but as to every other matter which the parties might and ought to have litigated and have had (sic) decided as incidental to or essentially connected with (sic) subject-matter of the litigation and every matter coming into the legitimate purview of the original action both in respect of the matters of claim and defence. Thus, the principle of constructive res judicata underlying Explanation IV of Section 11 of the Code of Civil Procedure was applied to writ case. We, accordingly hold that the writ case is fit to be dismissed on the ground of res judicata.” [*Ibid.*, at p. 741, para 35, per L.M. Sharma, J.]

- 7.4. Recently, in ***Samir Kumar Majumder v. Union of India***<sup>8</sup>, K.V. Viswanathan J., considered the law on constructive *res judicata* while dealing with an employment dispute as follows:

***“Law on constructive res judicata***

**33.** Almost two centuries ago, in *Henderson v. Henderson* [*Henderson v. Henderson*, (1843) 3 Hare 100 : 67 ER 313], the Vice-Chancellor Sir James Wigram felicitously puts the principle thus: (ER p. 319)

“In trying this question I believe I state the rule of the Court correctly when I say that, where a given matter becomes the subject of litigation in, and of adjudication by, a court of competent jurisdiction, the Court requires the parties to that litigation

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to bring forward their whole case, and will not (except under special circumstances) permit the same parties to open the same subject of litigation in respect of matter which might have been brought forward as part of the subject in contest, but which was not brought forward, only because they have, from negligence, inadvertence, or even accident, omitted part of their case. The plea of *res judicata* applies, except in special cases, not only to points upon which the Court was actually required by the parties to form an opinion and pronounce a judgment, but to every point which properly belonged to the subject of litigation, and which the parties, exercising reasonable diligence, might have brought forward at the time.”

8. From a considered perusal of the above judgments, the following aspect of constructive *res judicata* can be highlighted:
  - 8.1 Constructive *res judicata* mandates that all grounds that might and ought to have been employed in the proceedings, should be employed to avoid multiplicity of proceedings.
  - 8.2 It is a deeming fiction of law, but its application is not uniform and instead is dependent on the facts and circumstances of a particular case with ‘*due regard to ambit of the earlier proceedings*’ and ‘*the nexus which the matter bears to the nature of the controversy*’.
  - 8.3 This principle is founded on public policy. It is a generally acceptable rule that one person should not be “vexed twice over” for the same kind of litigation. As such, it also applies to the proceedings under Article 226/32 of the Constitution of India.
  - 8.4 In respect of ‘*ought*’ referred above, the said word implies the threshold to be above mere possibility.
  - 8.5 The parties while conducting litigation are expected to apply ‘*reasonable diligence*’, ‘*legitimate purview*’. It is from this lens that it shall be adjudicated whether all issues that were properly



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arising to the litigation; which ought to have been raised; were raised or not?

- 8.6 The principle applies with equal force in cases where the ground that might and ought to have been raised was not done, on account of negligence, inadvertence or accident. In other words, might and ought to apply cumulatively with full force, without exception. The party therefore commits these errors at their own peril.
9. Applying these principles to the present facts, the question is whether the earlier proceedings provided opportunity enough for the plaintiff by being substantially similar, to raise the point of his ownership of the suit properties by virtue of the 1960 sale deed when the main ground urged otherwise was cancellation of sale deed.
10. From the above narration of facts, it is clear that the present proceedings are indirectly the culmination of a long history of litigation. Although the previous proceedings are not directly relevant they may nonetheless be set out below in a tabular form for completeness:

**C.S. No. 9A of 1974 and its appeal 157/1975**

Challenging Sale deed dated 4<sup>th</sup> February 1969

| DATE OF INSTITUTION | DATE OF DECISION | PLAINTIFF/ APPELLANT                                                                                                                                          | DEFENDANTS/ RESPONDNETS                                                    | RESULT    |
|---------------------|------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------|-----------|
| 1974                | 31.07.1975       | <b>Plaintiff</b><br>1. Makardhwaj Ram (Minor)<br>2. Mst. Sukhmani (sister) (Minor)<br>3. Mst. Basanti (sister) (Minor)<br>4. Mst. Gulmati (mother) (Gaurdian) | <b>Defendants</b><br>1. Chander Sao (3rd Party Purchaser)<br>2. Rambhajan  | Dismissed |
| 1975                | 14.10.1981       | <b>Appellants</b><br>1. Makardhwaj Ram (Minor)<br>2. Mst. Sukhmani (sister) (Minor)<br>3. Mst. Basanti (sister) (Minor)<br>4. Mst. Gulmat (mother) (Gaurdian) | <b>Respondents</b><br>1. Chander Sao (3rd Party Purchaser)<br>2. Rambhajan | Dismissed |

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### Civil Suit. 5A/87 (Earlier 7A/69) and its appeal 16A/90

Challenging Sale deed dated 17<sup>th</sup> January 1969

| DATE OF INSTITUTION | DATE OF DECISION | PLAINTIFF/ APPELLANT                                                | DEFENDANTS/ RESPONDENTS                                                           | RESULT    |
|---------------------|------------------|---------------------------------------------------------------------|-----------------------------------------------------------------------------------|-----------|
| 1987                | 21.10.1989       | 1. Makardhwaj Ram (through mother as guardian)                      | 1. Jagdish Rai<br>2. Prem Prakash Rai (3rd Party Purchaser)                       | Dismissed |
| 1990                | 28.06.1994       | <b>Appellants</b><br>1. Makardhwaj Ram (through mother as guardian) | <b>Respondents</b><br>1. Jagdish Rai<br>2. Prem Prakash Rai (3rd Party Purchaser) | Dismissed |

### Present suit 195A/87 and the first and second appeal

| DATE OF INSTITUTION | DATE OF DECISION | PLAINTIFF/ APPELLANT                               | DEFENDANTS/ RESPONDENTS                                                         | RESULT                |
|---------------------|------------------|----------------------------------------------------|---------------------------------------------------------------------------------|-----------------------|
| 1986                | 07.5.1993        | <b>Plaintiff</b><br>1. Makardhwaj Ram (Plaintiff)  | <b>Defendant</b><br>1. Rambhajan<br>2. State of MP (through district collector) | Decreed               |
| 1993                | 11.03.1996       | <b>Appellant</b><br>1. Rambhajan<br>2. State of MP | <b>Respondent</b><br>Makardhwaj                                                 | Appeal dismissed      |
| 1996                | 18.09.2009       | <b>Appellant</b><br>1. Rambhajan<br>2. State of MP | <b>Respondent</b><br>Makardhwaj                                                 | Second Appeal allowed |

11. To put the question framed by us in perspective, the total piece of land with respect to which the above proceedings have taken place was approximately 95.80 acres. The first sale deed to Prem Prakash Rai, was 21.43 acres and the second sale deed was to Chander Sao for 33.76 acres. For one reason or another both the suits seeking cancellation of the sale deeds made by Rambhajan as GPA holder, were dismissed. Undisputedly, when both those suits were instituted the appellant-plaintiff was a minor. The third suit that is before us

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was filed on 1<sup>st</sup> May 1986 seeking declaration and possession. The issue of constructive *res judicata* was framed by the Trial Court and decided in favour of appellant-plaintiff. Such finding was agreed to by the First Appellate Court, but reversed in impugned judgment by the High Court. We may record here itself that we are not in agreement with the High Court.

12. The High Court proceeds on the premise that in both the earlier suits the appellant-plaintiff could have claimed the right over subject land to be flowing from the 1960 deed executed in his favour by Mahabir Rai. Since he did not do that and instead chose to pursue an inferior claim of cancellation of sale deed, the stronger one stood given up by application of constructive *res judicata*.
13. On first blush, this reasoning appears attractive but, in our view, cannot be countenanced for it perhaps misses the mark.

The appellant-plaintiff by virtue of 1960 deed was the owner of a large portion of land. According to him Rambhajan, had wrongly sold off parts thereof in two independent transactions therefore, acting through his parents, he challenged both those transactions. Where and how does the question of asserting his right over the larger parcel of land emerge when the same already rests undisputedly in his favour by virtue of the 1960 deed? When the apprehension arose by virtue of Rambhajan's application to mutate his name in the relevant records with respect to the entire property in excess of what was part of sale transaction, came the suit by Makardhwaj, asserting his right which had, in his view, be *hitherto* unquestioned. This question missed the attention of the High Court.

14. It be also observed that the effect of agreeing with the High Court would be that the appellant-plaintiff would be deprived of the entire property given to him by Mahabir Rai, and that has been in his name ever since he was born or shortly thereafter. The application of law, especially when it comes to *inter family* disputes is not *akin* to enforcing the black letter of the law but calls upon the Judge to understand the surrounding facts and circumstances and in the light thereof come to a conclusion in accordance with law. The part of the appellant-plaintiff's right which was threatened was challenged so in effect, he through his guardians, was protecting his rights. There was no occasion to do anything further. When this is the reality, to apply a principle of law which would lead to an unduly harsh and

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unjust consequence, would be offensive to both law and equity in these circumstances. As such, the impugned judgment must be set aside. Ordered accordingly.

15. Appeal is allowed. The parties to take recourse in law as may be permissible. They shall bear their own costs.

Pending applications stand disposed of.

*Result of the case:* Appeal allowed.

*†Headnotes prepared by:* Divya Pandey

**Surekha Domaji Bele**  
**v.**  
**Executive Engineer, Testing Division, MSEDCL**  
(Civil Appeal No(s). 8459-8460 of 2026)

11 June 2026

**[Sanjay Karol and Nongmeikapam Kotiswar Singh,\* JJ.]**

**Issue for Consideration**

Issue arose whether the dismissal order was passed by the competent authority; whether a fresh show-cause notice for punishment was required after the de novo proceedings before the labour court; whether the plea relating to subsistence allowance requires reconsideration; whether the direction treating the suspension period as punishment is valid; and whether the punishment of dismissal is disproportionate.

**Headnotes<sup>†</sup>**

**MSEDCL Employees Services Regulations, 2005 – Dismissal from service – Appellant-Upper Division Clerk in the service of the respondent-management for more than two decades, suspended from service for the acts of indiscipline, insubordination, disobedience of superior officers, tampering with official documents, and later was charge-sheeted – Two years later served with a show-cause notice after the domestic enquiry – Domestic enquiry was found not to be fair – In revision, the matter remanded to the labour court and permitted the respondent to prove the misconduct before the labour court rather than hold fresh domestic enquiry – Upon remand, misconduct held proved – Respondent thereafter passed the dismissal order relying on the earlier show-cause notice, and period of suspension was directed to be treated as punishment – Appellant’s challenge to the finding of misconduct in Revision failed and was not carried further – Challenge to the dismissal order on the grounds of competence of disciplinary authority to pass the dismissal order, absence of proper post-enquiry show-cause notice, non-payment of subsistence allowance, illegal treatment of the suspension period as punishment, and disproportionality of the penalty of**

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\* Author

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### **dismissal, failed before the labour court, the Industrial Court and the High Court – Correctness:**

**Held:** Dismissal order set aside as wholly disproportionate to the charges proved, while leaving the finding of misconduct undisturbed – Imposition of the second punishment of treating the suspension undergone as punishment not permissible and set aside – Finding that misconduct stood proved against the appellant to remain undisturbed and the adjudication of misconduct recorded in complaint by the labour court, which was also affirmed in Revision not reopened – Appellant was a party to the adjudicatory proceedings before the labour court where the misconduct was recorded and had the opportunity to lead and in fact led the evidence in her favour – Not established that the appellant holds a civil post thus, entitled to the protection as envisaged in Art.311 of the Constitution – No error in the concurrent finding that the Executive Engineer was competent under the Regulations to pass an order of punishment against the Appellant-Pay Grade-III employee – Challenge to the dismissal order on the ground of lack of competence rejected – Regarding the dismissal order, the disciplinary authority proceeded substantially on the earlier show-cause notice, which was based on the domestic enquiry that was subsequently found not to be valid – After remand, the misconduct was still established, but in a different manner before the new forum, based on the evidence led before the labour court – Disciplinary authority was, thus, required to give another show cause notice with fresh application of mind to enable the appellant to submit her representation as regards the nature of punishment – Before imposing the penalty of dismissal from service, the disciplinary authority failed to consider the relevant factors bearing on punishment – Competent authority to determine the appellant's claim for subsistence allowance – Since the appellant has already crossed the age of superannuation, no direction for reinstatement can be issued at this stage – Thus, the impugned judgment and order passed by the High Court set aside in terms of the directions. [Paras 111.1-112]

**Constitution of India – Art. 311 – Applicability to employees of Government Companies/Corporations – Civil post under Union or State – Protection u/Art. 311 – Explained.** [Paras 35-37]

**MSEDCL Employees Service Regulations, 2005 – Regn.88(j) – Fresh show-cause notice for punishment, if required after the**

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***de novo* proceedings before the labour court – Disciplinary authority, if could impose dismissal by relying substantially on the earlier notice, without independently considering the findings which ultimately survived after remand and without giving the appellant an opportunity to place her explanation on the quantum of punishment in the light of those later findings:**

**Held:** Second opportunity against proposed punishment is not a mandate in every disciplinary proceeding – However, where the applicable service regulation expressly provides for a post-enquiry notice communicating the findings and calling upon the employee to show cause against the contemplated punishment, the authority must comply with that regulation – Regn.88(j) contemplates that, after the enquiry is completed, the competent authority shall communicate its findings and call upon the employee to show cause against the contemplated punishment – On facts, the enquiry which ultimately sustained the charges was the *de novo* adjudication before the labour court after the earlier enquiry was found defective – Thus, decision-making process on punishment could not be treated as complete merely because the earlier show-cause notice was held valid – Non-service of a fresh notice after the labour court’s *de novo* finding does not vitiate the finding of misconduct, since the appellant was party to the adjudicatory proceedings before labour court and industrial court – However, the disciplinary authority was required to apply its independent mind to the findings which ultimately survived after remand to the question of appropriate punishment and issue fresh showcause notice on the proposed punishment, for the period of reply in terms of the earlier show-cause notice had long expired and the basis of it also does not exist – While the finding of misconduct remains undisturbed, matter remitted to the competent authority for fresh consideration as regards quantum of punishment by issuing a fresh show-cause notice. [Paras 42, 54,56-57]

**MSEDCL Employees Service Regulations, 2005 – Regns.88(a)(ii)(i), (ii), (iii) – Subsistence allowance – Suspension order to the effect that during suspension the appellant would be entitled, as per MSEDCL rules, to subsistence allowance and it directed the appellant to mark attendance once in a week at the office of the Executive Engineer – Appellant’s case that she was not paid subsistence allowance during the entire period of suspension, till the order of dismissal which continued for nearly eleven years:**

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**Held:** Subsistence allowance is intended to preserve the suspended employee's minimum means of survival and to enable her to effectively defend herself in the disciplinary proceedings – Reporting condition had a regulatory foundation and cannot be treated as wholly extraneous – However, the existence of a reporting condition does not mean that subsistence allowance can be mechanically denied for the entire period of nearly eleven years without examining the effect of the remaining parts of Regn.88 – Object of requiring a suspended employee to report is to ensure that the employee remains available to the employer, does not evade the proceedings, and does not take advantage of suspension by engaging in gainful employment elsewhere or becoming unavailable – On facts, no finding that the appellant was gainfully employed elsewhere during the period of suspension – Appellant's suspension continued till the dismissal, for nearly eleven years – During this period, she was required to defend herself in the departmental process, before the Labour Court, and in connected proceedings – Denial of subsistence allowance for such a prolonged period directly affects the employee's ability to survive and to defend herself effectively – For the period from 04.09.2006 to 03.03.2007, the original reporting condition in the suspension order may be relevant while considering the appellant's entitlement to subsistence allowance, including whether leave of absence from reporting ought to have been sought or granted – For the remaining period, the appellant be treated as eligible for subsistence allowance. [Paras 58, 68-77]

**MSEDCL Employees Service Regulations, 2005 – Regn.91 – After imposing the penalty of dismissal from service, the disciplinary authority further directed that the entire period already spent under suspension also be treated as punishment – Direction treating the suspension period as punishment, if valid:**

**Held:** Treating the entire suspension period as punishment may deprive the employee of the ordinary service and monetary benefits attached to that period, including arrears of pay and allowances, continuity-related benefits, increments or other service advantages depending on the rules, and consequential retiral or terminal benefits – This consequence is severe because the suspension period was for nearly eleven years – Thus, treating the entire period as punishment is not a routine consequential adjustment – It has



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the practical effect of depriving the appellant of the standard service benefits for a substantial part of her remaining service, apart from the subsistence allowance which Regn.88(a)(v) expressly protects if it was already paid or payable – Appellant's suspension from 04.09.2006 was not, by itself, a punishment – It was a suspension pending enquiry – Appellant cannot be visited with both dismissal u/Regn.91(2)(g) and a separate punishment of suspension u/Regn.91(2)(d) for the same misconduct – Direction in the dismissal order treating the suspension period as punishment shall not operate as an independent or additional penalty over and above the harsher penalty finally imposed – Competent authority, while passing the fresh order on punishment, to separately decide the service and monetary consequences of the suspension period only in accordance with Regn.88(a)(v) – While doing so, it shall keep in mind that subsistence allowance already paid or payable stands protected under the said provision, and that the past suspension period cannot be treated as an independent additional punishment for the same misconduct, if the disciplinary authority chooses a more severe punishment. [Paras 79-81, 87-89]

**MSEDCL Employees Service Regulations, 2005 – Regns.86, 91 – Punishment of dismissal, if disproportionate:**

**Held:** Misconduct found proved against the appellant relates to indiscipline, insubordination, and the consequent tampering with documents – However, the material presently noticed does not show corruption, illegal gratification, moral turpitude, misappropriation of funds, proved pecuniary loss to the employer, public scandal, or conduct bringing the institution into public disrepute – Allegations substantially appear to arise out of internal office functioning and service-related conflict and did not play out in the public domain – Competent authority did not undertake an exercise of evaluating various relevant factors – Order does not reflect consideration of the appellant's long service, past record, age, absence or presence of dishonesty, or absence or presence of actual loss as also commended by the Labour Court – Even where the Regulations include dismissal as one of the permissible punishments for acts of misconduct, the authority is not relieved of its duty to consider all relevant factors to see whether the facts of the case truly warrant the most extreme form of penalty – Mere fact that a proved act falls within the broad category of "misconduct" under the Regulations does not mean that dismissal must follow as a matter

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of course – Dismissal is ordinarily justified where the misconduct is of such gravity that continuance of the employee would be wholly incompatible with discipline, trust or institutional functioning – Cases involving corruption, illegal gratification, moral turpitude, misappropriation, acts causing substantial loss to the employer, or conduct showing complete unfitness for continued service stand on a different footing – However, where the misconduct does not involve corruption, moral turpitude, financial misappropriation or proved loss to the employer, and where there is long service without much blemish, the disciplinary authority must carefully examine whether any lesser punishment would meet the ends of justice. [Paras 107-110]

**Service – Dismissal from service – Form of penalty – Severest form.** [Paras 106-110]

### Case Law Cited

*S.L. Agarwal v. General Manager, Hindustan Steel Ltd.* [1970] 3 SCR 363 : (1970) 1 SCC 177; *Khem Chand v. The Union of India and Others* [1958] 1 SCR 1080 : AIR 1958 SC 300; *Managing Director, ECIL v. B. Karunakar* [1993] Supp. 2 SCR 576 : (1993) 4 SCC 727; *Workmen of Firestone Tyre & Rubber Co. of India (P) Ltd. v. Management* [1973] 3 SCR 587 : (1973) 1 SCC 813; *State of Maharashtra v. Chandrabhan Tale* [1983] 3 SCR 337 : (1983) 3 SCC 387; *O.P. Gupta v. Union of India* [1988] 1 SCR 27 : (1987) 4 SCC 328; *Ajay Kumar Choudhary v. Union of India* [2015] 2 SCR 415 : (2015) 7 SCC 291; *Union of India and Anr. v. S.C. Parashar* [2006] 2 SCR 529 : (2006) 3 SCC 167; *Ranjit Thakur v. Union of India* [1988] 1 SCR 512 : (1987) 4 SCC 611; *B.C. Chaturvedi v. Union of India* [1995] 4 SCR 644 : (1995) 6 SCC 749; *Chairman-cum-Managing Director, Coal India Ltd. v. Mukul Kumar Choudhuri* [2009] 13 SCR 487 : AIR 2010 SC 75 – referred to.

### List of Acts

Payment of Wages Act; MSEDCL Employees Services Regulations, 2005; Constitution of India.

### List of Keywords

Dismissal order; Fresh show-cause notice for punishment; Treating suspension period as punishment; Punishment of dismissal disproportionate; De Novo Proceedings; Subsistence Allowance;

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Reporting condition; Disciplinary proceedings Notice; Dismissal from service; Treatment of suspension period as punishment; Proportionality of punishment.

**Case Arising From**

CIVIL APPELLATE JURISDICTION: Civil Appeal No(s). 8459-8460 of 2026

From the Judgment and Order dated 05.04.2024 and 11.11.2024 of the High Court of Judicature at Bombay at Nagpur in WP No. 1200 of 2023 and MCA No. 357 of 2024, respectively

**Appearances for Parties**

*Adv. for the Appellant(s):*  
Ms. Asmita Singh.

*Advs. for the Respondent(s):*  
Ms. Archana Pathak Dave, A.S.G., Prabhat Kumar, Bhadresh Harikant, Ms. Jayati Sharma, Ms. Pallavi Sharma.

Petitioner-in-person.

**Judgment / Order of the Supreme Court****Judgment****Nongmeikapam Kotiswar Singh, J.**

1. IA No. 61680 of 2025 seeking exemption from payment of court fee is allowed.
2. Leave granted.
3. The present appeal arises out of the judgment and order dated 05.04.2024 passed by the High Court of Judicature at Bombay, Nagpur Bench, in Writ Petition No. 1200 of 2023, whereby the writ petition preferred by the Appellant came to be dismissed. The Appellant also assails the order dated 11.11.2024 passed by the High Court in MCA No. 357 of 2024, by which the review application preferred by her was also rejected.
4. The dispute arises from the disciplinary proceedings initiated against the Appellant, who was employed with the Maharashtra

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State Electricity Distribution Company Limited (hereinafter referred to as “MSEDCL”). The proceedings culminated in the order dated 12.07.2017, by which the Appellant was dismissed from service and the period of suspension was directed to be treated as punishment. The order of dismissal has been upheld by the Labour Court, the Industrial Court and the High Court. Having failed before the said fora, the Appellant has approached this Court.

### **FACTUAL BACKGROUND**

5. The Appellant, Surekha Domaji Bele, was appointed as a Lower Division Clerk in the erstwhile Maharashtra State Electricity Board, O&M Circle, Chandrapur, pursuant to the appointment order dated 01.04.1985. She joined the service on 02.04.1985. She was thereafter promoted as an Upper Division Clerk with effect from 11.04.1988. The Appellant was in the service of the Respondent-management for more than two decades before the disciplinary proceedings that form the subject matter of the present appeal were initiated, resulting in her dismissal from service.
6. The record indicates that certain service disputes had arisen between the Appellant and the management of MSEDCL much before the disciplinary action in issue was initiated. The Appellant had been reverted to the post of Lower Division Clerk on 29.09.1995, which she challenged. She was thereafter transferred from Ballarsha to the Warora Pole Factory on 16.01.2002, which she successfully challenged, and the said transfer order was set aside on 24.06.2003. The Appellant also stated that she had initiated proceedings under the Payment of Wages Act and other proceedings in respect of her service grievances. According to the Appellant, the subsequent disciplinary action was a counterblast to the proceedings she initiated against the management. The Respondent, however, has maintained that the disciplinary proceedings were founded upon acts of misconduct affecting discipline and office functioning.
7. On 04.09.2006, the Appellant was placed under suspension pending enquiry. The suspension order alleged acts of indiscipline, insubordination, disobedience of superior officers, tampering with official documents and negligence. The suspension order also recorded that during the period of suspension the Appellant would be entitled to the subsistence allowance as per rules. It further directed

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her to mark attendance once every week, on Wednesday, at the office of the Executive Engineer, O&M Division, MSEDCL, Warora. The Appellant's case is that the direction to report at Warora was unjustified because her earlier transfer to Warora had already been set aside. The Respondent's case is that the reporting condition was validly imposed under the Service Regulations and that the Appellant did not comply with the same.

8. A charge-sheet dated 19.09.2006 was then issued to the Appellant. Broadly stated, the charges alleged indiscipline, insubordination or misbehaviour, disobedience of superior officers, tampering with official documents, negligence in the discharge of duty, and misuse of company property. The Appellant did not file a reply to the charge-sheet, but instead sought copies of certain documents. According to her, although she requested those documents on 26.11.2006, they were supplied only on 18.02.2008.
9. The domestic enquiry was thereafter taken up in March 2008. The Appellant's case is that the enquiry was scheduled on 24.03.2008, but she was required to appear as a witness in another proceeding on that date. The enquiry then was adjourned to 25.03.2008. On 25.03.2008, the Appellant appeared before the Enquiry Officer and sought further time of 8 to 10 days to participate in the enquiry. However, the request was declined. The Enquiry Officer then proceeded ex parte, examined five witnesses in the absence of the Appellant and closed the enquiry.
10. The Enquiry Officer submitted his report on 25.04.2008. Based on the said enquiry report, the Respondent issued a show-cause notice dated 25.04.2008 proposing dismissal from service. The Appellant challenged the said show-cause notice by filing Complaint (ULP) No. 34 of 2008 before the Labour Court, Chandrapur.
11. The Labour Court, by order dated 29.11.2014, held that the enquiry was not fair and the finding was perverse. The Respondent-management then challenged the said order of the Labour Court before the Industrial Court by filing Revision (ULP) No. 4 of 2015. By order dated 14.08.2015, the Industrial Court set aside the Labour Court's order dated 29.11.2014 and remanded the matter to the Labour Court by permitting the Respondent-management to establish the misconduct by leading evidence before the Labour Court, since the domestic enquiry had been found not to be fair.

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12. After remand, proceedings in Complaint (ULP) No. 34 of 2008 resumed before the Labour Court. The Respondent-management led evidence before the Labour Court to prove the misconduct. The Appellant sought an opportunity to respond to the charge-sheet in view of the post-remand proceedings, but the said request was declined. Upon consideration of the evidence adduced before it, the Labour Court, by judgment dated 27.06.2017, held that the misconduct stood proved. The Labour Court also held that the show-cause notice dated 25.04.2008 was legal and proper and accordingly, dismissed the Complaint (ULP) No. 34 of 2008.
13. The judgment dated 27.06.2017 of the Labour Court is material for the present appeal because the misconduct was ultimately sustained in a manner different from the earlier domestic enquiry. The show-cause notice dated 25.04.2008 had been issued based on the domestic enquiry. That enquiry, however, did not remain the effective foundation for sustaining the misconduct, since it was held to be perverse and the management was thereafter permitted by the Industrial Court to prove the charges by leading evidence before the Labour Court after remand. The misconduct was ultimately held proved based on such evidence led before the Labour Court. Thus, though the finding of misconduct has attained finality, the foundation on which such finding rested was the post-remand adjudication before the Labour Court, and not the earlier domestic enquiry report. This distinction has to be kept in mind while we examine the Appellant's grievance regarding Regulation 88(j) of the MSedCL Employees Services Regulations, 2005 (hereinafter referred to as "Service Regulations").
14. After the Labour Court dismissed the Complaint (ULP) No. 34 of 2008 on 27.06.2017, the Respondent passed the order dated 12.07.2017 dismissing the Appellant from service. By the same order, the Respondent directed that the period of suspension shall be treated as punishment. The dismissal order records that the Appellant had not submitted any explanation to the show-cause notice dated 25.04.2008. The Appellant's grievance is that the Respondent relied on that earlier show-cause notice, though the misconduct was ultimately sustained on the basis of evidence led before the Labour Court after remand. No fresh notice was issued after the findings recorded in the de novo proceedings before the Labour Court.

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15. The Appellant challenged the Labour Court's judgment dated 27.06.2017 by filing Revision (ULP) No. 37 of 2017 before the Industrial Court. The said revision was dismissed by the Industrial Court on 08.06.2018. The Appellant did not challenge that order further.
16. The Appellant subsequently challenged the dismissal order dated 12.07.2017 by filing Complaint (ULP) No. 28 of 2017 before the Labour Court. In the said complaint, she questioned the dismissal order on several grounds, including the competence of the disciplinary authority to pass the dismissal order, absence of proper post-enquiry show-cause notice, non-payment of subsistence allowance, illegal treatment of the suspension period as punishment, and disproportionality of the penalty of dismissal.
17. By judgment dated 08.08.2019, the Labour Court dismissed the Complaint (ULP) No. 28 of 2017. It held that the Appellant could not reopen the finding of misconduct, since the said finding had already been recorded in Complaint (ULP) No. 34 of 2008 and affirmed in revision by the Industrial Court. The Labour Court further held that the Executive Engineer was competent to impose the punishment of dismissal, that no fresh show-cause notice was required, that the treatment of the suspension period as punishment was valid, and that the punishment of dismissal could not be said to be shockingly disproportionate.
18. The Appellant carried the matter in Revision (ULP) No. 14 of 2019 before the Industrial Court. By judgment dated 18.01.2023, the Industrial Court dismissed the revision and affirmed the Labour Court's judgment dated 08.08.2019. The Industrial Court held that the issue of misconduct had attained finality, that the dismissal order was passed by the competent disciplinary authority, and that no interference was warranted with the punishment imposed.
19. The Appellant thereafter filed a writ petition, viz., Writ Petition No. 1200 of 2023 before the High Court of Judicature at Bombay, Nagpur Bench. The High Court, by judgment dated 05.04.2024, dismissed the writ petition. It upheld the concurrent findings of the Labour Court and the Industrial Court. The High Court rejected the Appellant's contentions regarding lack of competency of the disciplinary authority, non-conformity to the prescribed format of the dismissal order, show-cause notice, treatment of suspension period and proportionality of

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punishment. The review application filed by the Appellant in MCA No. 357 of 2024 was also dismissed by the High Court on 11.11.2024.

20. The Appellant had earlier approached this Court in SLP(C) No. 1400 of 2025. By order dated 14.02.2025, this Court permitted withdrawal of the said petition with liberty to file a fresh petition on the same and subsequent cause of actions and further directed that delay would not come in the way if the fresh petition was filed within the time indicated. The present appeal arises in this background.
21. The material sequence may therefore be stated briefly. The Appellant was suspended on 04.09.2006. She was charge-sheeted on 19.09.2006 and was served with a show-cause notice dated 25.04.2008 after the domestic enquiry. The domestic enquiry was thereafter found not to be fair. In revision, the Industrial Court remanded the matter to the Labour Court on 14.08.2015 and permitted the Respondent-management to prove the misconduct before the Labour Court rather than hold a fresh domestic enquiry. Upon remand, evidence was led before the Labour Court and misconduct was held proved by judgment dated 27.06.2017. The Respondent thereafter passed the dismissal order dated 12.07.2017 relying on the earlier show-cause notice dated 25.04.2008. The Appellant's challenge to the finding of misconduct in Revision (ULP) No. 37 of 2017 failed and was not carried further. Her separate challenge to the dismissal order also failed before the Labour Court, the Industrial Court and the High Court.
22. The finding of misconduct has, therefore, attained finality and is not being reopened in the present appeal. The question before us is narrower. It is whether, after the domestic enquiry was found defective and the misconduct was thereafter proved before the Labour Court in the de novo proceedings, the Respondent could impose dismissal by relying substantially on the earlier show-cause notice dated 25.04.2008 which was based on the domestic enquiry was earlier found to be vitiated by the Labour Court. The connected questions relate to the competence of the disciplinary authority, denial of subsistence allowance, treatment of the suspension period as punishment, and proportionality of the dismissal order.

### **SUBMISSIONS OF THE PARTIES**

23. The Appellant submitted that the order of dismissal is without the authority of law. According to her, she was appointed by the



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Superintending Engineer and, therefore, could not have been dismissed by the Executive Engineer a post lower to Superintending Engineer. It was urged that the courts below failed to appreciate that the punishment of dismissal could not be imposed by an authority lower than the appointing authority.

24. The Appellant submits that the Regulation 88(j) of the MSEDCL Employees Service Regulations contemplates a notice after the departmental enquiry is completed, communicating the findings of the competent authority and calling upon the employee to show cause against the contemplated punishment. The show-cause notice dated 25.04.2008 was issued based on the domestic enquiry, but the Labour Court subsequently found that enquiry defective. Pursuant to the remand by the Industrial Court, the Respondent-management led evidence before the Labour Court and the misconduct was proved in the de novo proceedings before the Labour Court and not by way of a domestic enquiry. According to the Appellant, once the finding was based on the de novo adjudication before the Labour Court, a fresh notice under Regulation 88(j) was mandatory before imposing the penalty of dismissal. It is urged that reliance on the earlier show-cause notice, which was based on a domestic enquiry that was held defective, is contrary to the mandate of Regulation 88(j).
25. The Appellant has also urged that she was not paid subsistence allowance during suspension from 04.09.2006 till the date of dismissal on 12.07.2017, a period of nearly eleven years. It is submitted that subsistence allowance is a means of survival and of effective defence. While the Appellant acknowledges that the suspension order required reporting at Warora, she contends that complete denial of subsistence allowance for such a long period could not be mechanically justified merely on that basis, especially when there is no finding of gainful employment elsewhere and when the Service Regulations themselves require review of suspension beyond six months.
26. The Appellant also submits that the punishment of dismissal was grossly disproportionate, and that, in addition, the dismissal order also treated the period of suspension as punishment, thereby imposing two consequences by way of punishment for the same misconduct arising out of the same proceeding. She also submitted that she had rendered about twenty-one years of service before the disciplinary

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proceedings were initiated. It is submitted that several allegations resemble minor lapses under Schedule A of Regulation 86, and that there was no allegation of financial misappropriation, corruption, moral turpitude or pecuniary loss to the employer, and that the competent authority did not apply its mind to the long service, previous conduct and the possibility of imposing a lesser penalty.

27. Per contra, the Respondent supports the judgments of the Labour Court, the Industrial Court and the High Court. The Respondent submits that the misconduct had been proved before the Labour Court after the management led the evidence. That finding of the Labour Court was tested in revision before the Industrial Court and attained finality. The Respondent submits that the Appellant cannot now be permitted to reopen the finding of misconduct in the later proceedings challenging the dismissal order.
28. The Respondent further submits that no fresh show-cause notice was required, since the earlier show-cause notice had been held legal and proper by the Labour Court and Industrial Court. On the quantum of punishment, it is submitted that the charges were serious, related to discipline and office functioning, and therefore dismissal could not be said to be disproportionate. On the issue of subsistence allowance, the Respondent relies on the reporting condition in the suspension order and contends that the Appellant did not comply with the said condition.

### ISSUES FOR CONSIDERATION

29. Upon considering the record and the rival submissions, the following questions arise for consideration:
  - Firstly**, whether the dismissal order dated 12.07.2017 was passed by the competent authority;
  - Secondly**, whether a fresh show-cause notice for punishment was required after the de novo proceedings before the Labour Court;
  - Thirdly**, whether the plea relating to subsistence allowance requires reconsideration;
  - Fourthly**, whether the direction treating the suspension period as punishment is valid; and
  - Fifthly**, whether the punishment of dismissal is disproportionate.

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30. The Appellant has laid considerable emphasis on the fact that she was appointed by the Superintending Engineer but dismissed by the Executive Engineer. According to her, the dismissal order is invalid because it was passed by an authority lower than the appointing authority.
31. The courts below examined the applicable MSEDCL Employees Service Regulations and found that the Appellant was a Pay Grade-III employee. They further held that, under the relevant regulations and schedules governing disciplinary action, the Executive Engineer was competent to impose punishment on an employee belonging to that category. The High Court also considered the Appellant's reliance on the schedule relating to transfers and held that the said schedule did not govern dismissal from service.
32. The question of competence has to be determined with reference to the service regulations governing the employee. If the regulations empower a particular authority to impose punishment on a specified category of employees, the order cannot be set aside merely on a general proposition that the authority that passed the punishment order should not be below the authority that issued the appointment order. The Appellant has not established that the Executive Engineer was excluded from exercising the power of disciplinary authority under the applicable Regulations.
33. The relevant entry in the Service Regulations expressly deals with the authority competent to dismiss or remove an employee from service. The relevant entry reads as follows:

*"Sr. No. 44 - Regulation No. 25 - To dismiss or remove from service after following the prescribed procedure.*

*Competent Authority: Appointing Authority as prescribed in Third Schedule.*

*OR*

*The **Competent Authority prescribed in Schedule 'C'.**"*

34. Relevant portion of Schedule 'C' reads as follows:

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| Sr. No. | Category of employees                                                                     | Competent Authority                                                                              | Appellate Authority (for 1st Appeal)                | 2nd Appellate Authority if 2nd appeal is permitted by the Appellate Authority |
|---------|-------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------|-----------------------------------------------------|-------------------------------------------------------------------------------|
|         | iii) <b>Employees in Pay Gr.III in the Field</b> (excluding employees in Security Deptt.) | <b>Officers of the rank of E.E./ A.C.P.O./ E.E.(Stores)/ A.C.O.S. or equivalent &amp; above.</b> | Officers of the rank of S.E. or equivalent & above. | Head of Department.                                                           |

35. The Appellant's challenge to the competence of the Executive Engineer also rests substantially on the protection contained in Article 311(1) of the Constitution of India. There can be no dispute that if Article 311(1) applies, no service regulation can override that constitutional protection. However, the threshold question is whether the Appellant, being an employee of MSEDCL, has established that she held a civil post under the Union or the State. In **S.L. Agarwal v. General Manager, Hindustan Steel Ltd., (1970) 1 SCC 177**, a Constitution Bench of this Court considered whether an employee of Hindustan Steel Ltd. could claim protection under Article 311. The relevant portion reads as follows:

*"6. The question that arises in this case is : whether the employees of a Corporation such as the Hindustan Steel Ltd., are entitled to the protection of Art. 311? This question can only be answered in favour of the Appellant if we hold that the Appellant held a civil post under the Union. It was conceded before us that the Appellant could not be said to belong to the civil service of the Union or the State. Art. 311, on which this contention is based, reads as follows :*

*'311. Dismissal, removal or reduction in rank of persons employed in civil capacities under the Union or a State.*

*(1) No person who is a member of a civil service of the Union or an all-India service or a civil service or a State or holds a civil post under the Union or a State shall be*

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*dismissed or removed by an authority subordinate to that by which he was appointed.”*

The Constitution Bench thereafter rejected the argument that employment under a Government-controlled company would, by itself, amount to holding a civil post under the Union. The relevant concluding paragraph reads as follows:

*“10...The existence of shareholders, of capital raised by the issuance of shares, the lack of connection between the finances of the corporation and the consolidated fund of the Union rather make out a greater independent existence than that of the corporation in the English case. **We must, therefore, hold that the corporation which is Hindustan Steel Limited in this case is not a department of the Government nor are the servants of it holding posts under the State.** It has its independent existence and by law relating to Corporations it is distinct even from its members. In these circumstances, the Appellant, who was an employee of Hindustan Steel Limited, does not answer the description of a holder of ‘a civil post under the Union’ as stated in the article. The Appellant was not entitled to the protection of Art. 311. The High Court was therefore right in not affording him the protection. The appeal fails and is dismissed but in the circumstances of the case we make no order about costs.”*

36. The broader principle is that a corporation or company having a legal personality distinct from the Government is not, merely because of Government ownership or control, is to be treated as a Government department for the purpose of Article 311. What is material is whether the employee holds a civil post under the Union or State or not. In the present case, it has not been established that the Appellant holds a civil post thus, entitled to the protection as envisaged in Article 311 of the Constitution.
37. We therefore find no error in the concurrent finding that the Executive Engineer was competent to pass the order of dismissal.

**SECOND ISSUE - WHETHER A FRESH SHOW-CAUSE NOTICE FOR PUNISHMENT WAS REQUIRED AFTER THE DE NOVO PROCEEDINGS BEFORE THE LABOUR COURT**

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38. The Appellant's principal submission is that the show-cause notice dated 25.04.2008 was issued on the basis of the domestic enquiry. That enquiry was thereafter found to be not fair. The Industrial Court, by order dated 14.08.2015, remanded the matter to the Labour Court and permitted the Respondent-management to establish the misconduct before the Labour Court. According to the Appellant, once misconduct was proved in the de novo proceedings before the Labour Court, the Respondent could not have mechanically acted upon the earlier show-cause notice issued based on the earlier domestic enquiry which was found to be defective.
39. The submission requires consideration in the light of Regulation 88(j) of the MSIEDCL Service Regulations. Regulation 88(j), titled "Show Cause Notice", reads as follows:

***"After the enquiry is completed, the Competent Authority shall serve a notice on the employee communicating to him its findings and asking him to show cause within a specified time as to why the contemplated punishment involving dismissal, removal or reversion or withholding of increment/s should not be inflicted on him. The employee may be supplied with a copy of the findings of the Competent Authority or of those of the Enquiry Officer, as the case may be, or he may be given an opportunity to take a copy of such findings."***

40. The language of Regulation 88(j) is significant. It contemplates a notice to be issued after the enquiry is completed. The purpose of such notice is not an empty formality. The employee must be informed of the findings based on which the competent authority proposes to impose punishment and must be given an opportunity to show cause why the contemplated punishment should not be inflicted.
41. The rationale underlying such opportunity was stated by this Court in ***Khem Chand v. Union of India, AIR 1958 SC 300***, where this Court observed as follows:

***"18. In addition to showing that he has not been guilty of any misconduct so as to merit any punishment, it is reasonable that he should also have an opportunity to contend that the charges proved against him do not***

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*necessarily require the particular punishment proposed to be meted out to him. He may say, for instance, that although he has been guilty of some misconduct it is not of such a character as to merit the extreme punishment of dismissal or even of removal or reduction in rank and that any of the lesser punishments ought to be sufficient in his case...*

and

**“19.** *To summarise: the reasonable opportunity envisaged by the provision under consideration includes-*

*(a) an opportunity to deny his guilt and establish his innocence...*

*(b) an opportunity to defend himself by cross-examining the witnesses produced against him... and finally*

*(c) an opportunity to make his representation as to why the proposed punishment should not be inflicted on him...”*

42. We are conscious that a second opportunity against proposed punishment is not a mandate in every disciplinary proceeding. However, where the applicable service regulation expressly provides for a post-enquiry notice communicating the findings and calling upon the employee to show cause against the contemplated punishment, the authority must comply with that regulation. In the present case, therefore, the issue arises not as an abstract constitutional requirement, but from the express language of Regulation 88(j).
43. In ***Managing Director, ECIL v. B. Karunakar, (1993) 4 SCC 727***, this Court emphasized the importance of giving the delinquent employee an opportunity to meet the findings which may influence the disciplinary authority. The relevant passage reads as follows:

**“57.** *The findings or recommended punishment by the enquiry officer are likely to affect the mind of the disciplinary authority in his concluding the guilt or penalty to be imposed. The delinquent is, therefore, entitled to meet the reasoning, controvert the conclusions reached*

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*by the enquiry officer or is entitled to explain the effect of the evidence recorded... Even if the disciplinary authority comes to the conclusion that charge or charges is/are proved, the case may not warrant imposition of any penalty. He may plead mitigating or extenuating circumstances to impose no punishment or a lesser punishment. For this purpose the delinquent needs reasonable opportunity or fair play in action."*

44. The Respondent is correct in submitting that where a domestic enquiry is found defective, the employer may be permitted to prove the misconduct before the Labour Court. In ***Workmen of Firestone Tyre & Rubber Co. of India (P) Ltd. v. Management, (1973) 1 SCC 813***, this Court held that:

*"37... Therefore, the position is that even now the employer is entitled to adduce evidence for the first time before the Tribunal even if he had held no enquiry or the enquiry held by him is found to be defective. Of course, an opportunity will have to be given to the workman to lead evidence contra... This right in the management to sustain its order by adducing independent evidence, before the Tribunal, if no enquiry has been held or if the enquiry is held to be defective, has been given judicial recognition over a long period of years."*

45. This Court further held in ***Workmen of Firestone (supra)*** that, when such evidence is adduced before the Tribunal, it is the Tribunal which has to be satisfied on the question of guilt. The relevant paragraph reads as follows:

*"39. Having held that the right of the employer to adduce evidence continues even under the new section, it is needless to state that, when such evidence is adduced for the first time, it is the Tribunal which has to be satisfied on such evidence about the guilt or otherwise of the workman concerned..."*

*40. It has to consider the evidence and come to a conclusion one way or other."*

46. The principle in ***Workmen of Firestone (supra)*** enables the employer to sustain the charge of misconduct by leading evidence before the



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Labour Court where the domestic enquiry is defective. That principle, however, operates at the stage of proving misconduct. It does not dispense with the disciplinary authority's duty to consider the findings that ultimately survive and to decide the appropriate penalty under the applicable Service Regulations. The Labour Court decides whether misconduct is proved. The competent disciplinary authority decides what punishment should follow.

47. The Appellant's submission has to be examined from this limited perspective. After the domestic enquiry was found defective, the Respondent-management was permitted to adduce evidence before the Labour Court. The Appellant was a party to those proceedings. The Labour Court considered the evidence and held that the misconduct stood proved. That finding was carried in revision before the Industrial Court and attained finality. The Appellant cannot, therefore, reopen the finding of misconduct merely on the ground that no fresh notice was issued after the Labour Court recorded its finding. The issue is whether the disciplinary authority, while imposing dismissal on 12.07.2017, could rely substantially on the earlier show-cause notice dated 25.04.2008, though misconduct was ultimately proved in a different manner, namely by adducing evidence adduced before the Labour Court after remand.
48. The show-cause notice dated 25.04.2008 was undoubtedly issued after the domestic enquiry. But the foundation of that notice was the domestic enquiry report. Once the domestic enquiry was found defective, the legally sustainable basis for holding misconduct proved was no longer the domestic enquiry report, but the finding recorded by the Labour Court after evidence was led before it.
49. We are conscious that the Labour Court and the Industrial Court are adjudicatory bodies, that the Appellant had participated in the proceedings before those fora, and that the show-cause notice dated 25.04.2008 was not invalidated. Therefore, the absence of a fresh notice after the Labour Court's finding cannot be treated as causing prejudice in relation to the adjudication of guilt or misconduct.
50. However, the question of punishment stands on a different footing. The disciplinary authority was required to consider the findings which ultimately survived, namely the findings recorded in the de novo adjudication before the Labour Court, and thereafter apply its mind to the appropriate punishment. This consideration necessarily

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included the gravity of the misconduct, the nature of the charges proved, the Appellant's long service, past record, absence or presence of financial loss or dishonesty, and whether a lesser penalty would meet the ends of justice.

51. The dismissal order dated 12.07.2017 proceeds substantially on the footing that a show-cause notice had already been issued after the departmental enquiry and that no explanation had been received from the Appellant. Such an approach does not sufficiently reflect independent consideration by the competent authority of the findings recorded after remand by the Labour Court, or of the factors relevant to the quantum of punishment. The Appellant's failure to reply to the earlier show-cause notice could not have been treated as conclusive when the enquiry on which that notice was founded had itself been found defective and the misconduct was subsequently thereafter established through a separate adjudicatory process and not before the departmental forum.
52. The Labour Court, in Complaint (ULP) No. 34 of 2008, held that misconduct stood proved and that the show-cause notice dated 25.04.2008 was legal and proper. That finding was affirmed in revision. But the question before us is not merely whether the earlier show-cause notice was valid when issued. The question is whether the disciplinary authority could impose dismissal by relying substantially on the earlier notice, without independently considering the findings which ultimately survived after remand and without giving the Appellant an opportunity to place her explanation on the quantum of punishment in the light of those later findings.
53. We also clarify the role of the Labour Court in the post-remand proceedings. Once the domestic enquiry was found defective and the Respondent-management was permitted to prove the misconduct before the Labour Court, the Labour Court was required to decide whether the charges stood proved on the evidence adduced before it. Any observation by the Labour Court describing the misconduct as grave or serious could not substitute the independent satisfaction of the competent authority on the question of penalty. Similarly, the finding that the earlier show-cause notice dated 25.04.2008 was legal and proper could not relieve the competent authority of its obligation to consider the findings which ultimately survived after remand and to apply its own mind on the quantum of punishment.

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54. Regulation 88(j) contemplates that, after the enquiry is completed, the competent authority shall communicate its findings and call upon the employee to show cause against the contemplated punishment. In the peculiar facts of the present case, the enquiry which ultimately sustained the charges was the de novo adjudication before the Labour Court after the earlier enquiry was found defective. Therefore, the decision-making process on punishment could not be treated as complete merely because the earlier show-cause notice was held valid.
55. We, therefore, clarify that our concern is limited to the decision-making process before imposing punishment. Since the disciplinary authority proceeded substantially on the earlier show-cause notice founded on the defective domestic enquiry and did not undertake a fresh consideration of punishment on the basis of the findings by the Labour Court which ultimately survived after remand, the order of dismissal dated 12.07.2017 cannot be sustained. Even if the show-cause notice dated 25.04.2008 was held valid, the seven days' time granted under that notice had long expired. The Respondent under the circumstances ought to have called upon the Appellant afresh to submit her response against the proposed punishment in the light of the findings recorded by the Labour Court after remand.
56. We, accordingly, hold that non-service of a fresh notice after the Labour Court's de novo finding does not vitiate the finding of misconduct, since the Appellant was a party to the adjudicatory proceedings before the Labour Court and the Industrial Court. However, the disciplinary authority was required to apply its independent mind to the findings which ultimately survived after remand to the question of appropriate punishment and issue a fresh show-cause notice on the proposed punishment, for the period of reply in terms of the earlier show-cause notice dated 25.04.2008 had long expired and the basis of it also does not exist.
57. Accordingly, while the finding of misconduct remains undisturbed, the matter deserves to be remitted to the competent authority for fresh consideration as regards the quantum of punishment by issuing a fresh show-cause notice. The Appellant shall be given an opportunity to place her explanation as regards the punishment. The competent authority shall thereafter pass a reasoned order about the punishment proposed to be imposed on the Appellant.

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### **THIRD ISSUE - WHETHER THE PLEA RELATING TO SUBSISTENCE ALLOWANCE REQUIRES RECONSIDERATION**

58. The Appellant has urged that she was not paid subsistence allowance during the entire period of suspension, i.e. from 04.09.2006 till the order of dismissal dated 12.07.2017. The period of suspension continued for nearly eleven years. The grievance cannot be treated as a mere monetary claim of a routine nature. Subsistence allowance is intended to preserve the suspended employee's minimum means of survival and to enable her to effectively defend herself in the disciplinary proceedings.

59. In ***State of Maharashtra v. Chandrabhan Tale, (1983) 3 SCC 387***, this Court explained that subsistence allowance is the bare minimum required for maintenance. This Court held that;

*“20...If the civil servant under suspension, pending a departmental enquiry or a criminal trial started against him, is entitled to subsistence allowance at the normal rate which is a bare minimum required for the maintenance of the civil servant and his family, he should undoubtedly get it... Whether he is lodged in prison or released on bail on his conviction pending consideration of his appeal, his family requires the bare minimum by way of subsistence allowance. Subsistence allowance provided for... at the nominal rate of Re. 1 per month is illusory and meaningless.”*

60. This Court further observed in the same decision that it would be impossible for a civil servant under suspension, who has no other means of subsistence, to defend himself effectively without payment of subsistence allowance. The principle is that the subsistence allowance must be real and meaningful because the employee is kept away from work and is not permitted to earn a regular salary during suspension; hence, it ordinarily cannot be denied.

61. In ***O.P. Gupta v. Union of India (1987) 4 SCC 328***, this Court emphasized that suspension cannot be continued indefinitely and that disciplinary proceedings must be concluded with reasonable diligence. The relevant principle was stated thus:

*“15...It is a clear principle of natural justice that the delinquent officer when placed under suspension is entitled to represent that the departmental proceedings should be*

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*concluded with reasonable diligence and within a reasonable period of time. If such a principle were not recognised, it would imply that the executive is being vested with a totally arbitrary and unfettered power of placing its officers under disability and distress for an indefinite duration."*

62. In **Ajay Kumar Choudhary v. Union of India, (2015) 7 SCC 291**, this Court again cautioned against unduly prolonged suspension. It directed:

*"21. We, therefore, direct that the currency of a Suspension Order should not extend beyond three months if within this period the Memorandum of Charges/Chargesheet is not served on the delinquent officer/employee; if the Memorandum of Charges/Chargesheet is served a reasoned order must be passed for the extension of the suspension."*

63. The above decisions do not mean that every suspension beyond a particular period will be automatically void in all cases, but they underline an important principle that suspension is not to become an indefinite condition of civil and economic disability.
64. At the same time, the Respondent is right in submitting that the reporting condition in the present case cannot be ignored altogether. Regulation 88(a)(i) of the Service Regulations empowers the competent authority to direct a suspended employee to report to it or to any other officer at such intervals as may be deemed necessary during the period of suspension. Regulation 88(a)(i) reads as follows:

*"An employee charged for an act of misconduct or against whom a case in respect of criminal offence is under investigation, enquiry or trial is liable to be suspended by the Competent Authority if his continuance in the post held by him or in the office in which he is working is likely to vitiate the enquiry or to become otherwise detrimental to the proceedings or to the interest of the Organization. **The Competent Authority may in its discretion direct an employee who has been suspended to report to it or to any other Officer at such interval as may be deemed necessary by it during the period of suspension.**"*

65. Regulation 88(a)(ii), however, is equally material. It shows that suspension is not contemplated to be an indefinite state of suspension

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and continuation beyond six months requires review. Regulation 88(a)(ii) reads as follows:

*“(a) In case where an employee is suspended as provided in S.R.88(a)(i), the Competent Authority, who ordered suspension shall revoke the suspension, if preliminary enquiries instituted against him are completed and also disciplinary action completed within a period of six months.*

***(b) In case, where the preliminary enquiries are not completed and disciplinary action is yet to start and the suspension of an employee is continued beyond six months, then the case shall be referred to the next higher authority of the Suspending Authority with a detailed report giving the reasons for delay, if any, together with specific recommendations of the Suspending Authority for review of suspension. On receipt of such report, the next higher authority of the Suspending Authority shall consider the matter and take the appropriate decision as to whether the suspension is to be continued or revoked.”***

66. Regulation 88(a)(iii), which deals with subsistence allowance, reads as follows:

*“An employee shall, **during the period of suspension, be eligible to a Subsistence Allowance** as the Competent Authority may decide which shall in no case exceed 50 percent of the Basic Pay that he was drawing prior to his suspension in addition to the full Dearness Allowance. Entitlement to Subsistence Allowance shall be dependent upon compliance by the employee under suspension or reporting his presence as directed in his suspension order **subject to leave of absence** that may be granted to him by the Competent Authority.”*

67. The suspension order dated 04.09.2006 also contained two relevant clauses. First, it recorded that during suspension the Appellant would be entitled, as per MSEDCL rules, to subsistence allowance. Secondly, it directed the Appellant to mark attendance once in a week at Warora. The relevant portions read as follows:

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*“As per rules of the MSEDCL, during the period of suspension you will be entitled to get 50% basic pay + other allowances as per rule, subsistence allowance.”*

and

*“...you are directed to mark your attendance once in a week on Wednesday or if there is public holiday on Wednesday, on that second day in the office of E.E. O&M Dn. MSEDCL, Warora at 10.00 a.m.”*

68. Thus, the reporting condition had a regulatory foundation and cannot be treated as wholly extraneous. However, the existence of a reporting condition does not mean that subsistence allowance can be mechanically denied for the entire period of nearly eleven years without examining the effect of the remaining parts of Regulation 88. The object of requiring a suspended employee to report is to ensure that the employee remains available to the employer, does not evade the proceedings, and does not take advantage of suspension by engaging in gainful employment elsewhere or becoming unavailable. In the present case, there is no finding before us that the Appellant was gainfully employed elsewhere during the period of suspension.
69. A conjoint reading of Regulation 88(a)(i), Regulation 88(a)(ii) and Regulation 88(a)(iii) is therefore necessary. Regulation 88(a)(i) permits the competent authority to impose a reporting condition during suspension. Regulation 88(a)(iii) makes entitlement to subsistence allowance dependent upon compliance with such reporting direction, subject to leave of absence that may be granted by the competent authority. However, these provisions cannot be read apart from Regulation 88(a)(ii), which requires review if suspension continues beyond six months. The Regulations do not contemplate that an employee may remain under suspension indefinitely on the strength of the original suspension order alone. Once the suspension crosses six months, its continuation must be reviewed in the manner contemplated by Regulation 88(a)(ii). In the absence of such review, continued reliance on the original suspension order would be contrary to the Regulations.
70. The present case is not an ordinary case of short suspension. The Appellant was suspended on 04.09.2006. The first period of six months expired on 03.03.2007. She nevertheless continued



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under suspension till the dismissal order dated 12.07.2017, i.e., for nearly eleven years. During this period, she was required to defend herself in the departmental process, before the Labour Court, and in connected proceedings. Denial of subsistence allowance for such a prolonged period directly affects the employee's ability to survive and to defend herself effectively.

71. For the period from 04.09.2006 to 03.03.2007, the original reporting condition in the suspension order may be relevant while considering the Appellant's entitlement to subsistence allowance, including whether leave of absence from reporting ought to have been sought or granted. However, for the period after 03.03.2007, the Respondent cannot rely solely on the original reporting condition to deny subsistence allowance for the entire remaining period up to 12.07.2017.
72. The words "subject to leave of absence that may be granted to him by the Competent Authority" in Regulation 88(a)(iii) must also be understood in the same regulatory setting. The question of leave of absence from reporting would properly arise during the subsistence of a valid suspension order and reporting direction. Once the first six-month period expired, the Respondent was required to show that the suspension was reviewed and continued in accordance with Regulation 88(a)(ii). The original reporting condition cannot operate perpetually as a ground to deny subsistence allowance for the post-six-month period, which unfortunately is not on record nor justified by the Respondent.
73. We are, therefore, of the view that even if the Appellant's non-reporting at Warora is treated as relevant for the first six months, the position after 03.03.2007 stands on a different footing. In the absence of any order reviewing or validly continuing the suspension beyond six months being shown on record, the Appellant shall be treated as eligible for subsistence allowance for the period after 03.03.2007 till 12.07.2017.
74. With respect to the first six months, i.e., 04.09.2006 to 03.03.2007, the Appellant's explanation for not reporting at Warora also requires consideration. Her case is that the direction to report at Warora was unjustified because her earlier transfer to Warora had already been set aside. Whether this explanation was sufficient for the initial six-month period, and whether leave of absence from reporting ought to have been granted, are matters which the competent authority was required to examine.
75. Regulation 88(a)(v) further supports this view. It reads as follows:



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*“When an employee has not been wholly exonerated and the period of suspension has been treated as punishment, the employee shall not be eligible to any arrears of pay and allowances for the period of suspension nor **shall the Subsistence Allowance already paid or payable to the employee on any account be recoverable from the employee.**”*

76. Regulation 88(a)(v), extracted above, uses the expression “Subsistence Allowance already paid or payable”. The expression “payable” is important. It shows that subsistence allowance occupies a separate position from arrears of pay and allowances. Therefore, even where the employee is not wholly exonerated and the suspension period is not treated as duty, the subsistence allowance which was payable under the Regulations cannot be denied merely because the suspension period is later treated as punishment.
77. Accordingly, the claim for subsistence allowance shall be determined in two parts. For the period from 04.09.2006 to 03.03.2007, the authority shall consider the original reporting condition, the Appellant’s explanation for non-reporting at Warora, the effect of her earlier transfer to Warora having been set aside, and whether leave of absence from reporting ought to have been granted. For the remaining period after 03.03.2007 till 12.07.2017, the Appellant shall be treated as eligible for subsistence allowance.

**FOURTH ISSUE - WHETHER THE DIRECTION TREATING THE SUSPENSION PERIOD AS PUNISHMENT IS VALID**

78. The Appellant next contends that the dismissal order dated 12.07.2017 could not have further directed that the period of suspension shall be treated as punishment. According to the Appellant, this direction amounts to imposing an additional punishment for the same misconduct arising out of the same disciplinary proceeding. This contention has to be considered in the context of the fact that the Appellant remained under suspension from 04.09.2006 till 12.07.2017, i.e., for nearly eleven years.
79. Treating the entire suspension period as punishment may deprive the employee of the ordinary service and monetary benefits attached to that period, including arrears of pay and allowances, continuity-related benefits, increments or other service advantages depending on the

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rules, and consequential retiral or terminal benefits. In the present case, this consequence is particularly severe because the suspension period was for nearly eleven years. Therefore, treating the entire period as punishment is not a routine consequential adjustment. It has the practical effect of depriving the Appellant of the standard service benefits for a substantial part of her remaining service, apart from the subsistence allowance which Regulation 88(a)(v) expressly protects if it was already paid or payable.

80. At the outset, it is necessary to distinguish between two concepts of suspension in service jurisprudence. First, suspension pending enquiry, which is an interim departmental arrangement to facilitate proper enquiry and is not, by itself, a form of punishment. Secondly, suspension as a substantive form of punishment, where the applicable rules expressly prescribe suspension as one of the penalties which may be imposed after misconduct is proved.
81. Therefore, the Appellant's suspension from 04.09.2006 was not, by itself, a punishment. It was a suspension pending enquiry. The present issue arises because, after imposing the penalty of dismissal from service, the disciplinary authority further directed that the entire period already spent under suspension shall also be treated as punishment.
82. Regulation 91 of the MSEDCL Employees Service Regulations prescribes punishments for minor lapses and acts of misconduct. Insofar as acts of misconduct are concerned, Regulation 91(2) includes suspension, reversion, removal and dismissal as separate punishments. The relevant portion reads:

*"2. Acts of misconduct*

*(a) As in (d) above but for loss in excess of Rs.50,000/- according to the gravity of the offence and the loss incurred by the Company.*

*(b) Withholding of increment with cumulative effect.*

*(c) Stoppage of promotion.*

*(d) **Suspension.***

*(e) Reversion to a lower post.*

*(f) Removal from service.*

*(g) **Dismissal.**"*

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83. Thus, while Regulation 91(2)(d) contemplates suspension as an independent penalty, Regulation 88(a)(v) deals with the consequences where an employee is not wholly exonerated and the suspension period is treated as punishment. The Regulation 88(a)(v) has been already quoted under para 75 (*supra*).

84. The aforesaid provision does contemplate that, where an employee is not wholly exonerated, the period spent under suspension may be treated as punishment if the disciplinary authority chooses to treat the period of suspension as punishment for the misconduct proved. However, it does not create an independent second substantive penalty under Regulation 91 over and above the penalty of dismissal imposed for the proved misconduct. The effect of such punishment of suspension being imposed is that arrears of pay and allowances for the suspension period, will be denied but subsistence allowance already paid or payable cannot be forfeited or denied.

The said provision explains what would be the effect when the disciplinary authority imposes the penalty of punishment by treating the period of suspension as punishment.

85. If the authority describes the entire past suspension period as punishment, in addition to imposing of the punishment of dismissal, a question will arise whether imposition of such additional punishment will be permissible under law.

86. In ***Union of India v. S.C. Parashar, (2006) 3 SCC 167***, this Court considered a case where the disciplinary authority had imposed an amalgam of penalties in the same disciplinary proceeding. The employee had been visited with reduction in pay, loss of seniority and recovery of loss. This Court held as follows:

*“12. The penalty imposed upon the Respondent is an amalgam of minor penalty and major penalty. The Respondent has been inflicted with three penalties : (1) reduction to the minimum of the time-scale of pay for a period of three years with cumulative effect; (2) loss of seniority; and (3) recovery of 25% of the loss incurred by the Government to the tune of Rs.74,341.89p., i.e., Rs.18,585.47p. on account of damage to the Gypsy in 18 (eighteen) equal monthly instalments. Whereas reduction of time-scale of pay with cumulative effect is a major penalty within the meaning of clause (v) of Rule 11 of the CCS*

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*Rules, loss of seniority and recovery of amount would come within the purview of minor penalty, as envisaged by clause (iii) and (iii)(a) thereof. The Disciplinary Authority, therefore, in our opinion acted illegally and without jurisdiction in imposing both minor and major penalties by the same order. Such a course of action could not have been taken in law."*

87. The principle emerging from the aforesaid decision is that where the service rules prescribe distinct penalties, the disciplinary authority cannot impose an amalgam of separate substantive penalties for the same misconduct unless the rules authorise such a course. The order of punishment must therefore be tested with reference to the penalties prescribed under the governing Regulations.
88. Accordingly, we hold that the Appellant cannot be visited with both dismissal under Regulation 91(2)(g) and a separate punishment of suspension under Regulation 91(2)(d) for the same misconduct. The direction in the dismissal order dated 12.07.2017 treating the suspension period as punishment shall not operate as an independent or additional penalty over and above the harsher penalty finally imposed.
89. The competent authority shall, while passing the fresh order on punishment, separately decide the service and monetary consequences of the suspension period from 04.09.2006 to 12.07.2017 only in accordance with Regulation 88(a)(v). While doing so, it shall keep in mind that subsistence allowance already paid or payable stands protected under the said provision, and that the past suspension period cannot be treated as an independent additional punishment for the same misconduct, if the disciplinary authority chooses a more severe punishment.

#### **FIFTH ISSUE - WHETHER THE PUNISHMENT OF DISMISSAL IS DISPROPORTIONATE**

90. The Appellant has urged that the punishment of dismissal is grossly disproportionate to the charges proved.
91. The Appellant has submitted that several allegations, even if accepted, would fall within the category of minor lapses under Regulation 86(2) read with Schedule A of the MSEDCL Employees Service Regulations, 2005. She has relied upon entries such as late attendance, irregular attendance, absence without prior permission, minor negligence, lack of courtesy towards colleagues and lack of respect towards superiors not amounting to insubordination.

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92. Regulation 86 classifies offences as follows:

***“86. CLASSIFICATION OF OFFENCES***

*(1) Offences are classified in two categories as shown below-*

*(a) Minor lapses, and*

*(b) Acts of misconduct*

*(2) Minor lapses are those mentioned in Schedule ‘A’ (with any modification that may be effected by the Company) which may result in a punishment upto the limit prescribed in (1) of the Statement below Regulation 91.*

*(3) Acts of misconduct are those which have been listed in Schedule ‘B’ (with such modifications as may be specified by the Company from time to time) for which maximum penalty is as prescribed in (2) of the Statement below Service Regulation 91 according to the gravity of the misconduct.*

*(4) Any minor lapse may be treated as an act of misconduct if repeated for a third time within the period of one year and may be dealt with accordingly.*

*Note: Schedules A and B appended to the Service Regulations are only indicative of what could be deemed as a minor lapse or act of misconduct. The list is neither complete nor exhaustive. Such of the irregularities or offences committed by an employee not included in the list but commonly or generally known or understood to be against the cannon of good behavior and discipline, may be deemed to have been included in either of the two schedules according to the nature and gravity of the offence committed, at the discretion of the authority competent to order departmental proceedings.”*

93. Schedule A, on which the Appellant relies, enumerates minor lapses. The relevant entries charged against Appellant are extracted hereunder:

***“SCHEDULE ‘A’***

***MINOR LAPSES***

***[See Service Regulation 86(2)]***

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*1. Late attendance on more than 3 occasions in a month.*

*2. Irregular attendance.*

*4. Absence without prior permission.*

*6. Instances of carelessness of minor nature.*

*7. Minor negligence in the discharge of duties assigned.*

*8. Instances of lack of normal courtesy towards colleagues and subordinates.*

*14. Lacking in sense of respect towards superiors (not amounting to disrespect or insubordination).*

*Note: Any of the above instances of misbehavior may, at the discretion of the Competent Authority, be treated as an act of misconduct according to the circumstances and gravity of the misbehavior.”*

94. Schedule B deals with acts of misconduct. The entries relevant to the present case are as follows:

**“SCHEDULE ‘B’**

**ACTS OF MISCONDUCT**

**[See Service Regulation 86(3)]**

*9. Indiscipline.*

*12. Insubordination, insolence, impertinence, rude and uncivil behavior or commission of any act subversive of good behavior.*

*13. Disobedience of any order of the superior officer or a senior officer.*

*14. Theft, embezzlement, fraud, falsification of account, tampering with official documents, breach of trust, misappropriation or dishonesty in connection with the affairs or property of the Company.*

*22. Breach of any Rules, Regulation, Circulars, Orders or Instructions.*

*23. Negligence or neglect of work.”*

95. Regulation 91 prescribes the punishments for minor lapses and acts of misconduct. The material portion reads as follows:

**Surekha Domaji Bele v. Executive Engineer, Testing Division, MSedCL****“91. PUNISHMENTS FOR MINOR LAPSES AND ACTS OF MISCONDUCT**

*The following punishments are prescribed for minor lapses and acts of misconduct.*

**1. Minor lapses**

- (a) Warning*
- (b) Reprimand*
- (c) Fine up to 1/3rd of the gross salary of the employee.*
- (d) Recovery from gross salary / or an encashment of leave at the time of retirement to make up wholly or partly the pecuniary loss caused to the Company due to negligence or breach of orders (amounts less than Rs.50,000/-).*
- (e) Withholding of increment without cumulative effect.*

**2. Acts of misconduct**

- (a) As in (d) above but for loss in excess of Rs.50,000/- according to the gravity of the offence and the loss incurred by the Company.*
- (b) Withholding of increment with cumulative effect.*
- (c) Stoppage of promotion.*
- (d) Suspension.***
- (e) Reversion to a lower post.*
- (f) Removal from service.*
- (g) Dismissal.”***

96. Note 4 below Regulation 91 is also relevant. It reads:

*“Note 4: The act of grave misconduct like theft of energy/ abetment in theft of energy, obtaining or attempting to obtain illegal gratification, misappropriation of Company’s property or money or stores, theft, fraud, falsification of account, tampering with official document, gross*

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*irregularity or negligence in discharging of official duties with a dishonest motive, act of disloyalty, sabotage etc. (The list is illustrative and not exhaustive and is intended to serve as guide) shall necessarily merit action of imposing one of the major penalties as prescribed for the acts of misconduct and the Competent Authority shall not have any discretion to convert the act of misconduct into minor lapses and impose the punishment prescribed for the minor lapses."*

97. The above scheme shows that Schedule A and Schedule B are not rigid watertight compartments. The Note to Regulation 86 expressly states that the Schedules are indicative and not exhaustive. It further permits irregularities or offences to be treated either as minor lapses or as acts of misconduct depending on their nature and gravity. Schedule A itself provides that even instances mentioned therein may, at the discretion of the competent authority, be treated as acts of misconduct according to the circumstances and gravity of the misbehaviour.
98. In the present case, the charge-sheet did not proceed merely on isolated late attendance or a single absence. The charges were framed under Regulation 86(3) read with Schedule B. The Schedule B heads invoked against the Appellant included indiscipline, insubordination or misbehaviour, disobedience of orders of superior officers, tampering with official documents, negligence and misuse of company property. The Labour Court also recorded that the main proved charges related to indiscipline, misbehaviour, disobedience of superior officers, tampering with official documents and negligent discharge of duty.
99. Therefore, the proved acts cannot be reclassified by this Court as only minor lapses under Schedule A. The finding that misconduct stood proved shall remain undisturbed. However, the Appellant's submission is relevant while considering the proportionality of punishment. The fact that some components of the charge resemble minor lapses, the absence of financial misappropriation, the long service of the Appellant, and the period to which the allegations substantially relate, are all matters which the competent authority must consider while deciding the appropriate penalty.



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100. The Appellant had rendered long service before disciplinary proceedings were initiated. She joined service in 1985, and she was dismissed from service on 12.07.2017. Her case is that there were no allegations of misconduct for about 21 years of service and that the allegations arose substantially during a limited period in 2006. She has also contended that the punishment was a counterblast to the proceedings she instituted regarding her service grievances.
101. The Respondent has maintained that the proved charges were serious and related to discipline and office functioning. While we are not inclined to reopen the finding of misconduct, the question of punishment stands on a different footing. The punishment must bear a reasonable relationship with the gravity of the misconduct, the past service record, the surrounding circumstances and the impact of the misconduct on the establishment as also observed by the Labour Court while referring the finding of the alleged misconduct proved.
102. The Labour Court in its final order dated 27.06.2017 passed in Complaint ULP No. 34/2008 observed in paragraph 49 of the order as follows:

*“49. As such, in present case in hand considering above discussion, disciplinary authority cannot be prevented from imposing proper punishment on complainant by allowing her complaint. Needless to say, that while determining appropriate punishment according to law, disciplinary authority has to consider length of service of complainant, her past service record, gravity of misconduct proved against her and reply filed to the impugned show cause notice.*

103. On the issue of proportionality, this Court in **Ranjit Thakur v. Union of India, (1987) 4 SCC 611**, held that:

*“25. Judicial review generally speaking, is not directed against a decision, but is directed against the decision-making process. The question of the choice and quantum of punishment is within the jurisdiction and discretion of the Court-Martial. But the sentence has to suit the offence and the offender. It should not be vindictive or unduly harsh. It should not be so disproportionate to the offence as to shock the conscience...”*

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104. In ***B.C. Chaturvedi v. Union of India, (1995) 6 SCC 749***, this Court noted the limited scope of interference with punishment, while recognizing that the Court may mould relief in an appropriate case. It held that:

*“18... The High Court/Tribunal, while exercising the power of judicial review, cannot normally substitute its own conclusion on penalty and impose some other penalty. If the punishment imposed by the disciplinary authority or the appellate authority shocks the conscience of the High Court/Tribunal, it would appropriately mould the relief, either directing the disciplinary/appellate authority to reconsider the penalty imposed, or to shorten the litigation, it may itself, in exceptional and rare cases, impose appropriate punishment with cogent reasons in support thereof.”*

105. In ***Chairman-cum-Managing Director, Coal India Ltd. v. Mukul Kumar Choudhuri, AIR 2010 SC 75***, this Court reiterated that punishment, which is grossly excessive, disproportionately high or unduly harsh cannot claim immunity from judicial scrutiny. It observed that:

*“24. So far as our legal system is concerned, the doctrine is well settled. Even prior to CCSU, this Court has held that if punishment imposed on an employee by an employer is grossly excessive, disproportionately high or unduly harsh, it cannot claim immunity from judicial scrutiny, and it is always open to a court to interfere with such penalty in appropriate cases.”*

106. Dismissal from service is the severest form of penalty which can be inflicted on a delinquent employee in service jurisprudence. It brings the relationship of employer and employee to an end permanently, and ordinarily deprives the employee of the incidents of past service, including retiral benefits. It does not lead merely to the loss of the existing source of income for the employee but also for the dependent family members. Thus, it will have a devastating effect not only on the dismissed employee but also on all those who are dependant on the employee. Because of the severity of its impact not only on the employee but also to his dependents, the disciplinary authority must be very careful in seeking to impose the severest form of punishment of dismissal.

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It further carries consequences beyond immediate cessation of employment. It leaves a permanent stigma on the service record of the employee concerned, and may impair future employment prospects, particularly in public employment, statutory bodies, public sector undertakings and other regulated establishments where antecedents and service record are material. For this reason, dismissal must remain reserved for cases where the misconduct is of the most serious nature where elements of synthetic consideration would be undesirable and inappropriate.

107. The misconduct found proved against the Appellant relates to indiscipline, insubordination, and the consequent tampering with documents. We are not minimizing the importance of discipline in an office establishment. However, the material presently noticed does not show corruption, illegal gratification, moral turpitude, misappropriation of funds, proved pecuniary loss to the employer, public scandal, or conduct bringing the institution into public disrepute. The allegations substantially appear to arise out of internal office functioning and service-related conflict and did not play out in the public domain.
108. In the present case, we do not find that the competent authority undertook such an exercise of evaluating various relevant factors. The order does not reflect consideration of the Appellant's long service, past record, age, absence or presence of dishonesty, or absence or presence of actual loss as also commended by the Labour Court.
109. Even where the Regulations include dismissal as one of the permissible punishments for acts of misconduct, the authority is not relieved of its duty to consider all relevant factors to see whether the facts of the case truly warrant the most extreme form of penalty. The mere fact that a proved act falls within the broad category of "misconduct" under the Regulations does not mean that dismissal must follow as a matter of course.
110. Dismissal is ordinarily justified where the misconduct is of such gravity that continuance of the employee would be wholly incompatible with discipline, trust or institutional functioning. Cases involving corruption, illegal gratification, moral turpitude, misappropriation, acts causing substantial loss to the employer, or conduct showing complete unfitness for continued service stand on a different footing. However, where the misconduct does not involve corruption, moral turpitude, financial misappropriation or proved loss to the employer, and where there is long service without much

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blemish, the disciplinary authority must carefully examine whether any lesser punishment would meet the ends of justice.

#### **CONCLUSION & DIRECTIONS**

111. For the reasons discussed above, the appeal is partly allowed in the following terms.
  - 111.1. We hold that imposition of the second punishment of treating the suspension undergone as punishment was not permissible and accordingly, the same is set aside.
  - 111.2. With respect to the punishment of dismissal which we consider wholly disproportionate to the charges proved, the competent authority shall consider any punishment other than the ultimate penalty of dismissal from service, after considering the Appellant's long service, past record, age, nature of misconduct, absence or presence of financial loss, and other relevant circumstances.
  - 111.3. It shall also decide the service and monetary consequences of the suspension period in accordance with the Regulations as discussed above including payment of subsistence allowance in terms of our observations above.
  - 111.4. The finding that misconduct stood proved against the Appellant shall remain undisturbed and we are not reopening the adjudication of misconduct recorded in Complaint (ULP) No. 34 of 2008 by the Labour Court, which was also affirmed in Revision (ULP) No. 37 of 2017 by the Industrial Court. The Appellant was a party to the adjudicatory proceedings before the Labour Court where the misconduct was recorded and had the opportunity to lead and in fact led the evidence in her favour.
  - 111.5. We also find no error in the concurrent finding that the Executive Engineer was competent under the applicable MSEDCL Employees Service Regulations to pass an order of punishment against the Appellant, who was a Pay Grade-III employee. The challenge to the dismissal order on the ground of lack of competence is therefore rejected.
  - 111.6. However, regarding the dismissal order dated 12.07.2017, the disciplinary authority proceeded substantially on the

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earlier show-cause notice dated 25.04.2008, which was based on the domestic enquiry that was subsequently found not to be valid. After remand, the misconduct was still established, but in a different manner before the new forum, i.e., based on the evidence led before the Labour Court. The disciplinary authority was, therefore, required to give another show cause notice with fresh application of mind to enable the Appellant to submit her representation as regards the nature of punishment.

- 111.7. Before imposing the penalty of dismissal from service, the disciplinary authority failed to consider the relevant factors bearing on punishment, including the nature and gravity of the misconduct, the Appellant's long service, past record, age, absence of financial loss to the Respondent – Company, or dishonesty, and the possibility of imposing a lesser penalty.

The dismissal order dated 12.07.2017 is, therefore, set aside as wholly disproportionate, while leaving the finding of misconduct undisturbed.

- 111.8. The competent authority shall, within four weeks from the date of receipt of this judgment, issue a proper show-cause notice to the Appellant based on the findings of the Labour Court in Complaint (ULP) No. 34 of 2008, as regards the penalty proposed to be imposed other than dismissal, having regard to the gravity of the misconduct. Thereafter, the competent authority shall pass a reasoned order on penalty within eight weeks.

- 111.9. The competent authority shall determine the Appellant's claim for subsistence allowance in two parts.

For the period from 04.09.2006 to 03.03.2007, the authority shall consider the original reporting condition, the Appellant's explanation for non-reporting at Warora, the effect of her earlier transfer to Warora having been set aside, and whether leave of absence from reporting ought to have been granted.

For the period after 03.03.2007 till 12.07.2017, the Appellant shall be treated as eligible for subsistence allowance. The said amount shall be paid to the Appellant irrespective of the nature of punishment that may be passed.

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- 111.10. Since the Appellant has already crossed the age of superannuation, no direction for reinstatement can be issued at this stage. The monetary and retiral consequences, if any, shall abide by the fresh order to be passed by the competent authority in terms of this judgment and the applicable Regulations.
112. Consequently, the impugned judgment and order dated 05.04.2024 passed by the High Court of Judicature at Bombay, Nagpur Bench in Writ Petition No. 1200 of 2023 is set aside in terms of the directions and observations made above. As a sequel, the order dated 11.11.2024 passed by the High Court in MCA No. 357 of 2024 is also set aside.

Pending applications, if any, shall stand disposed of.

*Result of the case:* Appeal partly allowed.

*<sup>†</sup>Headnotes prepared by: Nidhi Jain*

[2026] 7 S.C.R. 297 : 2026 INSC 650

**The State of Madhya Pradesh**

**v.**

**Ravi Shankar Singh & Ors.**

(Criminal Appeal No(s). 2191-2192 of 2025)

10 June 2026

**[Prashant Kumar Mishra and Atul S. Chandurkar, JJ.]**

### **Issue for Consideration**

Issue arose as regards the power and jurisdiction of the High Court to issue the directions that trial court while trying a case under the Prevention of Corruption Act to examine the sanctioning authority exercising powers u/s.311 CrPC before framing charge, even if there is no challenge to the same by the accused.

### **Headnotes<sup>†</sup>**

**Constitution of India – Art. 226 – Code of Criminal Procedure, 1973 – s.311 – Power and jurisdiction of the High Court – Writ Petition sought quashing of the sanction for prosecution granted by the Competent Authority under the 1988 Act against the first respondent – High Court while dismissing the petition, issued certain directions that trial court while trying a case under the Prevention of Corruption Act to examine the sanctioning authority exercising powers u/s.311 before framing charge, even if there is no challenge to the same by the accused – First respondent acquitted of the charges for committing the offences u/ss.7, 13(1)(d) and 13(2) of the PC Act and, thus, the issue regarding validity of the sanction become infructuous – Directions and guidelines issued by the High Court, if would create difficulties in perpetuity affecting all criminal trials:**

**Held:** High Court in exercise of its jurisdiction u/Art.226 cannot re-write the CrPC and direct all the Sessions Courts/Special Courts under the PC Act to examine the sanctioning authority even before framing of charge or commencement of trial – Stage of s.311 CrPC occurs under Chapter XXIV regarding general provisions as to inquiries and trials and these provisions cannot be read into a step in conduct of trial so as to clothe a criminal court with jurisdiction to bye-pass the procedure provided for conduct of trial and evolve a new procedure and methodology for conducting trial by examining

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the sanctioning authority even before framing of charge – There is no such procedure provided in the CrPC where such step can be made permissible – New stage for trial cannot be introduced by a judicial fiat – Trial in a criminal case including in offences under the PC Act has to be conducted in the manner provided for in the Cr.PC/Bharatiya Nagarik Suraksha Sanhita read with the provisions contained in the PC Act – Guidelines and directions issued by the High Court in the impugned order set aside – Prevention of Corruption Act, 1988 – ss.7, 13(1)(d) and 13(2). [Paras 7-10]

### List of Acts

Prevention of Corruption Act, 1988; Code of Criminal Procedure, 1973; Constitution of India; Bharatiya Nagarik Suraksha Sanhita, 2023.

### List of Keywords

Power and jurisdiction of the High Court; Sanctioning authority exercising powers u/s.311 CrPC before framing charge; Quashing of the sanction for prosecution granted by the Competent Authority; Validity of the sanction; Directions and guidelines issued by the High Court.

### Case Arising From

CRIMINAL APPELLATE JURISDICTION: Criminal Appeal No(s). 2191-2192 of 2025

From the Judgment and Order dated 02.11.2020 and 08.05.2020 of the High Court of M.P Principal Seat at Jabalpur in RP No. 1010 of 2020 and WP No. 19792 of 2019, respectively

With

Criminal Appeal No(s). 2904-2905 of 2025

### Appearances for Parties

*Advs. for the Appellant(s):*

Rajeev Singh, Naveen Kumar Singh, Nishant Ramakantrao Katneshwarkar.

*Advs. for the Respondent(s):*

Nishant Ramakantrao Katneshwarkar, Amalpushp Shroti, Naveen Kumar.



**The State of Madhya Pradesh v. Ravi Shankar Singh & Ors.****Judgment / Order of the Supreme Court****Order****Criminal Appeal No(s). 2191-2192/2025**

1. These Appeals are directed against the orders passed by the High Court in the Writ Petition as well as in the Review Petition. While dismissing the Writ Petition seeking quashing of the sanction for prosecution granted by the Competent Authority under the Prevention of Corruption Act, 1988<sup>1</sup> against the first respondent-Ravi Shankar Singh, the High Court has issued certain directions as contained in paragraphs 32 and 33 of the impugned order dated 08.05.2020.
2. Admittedly, the first respondent-accused has been acquitted of the charges for committing the offences under Sections 7, 13(1)(d) and 13(2) of the PC Act and, thus, the issue regarding validity of the sanction has become infructuous. However, the appellant-State is mainly aggrieved by certain directions which the High Court has issued in paragraphs 32 and 33 of the impugned order dated 08.05.2020. Therefore, in the peculiar facts of the case, we have proceeded to decide the issue concerning the High Court's power and jurisdiction to issue the nature of directions as contained in paragraphs 32 and 33 of the impugned order.
3. The High Court *vide* impugned order dated 08.05.2020 has issued the following directions:

“32. In our considered opinion, the advantage of recording the evidence of the Sanctioning Authority U/S 311 CRPC, before framing of charge, are as follows.

(a) The Court saves precious time if the evidence of the Sanctioning Authority reveals that the Sanction is bad either on account of it being passed by an incompetent authority or passed without application of mind which case, the accused can be discharged and the charge-sheet returned to the investigating agency.

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1 For short, “the PC Act”

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(b) The investigating agency has the opportunity of seeking fresh sanction and refiling the chargesheet before the Trial Court.

(c) The accused does not get the benefit of *autrefois acquit/convict* as charge has not been framed, and

(d) The accused cannot get the benefit of a seeking quashment of the case on the ground of delayed trial, which he may otherwise get if he is discharged by the Trial Court at the end of the trial after a protracted trial spanning over a decade.

33.(sic) In view of what we have discussed and held hereinabove; we propose to lay down the following guidelines to be followed by the learned trial court while trying a case under the Prevention of Corruption Act.

(a) The trial court shall examine the sanctioning authority exercising powers under section 311 CRPC before framing charge, even if there is no challenge to the same by the accused, as the validity of the sanction order can to to the root of the case and can render the very act of taking cognizance itself void *ab initio*.

(b) If the trial court finds that the sanction passed in consonance with the provisions of section 19 of the PC Act on both the parameters of competence of the sanctioning authority and application of mind on the part of the sanctioning authority, then the trial court shall proceed to the next stage and decide whether charges should be framed against the accused after hearing the prosecution and the defence.

(c) If the trial court is of the opinion that the sanction order under section 19 of the PC Act is fundamentally defective on either of the parameters, it shall discharge the accused and return the chargesheet to the investigating agency, which shall be at liberty to file the chargesheet once again after seeking a fresh sanction under section 19 of the PC Act.

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(d) These directions are prospective in nature and shall not affect the proceedings in those cases where the charges have been framed and evidence has commenced before the trial court. It goes without saying that these directions shall have no effect on the inherent powers of the High Court under section 482 CRPC or its powers of revision under section 397 with 401 CRPC.”

4. Learned counsel for the appellant-State would submit that although upon acquittal of the first respondent-accused, the present Criminal Appeals have abated; however, the directions and guidelines issued in paragraphs 32 and 33 by the High Court, as quoted above, will create difficulties in perpetuity affecting all criminal trials not only under PC Act but also in other serious offences. It is also argued that the appellant-State moved the High Court by preferring a Review Petition which also stands dismissed *vide* order dated 02.11.2020 in R.P. No. 1010/2020. It is further submitted that the High Court has wrongly read and interpreted the provisions contained in Section 311 of the Code of Criminal Procedure, 1973<sup>2</sup> for issuing the directions as if the Court may examine a witness at any stage of the proceeding i.e., to say even immediately after filing of the charge-sheet.
5. Mr. Naveen Kumar, learned counsel appearing for appellant-Kamta Prasad in Criminal Appeal Nos. 2904-2905 of 2025 would support the order/directions/guidelines issued by the High Court.
6. Learned counsel for the respondent(s) would submit that the provisions contained in Section 311 of the Cr.PC itself provides that the Court can exercise the power at any stage of any inquiry or trial or other proceedings under the Cr.PC, therefore, issuance of directions in consonance with the language of Section 311 Cr.PC is fully justified.
7. The Cr.PC prescribes and provides for a complete procedure as to the manner in which all kinds of trial will be conducted. They are provided in Chapters XV to XXI. Thus, the stage of Section 311 of the Cr.PC occurs under Chapter XXIV regarding general provisions as to inquiries and trials. These general provisions cannot be read

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2 For short, “the Cr.PC”

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into a step in conduct of trial so as to clothe a criminal court with jurisdiction to bye-pass the procedure provided for conduct of trial and evolve a new procedure and methodology for conducting trial by examining the sanctioning authority even before framing of charge. There is no such procedure provided in the Cr.PC where such step can be made permissible. We are afraid, a new stage for trial cannot be introduced by a judicial fiat. Trial in a criminal case including in offences under the PC Act has to be conducted in the manner provided for in the Cr.PC/ Bharatiya Nagarik Suraksha Sanhita read with the provisions contained in the PC Act.

8. The High Court in exercise of its jurisdiction under Article 226 of the Constitution of India cannot re-write the Cr.PC and direct all the Sessions Courts/Special Courts under the PC Act to examine the sanctioning authority even before framing of charge or commencement of trial.
9. In the above view of the matter, we set aside the guidelines and directions issued by the High Court in paragraphs 32 and 33 of the impugned order dated 08.05.2020.
10. The Appeal, though infructuous upon acquittal of the accused, is allowed to the above extent in respect of paragraphs 32 and 33 of the impugned order dated 08.05.2020, by setting aside the same.
11. Pending application(s), if any, shall stand disposed of.

#### **Criminal Appeal No(s). 2904-2905/2025**

1. In view of the order passed in Criminal Appeal No(s). 2191-2192/2025, these Appeals also stand dismissed.
2. Pending application(s), if any, shall stand disposed of.

*Result of the case:* Criminal Appeal No(s). 2191-2192/2025 allowed.  
Criminal Appeal No(s). 2904-2905/2025 dismissed.



